IMPORTANT NOTICE

Attached please find an electronic copy of the Offering Memorandum (the "***Offering Memorandum***"), dated September 24, 2020, relating to the offering by CIP VIII Private Equity Backed Notes Ltd (the "***Issuer***") of (i) the Class A Notes, (ii) the Class B Notes, (iii) the Class I Subordinated Notes and (iv) the Class II Subordinated Notes of the Issuer.

The Offering Memorandum is highly confidential and does not constitute an offer to any person (other than, subject to the provisions of this notice, the recipient) or to the public generally to subscribe for or otherwise acquire the Notes described therein.

THE OFFERING MEMORANDUM SHALL NOT CONSTITUTE AN OFFER TO SELL OR THE SOLICITATION OF AN OFFER TO BUY NOR SHALL THERE BE ANY SALE OF THE NOTES IN ANY JURISDICTION IN WHICH SUCH OFFER, SOLICITATION OR SALE WOULD BE UNLAWFUL PRIOR TO REGISTRATION OR QUALIFICATION UNDER THE SECURITIES LAWS OF SUCH JURISDICTION. THE NOTES MAY NOT BE SOLD NOR MAY OFFERS TO BUY BE ACCEPTED BEFORE THE OFFERING MEMORANDUM IS DELIVERED IN FINAL FORM.

DISTRIBUTION OF THE OFFERING MEMORANDUM TO ANY PERSON OTHER THAN THE PERSON RECEIVING THIS ELECTRONIC TRANSMISSION FROM THE ISSUER REFERRED TO THEREIN AND ITS AGENTS, AND ANY PERSONS RETAINED TO ADVISE THE PERSON RECEIVING THIS ELECTRONIC TRANSMISSION FROM THE ISSUER WITH RESPECT THERETO, IS UNAUTHORIZED. ANY PHOTOCOPYING, DISCLOSURE OR ALTERATION OF THE CONTENTS OF THE OFFERING MEMORANDUM, AND ANY FORWARDING OF A COPY OF THE OFFERING MEMORANDUM OR ANY PORTION THEREOF BY ELECTRONIC MAIL OR ANY OTHER MEANS TO ANY PERSON OTHER THAN THE PERSON RECEIVING THIS ELECTRONIC TRANSMISSION FROM THE ISSUER IS PROHIBITED. BY ACCEPTING DELIVERY OF THE OFFERING MEMORANDUM, THE RECIPIENT AGREES TO THE FOREGOING.

If you are not the intended recipient of this message, please delete and destroy all copies of this disclaimer and all attached documents, along with any e-mail to which either may be attached.

CIP VIII Private Equity Backed Notes Ltd

U.S.$9,500,000 Class A Senior Secured Deferrable Fixed Rate Notes due 2035
U.S.$32,850,000 Class B Senior Secured Deferrable Fixed Rate Notes due 2035
U.S.$48,000,000 Class I Subordinated Notes due 2035
U.S.$35,000,000 Class II Subordinated Notes due 2035

CIP VIII Private Equity Backed Notes Ltd (the "***Issuer***") will issue the U.S.$9,500,000 Class A Senior Secured Deferrable Fixed Rate Notes due 2035 (the "***Class A Notes***"), the U.S.$32,850,000 Class B Senior Secured Deferrable Fixed Rate Notes due 2035 (the "***Class B Notes***" and, together with the Class A Notes, the "***Secured Notes***"), the U.S.$48,000,000 Class I Subordinated Notes due 2035 (the "***Class I Subordinated Notes***") and the U.S.$35,000,000 Class II Subordinated Notes due 2035 (the "***Class II Subordinated Notes***"); the Class I Subordinated Notes and the Class II Subordinated Notes, the "***Subordinated Notes***"; and the Subordinated Notes, together with the Secured Notes, the "***Notes***"). The Notes will not be listed on any securities exchange.

The Issuer (in its capacity as borrower under the Credit Agreement) will also borrow U.S.$100,000,000 Class A Loans due 2035 (the "***Class A Loans***"and, together with the Secured Notes, the "***Secured Debt***" and together, with the Subordinated Notes, the "***Debt***") under the Credit Agreement, which will rank pari passu with the Class A Notes in the payment of interest and principal as and to the extent described herein. The Class A Loans will be secured under the Indenture and the Class A Lenders will be secured parties under the Indenture. The Class A Loans are not being offered hereby. The Class A Loans will not be listed on any securities exchange.

The proceeds of the Debt will be used to acquire Series B limited partnership interests (the "***LP Interest***") in Coller International Partners VIII, L.P. (the "***Fund***"). In connection therewith, the Issuer will prefund a portion of its capital commitment in respect of the LP Interest in the form of the Cash Investment (the Cash Investment and the LP Interest each a "***Portfolio Asset***" and, collectively, the "***Portfolio Assets***"), which will earn a return as more fully described herein. The Secured Debt will be secured by the Portfolio Assets, certain contractual rights and bank accounts of the Issuer, and distributions received by the Issuer with respect to the Portfolio Assets. The Issuer has no assets other than the Assets (as defined herein). Certain management and administrative services will be provided to the Issuer by Coller Investment Management Limited (the "***Manager***"). Coller Investment Management Limited also serves as the investment manager of the Fund.

It is a condition of the offering that (i) the Class A Notes and the Class A Loans are rated at least "A-" by Kroll and (ii) the Class B Notes are rated at least "BBB" by Kroll. The Subordinated Notes will not be rated.

THE NOTES HAVE NOT BEEN AND WILL NOT BE REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE "***SECURITIES ACT***"), OR ANY STATE SECURITIES LAWS, AND THE ISSUER IS NOT NOR WILL BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE "***INVESTMENT COMPANY ACT***"), IN RELIANCE ON THE EXEMPTION PROVIDED BY SECTION 3(c)(7) THEREOF. ACCORDINGLY, THE NOTES MAY NOT BE OFFERED OR SOLD WITHIN THE UNITED STATES EXCEPT PURSUANT TO AN EXEMPTION FROM, OR IN A TRANSACTION NOT SUBJECT TO, THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT, APPLICABLE STATE SECURITIES LAWS AND THE INVESTMENT COMPANY ACT. THE NOTES MAY ONLY BE OFFERED OR SOLD (1) TO PERSONS THAT ARE (A) BOTH (I) "QUALIFIED INSTITUTIONAL BUYERS" (AS DEFINED IN RULE 144A UNDER THE SECURITIES ACT) AND (II) "QUALIFIED PURCHASERS" (WITHIN THE MEANING OF SECTION 2(A)(51) OF THE INVESTMENT COMPANY ACT AND THE RULES THEREUNDER) OR (B) TO "ACCREDITED INVESTORS" (AS DEFINED IN RULE 501(a) OF REGULATION D UNDER THE SECURITIES ACT) THAT ARE NON–U.S. PERSONS IN "OFFSHORE TRANSACTIONS", AS SUCH TERM IS DEFINED IN, AND IN RELIANCE ON, REGULATION S UNDER THE SECURITIES ACT AND (2) IN ACCORDANCE WITH ANY OTHER APPLICABLE LAW. FOR A DESCRIPTION OF CERTAIN RESTRICTIONS ON RESALE OR TRANSFER, SEE "*NOTICE TO INVESTORS AND TRANSFER RESTRICTIONS*".

SEE "*RISK FACTORS*" FOR A DISCUSSION OF CERTAIN FACTORS TO BE CONSIDERED IN PURCHASING ANY OF THE NOTES.

The Issuer will rely on Section 3(c)(7) of the Investment Company Act and therefore, absent an exemption pursuant to the Volcker Rule, it would be deemed to be a "covered fund" within the meaning of the Volcker Rule. See "*Risk Factors—Legal and Regulatory Risks—Legal and Regulatory Developments—The Volcker Rule*".

The Notes (other than the Notes sold directly by the Issuer to the initial investors thereof, such Notes, the "***Direct Purchase Notes***") are offered, subject to prior sale, when, as and if delivered to and accepted by Morgan Stanley & Co. LLC, as lead manager, placement agent and initial purchaser (in each such capacity, the "***Initial Purchaser***"). It is expected that the Initial Purchaser will resell the Notes (other than the Direct Purchase Notes) in individually negotiated transactions at varying prices determined at the time of sale. The Initial Purchaser will act as lead arranger and bookrunner with respect to the Notes. The Initial Purchaser reserves the right to withdraw, cancel or modify any offer and to reject orders in whole or in part. The delivery of interests in Global Notes is expected to be made in book-entry form through the facilities of The Depository Trust Company ("***DTC***") and its participants and indirect participants, including, without limitation, Euroclear and Clearstream, on or about September 28, 2020 (the "***Closing Date***") and each Certificated Note is expected to be available for delivery to the owner thereof on such date, in each case in New York, New York against payment therefor in immediately available funds.

MORGAN STANLEY

September 24, 2020

IMPORTANT INFORMATION REGARDING THIS OFFERING MEMORANDUM AND THE NOTES

The obligation of the Initial Purchaser or the Issuer, as applicable, to sell such Notes to you is conditioned on the Notes having the characteristics described in this Offering Memorandum. If the Initial Purchaser or the Issuer determines that condition is not satisfied in any material respect, you will be notified, and neither the Issuer nor the Initial Purchaser will have any obligation to you to deliver any portion of the Notes that you have committed to purchase, and there will be no liability among the Issuer, the Initial Purchaser or any of their respective Affiliates and you as a consequence of the non-delivery. Your payment for the Notes will confirm your agreement to the terms and conditions described in this Offering Memorandum.

You hereby confirm that you have been provided with the opportunity to request access to the Underlying Fund Documents and understand that you will need to perform an independent investigation of the information contained therein. In making your investment decision, you should only rely on the information contained in this Offering Memorandum, together with your independent review of the terms of the Underlying Fund Documents. No person has been authorized to give you any information other than as contained in this Offering Memorandum and the Underlying Fund Documents. If you receive any other information, you should not rely on it.

You should not assume that the information contained in this Offering Memorandum is accurate as of any date other than the date on the front cover of this Offering Memorandum.

No action is being taken or is contemplated by the Issuer that would permit a public offering of the Notes or possession or distribution of this Offering Memorandum, any amendment thereof, supplement thereto or any other offering material relating to the Issuer or the Notes in any jurisdiction where, or in any other circumstances in which, action for those purposes is required. The distribution of this Offering Memorandum and the offering of the Notes may also be restricted by law in certain jurisdictions. Consequently, nothing contained herein will constitute an offer to sell, or a solicitation of an offer to buy, (i) any securities other than the Notes offered hereby or (ii) any securities in any jurisdiction in which it is unlawful for such person to make such an offer or solicitation. Persons into whose possession this Offering Memorandum comes are required by the Issuer to inform themselves about, and to observe, any such restrictions.

The Issuer reserves the right, for any reason, to reject any offer to purchase, in whole or in part, to allot to you less than the full amount of Notes sought by you or to sell less than the stated initial principal amount of any Class of Notes.

Payments on the Debt will be made solely from available funds, including proceeds from the sale and redemption of and distributions from the Assets, and such available funds together with the Liquidity Loans will be the only source of payment on the Debt. The Debt is subordinated to payments under the Liquidity Loan Facility to the extent set forth in the Priority of Payments. The Subordinated Notes are not entitled to payments of principal or interest or a preferred return, and any distributions made to the holders of the Subordinated Notes shall be made in accordance with the limitations set out in the Indenture.

The Debt does not represent interests in or obligations of, and are not insured or guaranteed by, the Initial Purchaser, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Administrator or any of their respective affiliates.

The Notes described herein have not been registered with, recommended by or approved by the United States Securities and Exchange Commission (the "*SEC*") or any other federal or state securities commission or regulatory authority, nor has the SEC or any such commission or regulatory authority passed upon the accuracy or adequacy of this Offering Memorandum. Any representation to the contrary is a criminal offense. The Notes have not been and will not be registered or qualified under the Securities Act or the securities laws of any other relevant jurisdiction and may not be offered, sold or otherwise transferred unless an exemption from registration or qualification under the Securities Act and applicable state securities laws and the laws of any other relevant jurisdiction is available. Neither the Issuer nor the pool of Assets is or will be registered under the Investment Company Act in reliance on an exemption from registration.

You are hereby notified that a seller of the Notes may rely on an exemption from the registration requirements of Section 5 of the Securities Act provided by Rule 144A of the Securities Act or by Section 4(a)(2) of the Securities Act. These exemptions apply to offers and sales of securities that do not involve a public offering.

The Manager, with respect to the Issuer, intends to be exempt from registration as a "commodity pool operator" with the U.S. Commodity Futures Trading Commission (the "*CFTC*") pursuant to the exemption under CFTC Rule 4.13(a)(3) and comply with the requirements thereof, including all applicable limitations on commodity positions. Therefore, unlike registered commodity pool operators, the Manager is not required to deliver a disclosure document and a certified annual report to participants in the Issuer. See "*Risk Factors—Legal and Regulatory Risks—U.S. Commodity Exchange Act*."

The Notes are subject to restrictions on reoffer, resale, pledge or other transfer as described under "*Description of the Debt*", "*Plan of Distribution*" and "*Notice to Investors and Transfer Restrictions*". By purchasing any Notes, you will be deemed to have made (or, in certain cases, will be required to make) certain acknowledgments, representations and agreements as described in "*Notice to Investors and Transfer Restrictions*". Any resale or other transfer, or attempted resale or attempted other transfer, of Notes that is not made in compliance with the applicable transfer restrictions will be treated by the Issuer and the Collateral Trustee (with respect to the Notes) as null and void.

An investment in the Notes involves a high degree of risk and will be appropriate only for financially sophisticated investors who can afford to take such speculative risk. An investor in the Notes should have no need for liquidity with respect to its investment in the Notes and no need to dispose of its Notes or any portion thereof to satisfy any existing or contemplated indebtedness or obligation or for any other purpose.

You may be required to bear the financial risks of investing in the Notes for an indefinite period of time.

This Offering Memorandum is a confidential document that is being provided only to prospective purchasers of the Notes. You should read this Offering Memorandum in its entirety before making a decision whether to purchase any Notes. You must not:

- use this Offering Memorandum for any other purpose;
- make copies of any part of this Offering Memorandum or give a copy of it to any other individual, corporation (including a business trust), partnership, limited liability company, joint venture, association, joint stock company, trust (including any beneficiary thereof), unincorporated association or government or any agency or political subdivision thereof (a "***Person***"); or
- disclose any information in this Offering Memorandum to any other Person.

Notwithstanding anything to the contrary herein, each recipient (and each employee, representative, or other agent of such recipient) may disclose to any and all persons, without limitation of any kind, the U.S. federal, state, and local tax treatment of the Issuer, the Notes, and the transactions described in this Offering Memorandum and all materials of any kind (including opinions or other U.S. tax analyses) relating to such U.S. federal, state, and local tax treatment and that may be relevant to understanding such U.S. federal, state, and local tax treatment, it being understood, for this purpose, (i) the name of, or any other identifying information regarding, the Issuer or its Portfolio Assets, (ii) any specific performance information relating to the Issuer or its Portfolio Assets and (iii) any performance or other information relating to previous funds or investments sponsored by Coller, does not constitute such tax treatment information.

You are responsible for making your own examination of the Issuer and your own assessment of the merits and risks of investing in the Notes. By purchasing any Notes, you will be deemed to have acknowledged that:

- you have reviewed this Offering Memorandum;

- you have had an opportunity to request any additional information that you need from the Issuer, the Initial Purchaser and the Manager;

- you have consulted with your own financial, legal, regulatory and tax advisors regarding investment in the Notes as you have deemed necessary and that your investment in the Notes is within your powers and authority, is permissible under applicable laws governing such purchase, has been duly authorized by you and complies with applicable securities laws and other laws;

- none of the Initial Purchaser, the Manager, the Administrator, the Loan Agent, the Collateral Administrator or the Collateral Trustee is responsible for, nor is making any representation to you concerning, (i) the future performance of the Issuer, (ii) the accuracy or completeness of this Offering Memorandum or (iii) the value or validity of the Portfolio Assets; and

- you have not relied on the Initial Purchaser, the Manager, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent or any of their respective Affiliates in connection with the accuracy of such information or your investment decision.

The information contained in this Offering Memorandum has been furnished by the Issuer and other sources believed by the Issuer to be reliable. Neither the Manager nor the Initial Purchaser has made any independent investigation of such information and makes no representation or warranty as to the accuracy or completeness of any such information. This Offering Memorandum contains summaries, believed to be accurate, of certain terms of certain documents but reference is made to the actual documents, copies of which will be made available upon request, for the complete information contained therein. All such summaries are qualified in their entirety by this reference.

The Issuer has prepared this Offering Memorandum solely for use in connection with the offering of the Notes. The Issuer accepts responsibility for the information in this Offering Memorandum and, having taken all reasonable care to ensure that such is the case, confirms that such information is in accordance with the facts and does not omit anything likely to affect the import of such information. The Initial Purchaser will have no liability for any information included in this Offering Memorandum or otherwise made available in connection with the offering of the Notes, except for any liabilities expressly assumed by the Initial Purchaser in the definitive purchase agreement for the Notes and related documentation for the offering of the Notes.

None of the Class A Lenders, the Collateral Trustee, the Loan Agent, the Liquidity Agent or the Liquidity Lenders has participated in the preparation of this Offering Memorandum and none of them assumes any responsibility for its contents.

None of the Issuer, the Manager, the Collateral Trustee, the Loan Agent, the Collateral Administrator, the Initial Purchaser, the Administrator or any of their respective Affiliates, is providing you with any legal, regulatory, business, tax or other advice in this Offering Memorandum. You should consult with your own advisors as needed to assist you in making an investment decision and to advise you as to whether you are legally permitted to purchase the Notes.

IN MAKING AN INVESTMENT DECISION, INVESTORS MUST RELY ON THEIR OWN EXAMINATION OF THE PERSON OR ENTITY CREATING THE NOTES AND THE TERMS OF THE OFFERING, INCLUDING THE MERITS AND RISKS INVOLVED. THE NOTES HAVE NOT BEEN RECOMMENDED BY ANY FEDERAL OR STATE SECURITIES COMMISSION OR REGULATORY AUTHORITY. FURTHERMORE, THE FOREGOING AUTHORITIES HAVE NOT CONFIRMED THE ACCURACY OR DETERMINED THE ADEQUACY, ACCURACY OR COMPLETENESS OF THIS DOCUMENT. ANY REPRESENTATION TO THE CONTRARY IS A CRIMINAL OFFENSE.

THE NOTES ARE SUBJECT TO RESTRICTIONS ON TRANSFERABILITY AND RESALE AND MAY NOT BE TRANSFERRED OR RESOLD EXCEPT AS PERMITTED UNDER THE SECURITIES ACT AND THE APPLICABLE STATE SECURITIES LAWS, PURSUANT TO REGISTRATION OR EXEMPTION THEREFROM. INVESTORS SHOULD BE AWARE THAT THEY WILL BE REQUIRED TO BEAR THE FINANCIAL RISKS OF THIS INVESTMENT FOR AN INDEFINITE PERIOD OF TIME.

THE NOTES ARE BEING OFFERED IN RELIANCE ON AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT AND ARE NOT REQUIRED TO COMPLY WITH SPECIFIC DISCLOSURE REQUIREMENTS THAT APPLY TO REGISTRATION UNDER THE SECURITIES ACT. INVESTING IN NOTES INVOLVES RISK, AND INVESTORS SHOULD BE ABLE TO BEAR THE LOSS OF THEIR INVESTMENT.

You must comply with all laws that apply to you in any place where you buy, offer or sell any Notes or possess this Offering Memorandum. You must also obtain any consents or approvals that you need in order to purchase any Notes. None of the Issuer, the Manager, the Initial Purchaser, the Collateral Trustee, the Loan Agent, the Collateral Administrator, the Administrator or any other party to the transactions contemplated by this Offering Memorandum is responsible for your compliance with these legal requirements.

NOTICE TO FLORIDA RESIDENTS

THE NOTES OFFERED HEREBY ARE OFFERED PURSUANT TO A CLAIM OF EXEMPTION UNDER SECTION 517.061 OF THE FLORIDA SECURITIES ACT AND HAVE NOT BEEN REGISTERED UNDER SAID ACT IN THE STATE OF FLORIDA. ALL FLORIDA RESIDENTS WHO ARE NOT INSTITUTIONAL INVESTORS DESCRIBED IN SECTION 517.061(7) OF THE FLORIDA SECURITIES ACT HAVE THE RIGHT TO VOID THEIR PURCHASE OF THE NOTES, WITHOUT PENALTY, WITHIN THREE (3) DAYS AFTER THE FIRST TENDER OF CONSIDERATION.

NOTICE TO INVESTORS IN THE EUROPEAN ECONOMIC AREA AND THE UNITED KINGDOM

This Offering Memorandum is not a prospectus for the purposes of the Prospectus Regulation (as defined below).

The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the European Economic Area (the "***EEA***") or in the United Kingdom (the "***UK***"). For these purposes, a retail investor means a person who is one (or more) of the following:

(i) a retail client as defined in point (11) of Article 4(1) of Directive 2014/65/EU (as amended, "***MiFID II***"); or

(ii) a customer within the meaning of Directive (EU) 2016/97/EU, where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or

(iii) not a qualified investor as defined in Regulation (EU) 2017/1129/EU (as amended, the "***Prospectus Regulation***").

Consequently, no key information document required by Regulation (EU) No 1286/2014 (as amended, the "***PRIIPs Regulation***") for offering or selling the Notes or otherwise making them available to retail investors in the EEA or in the UK has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the EEA or in the UK may be unlawful under the PRIIPs Regulation.

NOTICE TO RESIDENTS OF THE UNITED KINGDOM

The distribution of this Offering Memorandum and any other document in connection with the offering and issuance of the Notes is directed only to persons who: (i) are outside of the United Kingdom; (ii) have professional experience in matters relating to investments and are persons falling within Article 19(5) of the Financial Services and Markets Act 2000 (Financial Promotion) Order 2005 (the "***Order***"); or (iii) are persons falling within Article 49(2) of the Order or are persons to whom this Offering Memorandum or any other such document may otherwise lawfully be issued or passed on (all such persons together being referred to as "***Relevant Persons***"). A person who is not a Relevant Person should not act or rely on this Offering Memorandum or any of its contents. Any investment or investment activity to which this Offering Memorandum relates is available only to Relevant Persons and will be engaged in only with Relevant Persons.

Relevant Persons should note that all, or most, of the protections offered by the United Kingdom regulatory system will not apply to an investment in the Notes and that compensation will not be available under the United Kingdom Financial Services Compensation Scheme.

NOTICE TO RESIDENTS OF THE CAYMAN ISLANDS

No invitation whether directly or indirectly may be made to the public in the Cayman Islands to subscribe for the Notes offered hereby, and no such invitation is made hereby. This document may not be issued or passed to any such person.

NOTICE TO RESIDENTS OF AUSTRALIA

No prospectus or other disclosure document (as defined in the Corporations Act 2001 of Australia ("***Corporations Act***")) in relation to the Notes has been, or will be, lodged with the Australian Securities and Investments Commission ("***ASIC***"), the Australian Securities Exchange operated by ASX Limited or any other regulatory body or agency in Australia. Accordingly:

(a) no offers for the issue or sale of the Notes may be made or invited in Australia (including an offer or invitation which is received by a person in Australia); and

(b) none of the final offering documents of the Notes nor any other draft, preliminary or definitive offering material, term sheet or advertisement relating to the Notes may be distributed or published in Australia, unless:

(i) the minimum aggregate consideration payable by each offeree is at least A$500,000 (or its equivalent in an alternate currency, and in either case, disregarding moneys lent by the offeror or its associates) or the offer otherwise does not require disclosure to investors under Parts 6D.2 or 7.9 of the Corporations Act;

(ii) the offer does not constitute an offer to a "retail client" for the purpose of section 761G of the Corporations Act;

(iii) such action complies with all applicable laws and regulations; and

(iv) such action does not require any document to be lodged with ASIC.

ANY OFFER OF NOTES, INVITATION TO SUBSCRIBE FOR NOTES OR ISSUE OF NOTES IN AUSTRALIA THAT IS REGULATED BY THE CORPORATIONS ACT MUST CONSTITUTE AN EXCLUDED OFFER, EXCLUDED INVITATION, OR EXCLUDED ISSUE WITHIN THE MEANING GIVEN TO THOSE EXPRESSIONS IN THE CORPORATIONS ACT.

NOTICE TO RESIDENTS OF THE BRITISH VIRGIN ISLANDS

The Notes are not being, and may not be offered to the public or to any person in the British Virgin Islands for purchase or subscription by or on behalf of the Issuer.

The Notes may be offered to companies incorporated under the BVI Business Companies Act, 2004 (British Virgin Islands) ("***BVI Companies***"), but only where the offer will be made to, and received by, the relevant BVI Company entirely outside of the British Virgin Islands.

This Offering Memorandum has not been, and will not be, registered with the Financial Services Commission of the British Virgin Islands. No registered prospectus has been or will be prepared in respect of the Notes for the purposes of the Securities and Investment Business Act, 2010 ("***SIBA***") or the Public Issuers Code of the British Virgin Islands.

The Notes may be offered to persons located in the British Virgin Islands who are "qualified investors" for the purposes of SIBA. Qualified investors include (i) certain entities which are regulated by the Financial Services Commission in the British Virgin Islands, including banks, insurance companies, licensees under SIBA and public,

professional and private mutual funds; (ii) a company, any securities of which are listed on a recognised exchange; and (iii) persons defined as "professional investors" under SIBA, which is any person (a) whose ordinary business involves, whether for that person's own account or the account of others, the acquisition or disposal of property of the same kind as the property, or a substantial part of the property of the Issuer; or (b) who has signed a declaration that he or she, whether individually or jointly with his or her spouse, has net worth in excess of US$1,000,000 and that he or she consents to being treated as a professional investor.

NOTICE TO CANADIAN RESIDENTS

This Offering Memorandum constitutes an offer of the Notes described herein only in those Canadian jurisdictions and to those persons in Canada where and to whom they may be lawfully offered for sale, and only by persons permitted to sell such Notes. In particular, the Notes may be sold only to purchasers purchasing, or deemed to be purchasing, as principal that are accredited investors, as defined in National Instrument 45-106 *Prospectus Exemptions* or (for purchasers in Ontario) subsection 73.3(1) of the *Securities Act* (Ontario), that are permitted clients, as defined in National Instrument 31-103 *Registration Requirements, Exemptions and Ongoing Registrant Obligations*, and that are not individuals. Any resale of the Notes must be made in accordance with an exemption from, or in a transaction not subject to, the prospectus requirements of applicable Canadian securities laws.

Securities legislation in certain provinces or territories of Canada may provide a purchaser with remedies for rescission or damages if this Offering Memorandum (including any amendment thereto) contains a misrepresentation, provided that the remedies for rescission or damages are exercised by the purchaser within the time limit prescribed by the securities legislation of the purchaser's province or territory. The purchaser should refer to any applicable provisions of the securities legislation of the purchaser's province or territory for particulars of these rights or consult with a legal advisor.

Pursuant to section 3A.3 of National Instrument 33-105 *Underwriting Conflicts* ("***NI 33-105***"), the Initial Purchaser is not required to comply with the disclosure requirements of NI 33-105 regarding underwriter conflicts of interest in connection with this offering.

The Offering Memorandum does not address the Canadian income tax consequences of the acquisition, holding or disposition of Notes. Prospective Canadian purchasers are advised to consult their own tax advisors with respect to the Canadian and other tax considerations applicable to them, and for information with respect to the eligibility of the Notes for investment by such purchaser under relevant Canadian legislation.

The directors and officers of the Issuer are likely to be located outside of Canada and, as a result, it may not be possible for purchasers to effect service of process within Canada upon the Issuer or those persons. All or a substantial portion of the assets of the Issuer and those persons are likely to be located outside of Canada and, as a result, it may not be possible to satisfy a judgment against the Issuer or those persons in Canada or to enforce a judgment obtained in Canadian courts against the Issuer or those persons outside of Canada. Each purchaser by acquiring Notes acknowledges that it has been notified that the Initial Purchaser is not registered as a securities dealer in any province or territory of Canada, that all or substantially all of the assets of the Initial Purchaser may be situated outside of Canada, and that there may be difficulty enforcing legal rights against the Initial Purchaser for these reasons.

Each purchaser of Notes in Canada hereby agrees that it is the purchaser's express wish that all documents evidencing or relating in any way to the sale of the Notes be drafted in the English language only. *Chaque acheteur au Canada de valeurs mobilières reconnaît que c'est sa volonté expresse que tous les documents faisant foi ou se rapportant de quelque manière à la vente de valeurs mobilières soient rédigés uniquement en anglais.*

NOTICE TO RESIDENTS OF HONG KONG

THIS OFFERING MEMORANDUM IS BEING DISSEMINATED IN HONG KONG BY MORGAN STANLEY ASIA LIMITED. THIS OFFERING MEMORANDUM HAS NOT BEEN REGISTERED WITH THE REGISTRAR OF COMPANIES IN HONG KONG AND ITS CONTENTS HAVE NOT BEEN REVIEWED BY ANY REGULATORY AUTHORITY IN HONG KONG. ACCORDINGLY, (I) THE NOTES MAY NOT BE OFFERED, SOLD, TRANSFERRED OR DELIVERED IN HONG KONG BY MEANS OF ANY DOCUMENT OTHER THAN TO PERSONS WHO ARE "PROFESSIONAL INVESTORS" WITHIN THE MEANING OF THE SECURITIES AND FUTURES ORDINANCE (CAP. 571) OF HONG KONG AND THE SECURITIES AND

FUTURES (PROFESSIONAL INVESTOR) RULES MADE THEREUNDER OR IN OTHER CIRCUMSTANCES WHICH DO NOT RESULT IN THE DOCUMENT BEING A "PROSPECTUS" WITHIN THE MEANING OF THE COMPANIES ORDINANCE (CAP. 32) OF HONG KONG OR WHICH DO NOT CONSTITUTE AN OFFER TO THE PUBLIC WITHIN THE MEANING OF THE COMPANIES ORDINANCE; AND (II) NO PERSON MAY ISSUE ANY INVITATION, ADVERTISEMENT OR OTHER DOCUMENT RELATING TO THE NOTES WHETHER IN HONG KONG OR ELSEWHERE, WHICH IS DIRECTED AT, OR THE CONTENTS OF WHICH ARE LIKELY TO BE ACCESSED OR READ BY, THE PUBLIC IN HONG KONG (EXCEPT IF PERMITTED TO DO SO UNDER THE APPLICABLE SECURITIES LAW OF HONG KONG) OTHER THAN WITH RESPECT TO THE NOTES WHICH ARE OR ARE INTENDED TO BE DISPOSED OF ONLY TO PERSONS OUTSIDE HONG KONG OR ONLY TO "PROFESSIONAL INVESTORS" WITHIN THE MEANING OF THE SECURITIES AND FUTURES ORDINANCE (CAP. 571) OF HONG KONG AND THE SECURITIES AND FUTURES (PROFESSIONAL INVESTOR) RULES MADE THEREUNDER.

NOTICE TO RESIDENTS OF INDIA

THIS OFFERING MEMORANDUM HAS NOT BEEN AND WILL NOT BE REGISTERED AS A PROSPECTUS WITH THE REGISTRAR OF COMPANIES IN INDIA OR WITH THE SECURITIES AND EXCHANGE BOARD OF INDIA. THIS OFFERING MEMORANDUM OR ANY OTHER MATERIAL RELATING TO THESE NOTES IS FOR INFORMATION PURPOSES ONLY AND MAY NOT BE CIRCULATED OR DISTRIBUTED, DIRECTLY OR INDIRECTLY, TO THE PUBLIC OR ANY MEMBERS OF THE PUBLIC IN INDIA AND IN ANY EVENT TO NOT MORE THAN 50 PERSONS IN INDIA. FURTHER, PERSONS INTO WHOSE POSSESSION THIS OFFERING MEMORANDUM COMES ARE REQUIRED TO INFORM THEMSELVES ABOUT AND TO OBSERVE ANY SUCH RESTRICTIONS. EACH PROSPECTIVE INVESTOR IS ADVISED TO CONSULT ITS ADVISORS ABOUT THE PARTICULAR CONSEQUENCES TO IT OF AN INVESTMENT IN THESE NOTES. EACH PROSPECTIVE INVESTOR IS ALSO ADVISED THAT ANY INVESTMENT IN THESE NOTES BY IT IS SUBJECT TO THE REGULATIONS PRESCRIBED BY THE RESERVE BANK OF INDIA AND THE FOREIGN EXCHANGE MANAGEMENT ACT AND ANY REGULATIONS FRAMED THEREUNDER.

NOTICE TO RESIDENTS OF ISRAEL

THE INITIAL PURCHASER HAS REPRESENTED AND AGREED WITH THE ISSUER THAT (A) THIS OFFER OF NOTES IS INTENDED SOLELY FOR INSTITUTIONAL INVESTORS, AS LISTED IN THE FIRST SUPPLEMENT OF THE ISRAELI SECURITIES LAW, 1968; (B) NO PROSPECTUS HAS BEEN PREPARED OR FILED NOR WILL BE PREPARED OR FILED IN ISRAEL RELATING TO THE NOTES OFFERED HEREUNDER; AND (C) IT WILL ONLY SELL THE NOTES TO AN ISRAELI INVESTOR WHO HAS REPRESENTED TO THE INITIAL PURCHASER THAT (I) IT QUALIFIES AS AN INVESTOR LISTED IN THE FIRST SUPPLEMENT OF THE ISRAELI SECURITIES LAW, 1968; AND (II) IT IS PURCHASING THE NOTES FOR ITS OWN ACCOUNT AND NOT FOR DISTRIBUTION OR RESALE.

THE NOTES CANNOT BE RESOLD IN ISRAEL UNLESS AN EXEMPTION FROM THE ISRAELI PROSPECTUS REQUIREMENTS IS AVAILABLE.

NOTICE TO RESIDENTS OF JAPAN

THE NOTES HAVE NOT BEEN AND WILL NOT BE REGISTERED UNDER THE FINANCIAL INSTRUMENTS AND EXCHANGE ACT OF JAPAN (LAW NO. 25 OF 1948, AS AMENDED (THE "***FIEL***")) AND EACH OF THE INITIAL PURCHASER AND THE ISSUER HAS AGREED THAT IT WILL NOT OFFER OR SELL ANY OF THE NOTES, DIRECTLY OR INDIRECTLY, IN JAPAN OR TO, OR FOR THE BENEFIT OF, ANY RESIDENT OF JAPAN (WHICH TERM AS USED HEREIN MEANS ANY PERSON RESIDENT IN JAPAN, INCLUDING ANY CORPORATION OR OTHER ENTITY ORGANIZED UNDER THE LAWS OF JAPAN) OR TO OTHERS FOR REOFFERING OR RESALE, DIRECTLY OR INDIRECTLY, IN JAPAN OR TO A RESIDENT OF JAPAN, EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF, AND OTHERWISE IN COMPLIANCE WITH, THE FIEL AND ANY OTHER APPLICABLE LAWS, REGULATIONS AND MINISTERIAL GUIDELINES AND REGULATIONS OF JAPAN.

NOTICE TO RESIDENTS OF JERSEY

THE NOTES MAY NOT BE OFFERED TO, SOLD TO OR PURCHASED OR HELD BY PERSONS (OTHER THAN FINANCIAL INSTITUTIONS) RESIDENT FOR INCOME TAX PURPOSES IN JERSEY.

THE NOTES MAY ONLY BE ISSUED OR ALLOTTED EXCLUSIVELY TO:

(I) A PERSON WHOSE ORDINARY ACTIVITIES INVOLVE HIM IN ACQUIRING, HOLDING, MANAGING OR DISPOSING OF INVESTMENTS (AS PRINCIPAL OR AGENT) FOR THE PURPOSES OF HIS BUSINESS OR WHO IT IS REASONABLE TO EXPECT WILL ACQUIRE, HOLD, ARRANGE OR DISPOSE OF INVESTMENTS (AS PRINCIPAL OR AGENT) FOR THE PURPOSES OF HIS BUSINESS; OR

(II) A PERSON WHO HAS RECEIVED AND ACKNOWLEDGED A WARNING TO THE EFFECT THAT (A) THE NOTES ARE ONLY SUITABLE FOR ACQUISITION BY A PERSON WHO (I) HAS A SIGNIFICANTLY SUBSTANTIAL ASSET BASE SUCH AS WOULD ENABLE HIM TO SUSTAIN ANY LOSS THAT MIGHT BE INCURRED AS A RESULT OF ACQUIRING THE NOTES; AND (II) IS SUFFICIENTLY FINANCIALLY SOPHISTICATED TO BE REASONABLY EXPECTED TO KNOW THE RISKS INVOLVED IN ACQUIRING THE NOTES AND (B) NEITHER THE ISSUE OF THE NOTES NOR THE ACTIVITIES OF ANY FUNCTIONARY WITH REGARD TO THE ISSUE OF THE NOTES ARE SUBJECT TO ALL THE PROVISIONS OF THE FINANCIAL SERVICES (JERSEY) LAW 1998.

EACH PERSON WHO ACQUIRES NOTES WILL BE DEEMED, BY SUCH ACQUISITION, TO HAVE REPRESENTED THAT HE OR IT IS ONE OF THE FOREGOING PERSONS.

NOTICE TO RESIDENTS OF KOREA

THE NOTES MAY NOT BE OFFERED, SOLD AND DELIVERED, DIRECTLY OR INDIRECTLY, OR OFFERED OR SOLD TO ANY PERSON FOR REOFFERING OR RESALE, DIRECTLY OR INDIRECTLY, IN KOREA OR TO ANY RESIDENT OF KOREA EXCEPT PURSUANT TO THE APPLICABLE LAWS AND REGULATIONS OF KOREA, INCLUDING THE KOREA SECURITIES AND EXCHANGE ACT AND THE FOREIGN EXCHANGE TRANSACTION LAW AND THE DECREES AND REGULATIONS THEREUNDER. THE NOTES HAVE NOT BEEN REGISTERED WITH THE FINANCIAL SERVICES COMMISSION OF KOREA FOR PUBLIC OFFERING IN KOREA. FURTHERMORE, THE NOTES MAY NOT BE RESOLD TO KOREAN RESIDENTS UNLESS THE PURCHASER OF THE NOTES COMPLIES WITH ALL APPLICABLE REGULATORY REQUIREMENTS (INCLUDING BUT NOT LIMITED TO GOVERNMENT APPROVAL REQUIREMENTS UNDER THE FOREIGN EXCHANGE TRANSACTION LAW AND ITS SUBORDINATE DECREES AND REGULATIONS) IN CONNECTION WITH THE PURCHASE OF THE NOTES.

NOTICE TO RESIDENTS OF MONACO

THE NOTES MAY NOT BE OFFERED OR SOLD, DIRECTLY OR INDIRECTLY, TO THE PUBLIC IN MONACO OTHER THAN BY A MONACO BANK OR A DULY AUTHORIZED MONEGASQUE INTERMEDIARY ACTING AS A PROFESSIONAL INSTITUTIONAL INVESTOR WHICH HAS SUCH KNOWLEDGE AND EXPERIENCE IN FINANCIAL AND BUSINESS MATTERS AS TO BE CAPABLE OF EVALUATING THE RISKS AND MERITS OF AN INVESTMENT IN THE NOTES. CONSEQUENTLY, THIS OFFERING MEMORANDUM MAY ONLY BE COMMUNICATED TO BANKS DULY LICENSED BY THE "AUTORITÉ DE CONTRÔLE PRUDENTIEL" AND FULLY LICENSED PORTFOLIO MANAGEMENT COMPANIES BY VIRTUE OF LAW N° 1.144 OF JULY 26, 1991 AND LAW 1.338 OF SEPTEMBER 7, 2007, DULY LICENSED BY THE "COMMISSION DE CONTRÔLE DES ACTIVITÉS FINANCIÈRES". SUCH REGULATED INTERMEDIARIES MAY IN TURN COMMUNICATE THIS OFFERING MEMORANDUM TO POTENTIAL INVESTORS.

NOTICE TO RESIDENTS OF NEW ZEALAND

THE INITIAL PURCHASER HAS REPRESENTED AND AGREED WITH THE ISSUER THAT THE NOTES MAY NOT BE OFFERED, SOLD OR DELIVERED, DIRECTLY OR INDIRECTLY NOR MAY ANY OFFERING

MEMORANDUM, ANY PRICING SUPPLEMENT OR ADVERTISEMENT IN RELATION TO ANY OFFER OF NOTES BE DISTRIBUTED IN NEW ZEALAND, OTHER THAN:

(A) TO PERSONS WHOSE PRINCIPAL BUSINESS IS THE INVESTMENT OF MONEY OR WHO, IN THE COURSE OF AND FOR THE PURPOSES OF THEIR BUSINESS, HABITUALLY INVEST MONEY, OR WHO IN ALL THE CIRCUMSTANCES CAN PROPERLY BE REGARDED AS HAVING BEEN SELECTED OTHER THAN AS MEMBERS OF THE PUBLIC; OR

(B) IN OTHER CIRCUMSTANCES WHERE THERE IS NO CONTRAVENTION OF THE SECURITIES ACT 1978 OF NEW ZEALAND.

NOTICE TO RESIDENTS OF SINGAPORE

THIS OFFERING MEMORANDUM IS BEING DISSEMINATED IN SINGAPORE BY MORGAN STANLEY ASIA (SINGAPORE) PLC. AND HAS NOT BEEN REGISTERED AS A PROSPECTUS WITH THE MONETARY AUTHORITY OF SINGAPORE. ACCORDINGLY, THIS OFFERING MEMORANDUM AND ANY OTHER DOCUMENT OR MATERIAL IN CONNECTION WITH THE OFFER OR SALE, OR INVITATION FOR SUBSCRIPTION OR PURCHASE, OF THE NOTES MAY NOT BE CIRCULATED OR DISTRIBUTED, NOR MAY THE NOTES BE OFFERED OR SOLD, OR BE MADE THE SUBJECT OF AN INVITATION FOR SUBSCRIPTION OR PURCHASE, WHETHER DIRECTLY OR INDIRECTLY, TO PERSONS IN SINGAPORE OTHER THAN (I) TO AN INSTITUTIONAL INVESTOR UNDER SECTION 274 OF THE SECURITIES AND FUTURES ACT, CHAPTER 289 OF SINGAPORE (THE "***SFA***"), (II) TO A RELEVANT PERSON, OR ANY PERSON PURSUANT TO SECTION 275(1A), AND IN ACCORDANCE WITH THE CONDITIONS, SPECIFIED IN SECTION 275 OF THE SFA OR (III) OTHERWISE PURSUANT TO, AND IN ACCORDANCE WITH THE CONDITIONS OF, ANY OTHER APPLICABLE PROVISION OF THE SFA. THE NOTES ARE OFFERED THROUGH MORGAN STANLEY ASIA (SINGAPORE) PLC, AN ENTITY REGULATED BY THE MONETARY AUTHORITY OF SINGAPORE.

NOTICE TO RESIDENTS OF SWITZERLAND

THE INITIAL PURCHASER HAS REPRESENTED AND AGREED WITH THE ISSUER THAT:

(A) THE NOTES MAY NOT AND WILL NOT BE PUBLICLY OFFERED, DISTRIBUTED OR REDISTRIBUTED IN THE SWISS CONFEDERATION ("***SWITZERLAND***"), AND NEITHER THIS OFFERING MEMORANDUM NOR ANY OTHER SOLICITATION FOR INVESTMENTS IN THE NOTES MAY BE COMMUNICATED OR DISTRIBUTED IN SWITZERLAND IN ANY WAY THAT COULD CONSTITUTE A PUBLIC OFFERING WITHIN THE MEANING OF ARTICLES 1156 OR 652A OF THE SWISS CODE OF OBLIGATIONS.

(B) NO APPLICATION FOR A LISTING OF THE NOTES WILL BE MADE ON ANY SWISS STOCK EXCHANGE OR OTHER SWISS REGULATED MARKET, AND THIS OFFERING MEMORANDUM WILL NOT COMPLY WITH THE INFORMATION REQUIRED UNDER THE RELEVANT LISTING RULES.

NOTICE TO RESIDENTS OF TAIWAN

THE NOTES (AS DESCRIBED IN THIS OFFERING MEMORANDUM) SHALL NOT BE OFFERED OR SOLD IN THE REPUBLIC OF CHINA BUT MAY BE MADE AVAILABLE FOR PURCHASE BY INVESTORS RESIDENT IN THE REPUBLIC OF CHINA FROM OUTSIDE THE REPUBLIC OF CHINA.

STABILIZATION

In connection with the issuance of the Notes, Morgan Stanley (the "***Stabilizing Manager***") (or persons acting on behalf of the Stabilizing Manager) may over-allot Notes or effect transactions with a view to supporting the market price of the Notes at a level higher than that which might otherwise prevail. However, there is no assurance that the Stabilizing Manager (or persons acting on behalf of the Stabilizing Manager) will undertake stabilization action. Any stabilization action may begin on or after the date on which adequate public disclosure of the terms of the offer of the

Notes is made and, if begun, may be ended at any time prior to the date that is 30 days after the Closing Date, on which date such stabilization action must end.

EU RISK RETENTION, DISCLOSURE AND DUE DILIGENCE REQUIREMENTS

The Issuer has received legal advice that the transaction described herein is not a "securitization" for the purposes of the EU Risk Retention Requirements and as such no party to the transactions described in this Offering Memorandum intends or is required under the transaction documents to retain a material net economic interest in the securitization constituted by the issuance of the Notes and the incurrence of the Class A Loans in a manner that would satisfy the requirements of the EU Risk Retention Requirements (which, together with any applicable regulatory technical standards, implementing technical standards and official guidance supplementing such regulation and any implementation measures in respect of such regulation in the European Union (the "***EU***") or the European Economic Area, are referred to as the "***European Securitization Rules***") should the transactions described herein constitute a securitization for the such purposes. None of the Issuer, the Initial Purchaser, the Manager, the Collateral Trustee, the Loan Agent or any of their respective affiliates can give any assurances that the transaction described herein is not a securitization or provide any assurances that a relevant regulator will agree with such determination. Each investor should consult its own legal advisors as to the whether the transactions described herein is or is not a securitization. In addition, no such person undertakes to take any other action or refrain from taking any action prescribed or contemplated in, or for purposes of, or in connection with, compliance by any investor with any applicable requirement of, the European Securitization Rules.

MIFID II PRODUCT GOVERNANCE

Solely for the purposes of each manufacturer's product approval process, the target market assessment in respect of the Notes has led to the conclusion that: (i) the target market for the Notes is eligible counterparties and professional clients only, each as defined in MiFID II; and (ii) all channels for distribution of the Notes to eligible counterparties and professional clients are appropriate. Any person subsequently offering, selling or recommending the Notes (a "distributor") should take into consideration the manufacturers; target market assessment; however, a distributor subject to MiFID II is responsible for undertaking its own target market assessment in respect of the Notes (by either adopting or refining the manufacturers' target market assessment) and determining appropriate distribution channels.

FORWARD-LOOKING STATEMENTS

This Offering Memorandum contains forward-looking statements, which can be identified by words like "anticipate," "believe," "plan," "hope," "goal," "initiative," "expect," "future," "intend," "will," "could" and "should" and by similar expressions. Other information contained herein, including any estimated, targeted or assumed information or any business or financial models, may also be deemed to be, or to contain, forward-looking statements. You should not place undue reliance on forward-looking statements. Actual results could differ materially from those referred to in forward-looking statements for many reasons, including the risks described in "*Risk Factors*". Forward-looking statements are necessarily speculative in nature, and some or all of the assumptions underlying any forward-looking statements may not materialize or may vary significantly from actual results. Variations of assumptions and results may be material.

Without limiting the generality of the foregoing, you should not regard the inclusion of forward-looking statements in this Offering Memorandum as a representation by any of the Issuer, the Collateral Trustee, the Loan Agent, the Initial Purchaser or the Manager or any of their respective affiliates or any other person of the results that will actually be achieved by the Issuer or the Debt. None of the foregoing persons has any obligation to update or otherwise revise any forward-looking statements, including any revisions to reflect changes in any circumstances arising after the date of this Offering Memorandum relating to any assumptions or otherwise (not all of which are specified herein or can be ascertained as of the date hereof). None of the foregoing persons has any obligation to update or otherwise revise any forward-looking statements, including any revision to reflect changes in any circumstances arising after the date hereof relating to any assumptions or otherwise.

CERTAIN DEFINITIONS AND RELATED MATTERS

Unless otherwise indicated, (i) references in this Offering Memorandum to "***U.S. Dollars***", "***Dollars***", "***$***" and "***U.S.$***" will be to United States dollars; (ii) references to the term "***holder***" or "***Holder***" will mean the person in whose name a security is registered; except where the context otherwise requires, such terms will include the beneficial owner of such security; and (iii) references to "***U.S.***" and "***United States***" will be to the United States of America, its territories and its possessions.

References to (i) the "redemption" of Debt will be understood to refer, in the case of the Class A Loans, to the repayment or prepayment of the Class A Loans by the Issuer and (ii) the "issuance" of Debt or to the "execution," "authentication" and/or "delivery" of Debt will be understood to refer, in the case of Class A Loans, to the incurrence or borrowing, as applicable, of Class A Loans by the Issuer, in each case pursuant to the Credit Agreement.

With respect to the Credit Agreement and the Class A Loans, the Issuer will be acting in its capacity as "Borrower" under the Credit Agreement.

NOTWITHSTANDING ANYTHING TO THE CONTRARY HEREIN, THE CLASS A LOANS ARE NOT BEING OFFERED HEREBY.

SUMMARIES OF DOCUMENTS

This Offering Memorandum summarizes certain provisions of the Indenture, the Credit Agreement, the Management Deed, the Liquidity Loan Facility and other transactions and documents and the terms of the Debt. The summaries do not purport to be complete and (whether or not so stated in this Offering Memorandum) are subject to, are qualified in their entirety by reference to, and incorporate by reference, the provisions of the actual documents (including definitions of terms).

AVAILABLE INFORMATION

To permit compliance with Rule 144A in connection with sales of the Notes, the Issuer will be required to furnish upon written request of a holder of Notes, to such holder and a prospective purchaser designated by such holder the information required to be delivered under Rule 144A(d)(4) if at the time of the request the Issuer is not a reporting company under Section 13 or 15(d) of the Exchange Act, or exempt from reporting pursuant to Rule 12g3-2(b) under the Exchange Act. Such information may be obtained directly from the Issuer.

The Issuer has not been registered under the Investment Company Act. Each purchaser of an interest in a Note will be deemed to have represented and agreed that it (i) is either (x) both a Qualified Institutional Buyer and a Qualified Purchaser or (y) an Accredited Investor that is a non-U.S. Person in an offshore transaction in reliance on Regulation S and (ii) is acquiring the Notes for its own account or for one or more accounts as to each of which the purchaser exercises sole investment discretion and with respect to any Note, in a Minimum Denomination, in each case, for the purchaser and each such account. See "*Notice to Investors and Transfer Restrictions*".

Each purchaser of a Note must comply with all applicable laws and regulations in force in each jurisdiction in which it purchases, offers or sells such Notes or possesses or distributes this Offering Memorandum, and must obtain any consent, approval or permission required for the purchase, offer or sale by it of such Notes under the laws and regulations in force in any jurisdictions to which it is subject or in which it makes such purchases, offers or sales, and none of the Issuer, the Manager or the Initial Purchaser will have any responsibility therefor.

IN MAKING AN INVESTMENT DECISION, INVESTORS MUST RELY ON THEIR OWN EXAMINATION OF THE ISSUER, THE PORTFOLIO ASSETS AND THE TERMS OF THE OFFERING, INCLUDING THE MERITS AND RISKS INVOLVED. THESE NOTES HAVE NOT BEEN RECOMMENDED BY ANY FEDERAL OR STATE SECURITIES COMMISSION OR ANY OTHER REGULATORY AUTHORITY. FURTHERMORE, THE FOREGOING AUTHORITIES HAVE NOT CONFIRMED THE ACCURACY OR DETERMINED THE ADEQUACY OF THIS DOCUMENT. ANY REPRESENTATION TO THE CONTRARY IS A CRIMINAL OFFENSE.

INFORMATION AS TO PLACEMENT

This Offering Memorandum is highly confidential and has been prepared by the Issuer solely for use in connection with the offering described herein. The Issuer reserves the right to reject any offer to purchase Notes in whole or in part for any reason, or to sell less than the stated initial principal amount of the Notes offered hereby. This Offering Memorandum is personal to each offeree to whom it has been delivered by the Issuer, or any affiliate thereof, and does not constitute an offer to any other Person, or to the public generally, to subscribe for or otherwise acquire any Notes. Distribution of this Offering Memorandum to any Persons other than the offeree and those Persons, if any, retained to advise such offeree with respect thereto is unauthorized and any disclosure of any of its contents, without the prior written consent of the Issuer, is prohibited. Each prospective purchaser, by accepting delivery of this Offering Memorandum, agrees to the foregoing and to make no copies of this Offering Memorandum or any documents related hereto.

STATUS OF THE ISSUER UNDER THE VOLCKER RULE

The Dodd-Frank Wall Street Reform and Consumer Protection Act (the "***Dodd-Frank Act***" and Section 619 thereof, the "***Volcker Rule***") generally prohibits a "banking entity" (which is broadly defined to include full-service insured depository institutions and affiliates thereof, as well as certain types of non-U.S. banking entities, among others) from engaging in proprietary trading or from acquiring or retaining an ownership interest in, or sponsoring or having certain relationships with a "covered fund". A "covered fund" is defined in the Volcker Rule as, among others, any entity that would be an investment company but for the exemptions provided by Section 3(c)(1) or Section 3(c)(7) of the Investment Company Act (respectively, "***Section 3(c)(1)***" and "***Section 3(c)(7)***"). Because the Issuer will rely on Section 3(c)(7), absent an exemption, it would be deemed to be a "covered fund" within the meaning of the Volcker Rule. For a further description of the Issuer's status under the Volcker Rule, *see* "*Risk Factors—Legal and Regulatory Risks—Legal and Regulatory Developments—The Volcker Rule*" herein.

TABLE OF CONTENTS

SUMMARY OF TERMS 1

RISK FACTORS 13
- General 14
- Combination or "Layering" of Multiple Risk Factors May Significantly Increase Your Risk of Loss 16
- Risks Relating to the Assets 16
- Risks Relating to the Fund 19
- Legal and Regulatory Risks 29
- Risks Relating to the Notes 35
- Tax Risks 41
- Conflicts of Interest 43

DESCRIPTION OF THE DEBT 48
- Status and Security of the Notes 48
- Interest on the Debt 48
- Principal of the Debt 48
- Optional Redemption and Tax Redemption 49
- Cancellation and Repurchases 51
- Entitlement to Payments 51
- Priority of Payments 52
- The Indenture 52
- Form, Denomination and Registration of the Notes 62
- Description of the Subordinated Notes 65
- No Gross Up 66

DESCRIPTION OF THE CREDIT AGREEMENT 67
- Maturity 67
- No Conversion of Class A Loans 67
- Additional Borrowings 67
- Prepayments and Optional Prepayment 67
- Interest 67
- Status and Security 67
- Events of Default 68
- Representations, Warranties and Covenants 68
- Assignments, Participations and Transfers 68
- Amendments 68
- Governing Law 68

SECURITY FOR THE DEBT 69
- General 69
- The Fund and the LP Interest 70
- Capital Contributions and Additional Payment 81
- Cash Investment 82
- Intercreditor Agreement 83
- Funding of Capital Calls 85
- Voting Rights 85
- Accounts 86
- Collateral Assumptions 87

THE LIQUIDITY LOAN FACILITY 89

THE MANAGER 92

THE MANAGEMENT DEED 93
- General Duties of the Manager 93
- Compensation of the Manager 93
- Liability of the Manager 94
- Resignation by Manager; Termination of the Management Deed 94

Appointment of Successor Manager; Successor Manager Requirements....95
Assignment of the Management Deed; Amendments....95

THE ISSUER....96
General....96
Capitalization....96
Business of the Issuer....97

USE OF PROCEEDS....98

CERTAIN U.S. FEDERAL INCOME TAX CONSIDERATIONS....99
General....99
U.S. Federal Tax Treatment of the Fund and the Issuer....100
U.S. Federal Tax Treatment of the Notes....100
U.S. Federal Tax Treatment of U.S. Holders of the Secured Notes....101
U.S. Federal Tax Treatment of U.S. Holders of the Subordinated Notes....101
Specified Foreign Financial Asset Reporting....105
3.8% Medicare Tax on "Net Investment Income"....105
FBAR Reporting....105
U.S. Federal Tax Treatment of Non-U.S. Holders of Notes....105
Information Reporting and Backup Withholding....106
FATCA....106
Future Legislation and Regulatory Changes Affecting Holders of Notes....106

CAYMAN ISLANDS TAX CONSIDERATIONS....107

CERTAIN ERISA AND RELATED CONSIDERATIONS....109
Further Considerations....111

RATINGS....113

PLAN OF DISTRIBUTION....114
General....114
Direct Purchase Notes....116

NOTICE TO INVESTORS AND TRANSFER RESTRICTIONS....117
Representations of Holders....117
Legends....122
Forced Sale of Notes....124

GENERAL INFORMATION....125

LEGAL INVESTMENT MATTERS; VOLCKER RULE....126

LEGAL MATTERS....127

GLOSSARY OF DEFINED TERMS....128

INDEX OF DEFINED TERMS....138

ANNEX A Voting Rights

SUMMARY OF TERMS

The information set out in this section is a summary of certain principal features of the Issuer and the Debt. The following summary of terms does not purport to be complete and is qualified in its entirety by reference to the more detailed information appearing elsewhere in this Offering Memorandum and related documents referred to herein. A description of the Class A Loans, which are not being offered pursuant to this Offering Memorandum, is included herein for informational purposes only. An index of defined terms appears at the back of this Offering Memorandum.

Certain terms of the Debt are set forth in the following table (the "***Terms Table***"):

Designation[1]	**Class A Loans**[2]	**Class A Notes**	**Class B Notes**	**Subordinated Notes**[3]
Type	Senior Secured Deferrable Fixed Rate	Senior Secured Deferrable Fixed Rate	Senior Secured Deferrable Fixed Rate	Subordinated
Initial Principal Amount	$100,000,000	$9,500,000	$32,850,000	$83,000,000
Expected Initial Rating	At least "A-"	At least "A-"	At least "BBB"	N/A
Interest Rate	4.30%	4.30%	6.00%	N/A
Final Maturity Date	October 15, 2035	October 15, 2035	October 15, 2035	October 15, 2035
Form	N/A	Global; Certificated	Global; Certificated	Global; Certificated
Minimum Denomination (Integral Multiples in Excess Thereof)	N/A	$250,000 ($1)	$250,000 ($1)	$250,000 ($1)
Pari Passu Class(es)	A Notes	A Loans	None	None
Priority Class(es)	None	None	A	A, B
Junior Class(es)	B, Subordinated	B, Subordinated	Subordinated	None

(1) Each Class of Debt is referred to in this Offering Memorandum using the respective term set forth in the heading "Designation" in the table above.

(2) The Class A Lenders may not exchange or convert any portion of the Class A Loans into Notes at any time. The Holders of Notes may not exchange or convert any portion of the Notes into Class A Loans.

(3) The Subordinated Notes are further divided into the Sub-Classes (see "*Description of the Debt—Description of the Subordinated Notes*"), having the designations and other characteristics as follows:

Designation	**Class I Subordinated Notes**	**Class II Subordinated Notes**
Type	Subordinated	Subordinated
Initial Principal Amount ($)	$48,000,000	$35,000,000
Priority Class(es) of Debt	A; B	A; B; Class I Subordinated
Pari Passu Class(es) of Debt	None	None
Junior Class(es) of Debt	Class II Subordinated[1]	None

(1) Any distributions on the Class II Subordinated Notes will be subordinated to distributions on the Class I Subordinated Notes until such time as the Class I Subordinated Notes have received distributions equal to the initial par amount thereof, as set forth in the Priority of Payments. Thereafter, distributions on the Class I Subordinated Notes will be subordinated to distributions on the Class II Subordinated Notes until such time as the Class II Subordinated Notes have received distributions equal to the initial par amount thereof, as set forth in

the Priority of Payments. Thereafter, distributions will be made on the Class I Subordinated Notes and the Class II Subordinated Notes on a *pari passu* basis.

Issuer:	CIP VIII Private Equity Backed Notes Ltd (the "***Issuer***"), is a Cayman Islands exempted company incorporated with limited liability.
Collateral Trustee:.....	The Bank of New York Mellon Trust Company, National Association (in such capacity, the "***Collateral Trustee***").
Loan Agent:.....	The Bank of New York Mellon Trust Company, National Association (in such capacity, the "***Loan Agent***").
Collateral Administrator:	The Bank of New York Mellon Trust Company, National Association (in such capacity, the "***Collateral Administrator***").
Manager:	Coller Investment Management Limited, a non-cellular company limited by shares incorporated under the laws of Guernsey (the "***Manager***").
The Offering:.....	The Notes are being offered to (a) persons who are both "qualified institutional buyers" as defined in Rule 144A under the Securities Act ("***Qualified Institutional Buyers***") and "qualified purchasers" within the meaning of Section 3(c)(7) of the Investment Company Act ("***Qualified Purchasers***"), in reliance on the exemption from registration provided by Rule 144A under the Securities Act and (b) to persons that are "accredited investors" as defined in Rule 501(a) of Regulation D of the Securities Act ("***Accredited Investors***") that are non-U.S. Persons in offshore transactions in reliance on Regulation S, in each case, in accordance with any applicable securities laws of any state of the United States and any other relevant jurisdiction. See "*Plan of Distribution*" and "*Notice to Investors and Transfer Restrictions*". The Class A Loans are not being offered pursuant to this Offering Memorandum.
Minimum Denominations of Notes:.....	The Notes will be issuable in denominations of $250,000 and integral multiples of $1 in excess thereof (the "***Minimum Denominations***").
Credit Agreement:	The Issuer (in its capacity as borrower) will borrow the Class A Loans pursuant to a credit agreement, to be dated as of the Closing Date (the "***Credit Agreement***"), among the Issuer, as borrower, the Class A Lenders, the Loan Agent and the Collateral Trustee. See "*Description of the Credit Agreement*."
Use of Proceeds:	On the Closing Date, the Issuer will contribute the proceeds from the sale of the Notes and incurrence of the Class A Loans, after payment of certain fees, organizational and other fees and expenses in connection with the structuring and placement of the Debt (including any fees paid to the Manager to pay to any introducer in respect of the Notes) and a deposit into the Reserve Account, to the Fund to subscribe for the LP Interest (by making the Initial Capital Contribution and paying any Additional Payment) and to make the Cash Investment to the Fund in accordance with the Cash Investment Agreement.
Cash Investment:	In connection with its investment in the Fund, the Issuer will prefund a portion of its Capital Commitment in respect of the LP Interest and such prefunded amount will earn a return as more fully described herein. The Fund will be permitted to use the Cash Investment for any purpose permitted by the Underlying Fund Documents, including to make investments or to pay fees and expenses. The amount of the Cash Investment may from time to time be increased by an amount of

Recyclable Distributions the Fund Manager elects to hold back that are otherwise payable in respect of the Issuer's LP Interest. *See* "*Security for the Debt—Cash Investment*."

Funding of Capital Calls: ..... From time to time, as a limited partner of the Fund, the Issuer will be required to satisfy capital calls under the terms of the related Underlying Fund Documents ("***Capital Calls***"). The Issuer is expected to satisfy such Capital Calls in the following order: (i) *first,* by set-off, on a dollar-for-dollar basis, against the Fund's obligation to repay the Cash Investment to the Issuer and the corresponding reduction of the Cash Investment Amount until the Cash Investment Amount is reduced to zero; (ii) *second,* by the application of funds on deposit in the Collection Account; (iii) *third,* by the application of funds on deposit in the Reserve Account; and (iv) *fourth,* by the application of proceeds of Liquidity Loans. The Capital Commitment of the Issuer to the Fund is expected to be greater than the proceeds of the Notes and the incurrence of the Class A Loans.

Liquidity Loan Facility: ..... The Issuer will enter into a liquidity loan facility (the "***Liquidity Loan Facility***") with certain lenders (collectively, the "***Liquidity Lenders***"), pursuant to which the Issuer may from time to time borrow funds in an aggregate principal amount at any one time outstanding not to exceed $100,000,000 (the "***Maximum Commitment Amount***"). The Liquidity Loan Facility and the Secured Debt will be secured by the Assets under the Indenture, and the Liquidity Loan Facility will be senior to all Debt in accordance with the Priority of Payments.

Pursuant to the Liquidity Loan Facility, the Liquidity Lenders will be committed to make advances ("***Liquidity Loans***") to the Issuer on a revolving basis, subject to compliance with certain borrowing conditions, up to an agreed aggregate principal amount at any one time outstanding (the "***Commitment Amount***"), which will be approximately 16.67% of the Issuer's Capital Commitment on the Closing Date. The Commitment Amount may be reduced or increased as described under "*The Liquidity Loan Facility*". The principal amount of each Liquidity Loan is payable on each Payment Date and Redemption Date in accordance with the Priority of Payments. The Liquidity Loans may be repaid without penalty or premium on any Payment Date and may be borrowed and reborrowed by the Issuer, subject to satisfaction of certain borrowing conditions. The proceeds of any Liquidity Loan shall be applied by the Issuer solely to (i) fund Capital Calls and (ii) pay obligations due under clauses (1), (2), (3) and (4) of the Ordinary Priority of Payments. See "*The Liquidity Loan Facility*".

Payments on the Debt:

Payment Dates:..... "**Payment Date**" means the 15th day of each January, April, July and October of each year (or, if any such day is not a Business Day, the next following Business Day), commencing with the Payment Date in January 2021, except that the final Payment Date with respect to the Debt of any Class (subject to any earlier redemption, prepayment or payment of the Debt) shall be the applicable Final Maturity Date.

All payments on the Class A Loans will be made by the Collateral Trustee to the Loan Agent, and the Loan Agent will disburse such payments to the Class A Lenders in accordance with the Credit Agreement.

Interest on the Secured Debt: ..... Each Class of Secured Debt will accrue interest at the respective rates set forth in the Terms Table (the "***Interest Rate***"). Interest on the Secured Debt for the related Interest Accrual Period will be due and payable on each Payment Date in accordance with the Priority of Payments, if and to the extent funds are available for such purpose in accordance with the Priority of Payments. Interest on such Secured Debt will be computed on the basis of a three hundred sixty (360)-day year comprised of twelve (12) thirty (30)-day months, based on the Aggregate Outstanding Amount of, and Deferred Interest on, such Debt during each Interest Accrual Period. Any interest on a Class of Secured Debt that is not available to be paid on a Payment Date in accordance with the Priority of Payments shall become "Deferred Interest" with respect to such Class. Deferred Interest shall not be considered "due and payable" (and the failure to pay such interest shall not be an Event of Default) until the Payment Date on which such interest is available to be paid pursuant to the Priority of Payments. Deferred Interest shall bear interest at the applicable Interest Rate until paid to the extent lawful and enforceable. Interest on the Secured Debt is payable quarterly in arrears on each Payment Date in accordance with the Priority of Payments described herein. See "*Description of the Debt*".

Principal on the Notes:..... Principal on each Class of Debt will be paid in accordance with the Priority of Payments on each Payment Date, each Redemption Date and on the Final Maturity Date. See "*Description of the Debt*".

Distributions on the Subordinated Notes: ..... The Subordinated Notes will not bear a stated rate of interest but will be entitled to receive distributions on each Payment Date if and to the extent funds are available for such purpose, subject, prior to the repayment of the Secured Debt in full, to the satisfaction of the Distribution Conditions (and the failure to pay such amounts shall not be an Event of Default). Such payments will be made on the Subordinated Notes only pursuant to the Priority of Payments. Distributions on the Class II Subordinated Notes will be subordinated to distributions on the Class I Subordinated Notes until such time as the Class I Subordinated Notes have received distributions equal to the initial par amount thereof, as set forth in the Priority of Payments. See "*—Priority of Payments*" and "*Description of the Debt*."

Reserves for Clawback Amounts ..... Following the Fund Liquidation Date, the Manager may retain in the Collection Account amounts that it expects, in good faith, to be payable by the Issuer in respect of its obligations as a limited partner in the Fund (if any) as described under "*Security for the Debt—The Fund and the LP Interest—Summary of Terms of the Fund and the LP Interest—Investor Clawback*" (any such amounts, the "***Clawback Amount***").

Final Maturity Date:.....October 15, 2035 (or, if such day is not a Business Day, the first Business Day following such date) (the "***Final Maturity Date***").

Priority of Payments:..... The Debt will have the relative priorities described in this Offering Memorandum. The Collateral Trustee will disburse amounts in the Payment Account in accordance with the priorities of payment described below:

Ordinary Priority of Payments:..... Unless a Liquidation Event has occurred and is continuing, on each Payment Date, the Collateral Trustee shall disburse Available Proceeds (as defined herein) in the Payment Account pursuant to the Indenture in

accordance with the following priorities (subject to the preceding clauses of this sentence, the "***Ordinary Priority of Payments***"):

(1) (x) *first*, to the payment of taxes, governmental fees and registered office fees owing by the Issuer, if any, (y) *second*, to the payment of the accrued and unpaid Administrative Expenses of the Issuer, up to the Administrative Expense Cap (taking into account any payments made as described under "—*Application of Funds on Dates Other Than Payment Dates*" since the preceding Payment Date), in the priority stated in the definition thereof and (z) *third*, any Additional Payment owing by the Issuer; *provided*, that, Petition Expenses up to the Petition Expense Amount may be paid at the time that such Petition Expenses are incurred without regard to the Administrative Expense Cap and, if (but only after) the Petition Expense Amount is applied to the payment of Petition Expenses in full, additional Petition Expenses will be paid together with other Administrative Expenses in the priority stated in the definition thereof and subject to the Administrative Expense Cap;

(2) to the payment of commitment fees, extension fees and other expenses owing to the Liquidity Agent and the Liquidity Lenders under the Liquidity Loan Facility, plus all accrued and unpaid interest under the Liquidity Loan Facility;

(3) to the payment of (x) *first*, *pro rata*, based on amounts due, accrued and unpaid interest on the Class A Debt and any unpaid interest on Deferred Interest of the Class A Debt and (y) *second*, an amount equal to any Deferred Interest on the Class A Debt;

(4) to the payment of (x) *first*, accrued and unpaid interest on the Class B Notes and any unpaid interest on Deferred Interest of the Class B Notes and (y) *second*, an amount equal to any Deferred Interest on the Class B Notes;

(5) to the repayment of principal amount of the Liquidity Loans under the Liquidity Loan Facility (including any breakage costs arising from the prepayments of any Liquidity Loans since the immediately preceding Payment Date);

(6) for deposit in the Reserve Account in an amount equal to the Target Balance;

(7) to the payment of the Manager Fee due and payable to the Manager (including any accrued and unpaid interest thereon at the Deferred Fee Rate and any previously deferred Manager Fee (together with interest accrued thereon at the Deferred Fee Rate) which the Manager has elected to be paid on such Payment Date);

(8) if each of the Distribution Conditions is satisfied as of the Cut-Off Date for such Payment Date, 82.5% of remaining available funds to the payment pro rata of (x) Outstanding principal amounts of the Class A Debt and (y) Outstanding principal amounts of the Class B Notes, in each case, until such amounts have been paid in full;

(9) if any Distribution Condition is not satisfied as of the Cut-Off Date for such Payment Date, (x) first, to the payment of Outstanding principal amounts of the Class A Debt until the Class A Debt has

been paid in full and (y) second, to the payment of Outstanding principal amounts of the Class B Notes until the Class B Notes has been paid in full;

(10) to the payment of any unpaid Administrative Expenses that are not paid pursuant to clause (1) above as a result of the Administrative Expense Cap (and in the priority stated in the definition thereof);

(11) to the Holders of the Class I Subordinated Notes in an amount necessary (taking into account all prior payments to the Holders of the Class I Subordinated Notes pursuant to this clause (11)) to cause the Holders of Class I Subordinated Notes to have received distributions pursuant to this clause (11) equal to the initial par amount of such Class I Subordinated Notes;

(12) to the Holders of the Class II Subordinated Notes in an amount necessary (taking into account all prior payments to the Holders of the Class II Subordinated Notes pursuant to this clause (12)) to cause the Holders of Class II Subordinated Notes to have received distributions pursuant to this clause (12) equal to the initial par amount of such Class II Subordinated Notes; and

(13) any remaining amounts, pro rata, to the Holders of the Subordinated Notes.

Liquidation Priority of Payments: ..... Notwithstanding the provisions of the Ordinary Priority of Payments, on each Redemption Date (other than a Refinancing Date) and each Payment Date after an acceleration of the Maturity of the Debt has occurred following an Event of Default which has not been rescinded (a "***Liquidation Event***"), the Collateral Trustee shall disburse all readily available funds in the Accounts (after setting aside a reserve in an amount, as determined in good faith by the Manager, sufficient to fund future Capital Calls and to pay expenses of the Issuer) in accordance with the following priorities (the "***Liquidation Priority of Payments***"):

(1) to the payment of amounts referred to in clause (1) of the Ordinary Priority of Payments (and in the same manner and order of priority set forth therein, but in each case without regard to the Administrative Expense Cap);

(2) to the payment of commitment fees, extension fees and other expenses owing to the Liquidity Agent and the Liquidity Lenders under the Liquidity Loan Facility, plus all accrued and unpaid interest under the Liquidity Loan Facility;

(3) to the repayment of all outstanding principal of the Liquidity Loans under the Liquidity Loan Facility (including any breakage costs arising from the prepayments of any Liquidity Loans since the immediately preceding Payment Date);

(4) to the payment of (x) *first*, *pro rata*, based on amounts due, accrued and unpaid interest on the Class A Debt and any unpaid interest on Deferred Interest of the Class A Debt and (y) *second*, an amount equal to any Deferred Interest on the Class A Debt;

(5) to the repayment of the Outstanding principal amounts of the Class A Debt;

(6) to the payment of (x) *first*, accrued and unpaid interest on the Class B Notes and any unpaid interest on Deferred Interest of the Class B Notes and (y) *second*, an amount equal to any Deferred Interest on the Class B Notes;

(7) to the repayment of the Outstanding principal amounts of the Class B Notes; and

(8) to the payment of the Manager Fee due and payable to the Manager (including any accrued and unpaid interest thereon at the Deferred Fee Rate and any previously deferred Manager Fee (together with interest accrued thereon at the Deferred Fee Rate));

(9) to the Holders of the Class I Subordinated Notes in an amount necessary (taking into account all prior payments to the Holders of the Class I Subordinated Notes pursuant to clause (11) of the Ordinary Priority of Payments and this clause (9)) to cause the Holders of Class I Subordinated Notes to have received distributions pursuant to clause (11) of the Ordinary Priority of Payments and this clause (9) equal to the initial par amount of such Class I Subordinated Notes;

(10) to the Holders of the Class II Subordinated Notes in an amount necessary (taking into account all prior payments to the Holders of the Class II Subordinated Notes pursuant to clause (12) and this clause (10)) to cause the Holders of Class II Subordinated Notes to have received distributions pursuant to clause (12) and this clause (10) equal to the initial par amount of such Class II Subordinated Notes; and

(11) any remaining amounts, pro rata, to the Holders of the Subordinated Notes.

Refinancing Priority of Payments: ..... On any Refinancing Date, Refinancing Proceeds and Available Proceeds in the Payment Account will be distributed in the following order of priority (the "***Refinancing Priority of Payments***" and, together with the Ordinary Priority of Payments and the Liquidation Priority of Payments, the "***Priority of Payments***"):

(1) to pay the Redemption Price (without duplication of any payments received by the Holders of the Debt being redeemed pursuant to the Ordinary Priority of Payments or the Liquidation Priority of Payments) of the Secured Debt (x) *first*, *pro rata*, to the Holders of the Class A Debt and (y) *second*, to the Holders of the Class B Notes;

(2) to pay Administrative Expenses related to the Refinancing;

(3) for deposit in the Reserve Account in an amount equal to the Target Balance; and

(4) any remaining proceeds will be deposited in the Collection Account.

Application of Funds on Dates Other Than Payment Dates:..... On any Business Day that is not a Payment Date, the Manager, on behalf of the Issuer, may transfer funds from the Collection Account to the Payment Account and instruct the Collateral Trustee on behalf of the

Issuer by delivering an issuer order to the Collateral Trustee to and apply such funds to the payment of any expenses described in clauses (1) and (2) of the Ordinary Priority of Payments (but, in the case of Administrative Expenses, only if the Administrative Expense Cap has not been reached in the relevant year) and in accordance with the priorities set forth in the Ordinary Priority of Payments. In the case of funds withdrawn from the Payment Account to pay Administrative Expenses, those funds shall be included for purposes of clause (1) of the Ordinary Priority of Payments (including the determination whether the limit on such payments is reached as determined by the Issuer or the Manager on behalf of the Issuer) for the next Payment Date. The Issuer (or the Manager on its behalf) may also draw on the Liquidity Loan Facility to pay any expenses described in clauses (1) and (2) of the Ordinary Priority of Payments (subject to the Administrative Expense Cap) on any Business Day that is not a Payment Date.

Events of Default:..... For a description of the Events of Default under the Indenture, see "*Description of the Debt—The Indenture—Events of Default*".

Redemption of the Debt:

Optional Redemption:..... The Secured Debt shall be redeemable (or, in the case of the Class A Loans, prepayable) on any Business Day after the Non-Call Period by the Issuer at the written direction of either (a) a Majority of the Class II Subordinated Notes or (b) the Manager (with the consent of a Majority of the Class II Subordinated Notes), in either case, in whole (with respect to all Classes of Secured Debt), but not in part, from (i) Sale Proceeds or (ii) Refinancing Proceeds and all other available funds pursuant to a Refinancing. See "*Description of the Debt—Optional Redemption and Tax Redemption—Optional Redemption*".

The Subordinated Notes may be redeemed, in whole but not in part, on any Business Day on or after the redemption or repayment in full of the Secured Debt, at the written direction of a Majority of the Class II Subordinated Notes or the Manager.

Tax Redemption:..... The Debt may be redeemed (or, in the case of the Class A Loans, prepaid) in whole but not in part at the option of the Issuer (at the direction of the Manager) following a Tax Event. Such a redemption will not require the prior written consent of any Holder. See "*Description of the Debt—Optional Redemption and Tax Redemption—Tax Redemption*".

Redemption Prices:..... *The* "***Redemption Price***" for any Debt to be redeemed (or, in the case of the Class A Loans, prepaid) or sold and transferred in connection with a Tax Redemption or an Optional Redemption: (i) in the case of Secured Debt, (x) 100% of the Aggregate Outstanding Amount of such Secured Debt plus (y) accrued and unpaid interest (including Deferred Interest) thereon to the Redemption Date; and (ii) in the case of a Subordinated Note, its respective entitlement (based on the Aggregate Outstanding Amount of the Subordinated Notes) of the amount of the proceeds of the Assets (including proceeds created when the lien of the Indenture is released) remaining after giving effect to the redemption, prepayment or repayment of the Secured Debt in full and payment in full of (and/or creation of a reserve for) all other amounts payable senior to the Subordinated Notes (or Sub-Class thereof) pursuant to and in accordance with the Priority of Payments; *provided* that Holders of 100% of the Aggregate Outstanding Amount of any Class of Debt may elect to

receive less than 100% of the Redemption Price that would otherwise be payable to the Holders of such Class of Debt, and such lesser amount will constitute the Redemption Price with respect to such Class of Debt. The Redemption Price of the Subordinated Notes may be paid on one or more dates as settlements occur for sales of the Portfolio Assets.

Additional Debt:..... At any time prior to the Final Closing Date, the Issuer may issue and sell, or incur, as applicable additional debt of any one or more existing Classes and use the net proceeds to purchase additional Portfolio Assets or as otherwise permitted under the Indenture if the conditions for such additional issuance or incurrence described under "*Description of the Debt—The Indenture—Additional Issuance*" are met.

Security for the Debt: ..... Under the terms of the Indenture, the Issuer will grant a security interest in (i) the Portfolio Assets and distributions received by the Issuer with respect to the Portfolio Assets, (ii) certain contractual rights of the Issuer and (iii) the Accounts, to the Collateral Trustee for the benefit of the Holders of the Secured Debt, the Collateral Trustee, the Liquidity Lenders and the other secured parties. The Accounts will be pledged to the Collateral Trustee and in connection therewith will be subject to the Securities Account Control Agreement. See "*Security for the Debt*".

Fund Disclosure: ..... This Offering Memorandum provides only limited information with respect to the Fund and the Fund Portfolio Investments. Payments to Holders of the Debt will depend on the performance of the Fund and the Fund Portfolio Investments and therefore investors should obtain and evaluate information concerning the Fund as if they were investing in the Fund directly, notwithstanding that the structural features of the Notes will cause the amount and timing of payments on the Notes to differ from distributions from the LP Interest. An investor in the Notes should obtain and evaluate the same information concerning the Fund as it would obtain and evaluate if it were investing directly in the Fund, and, based upon such information, should make an independent investment decision regarding the Fund. None of the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, or any of their respective agents or affiliates, nor the Manager (in its capacity as such) assume any responsibility for the accuracy or completeness of any information considered by a purchaser of the Notes in making its investment decision in connection therewith. See "*Security for the Debt—The Fund and the LP Interest*".

Additional information with respect to the Fund and the Fund Portfolio Investments (such information, the "**Investor Materials**") will be made available by Coller in a data room to prospective investors upon request. Such Investor Materials should be read in conjunction with this Offering Memorandum. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager (in such capacity) or the Issuer is responsible for, or is making any representation to you concerning the accuracy or completeness of such Investor Materials. Investors should be aware that the Investor Materials may contain errors or omissions, including with respect to amounts, maturities and other information. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager (in such capacity) or the Issuer (i) participated in the preparation of any Investor Materials, (ii) has made a due diligence inquiry, or assumes any obligation, as to the accuracy or

completeness of the information contained in any Investor Materials and (iii) shall have any responsibility whatsoever for the contents of any Investor Materials. Accordingly, no representations, warranties or undertakings (express or implied) are made and no responsibility is accepted by the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, any of their respective agents or affiliates, nor the Manager (in such capacity) as to the accuracy, completeness or timeliness of the information contained in the Investor Materials. Investors will be required to represent and confirm that they have completed their own investigation in relation to the Fund and the Fund Portfolio Investments.

Investors should be aware that an investment in the Notes has a different risk profile than a direct investment in the Fund and, as such, an investment in the Notes is not equivalent to an investment in the Fund. See "*Risk Factors—Risks Relating to the Assets—An Investment in the Notes has a Different Risk Profile than a Direct Investment in the Fund*".

Voting Rights: ..... The Issuer (and to the extent such rights are exercised by the Collateral Trustee on behalf of the Issuer, the Collateral Trustee) (i) shall exercise any Voting Rights in respect of the Portfolio Assets on such dates and in such manner as directed in writing by the Directing Party and (ii) shall not exercise (or cause the exercise of) any Voting Rights other than as directed by the Directing Party. If the Directing Party does not direct the Issuer as to how to exercise any Voting Right on or before the date on which an action is required to be taken in connection with such Voting Right, the Issuer (and to the extent such rights are exercised by the Collateral Trustee on behalf of the Issuer, the Collateral Trustee) shall take no action in connection with such Voting Right. For the avoidance of doubt, the Collateral Trustee shall be under no duty to take or omit to take any action (and shall incur no liability for failure to take such action) with respect to the Voting Rights except in accordance with written instructions provided by the Directing Party. *See* "*Security for the Debt—Voting Rights*".

Management:..... Pursuant to the Management Deed, and subject to the limitations of the Indenture, the Manager will provide certain management and administrative services to the Issuer and will be paid the Manager Fee, as may be adjusted in accordance with the Management Deed. *See* "*The Manager*" and "*The Management Deed*".

Compensation of the Manager:..... The Manager will be entitled to the payment of a fee for its services under the Management Deed, payable in arrears on each Payment Date (prorated for the related Interest Accrual Period) that accrues during each Interest Accrual Period in an amount equal to 0.07% per annum (calculated on the basis of a three hundred sixty (360)-day year comprised of twelve (12) thirty (30)-day months) of the Aggregate Outstanding Amount of the Debt, calculated as of the Cut-Off Date preceding the Payment Date on which such fee is payable (the "***Manager Fee***"); *provided* that, the Manager Fee for each Payment Date will be adjusted in accordance with the Management Deed. The Manager will also be entitled to reimbursement for expenses and indemnification and contribution with respect to certain liabilities incurred by it. The Manager Fee, expenses and indemnities are payable solely in accordance

	with the Priority of Payments. If on any Payment Date there are insufficient funds in accordance with the Priority of Payment to pay the Manager Fee in full, then a portion of the Manager Fee equal to the shortfall will be deferred, will bear interest thereon at the Deferred Fee Rate, and will be payable on such later Payment Date on which funds are available therefor in accordance with the Priority of Payments. *See* "*The Management Deed—Compensation of the Manager*".
Limited Recourse:.....	The Notes and the Class A Loans are limited recourse debt obligations of the Issuer. The Debt is payable solely from amounts received in respect of the Assets and will be paid in accordance with the applicable Priority of Payments. If the amounts received in respect of such Assets are insufficient to make payments on the Debt in accordance with the applicable Priority of Payments, no other assets will be available for payment of the deficiency and, following liquidation of all the Assets, the obligations of the Issuer to pay such deficiency will be extinguished.
Governing Law:	The Liquidity Loan Facility, the Credit Agreement, the Debt and the Indenture, and any matters arising out of or relating in any way whatsoever to any of the Liquidity Loan Facility, the Credit Agreement, the Debt and the Indenture (whether in contract, tort or otherwise), will be governed by the laws of the State of New York. The Management Deed and any matters arising out of or relating in any way whatsoever related thereto (whether in contract, tort or otherwise) will be governed by the laws of the Cayman Islands.
Listing of Notes on Exchanges:.....	None.
Form of Notes:.....	Unless such person requests a Certificated Note, the Notes sold to Persons who are Qualified Institutional Buyers will be represented by Rule 144A Global Notes in fully registered form without interest coupons to be deposited with a custodian for and registered in the name of Cede & Co. Unless such person requests a Certificated Note, the Notes sold to Accredited Investors that are non-U.S. persons in offshore transactions in reliance on Regulation S under the Securities Act will be represented by Regulation S Global Notes in fully registered form without interest coupons to be deposited with a custodian for and registered in the name of Cede & Co., a nominee of DTC, for the accounts of Euroclear or Clearstream.
U.S. Tax Matters:.....	See "*Certain U.S. Federal Income Tax Considerations*" and "*Cayman Islands Tax Considerations*."
ERISA Matters:	See "*Certain ERISA and Related Considerations*".
Certain Investment Considerations:.....	An investment in the Notes may not be suitable for all investors, particularly entities subject to regulation. The Issuer will be a "covered fund" for purposes of the Volcker Rule, absent an exemption pursuant to the Volcker Rule, and accordingly, banking entities (as defined under the Volcker Rule implementing regulations) may be restricted from, among other things, acquiring or retaining an "ownership interest" in the Issuer. Any investment in the Issuer made by a banking entity, therefore, will need to be made and held in accordance with the limits and conditions of the Volcker Rule implementing regulations. *See* "*Legal Investment Matters; Volcker Rule*".

RISK FACTORS

Prospective investors in the Notes should carefully consider the following risk factors before making a decision to invest in the Notes. If any of the risks described or contemplated below occurs, there could be a material adverse effect on the results and operations of the Issuer and/or any of the underlying Portfolio Assets, and the investors in the Notes may experience a loss on their investment in the Notes. The following considerations are not a complete summary or explanation of the various risks involved in an investment in the Notes, and the interplay of risks can have additional effects not described below.

Additionally, investors in the Notes should be aware that this Offering Memorandum provides only limited information with respect to the Fund and the Fund Portfolio Investments. Payments to Holders of the Debt will depend on the performance of the Fund and the Fund Portfolio Investments and therefore investors should obtain and evaluate information concerning the Fund as if they were investing in the Fund directly, notwithstanding that the structural features of the Notes will cause the amount and timing of payments on the Notes to differ from distributions from the LP Interest. An investor in the Notes should obtain and evaluate the same information concerning the Fund as it would obtain and evaluate if it were investing directly in the Fund, and, based upon such information, should make an independent investment decision regarding the Fund. None of the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, any of their respective agents or affiliates, nor the Manager (in such capacity) assume any responsibility for the accuracy or completeness of any information considered by a purchaser of the Notes in making its investment decision in connection therewith.

Prospective investors should be aware that an investment in the Notes involves a high degree of risk, and is suitable only for those investors who have the financial sophistication and expertise to evaluate the merits and risks of an investment in the Notes and for which the Notes do not represent a complete investment program. There can be no assurance that investors in the Notes will receive a return of any or all of their investment. There can be no assurance that the Issuer or the Fund Manager will be able to implement its strategy or achieve their investment objectives. The possibility of partial or total loss of capital will exist and prospective investors must be prepared to bear capital losses that might result from investments. Prospective investors should carefully consider the risks of an investment in the Notes, which include, but are not limited to, to the risk factors set out in this Offering Memorandum.

The following limited disclosure is being provided to prospective investors to inform them of certain risks arising from the issuance of the Notes, but does not purport to (and none of the Issuer, the Initial Purchaser, the Administrator, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, their respective affiliates, or the Manager (in such capacity) makes any representation that it purports to) update the Investor Materials or disclose all risk factors (whether legal or otherwise) which may arise by or relate to the issuance of the Notes.

None of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator or any affiliate of any of them is providing, or will provide, investment, accounting, tax or legal advice in respect of the Notes, nor will any of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective affiliates have a fiduciary relationship with any investor or prospective investor in the Notes. In addition, there will be occasions when the Manager and its affiliates may encounter potential conflicts of interest in connection with the Issuer and the Portfolio Assets. The Issuer may be exposed to the risks described herein either directly or indirectly through its ownership of the various Portfolio Assets. The following discussion enumerates certain, but not all, risk factors and potential conflicts of interest that should be carefully evaluated before making an investment in the Notes. By acquiring any Note, each investor will be deemed to have acknowledged and consented to the existence or resolution of any such actual or potential conflicts of interest and to have waived any claim with respect to any liability arising from the existence of any such conflict of interest. These risks and potential conflicts of interest include, but are not limited to, the following:

General

Certain Risks Relating to Current Market Conditions

General economic conditions may affect the ability of the Issuer to make payments on the Debt. Significant risks may exist for the Issuer and investors in the Debt as a result of uncertain general economic conditions. These risks include, among others, (i) the ability of the Fund to realize returns on the Fund Portfolio Investments and make distributions on the Portfolio Assets, (ii) the illiquidity of the Notes, as there may be no secondary trading in the Notes and (iii) the possibility of a decline in the market value of the Notes. The Fund may suffer a partial or total loss of capital invested in the Fund Portfolio Investments, which would, in turn, have an adverse effect on the Fund's ability to make distributions with respect to the Portfolio Assets, and consequently have an adverse effect on the Issuer's ability to make payments of principal and interest with respect to the Debt. Such marketplace events also may restrict the ability of the Fund to sell or liquidate investments at favorable times or for favorable prices. The Issuer's investment strategy relies in part on the stability of the global financial markets generally. In the event of a destabilization or market deterioration, the value of the Portfolio Assets and the Fund Portfolio Investments may not appreciate as projected or may suffer a loss. These risks may affect the returns on the Debt to investors and the ability of investors to realize their investment in the Debt prior to the Final Maturity Date, if at all.

Investor Suitability

An investment in the Notes will not be appropriate for all investors. Structured investment products, like the Debt, are complex instruments, and typically involve a high degree of risk and are intended for sale only to sophisticated investors who are capable of understanding and assuming the risks involved. An investment in the Notes requires a long-term commitment, and there can be no assurance that the Issuer's or the Manager's investment objectives will be achieved or that there will be any return of capital. Therefore, investors should only invest in the Notes if they can withstand a total loss of their investment. Any investor interested in purchasing Notes should conduct its own investigation and analysis of the product and consult its own professional advisers as to the risks involved in making such a purchase.

Projections, Forecasts and Estimates

Any projections, forecasts and estimates contained herein are forward-looking statements and are based upon certain assumptions that the Issuer considers reasonable. Projections are necessarily speculative in nature, and it can be expected that some or all of the assumptions underlying the projections will not materialize or will vary significantly from actual results. Projected operating results will often be based on management judgments. In all cases, projections are only estimates of future results that are based upon assumptions made at the time that the projections are developed. Actual results are expected to vary from the projections, and the variations may be material. The inclusion of projections herein should not be regarded as a representation by the Issuer, the Manager, the Initial Purchaser, the Administrator, the Collateral Trustee, the Loan Agent, the Collateral Administrator, or any of their respective affiliates or any other person or entity of the results that will actually be achieved by the Issuer or the Portfolio Assets. None of the Issuer, the Manager, the Initial Purchaser, the Administrator, the Collateral Trustee, the Loan Agent, the Collateral Administrator, or any of their respective affiliates and any other person has any obligation to update or otherwise revise any projections, including any revisions to reflect changes in economic conditions or other circumstances arising after the date hereof or to reflect the occurrence of unanticipated events, even if the underlying assumptions do not come to fruition.

Withdrawal of the United Kingdom from European Union Membership

The UK ceased to be a member of the EU on January 31, 2020 (an event commonly known as "***Brexit***"). Pursuant to an agreement made between the UK and the EU, certain transitional arrangements are in effect, such that the UK continues to be treated, in most respects, as if it were still a member of the EU, and generally remains subject to EU law. Those transitional arrangements apply only during a prescribed period (the "***Transition Period***") which is currently scheduled to expire on December 31, 2020. From the end of the Transition Period, the UK will no longer be subject to EU law or be treated as if it were still a member of the EU.

The UK and the EU have begun negotiations with regard to certain terms of the relationship to be established between them following the end of the Transition Period. However, there is no certainty that any such terms will be agreed, and no certainty as to the scope or nature of any such terms that may be agreed. The actual or potential consequences of Brexit and any associated uncertainty, could adversely affect economic and market conditions in the UK, in the EU and its member states and elsewhere, and could contribute to instability in global financial markets. In particular, these matters could significantly impact volatility, liquidity and/or the market value of securities, including the Debt.

COVID-19

A global pandemic of infections of a novel coronavirus (SARS-CoV-2, and the related respiratory illness, COVID-19) is currently occurring and is significantly disrupting economic activity globally. Financial markets have recently experienced significant declines, high volatility and reductions in liquidity. Many governments have taken drastic measures intended to slow the spread of the pandemic and to counter the disruption to economic activity that is resulting from both the pandemic and actions intended to slow the pandemic. In addition, many central banks have made deep interventions in the financial markets intended to limit the economic impact of the pandemic and to ensure that financial markets continue to function during this period of significant stress. The ongoing COVID-19 crisis, together with energy price shocks described above, has resulted in the global market turmoil and has led to a market correction in Europe, the U.S. and elsewhere. In addition, key public health officials have indicated that they believe the COVID-19 will worsen in the near term, which would be expected to lead to increased social and economic uncertainty. This has led many market participants to expect a more sustained economic downturn in Europe, the U.S. and/or globally.

The risks associated with COVID-19 or other widespread outbreaks of contagious disease may affect or impair the Fund's overall performance, as well as its ability to raise capital, implement its investment programme and achieve its investment objectives, satisfy credit facility borrowing covenants or obligations or otherwise continue its operations effectively and efficiently. To the extent that current conditions continue or worsen, there will be adverse impacts on the availability of credit to businesses as well as on asset prices and, more generally the public and private markets. Companies, particularly – but not exclusively – those in vulnerable industries such as retail and travel, are expected to experience financial distress and possibly to default on their financial obligations. This is likely to adversely affect the Fund's investments and may adversely affect cashflows on the Debt. Measures taken in response to the COVID-19 pandemic are expected to impair the ease with which transactions may be executed, make transactions less commercially viable, increase the general costs otherwise incurred by the Fund and have an adverse effect on the businesses underlying the Fund's investments. This in turn may affect returns on the Issuer's investment in the Fund. In addition, the economic consequences of the pandemic make it more likely that the Fund's limited partners may fail to make required capital contributions or other payments when due, in which case the Fund's ability to complete its investment strategy, satisfy credit facility borrowing covenants or obligations or otherwise continue operations may be impaired. A default by one or more limited partners with substantial capital commitments could leave the Fund with insufficient capital to meet its funding obligations, and thereby limit opportunities for investment diversification and reduce returns to the Fund which would in turn reduce cashflow on the Debt.

The COVID-19 outbreak has also caused many jurisdictions to implement strict restrictions on the movement of their populations, with a resultant significant impact on economic activity in those jurisdictions. These restrictions are being determined by the governments of individual jurisdictions (including through the implementation of emergency powers) and impacts (including the timing of implementation and any subsequent lifting of restrictions) may vary from time to time. In addition, governmental action or inaction in respect of, or responses to, the COVID-19 outbreak or any other widespread health crises or potential health crises in such jurisdictions may lead to a deterioration of economic conditions regionally as well as globally. Affected businesses may encounter a range of financial consequences, and slow-downs in business activity may have a material adverse effect on economic conditions and liquidity. Investors should be particularly aware of supply-chain disruption. It is anticipated that as a result of the impact of COVID-19 on supply-chains, manufacturing output levels are likely to be depressed, and there will likely be a shortage of materials and components being distributed from regions that have become quarantined or otherwise affected. As a result, companies that rely on international supply networks may be unable to meet consumer demand for their products. This means that, at least in the short-term, productivity and profit levels are likely to be reduced. Firms may encounter considerable delays in their manufacturing timelines. In addition, solvency concerns can be exacerbated if working capital lines become blocked, financial covenants are breached, events of default occur and/or

there is a trigger of termination payments or other contingent liabilities for non-performance. Any slow-down in business activity may negatively impact returns on the Fund's investments which could in turn have a material adverse effect on the Debt. All of these conditions may continue or worsen and may adversely affect the value of the Fund Portfolio Investments, the Portfolio Assets, the value and liquidity of the Notes or the performance of the Issuer generally. Similar consequences could arise with respect to other comparable infectious diseases. It remains unclear how this will evolve through 2020 and beyond and, therefore, Holders of the Notes bear the risk that the market price of the Notes may fall or that returns on the Notes may be reduced.

Prospective investors should note that any information provided regarding the most recent valuations and/or current or prior performance of the Fund (including, for the avoidance of doubt, the Fund's gross asset value and net asset value) and its investments, and/or the Fund Manager's and/or its affiliates' assets under management, was determined and relates to periods prior to the widespread outbreak of COVID-19, and does not reflect the recent uncertainty and volatility in the financial markets or any estimated negative impact of the outbreak. Given the significant levels of uncertainty and the economic and financial market disruptions and volatility currently occurring and anticipated in connection with the outbreak, such figures will be adversely impacted, and may be materially adversely impacted, for current and future periods (at least in the short term).

Combination or "Layering" of Multiple Risk Factors May Significantly Increase Your Risk of Loss

Although the various risks discussed in this Offering Memorandum are generally described separately, prospective investors in the Notes should consider the potential effects on those Notes of the interplay of multiple risk factors (including risk factors described in this Offering Memorandum and risk factors described in the Investor Materials). Where more than one significant risk factor is present, the risk of loss to an investor may be significantly increased.

Risks Relating to the Assets

Nature of the Assets; Exposure to Risks of the Fund

The Assets will consist primarily of the Portfolio Assets and Holders of the Notes are subject to certain risks associated with the Portfolio Assets which are not described in this Offering Memorandum. The Fund is a newly formed entity with a limited performance history. The past performance of the Fund Manager may not be construed as an indication of the future results of the Fund. The ultimate size of the Fund will not be known at the time of the Issuer's investment and may be smaller than the target fund size as described in "*Security for the Debt—The Fund and the LP Interest—Summary of Terms of the Fund and the LP Interest*". For the foregoing reasons, such investment may involve greater risks than an investment providing exposure to a more diverse pool of underlying investment funds, products or strategies.

Because distributions on the Debt depend on the distributions that are made on the Portfolio Assets, all of the risks of an investment in the Portfolio Assets apply to an investment in the Debt. Accordingly, prospective investors in the Notes should review the Investor Materials.

Additional Investor Materials will be made available by Coller in a data room to prospective investors upon request. Such Investor Materials should be read in conjunction with this Offering Memorandum. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager (in such capacity) or the Issuer is responsible for, or is making any representation to you concerning the accuracy or completeness of such Investor Materials. Investors should be aware that the Investor Materials may contain errors or omissions, including with respect to amounts, maturities and other information. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager (in such capacity) or the Issuer (i) participated in the preparation of any Investor Materials, (ii) has made a due diligence inquiry, or assumes any obligation, as to the accuracy or completeness of the information contained in any Investor Materials and (iii) shall have any responsibility whatsoever for the contents of any Investor Materials. Accordingly, no representations, warranties or undertakings (express or implied) are made and no responsibility is accepted by the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, any of their respective agents or affiliates, nor the Manager (in such capacity) as to the accuracy, completeness or

timeliness of the information contained in the Investor Materials. Investors will be required to represent and confirm that they have done their own investigation in relation to the Fund and the Fund Portfolio Investments.

It should be noted that there may have been material changes in facts and circumstances since the date of the Investor Materials and any marketing materials presented in connection with the initial offering of the limited partnership interests in the Fund which may limit the usefulness of, and may be directly contrary to information presented in, such documents.

An Investment in the Notes has a Different Risk Profile than a Direct Investment in the Fund

Investors should be aware that an investment in the Notes has a different risk profile than a direct investment in the Fund and, as such, an investment in the Notes is not equivalent to an investment in the Fund. For example, Holders of Junior Classes will not receive proceeds of distributions from the Fund until after Priority Classes have received amounts owed, whereas an investor who invested directly in the Fund would not have been subject to such subordination. Additionally, the Issuer will vote as a single limited partner of the Fund. As a result, the Issuer may vote in a manner that is contrary to the vote of a particular Holder, whereas such Holder's vote would be included directly in any vote of limited partners if it had invested directly in the Fund. See "*—Voting Rights*" and "*Security for the Debt—Voting Rights*".

Voting Rights

Voting Rights with respect to the LP Interest will generally be exercised by the Issuer as directed in accordance with the provisions set forth under "*Security for the Debt—Voting Rights*". Directions from the Directing Party with respect to the exercise of such control rights could be adverse to the interests of the Holders of other Debt, and neither the Directing Party nor the Manager will have any obligation to consider any possible adverse effect on such other Holders.

The LP Interest held by the Issuer may not represent a controlling block for purposes of voting or other action permitted to be taken by the holders of the limited partnership interests pursuant to the Underlying Fund Documents. In such cases, the result of any vote submitted by the Directing Party in respect of the LP Interest will depend on the voting of other holders of the limited partnership interests.

Distributions In-Kind

The Fund will agree with the Issuer that it will not make distributions in-kind to the Issuer. As a result, the Fund will be required to liquidate the Issuer's share of any investments that it intends to distribute in-kind to investors. At the time of such distribution, such investments may be experiencing periods of limited liquidity, price volatility or a decline in market value and may have certain investment and transfer restrictions limiting marketability. The ability of the Fund to liquidate positions in such assets is subject to these and other risks. The risk of loss and delay in liquidating these assets will be borne by the Issuer, with the result that the Issuer may ultimately receive less value than it would have received if it had received a distribution in-kind.

Failure to Satisfy Capital Calls

Generally, the Underlying Fund Documents will provide for penalties in the event that the Issuer, as an investor in the Fund, fails to satisfy a Capital Call pursuant to its capital commitment, and such penalties may be severe. If the default continues beyond any applicable grace period, the Issuer would become a Defaulting Partner and may become subject to severe sanctions, including termination of the Issuer's right to participate in future investments by the Fund, loss of its entitlement to distributions or income but not its liability for losses or partnership expenses, loss of voting rights, mandatory transfer or sale of the Issuer's interest in the Fund at a discount, continuing liability for interest in respect of the defaulted amount, partial or total forfeiture of the Issuer's interest in the Fund and liability for any other rights and remedies (including legal remedies) the Fund Manager may have against the Issuer.

The net proceeds of the Notes are expected to be less than the Issuer's Capital Commitment in the Fund. The Issuer's sole sources to satisfy Capital Calls will be (i) the Cash Investment Amount, (ii) amounts on deposit in the Collection Account, (iii) amounts on deposit in the Reserve Account and (iv) the proceeds of the Liquidity Loans (which may terminate before the Issuer's capital commitment terminates). If the Issuer becomes a Defaulting Partner

under the Underlying Fund Documents, an Event of Default would occur under the Indenture. Any failure by the Issuer to meet any Capital Call may have a material adverse effect on the Fund and on the Issuer's ability to make payments on the Debt.

Cash Investment

The Issuer will use the net proceeds from the issuance of the Notes or incurrence of the Class A Loans to prefund a portion of its Capital Commitment to the Fund in the form of the Cash Investment. The Fund will be permitted to use the Cash Investment for any purpose permitted by the Underlying Fund Documents, including to make investments or to pay fees and expenses. As consideration therefor, the Fund will make the Cash Investment Payments to the Issuer.

The obligation of the Fund to make Cash Investment Payments will be subject to the Intercreditor Agreement under which the creditors of the Fund (including the Issuer under the Cash Investment Agreement) will share a common security interest and which will set forth the ranking and priority of the liabilities owed to each such creditor. The Intercreditor Agreement will also provide that the acceleration of any liabilities of the Fund owed to a creditor will result in the acceleration of the liabilities owed to the other creditors. In connection with the exercise of remedies in respect of the liabilities of the Fund, it is expected that the Security Agent (as defined herein) would issue a capital call notice to investors in the Fund (which would include a conversion of the outstanding Cash Investment to a capital contribution). Any such exercise of remedies could result in a decline in the value of the Portfolio Assets and the ability of the Fund to make payments in respect thereof, which could have a material adverse effect on the Issuer's ability to make payments on the Debt.

If the Fund fails to make any Cash Investment Payment, any remedies exercisable by the Issuer will be limited for so long as any senior liabilities are outstanding and will be subject to the Intercreditor Agreement. Such limitations could postpone the expected maturity and/or extend the average life of the Debt and reduce the likelihood of timely and complete payment of interest on or principal of the Secured Debt or distributions on the Subordinated Notes. In the event that one or more investors in the Fund fail to satisfy a funding obligation following the issue of a capital call notice in the circumstances described in the previous paragraph, amounts available for distribution to the Issuer may be insufficient to repay the Cash Investment in full which could have a material adverse effect on the Fund and on the Issuer's ability to make payments on the Debt. See "*Security for the Debt—Cash Investment*."

The Issuer May Be Liable for Returns of Certain Distributions

Pursuant to the Underlying Fund Documents, the Fund may designate certain distributions owed to the Issuer as Recyclable Distributions. At the Fund Manager's election, by notice to the Issuer, such Recyclable Distributions may be applied to increase the Cash Investment Amount but only to the extent that such increase would not cause the Cash Investment Amount to exceed the sum of the Initial Cash Investment and any Further Cash Investment, and any excess will be distributed to the Issuer. See "*Security for the Debt —Cash Investment*".

As described in "*Security for the Debt —The Fund and the LP Interest—Summary of Terms of the Fund and the LP Interest—Investor Clawback*", the Issuer may be obligated to return cash distributions previously received by it. Since the Issuer has otherwise limited resources from which to fund the return of any cash distribution, the Manager may from time to time determine that funds should be held in the Collection Account to reserve against the possibility of any such recall. See "*Summary of Terms—Payments on the Debt—Reserves for Clawback Amounts*". Any such funds held in the Collection Account will reduce the Available Proceeds available to make payments on the Debt on any Payment Date or on the Final Maturity Date and may reduce or delay payments on the Debt. See "*Security for the Debt—Cash Investment*." Further, if the Issuer is unable to or fails to meet any obligation to repay a recallable distribution, it would be subject to sanctions as set forth in the Underlying Fund Documents. Any failure by the Issuer to meet any such obligations may have a material adverse effect on the Fund and on the Issuer's ability to make payments on the Debt.

Side Letters

The Fund Manager may enter into side letters or other similar agreements with certain investors in the Fund (and is expected to enter into a side letter with the Issuer) in connection with their admission to the Fund without the approval of any other investor in the Fund, including the Issuer, which would have the effect of establishing rights

under or altering or supplementing the terms of the governing document of the Fund with respect to such investors in a manner more favorable to such investors than those applicable to other investors (including the Issuer). Such rights or terms in any such side letter or other similar agreement may include, without limitation, (i) excuse or exclusion rights applicable to particular investments (which may increase the percentage interest of other investors in, and contribution obligations of other investors with respect to, such investments), (ii) the Fund Manager's agreement to extend certain information rights or additional reporting to such investor, including, without limitation, to accommodate special tax, regulatory or other circumstances of such investor, (iii) waiver or modification of certain confidentiality obligations and/or documentation that might be requested by the Fund Manager for the benefit of lenders or other persons extending credit to or arranging financing for the Fund, (iv) consent of the Fund Manager to certain transfers by such investor or other exercises by the Fund Manager of its discretionary authority for the benefit of such investor, (v) restrictions on, or special rights of such investor with respect to the activities of the Fund Manager, (vi) withdrawal rights due to legal, regulatory, tax, accounting, or policy or other matters, including matters related to political contributions, gifts and other such policies, (vii) other rights or terms necessary in light of particular legal, regulatory, tax or policy characteristics of an investor, (viii) economic arrangements (including, for example, with respect to management fees, other fees and/or carried interest), (ix) other preferential arrangements with respect to one or more investors as part of a multi-strategy investment program that is part of an overall integrated investment arrangement with Coller, (x) matters regarding the allocation and/or terms of co-investment opportunities (including, for example, with respect to management fees and/or carried interest) and the right to participate therein, (xi) matters regarding such an investor's (or its affiliates') interest in providing debt financing to the Fund or its portfolio companies or (xii) additional obligations and restrictions of the Fund with respect to the structuring of any investment (including with respect to alternative investment vehicles). Such side agreements may permit such investors to take actions on the basis of information not available to other investors that do not have the benefit of such agreements. Any rights or terms so established in a side letter with an investor will govern solely with respect to such investor (but not any of such investor's assignees or transferees unless so specified in such side letter) and will not require the approval of any other investor (including the Issuer).

Fee Structure; Expenses

The Issuer will be subject to both Manager Fees and other expenses at the Issuer level and will indirectly be subject to management fees and incentive fees or allocations and other indirect expenses (*e.g.*, organizational expenses, partnership expenses and so forth) at the Portfolio Asset level. As a result, the Issuer will incur, in the aggregate, higher fees than would be incurred by a direct investment in a Portfolio Asset.

By virtue of the Issuer's investment in Portfolio Assets, the Issuer will bear a *pro rata* portion of the organizational, partnership and ongoing fees and expenses ("***Portfolio Asset Expenses***") in relation to the Portfolio Assets in accordance with the terms of the Underlying Fund Documents. Consequently, the Issuer indirectly may be subject to the payment of performance-based allocation or incentive fees at the Portfolio Asset level, despite the net performance of the Portfolio Assets in the Portfolio being flat or negative (or otherwise not satisfying relevant performance hurdles), since the performance of the Portfolio Assets will not be aggregated for purposes of any such calculations. In addition to the Manager Fee, the Fund will also pay a management fee and a performance-based allocation to the Fund Manager in accordance with the terms of the Underlying Fund Documents (to be borne indirectly by the Issuer with respect to its *pro rata* share thereof).

Risks Relating to the Fund

An investment in the Fund is subject to a high degree of risk and investors should note that an investment in the Notes is not equivalent, and involves a different risk profile, to a direct investment in the Fund. The summary below is not a complete or exhaustive list or explanation of all risks involved in an investment in the Fund. The risk factors included in this section "*Risks Relating to the Fund*" are taken from the private placement memorandum for the Fund and are being provided for informational purposes only. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent or the Issuer participated in the preparation of, is responsible for, or is making any representation to you concerning the accuracy or completeness of, the risk factors set forth in this section "*Risks Relating to the Fund*". Prospective investors in the Notes should review the Investor Materials and the risk factors set forth therein. See "*—Risks Relating to the Assets—Nature of the Assets; Exposure to Risks of the Fund*."

Investors should be aware that an investment in the Notes has a different risk profile than a direct investment in the Fund and, as such, an investment in the Notes is not equivalent to an investment in the Fund. See "*—Risks Relating to the Assets—An Investment in the Notes has a Different Risk Profile than a Direct Investment in the Fund*".

Risks Specific to Investing in Secondaries

Competition

The activity of identifying and completing attractive Secondaries is highly competitive and involves a high degree of uncertainty. The Fund will be competing for Secondaries with other Secondaries investment vehicles, as well as financial institutions and other investors. Over the past several years, an increasing number of Secondaries investment funds and other capital pools targeted at the Secondaries sector have been formed, and additional capital will likely be directed at this sector in the future. Other investment funds and other institutions currently in existence or organized in the future, may adopt the Fund's strategy wholly or in part and compete with the Fund. Such funds and institutions may have greater resources than the Fund, resulting in fewer investment opportunities available for the Fund or unfavorable implications for the pricing and other terms of potential investments, which could adversely affect the implementation of the Fund's investment strategy. Some of these funds and institutions may have greater access to investment opportunities in Secondaries and greater ability to complete investments than the Fund, or may have different return criteria than the Fund, any of which would afford them a competitive advantage. In connection with direct investments that the Fund may seek to make in private companies, pre-emptive rights in such companies may create competition from existing investors with respect to investments in such companies. Although the Fund Manager has been successful in sourcing suitable investments in the past, the Fund may be unable to find a sufficient number of attractive opportunities to meet its investment objectives.

Market Conditions for Secondaries

The supply and consequently the pricing of secondary market investments is dependent on a number of factors, including the rate at which funds pursuing such investments (including the Fund) are able to deploy capital, the performance and value of investments held by other investment funds and the ability of such investment funds to realize, recapitalize and/or refinance their own investments in order to return capital to their investors. Higher valuations and increased liquidity and return of capital in the private equity investments market may result in fewer attractive investment opportunities being available for the Fund. Regulatory changes affecting large financial institutions and other potential sellers of investments in the secondary market have been another important aspect of overall conditions in this market, and the future pace and direction of such changes may adversely impact the availability of opportunities to investment funds such as the Fund.

No Established Market for Secondaries Investments

There is not an established market for Secondaries investments and although there has been an increasing volume of sales of Secondaries investments, no liquid market is expected to develop for Secondaries. Moreover, the market for Secondaries has been evolving and is likely to continue to evolve. The Fund expects to acquire investments in private funds, portfolio companies or other assets (each a "***Fund Portfolio Investment***") on an opportunistic basis primarily from existing investors in such funds and companies (and not primarily from the issuers of such interests). There can be no assurance that the Fund will be able to identify sufficient Secondaries investment opportunities or that it will be able to acquire sufficient Secondaries investments on attractive terms. Equally, there can be no assurance that the Fund will be able to realize any Fund Portfolio Investments at a price that reflects what the Fund Manager believes to be their market value.

Contingent Liabilities Associated with Fund Interests Acquired in Secondary Transactions

In the cases where the Fund acquires an interest in an underlying investment fund in a secondary transaction, the Fund may acquire contingent liabilities of the seller of the interest. More specifically, where the seller has received distributions from the relevant investment fund and, subsequently, that investment fund recalls one or more of these distributions, the Fund (as the purchaser of the interest to which such distributions are attributable and not the seller) may be obligated to return monies equivalent to such distributions to the investment fund. While the Fund may, in

turn, make a claim against the seller for any such monies so paid to the investment fund, there can be no assurance that the Fund would prevail in relation to such a claim.

Pooled Investments in Secondaries

In many cases, the Fund expects to have the opportunity to acquire a portfolio of interests in investment funds and/or private companies from a seller on an "all or nothing" basis. Interests in certain of the investment funds or companies in the portfolio may be less attractive than others, and certain of the companies or the sponsors of such investment funds may be more familiar to the Fund than others, or may be more experienced or highly regarded than others. In such cases, it may not be possible for the Fund to carve out from such purchases those investments which the Fund Manager considers (for commercial, tax, legal or other reasons) less attractive.

In addition, the Fund may invest with other investors through the use of joint ventures and similar arrangements. Such arrangements may involve the Fund taking on greater risk with an expected greater return or reducing its risk with a corresponding reduction in the expected rate of return. In addition, such arrangements expose the Fund to the risk that a third-party co-venturer may (1) have financial difficulties, resulting in a negative impact on the Fund Portfolio Investment in question, (2) have economic or business interests or goals that are inconsistent with those of the Fund or (3) be in a position to take (or block) action in a manner contrary to the Fund's investment objectives. More generally, the use of joint ventures and similar arrangement may limit the degree of control that the Fund can exercise with respect to certain Fund Portfolio Investments.

Lack of Management and Control by the Fund

As a limited partner in an underlying investment fund, the Fund will have limited opportunity to control the day-to-day operation, including investment and disposition decisions, of such underlying investment fund or to protect its position in such investment fund (other than collectively with other investors who may or may not elect to exercise the protection rights afforded to investors as a whole). The general partners of underlying investment funds will generally have sole and absolute discretion in structuring, negotiating and purchasing, financing, monitoring and eventually divesting investments made by such underlying investment funds.

As an investor in underlying investment funds on a secondary basis, while the Fund Manager will undertake due diligence as to the approach taken by such investment funds as to portfolio and risk management, conflicts of interest, environmental, social and corporate governance issues and other relevant matters, the Fund Manager will generally not be in a position to change such approach. Similarly, while the Fund Manager will typically ascertain what, if any, transaction fees or directors', advisory, consulting, monitoring, banking or other similar types of fees (collectively, "***Portfolio Company Fees***") the underlying general partners receive from their portfolio companies, as well as the extent to which Portfolio Company Fees are offset against the management fees that are earned by the managers, the Fund Manager will not be in a position to negotiate the level of any such offset and further will not be responsible for determining whether managers are correctly calculating Portfolio Company Fees or fee offsets. Rather, it will be the responsibility of the managers and their service providers (including their administrators and auditors) to verify these calculations.

In direct Secondaries transactions where the Fund will participate in the purchase of underlying portfolio companies, the continued financing, monitoring and eventual divestment of such portfolio companies will be dependent upon the general partner of the investment fund undertaking such direct Secondaries transaction. Accordingly, the Fund will be dependent upon the general partner of such investment fund with respect to the selection, management and ultimate realization of related Fund Portfolio Investments. In addition, the investment manager associated with a direct Secondaries portfolio may have a limited track record and experience in managing and divesting such direct Secondaries portfolio and the ability to conduct due diligence on the likely investment performance of such investment manager may be more limited than in traditional Secondaries investments.

No Assurance as to Maturity, Redemption, Liquidation or Disposal of Fund Portfolio Investments

While many Fund Portfolio Investments will have maturity or redemption dates, or will otherwise be liquidated or disposed of, during the term of the Fund, such maturity or redemption dates may be extended and for other Fund Portfolio Investments may fall outside the term of the Fund. There can be no assurance that the Fund will be able to

sell or otherwise dispose of a Fund Portfolio Investment at a time that the Fund Manager considers to be economically opportune or at all.

Multiple Levels of Fees and Expenses

Both the Fund and Fund Portfolio Investments that are themselves investment funds or other managed vehicles impose performance-based allocations or fees, management fees and other expenses. In addition, the structures through which the Fund makes Fund Portfolio Investments may be complex to manage and administer and may require separate administrators, consultants, senior advisors and other service providers to be appointed. Any costs associated with such structures will typically be borne by the Fund and are likely to be significant. In each case, this will result in greater expense than if Investors were able to invest directly in those investment funds or the underlying portfolio companies or other assets.

Other Risks Relating to Fund Portfolio Investments

Market Stability for Fund Portfolio Investments

The operation of Fund Portfolio Investments in which the Fund has invested may be affected by sovereign or political risk. Major disturbances such as wars, riots, strikes, blockades, acts of terrorism or outbreak of associated military or responsive action have the potential to adversely affect the costs, operations or revenues of Fund Portfolio Investments, which could have a material adverse effect on the earnings of the Fund and its ability to make distributions. Additionally, a climate of uncertainty may reduce the availability of potential investment opportunities and increase the difficulty of modelling market conditions, reducing the accuracy of the financial projections.

General economic conditions, including interest rates, the availability of financing or insurance, the price of securities and participation of other investors in the financial markets may adversely affect the value and number of Fund Portfolio Investments. Actual or perceived trends in economic markets do not guarantee, predict or forecast future events, which may differ significantly from those implied by such trends. In addition, economic problems in a single country are increasingly affecting other markets and economies. A continuation of this trend could adversely affect regional and global economic conditions and world markets and, in turn, could adversely affect the Fund's performance. Any of the foregoing events could result in substantial or total losses to the Fund, which losses will likely be exacerbated by the presence of leverage in a Fund Portfolio Investment's capital structure.

There is a risk, particularly given the recent instability in the financial sector, that counterparties may default on their contractual obligations to the Fund or its Fund Portfolio Investments. Any such counterparty default would be likely to have an adverse effect on the value of Fund Portfolio Investments and on the returns to investors in the Fund (including, indirectly, the Holders).

Market Conditions

Financial markets are subject to uncertainty and instability. See "—*General*" above. Global financial markets may experience considerable and prolonged declines in the valuations of equity and debt securities and an acute contraction in the availability of credit. Since the 2008/9 global financial crisis, certain government and supranational bodies and central banks worldwide, including the European Commission, the U.S. Treasury Department and the U.S. Federal Reserve, have undertaken unprecedented intervention programs, the effects of which remain uncertain. While the Fund Manager expects that the current industry environment may yield attractive investment opportunities for the Fund, there can be no assurances that conditions in the global financial markets will not worsen and/or adversely affect one or more Fund Portfolio Investments (including with respect to performing under or refinancing their existing obligations), its access to capital or leverage, its ability to effectively deploy its capital or realize investments on favorable terms, or its overall performance.

Financial Market Fluctuations

General fluctuations in the market prices of securities may affect the value of the Fund Portfolio Investments. Instability in the securities markets may also increase the risks inherent in certain Fund Portfolio Investments.

Unquoted Interests of Fund Portfolio Investments

Fund Portfolio Investments will typically consist of positions in existing investment funds and direct or indirect shareholdings in, and debt securities of, unquoted companies. Such Fund Portfolio Investments can involve a greater risk than investments in quoted companies, and the ability of a minority investor in such Fund Portfolio Investments to influence their affairs or to protect the Fund's position is limited. Investments in funds will often be made through a limited partnership interest. As a result, the Fund will not be permitted to participate in the management and operations of such funds. Instead, the general partners of such funds will have the sole authority to manage and operate such funds. Similarly, the Fund may not obtain representation on the board of directors or any control over the management of any company in which the Fund may invest and the success of each Fund Portfolio Investment will depend on the ability and success of the management of the Fund Portfolio Investment in addition to economic and market factors. Moreover, the marketability of interests in investment funds and in unquoted companies is restricted. Potential exit routes include a sale to other investors, a buyout by the management team, a sale to a third party or an initial public offering on a capital market. However, there can be no guarantee that an exit can be found for any Fund Portfolio Investment.

Leverage – Fund Portfolio Investments

The leveraged capital structure of some Fund Portfolio Investments in which the Fund may invest, and of the Fund's investments in such Fund Portfolio Investments, will increase the exposure of such Fund Portfolio Investments to adverse financial or economic conditions. Under such conditions, the value of the Fund Portfolio Investment could be significantly reduced or even eliminated.

The cost and availability of leverage is highly dependent on the state of the broader credit markets, which is difficult to accurately forecast. During periods in which credit markets are unfavorable, it may be difficult for Fund Portfolio Investments to obtain or maintain the desired degree of leverage. Leverage often imposes restrictive financial and operating covenants on a borrower, in addition to the burden of debt service, and may impair the borrower's ability to finance future operations and capital needs. The leveraged capital structure of certain Fund Portfolio Investments will increase the effects of any deterioration in their condition, competitive pressures, an adverse economic or industry environment or rising interest rates and could accelerate and magnify declines in the value of Fund Portfolio Investments in a down market compared to an unleveraged investment. In the event that any Fund Portfolio Investment cannot generate adequate cash flows to meet debt service, the Fund may suffer a partial or total loss of capital invested in such Fund Portfolio Investment, which would adversely affect the returns of the Fund. Furthermore, should the credit markets be unfavorable at the time that the Fund determines that it is desirable to sell all or a part of a Fund Portfolio Investment, the Fund may not achieve an exit multiple or enterprise valuation consistent with its forecasts.

Venture Capital Investments

The Fund may invest in interests in investment funds devoted to early and later stage venture capital investments or directly in such companies. Early stage is the segment of the venture capital business with the highest degree of investment risk. Typically, such companies have no operating history, unproven technology, untested management, and unknown future capital requirements and may be cashflow negative. These companies often face intense competition, often from established companies with much greater financial, manufacturing and technical resources, more marketing and service capabilities, and a greater number of qualified personnel. To the extent there is a public market for the securities of these companies, they may be subject to abrupt and erratic market price movements. The Fund's direct investments in such companies and indirect investments through investment vehicles focused on investments of this type will be highly speculative and may result in the loss of the amounts invested by the Fund. There can be no assurance that any such losses will be offset by gains (if any) realized in other Fund Portfolio Investments.

Emerging Markets Investments

The Fund may invest in Fund Portfolio Investments domiciled and/or doing a substantial part of their business in countries with less developed or developing economies ("***Emerging Markets Countries***"). Investments in companies in Emerging Market Countries involve risks not typically associated with investing in Western Europe, Canada and the United States, including risks related to (1) differences between the capital markets in Western Europe, Canada and the United States and the Emerging Markets Countries, including potential price volatility in, and relative

illiquidity of, some capital markets in the Emerging Markets Countries and the absence of uniform accounting, auditing and financial reporting standards, practice and disclosure requirements, (2) currency exchange matters, including fluctuations in the rates of exchange between the United States Dollar and the various Emerging Markets Countries individual country currencies, and costs associated with conversion of investment principal and income from one currency into another (which could affect the value of the Investment), (3) different systems of government supervision and regulation, which may, among other things, require significant governmental approvals and financing and structuring alternatives that differ materially from, and legal systems which may operate with less certainty than, those customarily used in Western Europe, Canada and the United States, (4) certain economic and political risks, including potential exchange control regulations and restrictions on investment and repatriation of capital in certain Emerging Markets Countries, the risks of political, economic or social instability and the possibility of expropriation or confiscatory or punitive taxation, and (5) the possible imposition of taxes, including on income and gains recognized with respect to such investments, which may not be creditable to or deductible by the investors. Further, in any Fund Portfolio Investment in an unstable political or economic environment such as certain Emerging Markets Countries, there exists a greater risk of default as to debt securities and bankruptcy or insolvency with respect to equity securities than exists in Western Europe, the United States and Canada. The Fund Manager and the Fund Investment Adviser will analyze information with respect to political and economic environments and the particular legal, tax and regulatory risks in relevant countries before making Fund Portfolio Investments, but no assurance can be given that a specific political or economic climate or that particular legal, tax or regulatory risks might not adversely affect an Investment by the Fund.

Difficulty and Cost of Locating Suitable Investments

Although Coller has been successful in identifying suitable investments in the past, there is no guarantee that suitable deal flow will be available so that the Fund will be able to invest the aggregate capital commitments during the Fund's investment period or that any such investments will be successful. The success of the Fund depends on the ability of the Fund Manager to identify, select, effect and realize appropriate investments. The availability of investment opportunities may be affected by market conditions. In particular, in light of the changes in such conditions, certain types of investments may not be available to the Fund on terms that are as attractive as the terms on which the opportunities were available to the Coller funds in the past. Accordingly, the Fund may only make a limited number of investments. Since these investments may involve a high degree of risk, poor performance by a few investments could significantly affect the return to investors. To the extent that any of the aggregate capital commitments are not invested, the Fund's potential for return may be diminished. No assurances can therefore be given that the target returns of the Fund will be achieved.

The Fund Manager may expend significant resources and incur significant costs in relation to a potential investment for the Fund. Such costs will be charged to the Fund and may not be recoverable, particularly if the Fund's bid for the investment is unsuccessful or if the investment is not completed for any other reason.

The secondary private equity investment industry in which the Fund will be engaged is competitive and investors will be relying on the ability of the Fund Manager to select the investments to be made by the Fund. There can be no certainty that the Fund Manager will identify a sufficient number of attractive investment opportunities to enable the full amount of capital commitments made to the Fund to be invested. To the extent that the Fund encounters competition from other strategic buyers and investors engaged in activities similar to those of the Fund, such competition may have the effect of increasing acquisition and other costs and the length of time required to fully invest the Fund, thereby reducing investment returns.

Risks of Certain Dispositions

In connection with the disposition of a Fund Portfolio Investment or otherwise, the Fund may be required to make representations about the business and financial affairs of the Fund Portfolio Investment typical of those made in connection with the sale of any business. It may also be required to indemnify the purchasers of such Fund Portfolio Investment to the extent that any such representations are inaccurate. These arrangements may result in contingent liabilities, which might ultimately have to be funded by the Fund. Returns generated by the Fund Portfolio Investments may be insufficient to compensate investors adequately for the business and financial risks that must be assumed.

Valuation of Fund Portfolio Investments

The Fund's interest in an investment fund will generally be valued in accordance with the reported valuations of the investment fund by the fund's manager, although the Fund may use valuations other than those reported by the investment fund's manager when it believes it is appropriate to do so. Different fund managers use different valuation methods and determine such valuations at different times and there can be no assurance that any such valuations are accurate. In addition, these valuations may be provided by the fund manager of the relevant investment fund to the Fund based on interim unaudited financial statements. Accordingly, these figures may be subject to an upward or downward adjustment following the auditing of such financial records.

There can be no assurance that Fund Portfolio Investments will ultimately be realized for amounts equal to, or greater than, these valuations, or that the past performance information based on such valuations will accurately reflect the realization value of such Fund Portfolio Investments. The actual realized returns generated by unrealized Fund Portfolio Investments will depend on, among other factors, future operating results, the value of the assets and market conditions at the time of disposition, any related transaction costs and the timing and manner of sale. Valuations are subject to determinations, judgments and opinions, and other third parties or investors may disagree with such valuations.

Synthetic Securities

Fund Portfolio Investments may consist of synthetic securities such as swaps (including total return swaps), and collateralized loan obligations and other derivative instruments. Fund Portfolio Investments involving the purchase of synthetic securities present risks in addition to those resulting from direct purchases of the underlying securities or assets. With respect to synthetic securities, the Fund will usually have a contractual relationship only with the counterparty of such synthetic security, and not the underlying obligor. Recent, well-publicized weaknesses in certain financial institutions may be indicative of increased counterparty risk with respect to, among other things, transactions involving synthetic securities. Additionally, the transparency of the financial statements issued by such financial institutions, in particular, with respect to the value of complex financial assets, has been called into question. The Fund generally will have no right directly to enforce compliance by the underlying obligor with the terms of the underlying obligation nor any rights of set-off against the underlying obligor, nor have any voting or other consensual rights of ownership with respect to the underlying obligation. The Fund will not directly benefit from any collateral supporting the underlying obligation and will not have the benefit of the remedies that would normally be available to a holder of such underlying obligation. In addition, in the event of the insolvency of the counterparty, the Fund will be treated as a general creditor of the counterparty, and will not have any claim of title with respect to the underlying obligation. Consequently, the Fund will be subject to the credit risk of the counterparty as well as that of the underlying obligor. As a result, concentrations of synthetic securities entered into with any one counterparty will subject the Fund to an additional degree of risk with respect to defaults by such counterparty as well as by the underlying obligor.

Regulatory and Tax Limitations Affecting Fund Portfolio Investments

The Fund will seek to invest in existing investment funds that have been organized and structured in a way designed to meet the requirements of their original investors. This may mean that, pursuant to the organizational documents of such funds, or due to regulatory, tax or ERISA limitations, an investment by the Fund in a particular investment fund is not allowed or is subject to limitations or restrictions. As a result, (1) the Fund may be prevented from purchasing interests in certain investment funds, (2) one or more of the constituent vehicles of the Fund may need to be excluded from a purchase of certain investment funds or may only be able to participate in the purchase in a different manner or on different terms than other vehicles, or (3) a purchase by the Fund may need to be structured in a particular way to address administrative, regulatory, tax or ERISA limitations applicable to underlying investment funds. Moreover, the Fund generally will not be able to change the structures or influence the activities of underlying investment funds, which may result in investments in existing investment funds being inefficient from a tax or regulatory perspective. In particular, an investment in an underlying investment fund may be less tax efficient for certain limited partners (including the Issuer) than it would have been if those limited partners had invested directly in the underlying investment fund through a vehicle organized for investors of the same type as those limited partners.

Regulatory Compliance Obligations of Fund Portfolio Investments

Fund Portfolio Investments may be subject to industry-specific or other regulatory regimes, or may generally face increased levels of legal, regulatory and compliance obligations applicable to industries or in jurisdictions they operate in. For example, certain Fund Portfolio Investments may need to be registered as investment companies under the Investment Company Act, or registered or authorized under other relevant legislation. Such regimes and obligations have increased significantly in recent years, including in previously less regulated areas, such as data protection. They may result in restrictions as to the activities that may be undertaken by affected Fund Portfolio Investments, as well as increased compliance costs or additional capital expenditures, both of which would reduce the distributions received by the Fund from affected Fund Portfolio Investments. More generally, affected Fund Portfolio Investments, and by extension possibly the Fund Manager, may need to divert resources towards complying with legal and regulatory obligations and away from the day-to-day management of such Fund Portfolio Investments or the Fund, as the case may be.

Prior to making any Fund Portfolio Investment, the Fund Manager will seek to complete due diligence on the compliance by such Fund Portfolio Investment with statutory, regulatory and compliance requirements and obligations. However, the Fund Manager can give no assurance that any Fund Portfolio Investment will be, and will continue to be, compliant with all such requirements and obligations. The risk of non-compliance is typically more significant in the case of unquoted investment funds and companies than quoted investment funds or companies. Additionally, unquoted investment funds and companies are not subject to equivalent levels of disclosure and investor protections that apply to quoted investment funds or companies. Any non-compliance by a Fund Portfolio Investment with applicable requirements and obligations could subject it to fines or other sanctions or could otherwise adversely affect its financial and other performance, and therefore the distributions received by the Fund from such Fund Portfolio Investment.

Fund and Management Risks

Nature of Investment

An investment in the Fund is speculative and long-term with no certainty of return. The value of an interest in the Fund (and the distributions received in respect of such interest) can fluctuate and may go down as well as up, and an Investor may get back less than it contributes to the Fund. The Fund's investment portfolio will involve a high degree of business and financial risk which can result in substantial losses, including the loss of an investor's entire investment.

Fund Portfolio Investments in equity, equity-related, debt and other credit assets carry a relatively high degree of risk owing to the business and financial uncertainties facing individual issuers. Changes in economic and regulatory conditions, including, for example, interest rates, trends, tax laws and innumerable other factors, can affect substantially and adversely the business and prospects of any of the Fund Portfolio Investments. None of these conditions are within the control of the Fund or the Fund Manager.

The performance information given in the Investor Materials relates to the past activities of Coller and the Coller funds, not of the Fund. The past performance of Coller, the Coller funds and the investments that they have made provide no assurance of future returns or results of the Fund's investments in its Fund Portfolio Investments. In addition, any forward-looking statements (including, without limitation, projections of future earnings or value) contained in the Investor Materials are subject to known and unknown risks (such as general economic and political conditions which may affect the Fund), uncertainties and other factors which may cause actual results to be materially different from those contemplated by such statements. Actual events or results or the actual performance of the Fund may differ materially from those reflected or contemplated in such forward-looking statements. There can be no assurance that the Fund will be successful in its Fund Portfolio Investments and consequently the Fund may not be able to return to the investors all or any of the capital which they subscribe to the Fund. Further, there is no assurance of any distribution to the Investors at any time.

Lack of Liquidity and Long-Term Nature of Potential Return

Equity, equity-related, debt and other credit assets are usually illiquid until or unless a public listing or other exit opportunity arises. Accordingly, Fund Portfolio Investments may often be difficult to value and to sell or otherwise

liquidate and their realizable value may be less than their intrinsic value. Although it is the expectation of the Fund Manager that Fund Portfolio Investments will either be disposed of prior to the winding up of the Fund or be suitable for in-kind distribution at that time, the Fund may have to sell, distribute or otherwise dispose of Fund Portfolio Investments at a disadvantageous time as a result of the commencement of the winding up of the Fund. Similarly, the Fund may, prior to winding up, allow investors to elect to participate in in-kind distributions or to receive cash instead. In the event that an investor elects to receive cash in lieu of an in-kind distribution, the Fund may have to sell, distribute or otherwise dispose of Fund Portfolio Investments at a disadvantageous time as a result of such election. Moreover, Fund Portfolio Investments generally do not pay dividends and may experience difficulties in making debt service payments. Based on the experience with prior Coller funds the Fund Manager expects the Fund to receive cash distributions in the early years of its term due to the reduced time to realization of Fund Portfolio Investments made in the secondary market, however, Investors cannot be guaranteed any significant return in the early years of the Fund. Consequently, an investment in the Fund is inappropriate for investors seeking liquidity or short-term cash return.

Co-Investments

The Fund may invest in Fund Portfolio Investments alongside financial, strategic or other third-party co-investors. Investments alongside co-investors will involve risks which may not be present in investments without a co-investor, including the possibilities that (1) a co-investor's interests or the interests of the manager of the vehicle through which such co-investor is making a co-investment are inconsistent with those of the Fund or (2) a co-investor or the manager of the vehicle through which such co-investor is making a co-investment may be able to take actions contrary to the Fund's investment policy or may become bankrupt or otherwise default on its obligations.

Investors should also note that, pursuant to the terms of the Underlying Fund Documents, the Fund General Partner may offer co-investment opportunities with respect to certain Fund Portfolio Investments to be made by the Fund and may allocate any such opportunities among interested parties in its sole discretion, including to strategic partners. Investing in the Fund does not entitle any investor to allocations of co-investment opportunities. In some situations, co-investment opportunities may reduce the size of Fund Portfolio Investments that would otherwise be available to the Fund. The allocation of co-investment opportunities will or may involve a benefit to Coller including, without limitation, management fees, a priority profit share or carried interest from the co-investment opportunity.

Co-investments typically involve investment at the same time and on the same terms as the Fund making the investment, subject to any exceptions set forth in the Underlying Fund Documents. Alternatively, from time to time, for strategic, structuring or other reasons, a co-investor (or co-investment vehicle) may purchase a portion of an investment from the Fund. Any such purchase will typically occur shortly after the Fund's completion of the investment to avoid any changes in valuation, and the co-investor (or co-investment vehicle) may be charged interest on the purchase price to compensate the Fund for the holding period. In general, any co-investor will not invest in or through any vehicle managed by the Fund Manager or Coller, but will invest, directly or through one or more investment vehicles, in underlying third-party funds or companies.

Concentration

The Underlying Fund Documents will include restrictions on the amount of capital commitments that may be invested by the Fund in any single investment fund or portfolio company. Such restrictions seek to protect investors from the Fund's exposure (in sector, style, geographic or any other terms) becoming overly concentrated. To the extent that the total capital commitments to the Fund are less than the targeted amount, the Fund may be limited to a smaller number of investments and may therefore be less diversified than would be the case with a larger fund. Prior to the final closing date of the Fund, the aforementioned restrictions will apply by reference to the higher of (1) target total capital commitments and (2) total capital commitments. This means that to the extent that the total capital commitments are less than the targeted amount, certain investments made by the Fund prior to the final closing date of the Fund may exceed the Fund's concentration restrictions and therefore the Fund may be less diversified than would be the case with a larger fund. In addition, it should be noted that the relative concentration of investments will be significantly higher during the divestment and liquidation phase of the Fund.

Fund Leverage

The Fund may use borrowings (including in the form of the Cash Investment), up to certain limits, to finance Fund Portfolio Investments and bridge capital calls. Although the Fund Manager would seek to use borrowings in a

manner it believes is prudent, the use of borrowings may involve a high degree of financial risk. Borrowings by the Fund have the potential to enhance overall returns that exceed the Fund's cost of funds; however, they will further diminish returns (or increase losses on capital) to the extent overall returns are less than the Fund's cost of funds. In addition, calculations of net internal rate of return ("***IRR***") with respect to the Fund, as reported to investors from time to time, will be based on the payment date of advances received from investors. This treatment also applies in instances where the Fund utilizes borrowings under the Fund's subscription-based credit facility in lieu of advances or in advance of receiving advances from investors to repay any such borrowings and related interest expense. Use of a subscription-based credit facility (or other leverage) may result in higher reported net IRRs and gross IRRs than if the facility had not been utilized and instead the investors' capital had been contributed at the relevant time.

The Fund may use deferred payments and vendor financing to finance some Fund Portfolio Investments which may act as a delayed capital call to investors in order to protect a Fund Portfolio Investment's IRR against a prolonged or delayed exit period. If such deferred payment or vendor financing arrangements are no longer available, or the Fund Manager considers the pricing of such arrangements not to be in the best interests of the Fund, then the Fund's IRR may be adversely impacted.

Borrowings by the Fund may not be fully covered by contractual capital commitments (or undrawn commitments) from investors or may otherwise be structured such that the Fund would be "leveraged" within the meaning of the AIFM Directive and would be required to comply with additional disclosure and reporting requirements as to the amount of leverage employed by the Fund. Compliance with such additional disclosure and reporting requirements may involve additional costs.

To the extent that the Fund is unable to obtain a facility, the Fund Manager determines that the terms of such facility would not be appropriate for the Fund or otherwise determines not to use such facility or access to such facility otherwise becomes unavailable, the Fund Manager may determine to draw down capital commitments in advance and hold them in reserve in order to make investments, satisfy fees and expenses and other capital needs as such needs arise in the future.

Over-Commitment and Recycling

As is typical for a fund pursuing a Secondaries investment strategy, the Fund may make aggregate commitments to Fund Portfolio Investments that exceed the aggregate capital commitments of the limited partners in order to ensure that the Fund is fully invested and to seek to maximize returns. Moreover, the Fund General Partner's entitlement to Carried Interest (as defined herein) may create an incentive for the Fund General Partner to pursue an over-commitment strategy. Any over-commitment of the Fund creates risks, including but not limited to the risk that the Fund will not have sufficient capital available to meet the demands of Fund Portfolio Investments, which could materially adversely affect the economic interests of investors, particularly, if such over-commitment resulted in the Fund becoming a defaulting investor in a Fund Portfolio Investment. If the Fund became a defaulting investor in a Fund Portfolio Investment, such event could also create liability for the Fund (for example, the Fund could be charged penalties similar to the Fund is permitted to charge its defaulting limited partners), as well as result in the Fund forfeiting all or a portion of its investment in the Fund Portfolio Investment in which it defaults. Any amount otherwise distributable to the Issuer in respect of a distribution that the Fund has designated as a "Recyclable Distribution" in accordance with the Underlying Fund Documents will be retained by the Fund or the Issuer, as described in "*Security for the Debt—Cash Investment*."

As set forth in the Underlying Fund Documents, certain amounts received by the Fund and distributed to a limited partner, including any return of capital contributions drawn down to fund an investment during the period set forth in the Underlying Fund Documents or drawn down to fund expenses of the Fund or the Management Charge, will increase such partner's unfunded capital commitments (but not above such limited partner's total capital commitments to the Fund). Any such amounts returned to the limited partners may be subject to recall or redeployment for contribution to the Fund. Due to the ability of the Fund to recycle capital commitments (within certain parameters as set out in the Underlying Fund Documents), a limited partner may, in the aggregate, be required to fund an aggregate amount in excess of its capital commitment during the term of the Fund.

In addition, proceeds arising from Fund Portfolio Investments may be retained by intermediate holding vehicles in which the Fund holds investments and redeployed by such intermediate holding vehicles in accordance with the

Fund's investment strategy, rather than being returned to the Fund for distributions to investors or redeployment by the Fund.

Currency Risk

The Fund's reference currency will be the United States Dollar while Fund Portfolio Investments are also likely to be made and realized in other currencies. Changes in rates of exchange may have an adverse effect on the value, price or income of Fund Portfolio Investments and, in addition, the Fund will incur costs in converting investment proceeds from one currency to another. The value of a Fund Portfolio Investment may fall substantially as a result of fluctuations in the currency of the country in which it is made or to which it is inherently exposed as against the value of the United States Dollar. The Fund Manager may (but is not obliged to) endeavor to manage such currency exposures, using appropriate hedging techniques where available and appropriate. The Fund may incur significant costs related to currency hedging arrangements and use of such arrangements could, in certain circumstances, cause the Fund to be considered to be leveraged for the purposes of the European Union AIFM Directive (with the consequences described above). There can be no assurance that adequate hedging arrangements will be available on an economically viable basis or that any such hedging arrangements will be successful in managing currency exposures. In addition, movements in the foreign exchange rate between United States Dollars and the currency applicable to a particular investor may have an impact upon such investor's returns in their own currency of account. There is a risk that default of certain participating member states of the European Union may lead to the collapse of the Eurozone as it is constituted today or that certain member states of the European Union may cease to use the Euro as their national currency. This could have an adverse effect on the Fund and the performance of its Fund Portfolio Investments which are denominated in Euros.

Hedging

The Fund and managers of Fund Portfolio Investments may employ hedging techniques on a selective and discretionary basis to seek to reduce the risks to the Fund's portfolio arising from adverse movements in interest rates, securities prices and currency exchange rates. There is no assurance that hedging techniques will be employed with respect to all such risks or at all times, or that the techniques employed will be effective in reducing the risks in question. Also, while hedging transactions may reduce certain risks, such transactions themselves may entail other risks. Therefore, while the Fund may benefit from the use of these hedging techniques, unanticipated changes in interest rates, securities prices, or currency exchange rates may result in a poorer overall performance for the Fund than if it or its underlying investments had not entered into hedging transactions.

Litigation Risks

The Fund will be subject to a variety of litigation risks, particularly if one or more of its Fund Portfolio Investments face financial or other difficulties during the term of the Fund. Legal disputes, involving any or all of the Fund, the Fund Manager, its members or its affiliates, may arise from investment related and any other activities relating to the operation or administration of the Fund and could have a significant adverse effect on the Fund. Such legal disputes could materially reduce the value of the Fund Portfolio Investments. Additionally, the Fund Manager may receive the right to appoint a representative to boards of directors or other governing boards of Fund Portfolio Investments or the advisory boards of investment funds in which the Fund invests. Serving on such boards exposes the Fund Manager, other members of Coller and the Fund to potential liability. Although Fund Portfolio Investments may have insurance to protect directors and officers and advisory board members from such liability, such insurance may not be obtained by all such entities and may be insufficient if obtained.

Legal and Regulatory Risks

Legal Investment

The appropriate characterization of the Notes under various legal investment restrictions, and thus the ability of investors subject to those restrictions to purchase the Notes, may be subject to significant interpretative uncertainties. No representation is made as to the proper characterization of the Notes for legal investment purposes, or for risk-weighting, securities valuation, regulatory accounting or other financial institution regulatory regimes of the National Association of Insurance Commissioners, any state insurance commissioner, any federal or state banking authority or

any other regulatory body. No representation is made as to the ability of particular investors to purchase Notes under applicable legal investment restrictions.

Legal and Regulatory Developments

Various agencies and regulatory bodies of the U.S. federal government have taken or are considering taking actions to manage risk in the financial services industry. These actions include, but are not limited to, the enactment of the Dodd-Frank Act, which imposes a regulatory framework over the U.S. financial services industry and the consumer credit markets in general and on asset-backed securities in particular. Given the broad scope and sweeping nature of these changes, the potential impact of these actions on the Issuer, any of the Debt or any owners of interests in the Debt is unknown, and no assurance can be made that the impact of such changes would not have a material adverse effect on the prospects of the Issuer or the value or marketability of the Debt.

Financial Accounting Standards

The Financial Accounting Standards Board has adopted changes to the accounting standards for structured products. These changes, or any future changes, may affect the accounting for entities such as the Issuer. Such changes could under certain circumstances require an investor or its owner generally to consolidate the assets of the Issuer in its financial statements and record third parties' investments in the Issuer as liabilities of that investor or owner or could otherwise adversely affect the manner in which the investor or its owner must report an investment in Debt for financial reporting purposes.

The Volcker Rule

The Volcker Rule generally prohibits "banking entities" (including the Initial Purchaser and its affiliates) from engaging in proprietary trading or from acquiring or retaining an "ownership interest" in, or sponsoring or having certain relationships with, "covered funds." The definition of "covered fund" in the Volcker Rule includes any entity that would be an investment company under the Investment Company Act but for the exemption provided under Sections 3(c)(1) or 3(c)(7) thereunder, subject to certain exclusions from the definition of "covered fund" found within the Volcker Rule itself. Because the Issuer will rely on Section 3(c)(7), it would be deemed to be a "covered fund" within the meaning of the Volcker Rule, unless such an exclusion applies. If the Issuer is a "covered fund", certain entities (including, without limitation, a "banking entity") may be prohibited from, among other things, acting as a "sponsor" to, or having an "ownership interest" in, the Issuer.

However, in June 2020, the five federal agencies responsible for implementing the Volcker Rule adopted additional amendments to the Volcker Rule's final regulations, including changes relevant to the treatment of securitizations (the "***Volcker Changes***"). Among other things, the Volcker Changes create additional exclusions from the "covered fund" definition, and in particular narrow the definition of "ownership interest" to exclude certain "senior debt interests" as well as other debt interests that have the right to replace the manager only following a cause-related default. The Volcker Changes become effective October 1, 2020. The Issuer believes that, as a result of the Volcker Changes, the Notes will not be considered "ownership interests" for purposes of the Volcker Rule, and the Notes may be acquired by a banking entity without regard to whether the Issuer is a covered fund. It should also be noted that in certain circumstances, an adopted regulation, including but not limited to the Volcker Changes, can be rescinded under the Congressional Review Act if a joint resolution of disapproval is adopted by both houses of Congress within a limited number of days following adoption of the regulation.

Because the Issuer will rely on Section 3(c)(7) of the Investment Company Act, absent an exemption, it would be deemed to be a covered fund and, as a result, there will be limitations on the ability of banking entities to purchase or retain any Class deemed to be "ownership interests," which, prior to October 1, 2020, would be expected to include the Subordinated Notes but also could include other Classes. Depending on market conditions, this could significantly and negatively affect the liquidity and market value of the affected Classes. Moreover, the ability of the Initial Purchaser to make a market in the affected Classes would be subject to certain limitations, which could, if the Initial Purchaser otherwise had decided to make a market in such Notes, further negatively affect liquidity and market value of the affected Classes.

The Issuer believes that, beginning on the effective date of the Volcker Changes on October 1, 2020, the Secured Debt will not constitute "ownership interests." However, no assurance can be given that the Secured Debt will be

excluded from the definition of "ownership interest" or that the Issuer will qualify for any other exclusion or exemption that might be available under the Volcker Rule. Each investor in the Notes must make its own determination as to whether it is subject to the Volcker Rule, whether its investment in the Notes would be restricted or prohibited under the Volcker Rule, the potential impact of the Volcker Rule and the Volcker Changes on its investment, and any effect on the marketability of the Notes and the liquidity of its portfolio generally. Investors in the Notes are responsible for analyzing their own regulatory position and none of the Issuer, the Initial Purchaser, the Manager, the Collateral Trustee, the Loan Agent nor any of their affiliates makes any representation to any prospective investor or purchaser of the Notes regarding the application of the Volcker Rule or the Volcker Changes to the Issuer, or to such investor's investment in the Notes on the Closing Date or at any time in the future. It is unclear at this time whether any future amendments to the Volcker Rule regulations will be proposed or adopted.

Accordingly, all investors whose investment activities are subject to local investment laws and regulations, regulatory capital requirements, or review by regulatory authorities should consult with their own legal, accounting and other advisors in determining whether, and to what extent, the Notes will constitute legal investments for them or are subject to investment or other restrictions, unfavorable accounting treatment, capital charges or reserve requirements.

U.S. Risk Retention

Pursuant to section 15G of the Exchange Act, several U.S. financial regulatory agencies adopted regulations (the "***U.S. Risk Retention Rules***") that generally require a "sponsor" of asset-backed securities to retain (and/or arrange for certain other parties to retain) not less than five percent (5%) of the credit risk of the securitized assets (the "***Minimum Risk Retention Requirement***"). A "sponsor" means a person who organizes and initiates a "securitization transaction" by selling or transferring assets, either directly or indirectly, including through an affiliate, to the issuing entity. Further, an "asset-backed security" is defined as a fixed-income or other security collateralized by any type of self-liquidating financial asset (including a loan, a lease, a mortgage, or a secured or unsecured receivable) that allows the holder of the security to receive payments that depend primarily on cash flow from the asset. The Issuer intends to structure the Notes such that the Notes will not depend primarily on cash flows from self-liquidating assets to make payments to the holders of such Notes. As a result, the Issuer has received advice that the Notes are not asset-backed securities and, therefore, are not subject to the U.S. Risk Retention Rules. However, the structure of the Issuer and the Notes uses certain techniques and legal documentation that are adapted from securitization transactions and there can be no assurance that the Notes would not be considered asset-backed securities under the U.S. Risk Retention Rules. If the Notes were to be deemed to be asset-back securities, then a sponsor, which likely would be the Manager or an Affiliate of Coller, would be required to comply with the Minimum Risk Retention Requirement. Further, no assurance can be given as to whether the U.S. Risk Retention Rules would have any future material adverse effect on the business, financial condition or prospects of the Manager or the Issuer.

The above statements regarding the U.S. Risk Retention Rules are based on publicly available information solely as of the date of this Offering Memorandum. The ultimate determination as to whether the U.S. Risk Retention Rules apply to this transaction or any action taken by an entity complies with the U.S. Risk Retention Rules will be a matter of interpretation by the applicable regulatory agency. No assurance can be given that the U.S. Risk Retention Rules will not change or be superseded by changes in law. There is no established line of authority, precedent or market practice that provides guidance with respect to compliance with the U.S. Risk Retention Rules for a transaction of this nature and, therefore, there can be no assurance or representation that the structure of the transaction as contemplated herein will enable the Issuer or Manager to comply with the U.S. Risk Retention Rules or that any applicable regulatory agency will agree with the interpretation described herein. Moreover, any applicable regulatory agency could provide guidance or state views on compliance with the U.S. Risk Retention Rules that materially alter current interpretations or views with respect to the U.S. Risk Retention Rules. Any changes or further guidance may result in any party that is deemed to be a sponsor failing to comply with the U.S. Risk Retention Rules and also could have a material adverse effect on the Issuer and the Notes.

If any party, such as the Manager or an Affiliate of Coller, were to be deemed a sponsor and to have failed to comply with the U.S. Risk Retention Rules, that party could be subject to regulatory actions, claims by other parties, or other penalties, which could include cease and desist orders, claims for damages or other remedies, or fines. As a result, the failure of any party to comply with the U.S. Risk Retention Rules may have a material and adverse effect

on the market value and/or liquidity of the Notes as well as on the business, condition (financial or otherwise), assets, operations, or prospects of the Issuer and/or the Manager.

All investors whose investment activities are subject to investment laws and regulations, regulatory capital requirements, or review by regulatory authorities should consult with their own legal, accounting and other advisors in determining whether, and to what extent, the Notes will constitute legal investments for them or are subject to investment or other restrictions, unfavorable accounting treatment, capital charges or reserve requirements.

EU Risk Retention Requirements

The Issuer has received legal advice that the transaction described herein is not a "securitization" for the purposes of Article 4(1)(61) of Regulation (EU) No 575/2013 (the "***CRR***") and for the purposes of Articles 404 to 410 of the CRR, Article 51 of Regulation (EU) 231/2013, Articles 254 to 256 of Commission Delegated Regulation 2015/35 and other similar requirements and any corresponding national implementing measures which may apply at any time in respect of any EU regulated investor (the "***EU Risk Retention Requirements***") and as such no party to the transactions described in this Offering Memorandum intends or is required under the transaction documents to retain a material net economic interest in the securitization constituted by the issuance of the Notes and the incurrence of the Class A Loans in a manner that would satisfy the requirements of the EU Risk Retention Requirements (which, together with any applicable regulatory technical standards, implementing technical standards and official guidance supplementing such regulation and any implementation measures in respect of such regulation in the European Union or the European Economic Area, are referred to as the "***European Securitization Rules***") should the transactions described herein constitute a securitization for the such purposes. None of the Issuer, the Initial Purchaser, the Administrator, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent or any of their respective affiliates can give any assurances that the transaction described herein is not a securitization or provide any assurances that a relevant regulator will agree with such determination. Each investor should consult its own legal advisors as to the whether the transactions described herein is or is not a securitization. In addition, no such person undertakes to take any other action or refrain from taking any action prescribed or contemplated in, or for purposes of, or in connection with, compliance by any investor with any applicable requirement of, the European Securitization Rules. As a result, in general, a credit institution regulated in any Member State of the European Economic Area (and any other entity required to comply with the EU Risk Retention Requirements) seeking to invest in the Notes (on issue or after) may be subject to and will be unable to satisfy the EU Risk Retention Requirements in respect of such investment. Failure to comply with one or more of the EU Risk Retention Requirements may result in adverse consequences for an investor, such as the imposition of a penal capital charge on any Notes acquired.

Investment Company Act of 1940.

Neither the Issuer nor the pool of Assets has registered with the SEC as an investment company pursuant to the Investment Company Act, in reliance on an exception from registration and no-action positions available for non-U.S. obligors (a) whose outstanding securities owned by U.S. persons are owned exclusively by Qualified Purchasers and (b) which do not make a public offering of their securities in the United States. Accordingly, investors in the Notes will not be accorded the protections of the Investment Company Act. Counsel for the Issuer will opine, in connection with the sale of the Notes, that the Issuer is not at such time an investment company required to be registered under the Investment Company Act (assuming, for the purposes of such opinion, the accuracy and completeness of all representations and warranties made or deemed to be made by investors in the Debt). No opinion or no-action position has been requested of the SEC.

If the SEC or a court of competent jurisdiction were to find that the Issuer is required, but had failed, to register in violation of the Investment Company Act, possible consequences include, but are not limited to, the following: (i) the SEC could apply to a district court to enjoin the violation; (ii) investors could sue the Issuer and recover any damages caused by the violation of the registration requirement of the Investment Company Act; and (iii) any contract to which either of the Issuer is party that is made in, or whose performance involves a, violation of the Investment Company Act would be unenforceable by any party to the contract unless a court were to find that under the circumstances enforcement would produce a more equitable result than nonenforcement and would not be inconsistent with the purposes of the Investment Company Act. Should the Issuer be subjected to any or all of the foregoing, there would be a material adverse effect on it.

Further to the above, the U.S. Court of Appeals for the Second Circuit recently held that that private plaintiffs (which would include investors) may bring actions under Section 47(b) of the Investment Company Act for rescission of contracts that violate the Investment Company Act (the "***Ruling***"). The Ruling directly contradicts a 2012 finding by the U.S. Court of Appeals for the Third Circuit and provides a basis for investors (particularly investors in junior Classes of Debt) to seek a return of principal outside of the Priority of Payments and subordination provisions in the Indenture. Ultimately, the Ruling did not find in favor of the private plaintiffs because the applicable indenture was found to contain adequate provisions to ensure compliance with an exemption from the Investment Company Act. While the Indenture and the other Transaction Documents contain provisions that are intended to compel compliance with Section 3(c)(7) of the Investment Company Act, there can be no assurance that a court would find such provisions to be adequate if an investor brought a claim for rescission of the Indenture related to a factual failure to comply with the Investment Company Act.

Investment Advisers Act of 1940

Although the Manager is registered as an investment adviser under the Investment Advisers Act, the Manager is not required to comply with many of the substantive requirements under the Investment Advisers Act because it is an investment adviser with a principal place of business outside of the US that is deemed to have no direct U.S. advisory clients for the purposes of the Investment Advisers Act. The Investment Advisers Act provides certain protections to the clients of registered investment advisers and imposes certain restrictions on registered investment advisers that will not apply to the Manager.

Specifically, registered investment advisers are generally required to comply with certain proxy voting and asset custody requirements. As the Manager is an offshore adviser with no direct U.S. clients, it is not required to comply with those requirements. While the Manager performs limited functions, and does not exercise any discretionary proxy voting rights with respect to the Issuer or the LP Interest (see "*—Risks Relating to the Assets—Voting Rights*" below), investors in the Debt should review and evaluate the voting and custody arrangements described herein in light of the Manager's exemption from the generally applicable regulations.

U.S. Commodity Exchange Act

The LP Interest may be considered a commodity interest. The Manager, with respect to the Issuer, intends to be exempt from registration as a "commodity pool operator" with the CFTC pursuant to the exemption under CFTC Rule 4.13(a)(3) and comply with the requirements thereof, including all applicable limitations on commodity positions. Therefore, unlike registered commodity pool operators, the Manager is not required to deliver a disclosure document and a certified annual report to participants in the Issuer. Accordingly, this Offering Memorandum has not been reviewed or approved by the CFTC and it is not anticipated that such review or approval will occur.

Non-Cooperative Tax Jurisdictions

On February 18, 2020, the Council of the European Union adopted a revised list of non-cooperative jurisdictions for tax purposes. This revised list included the Cayman Islands. Although this amendment is not expected to trigger Article 4 of the European Securitization Rules (preventing the use of special purpose vehicles established in certain non-EU jurisdictions), it is possible that certain EU investors will choose not to purchase, or will have internal policies which prevent the purchase of, securities from an issuer established in the Cayman Islands (such as the Issuer), during the period that the jurisdiction is regarded by the EU as non-cooperative for tax purposes. This could have a negative impact on liquidity and/or the market value of securities, including the Notes. However, given that the Cayman Islands has passed amendments to legislation aimed at addressing the concerns that underpinned the listing and has committed to working in full cooperation with the EU to address any remaining issues that the EU may identify, it is anticipated that the Cayman Islands should be delisted in due course. The EU list of non-cooperative jurisdictions is reconsidered at least once a year, and generally at six monthly intervals.

Cayman Islands Anti-Money Laundering Legislation

Each of the Administrator and the Issuer are subject to the Cayman Islands Anti-Money Laundering Regulations (2020 Revision) (together with The Guidance Notes on the Prevention and Detection of Money Laundering and Terrorist Financing in the Cayman Islands (or equivalent legislation and guidance, as applicable), and each as amended

and revised from time to time, the "***Regulations***"). The Regulations apply to anyone conducting "relevant financial business" in or from the Cayman Islands intending to form a business relationship or carry out a one-off transaction. The Regulations require a financial service provider to maintain certain anti-money laundering procedures including those for the purposes of verifying the identity and source of funds of an "applicant for business"; e.g. an investor, as well as the identity of the beneficial owner/controller of the investor, where applicable.

Except in certain circumstances, including where an entity is regulated by a recognized overseas regulatory authority and/or listed on a recognized stock exchange in an approved jurisdiction, the Issuer and the Administrator will likely be required to verify each investor's identity and the source of the payment used by such investor for purchasing the Notes in a manner similar to the obligations imposed under the laws of other major financial centers. In addition, if any person resident in the Cayman Islands knows or suspects, or has reasonable grounds for knowing or suspecting that another person is engaged in criminal conduct, or is involved with terrorism or terrorist property, and the information for that knowledge or suspicion came to their attention in the course of business in the regulated section, or other trade, profession, business or employment, the person will be required to report such knowledge or suspicion to (i) the Financial Reporting Authority of the Cayman Islands (the "***FRA***"), pursuant to the Proceeds of Crime Law (2020 Revision) (as amended) of the Cayman Islands (the "***PCL***"), if the disclosure relates to criminal conduct or money laundering, or (ii) a police officer of the rank constable or higher, or the FRA, pursuant to the Terrorism Law (2018 Revision) (as amended) of the Cayman Islands, if the disclosure relates to involvement with terrorism or terrorist financing and property (the "***Terrorism Law***"). If the Issuer were determined by the Cayman Islands authorities to be in violation of the PCL, the Terrorism Law or the Regulations, the Issuer could be subject to substantial criminal penalties. The Issuer may be subject to similar restrictions in other jurisdictions. Such a violation could materially adversely affect the timing and amount of payments by the Issuer to the holders of the Notes.

Data protection

Prospective investors should note that, in certain circumstances, personal data may need to be supplied in order for an investment in the Notes to be made and for that investment in the Notes to continue.

The Issuer's use of personal data is governed by the Cayman Islands Data Protection Law, 2017 and, in respect of any EU data subjects, the EU General Data Protection Regulation (together, the "***Data Protection Legislation***").

Under the Data Protection Legislation, individual data subjects have rights and the Issuer as data controller has obligations with respect to the processing of personal data by the Issuer and its affiliates and delegates, including but not limited to the Administrator. Breach of the Data Protection Legislation by the Issuer could lead to enforcement action against it. The Issuer's privacy notice provides information on the Issuer's use of personal data under the Data Protection Legislation. The Issuer's privacy notice can be accessed on https://www.walkersglobal.com/external/SPVDPNotice.pdf.

If you are an individual prospective investor, the processing of personal data by and on behalf of the Issuer is directly relevant to you. If you are an institutional investor that provides personal data on individuals connected to you for any reason in relation to your investment in the Notes (for example directors, trustees, employees, representatives, shareholders, investors, clients, beneficial owners or agents), this will be relevant for those individuals and you should transmit the privacy notice to such individuals or otherwise advise them of its content.

Changes in the Legislative and Regulatory Environment May Affect the Liquidity of the Notes

None of the Initial Purchaser, the Administrator, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent or any of their respective agents or affiliates make any representation as to the proper characterization of the Debt for legal investment, financial institution regulatory, financial reporting or other purposes, as to the ability of particular investors to purchase the certificates under applicable legal investment or other restrictions or as to the consequences of an investment in the certificates for such purposes or under such restrictions. Regulatory or legislative provisions applicable to certain investors, including the Volcker Rule, may have the effect of limiting or restricting their ability to hold or acquire asset-backed securities, which in turn may adversely affect the ability of investors in the Debt who are not subject to those provisions to resell their Debt in the secondary market or on the price realized for the Debt. Furthermore, no assurance can be made that the United States federal government or any U.S. regulatory body (or other authority or regulatory body) will not continue to take further legislative or regulatory action in response to the economic crisis or otherwise, and the effect of such actions, if any, cannot be known or predicted.

Risks Relating to the Notes

Need to Seek Independent Advice

None of the Issuer, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator, the Manager or any of their respective agents or affiliates is providing investment, accounting, tax or legal advice in respect of the Debt and will not have a fiduciary relationship with any investor or prospective investor in the Debt. No financial hypothetical performance scenarios, modeling runs or return analyses are included in this Offering Memorandum and no financial hypothetical performance scenarios, modeling runs or return analyses previously provided may be relied upon by a prospective purchaser in considering its investment.

Lack of Operating History

The Issuer is a recently formed entity and has no prior operating history or track record. Accordingly, the Issuer does not have a performance history for a prospective investor to consider in making its decision to invest in the Notes.

Status; Limited Recourse

The Debt will be limited recourse debt obligations of the Issuer. Payments on the Debt will be payable solely from the Assets in accordance with the Priority of Payments. None of the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator, the Manager or any of their respective agents or affiliates or any other person or entity (other than the Issuer) will be obligated to make payments on the Debt. Consequently, Holders of the Debt must rely solely on distributions on the Assets for payments on the Debt. If distributions on the Assets are insufficient to make payments on the Debt, no other assets will be available for payment of the deficiency and all claims in respect of the Debt will be extinguished and will not revive.

Limited Funds Available to the Issuer to Pay Its Operating Expenses.

The funds available to the Issuer to pay certain expenses are limited. In the event that such funds are not sufficient to pay the expenses incurred by the Issuer, the ability of the Issuer to operate effectively may be impaired, and the Issuer may not be able to defend or prosecute legal proceedings that may be brought against it, including involuntary bankruptcy or winding up petitions, or that it might otherwise bring to protect its interests. In addition, service providers who are not paid in full, including the Administrator which provides the directors to the Issuer, have the right to resign. This could lead to the Issuer being in default under the Cayman Islands Companies Law and potentially being struck from the register of companies and dissolved.

Reliance on Management

Certain decisions for the Issuer, such as designating reserves for future Capital Calls and drawing on the Liquidity Loan Facility, will be made by the Manager. The loss of the Manager's services by its resignation or removal from such role (or the loss of one of its key personnel) could materially and negatively impact the value of the Debt.

Limited Liquidity

There is currently no market for any of the Notes. Although the Initial Purchaser may from time to time make a market in one or more Classes of the Notes, it is under no obligation to do so and, following the commencement of any market making, may discontinue the same at any time without prior notice. There can be no assurance that a secondary market for the Notes will develop or, if it does develop, that it will provide the registered holders of such Notes with liquidity of investment or continue without interruption for the life of such Notes.

Petitions for Bankruptcy

The Indenture and the Credit Agreement will provide, and each Holder or beneficial owner of Debt will agree or be deemed to have agreed, that it may not institute against, or join any other Person in instituting against, the Issuer any bankruptcy, winding up, reorganization, arrangement, insolvency, moratorium or liquidation proceedings or other proceedings under Cayman Islands, United States federal or state bankruptcy law or similar laws of any jurisdiction

until the date which is one year (or, if longer, the applicable preference period then in effect) plus one day after the payment in full of all Debt and the Liquidity Loan Facility. The Issuer and each Holder or beneficial owner of Debt will be permitted under the Indenture and the Credit Agreement to seek to enforce this restriction, but there can be no assurance that they will be successful in doing so. In that event, such a proceeding could have a material adverse effect on the Issuer and beneficial owners of Debt including, without limitation, as a result of the uncertainty and any delays in distributing amounts due under the Priority of Payments caused by the institution of such proceeding and the cost of such proceeding.

Control of Remedies

If an Event of Default occurs, the Controlling Class will be entitled to determine the remedies to be exercised under the Indenture. See "*Description of the Debt—The Indenture—Events of Default*". Remedies pursued by the Holders of the Controlling Class could be adverse to the interests of the Holders of Debt that are subordinated to the Controlling Class, and the Holders of the Controlling Class will have no obligation to consider any possible adverse effect on such other interests. Furthermore, the Assets may be sold and liquidated only under the circumstances described under "*The Indenture—Events of Default*".

Prior to the sale of any Asset in connection with an acceleration or other exercise of remedies, the Collateral Trustee will offer the Manager, an affiliate thereof or fund or account managed thereby, the right of first refusal to purchase such Asset at a price equal to the highest bid price submitted for such Asset as described under "*The Indenture—Events of Default*". The existence of such right could result in fewer bids being submitted for any Asset and the Issuer may ultimately receive less value for such Asset.

Leverage

The Issuer will utilize a high degree of leverage. The use of leverage is a speculative investment technique that increases the risk of loss to Holders of the Debt, particularly the Subordinated Notes. In certain circumstances, Holders of Secured Debt may not be paid in full and the Subordinated Notes may be subject to 100% loss of invested capital.

Leveraged Investment

The subordinated Classes represent a leveraged investment in the Portfolio Assets. Therefore, the market value of these Classes would be anticipated to be significantly affected by, among other things, changes in the market value of the Portfolio Assets, changes in the distributions on the Portfolio Assets, recoveries on the Portfolio Assets, capital gains and losses on the Portfolio Assets and other risks associated with the Portfolio Assets as described in "*—Risks Relating to the Assets—Nature of the Assets; Exposure to Risks of the Fund*." Accordingly, the amount of distributions, if any, to be made on these Classes of Debt may vary significantly from Payment Date to Payment Date for various reasons and such Classes of Debt may not be paid in full, and Holders of such Classes may lose their entire investment. Furthermore, the leveraged nature of each such Class may magnify the adverse impact on each such Class of changes in the market value of the Portfolio Assets, changes in the distributions on the Portfolio Assets, recoveries on the Portfolio Assets and capital gains and losses on the Portfolio Assets.

Redemption; Refinancing

The Debt is subject to redemption (including by Refinancing). Any such redemption may result in a shorter term investment than an investor in Debt may have anticipated and there can be no assurance that holders will find suitable investments with comparable yields or maturity in which to invest the proceeds. See "*Description of the Debt—Optional Redemption and Tax Redemption*."

In the event of a redemption of all Classes, there can be no assurance that, upon any such redemption, available funds would permit any distribution on the Subordinated Notes after all required payments are made to the Holders of the Secured Debt and for the payment of fees and expenses. In addition, a redemption could require the Issuer to liquidate positions more rapidly than might otherwise be desirable, which could adversely affect the realized value of the Portfolio Assets.

Additional Issuances

The Issuer may issue and sell additional Notes (or incur additional Class A Loans) and use the net proceeds to acquire additional Portfolio Assets. Any additional debt of an existing Class may be offered or incurred at prices that differ from the applicable initial offering or incurrence price. The application of the proceeds of such additional debt could result in satisfaction of the Distribution Conditions if such conditions would otherwise not be satisfied and could also prevent certain Events of Default from occurring and, thus, potentially decrease the occurrence of principal prepayments on the Secured Debt. See "*Description of the Debt—The Indenture—Additional Issuance.*"

In connection with any such additional issuance, it is expected that the Issuer would seek to increase the Commitment Amount under the Liquidity Loan Facility. However, the existing Liquidity Lenders (or any new lenders) may not agree to such increase in the Commitment Amount. As a result, amounts available to the Issuer under the Liquidity Loan Facility may not increase proportionately to the principal amount of the Debt (and the Issuer's Capital Commitment to the Fund), which could have an adverse effect on the Issuer's ability to (i) fund Capital Calls and (ii) pay obligations due under clauses (1), (2), (3) and (4) of the Ordinary Priority of Payments.

Modifications to the Indenture

The Indenture provides that the Issuer and the Collateral Trustee may enter into supplemental indentures to modify various provisions of the Indenture. Execution of supplemental indentures is subject to various conditions precedent. In certain cases, the consent of Holders of Debt is also required, but, in certain cases, such consent is not required. See "*Description of the Debt—The Indenture—Modification of Indenture*."

In addition, it will not be necessary for Holders to approve the particular form of any proposed supplemental indenture, but it will be sufficient, if the consent of any Holders is required, that such consent will approve the substance thereof. See "*Description of the Debt—The Indenture—Modification of Indenture*." In certain cases, this may lead a discrepancy between the language that the Holders agree to and the actual substance of the supplemental indenture.

Concentrated Ownership of One or More Classes of Debt

If at any time one or more investors who are affiliated hold a Majority of any Class of Debt, it may be more difficult or not possible for other investors to take certain actions that require consent of any such Classes of Debt without their consent. See also "*—General—An Investment in the Notes has a Different Risk Profile to a Direct Investment in the Fund*". On the Closing Date, a single investor is expected to acquire a Supermajority of the Class A Debt and Affiliates of Coller are expected to acquire all of the Class II Subordinated Notes. Affiliated entities (including Coller and its Affiliates) may acquire a Majority or greater interest in any Class of Debt following the Closing Date.

In exercising any of its or their voting rights, rights to direct and consent or any other rights no Holder or Class A Lender shall have any obligation or duty to any Person or to consider or take into account the interests of any Person and shall not be liable to any Person for any action taken by it or them or at its or their direction or any failure by it or them to act or to direct that an action be taken, without regard to whether such action or inaction benefits or adversely affects any Holder, the Issuer or any other Person.

The Assets May Be Insufficient to Pay the Debt in an Event of Default

It is anticipated that the proceeds received by the Issuer on the Closing Date from the issuance of the Notes and the incurrence of the Class A Loans, net of certain fees and expenses, will be less than the aggregate principal amount of the Debt. Consequently, it is anticipated that on the Closing Date proceeds from any liquidation of the Assets would be insufficient to pay Secured Debt and the Subordinated Notes in full in the event of an Event of Default under the Indenture. Additionally, failure of the Fund to make distributions on the Portfolio Assets could result in a deferral of interest on the Secured Debt or a failure to make any other required payments on the Debt. See "*Description of the Debt—Interest on the Debt*."

The Notes are Dependent on the Performance of the Portfolio Assets

The actual performance of the Debt will be affected by, among other things, (i) the amount and frequency of payments on the Portfolio Assets and (ii) the financial condition of the Fund. The payment of principal and interest on the Secured Debt, and distributions on the Subordinated Notes, will depend primarily on the performance of the Portfolio Assets. However, the Debt is subject to redemption, including a redemption by refinancing, as described under "*Description of the Debt—Optional Redemption and Tax Redemption*". As a result, the Debt may be redeemed earlier than the winding up and liquidation of the Fund and distributions in respect of the Debt, in particular the Subordinated Notes, may be less than if the Debt remained outstanding for the life of the Fund.

Ratings

Any rating issued with respect to the Debt is not a recommendation to purchase, sell or hold a security inasmuch as such ratings do not comment as to market price or suitability for a particular investor. There can be no assurance that the rating assigned to the Debt will remain for any given period of time or that the rating assigned to the Debt will not be lowered, suspended or withdrawn entirely by the Rating Agency if in its judgment circumstances in the future warrant such action. In addition, other credit rating agencies that have not been engaged by the Issuer to rate the Debt may nevertheless issue unsolicited credit ratings on one or more classes of Debt. If any such unsolicited ratings are issued, there can be no assurance that such ratings will not be different from those ratings assigned by the Rating Agency.

Furthermore, the SEC may determine that Kroll no longer qualifies as a nationally recognized statistical rating organization ("***NRSRO***"), or is no longer qualified to rate the Secured Debt, and that determination may have an adverse effect on the liquidity, market value and regulatory characteristics of the Debt.

An NRSRO other than the Rating Agency may issue ratings on the Secured Debt (the "***Unsolicited Ratings***"), which may be lower, and could be significantly lower, than the ratings assigned by the Rating Agency. The Unsolicited Ratings may be issued prior to, or after, the Closing Date and will not be reflected in this Offering Memorandum. Issuance of any Unsolicited Rating will not affect the issuance of the Secured Debt. Issuance of an Unsolicited Rating lower than the ratings assigned by the Rating Agency on the Secured Debt might adversely affect the market value and liquidity of the Debt and, for regulated entities, could affect the status of the Secured Debt as a legal investment or the capital treatment of the Secured Debt. Investors in the Secured Debt should monitor whether an Unsolicited Rating of the Secured Debt has been issued by a non-hired NRSRO and should consult with their legal counsel regarding the effect of the issuance of a rating by a non-hired NRSRO that is lower than the expected ratings set forth in this Offering Memorandum. In addition, the Rating Agency could withdraw its ratings on one or more Classes of Secured Debt, which could adversely affect the market value of the Debt or limit the ability of an owner to sell its Debt and may adversely affect any holder or beneficial owner that relies on ratings of such Secured Debt for regulatory or other compliance purposes.

Rating Agency Confirmation

Historically, many actions by issuers of collateralized fund obligation vehicles or similar vehicles (including but not limited to amending relevant agreements) have been conditioned on receipt of confirmation from the applicable rating agencies that such action would not cause the ratings on the applicable securities to be reduced or withdrawn. Recently, certain rating agencies have changed the manner and the circumstances under which they are willing to provide such confirmation and have indicated reluctance to provide confirmation in the future, regardless of the requirements of the applicable indenture and other transaction documents. If the Transaction Documents require that the Rating Condition be satisfied before certain actions may be taken and the Rating Agency is unwilling to provide the required confirmation, it may be impossible to effect such action, which could result in losses being realized by the Issuer and, indirectly, by holders of Debt.

If (a) the Rating Agency has made a public statement to the effect that it will no longer review events or circumstances of the type requiring satisfaction of the Rating Condition in the Indenture for purposes of evaluating whether to downgrade or withdraw the then-current ratings (or Initial Ratings) of obligations rated by the Rating Agency; (b) the Rating Agency has communicated to the Issuer, the Collateral Trustee and the Loan Agent that it will not review such event or circumstance for purposes of evaluating whether to downgrade or withdraw the then-current ratings (or Initial Ratings) of the Debt; or (c) no Class of Debt rated by the Rating Agency is then Outstanding, or the

Rating Agency is no longer rating any Class of Debt, the Rating Condition will not apply. There can be no assurance that the Rating Agency will not subsequently withdraw or downgrade its ratings on one or more Classes of Debt as a result of such actions, and any such withdrawal or downgrade could adversely affect the value or liquidity of the Debt.

Subordination

Payments on the Debt are subordinated to payments on each Priority Class (including in the case of the Subordinated Notes, subordinated to any required payments on the Secured Debt), certain fees and expenses and payments required to be made in respect of the Liquidity Loan Facility. Distributions on the Class II Subordinated Notes will be subordinated to distributions on the Class I Subordinated Notes until such time as the Class I Subordinated Notes have received distributions equal to the initial par amount thereof, as set forth in the Priority of Payments.

At the Final Maturity Date or if acceleration of the maturity of the Debt occurs after an Event of Default, available proceeds will be applied to pay both principal of and interest on each Priority Class until each such Class is paid in full before any further payment or distribution will be made on any Junior Class pursuant to the Priority of Payments. As a result, Junior Classes will not receive interest payments until each Priority Class has been paid principal and interest, Junior Classes may not receive partial or full payment of principal and further distributions may not be made in respect of the Subordinated Notes.

None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent or the Manager or any Affiliates of the Issuer or of any of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent or the Manager, any of their respective partners, directors, or members or any other person or entity (other than the Issuer) will be obligated to make payments on the Debt. To the extent any losses are suffered, such losses will be borne by the owners of the Debt, beginning with the Subordinated Notes as the most Junior Class.

Holders and beneficial owners of Notes will also be subject to the Bankruptcy Subordination Agreement described under "*Description of the Debt—The Indenture—Petitions for Bankruptcy*." However, a bankruptcy court may find that the Bankruptcy Subordination Agreement is not enforceable on the ground that it violates an essential policy underlying the U.S. Bankruptcy Code or other applicable bankruptcy or insolvency law.

Subordinated Notes are Unsecured

The Subordinated Notes are not secured by the Assets securing the Secured Debt. As a result, the Holders of the Subordinated Notes will rank behind all of the secured creditors, whether known or unknown, of the Issuer, including, without limitation, the Holders of the Secured Debt and the Liquidity Lenders. No Person or entity other than the Issuer will be required to make any distributions on the Subordinated Notes. Except with respect to the obligations of the Issuer to make payments pursuant to the Priority of Payments, the Issuer does not expect to have any creditors. Any distributions on the Subordinated Notes will be payable only to the extent funds are available in accordance with the Priority of Payments. There can be no assurance that the distributions on the Assets or, after an Event of Default, proceeds from the liquidation of the Assets, will be sufficient to make distributions to holders of the Subordinated Notes after making payments that rank senior to payments on the Subordinated Notes, including administrative expenses of the Issuer such as securities law liabilities described in "*—Subordination*" above. The Subordinated Notes will not generally be entitled to exercise remedies under the Indenture until all Secured Debt paid in full.

Restrictions on Transfer

The Notes have not been, and will not be, registered under the Securities Act, or qualified under the securities laws of any other jurisdiction, and may not be offered or sold except to persons that are (x) Qualified Institutional Buyers that are also Qualified Purchasers or (y) Accredited Investors that are non-U.S. Persons acquiring the Notes in offshore transactions in reliance on Regulation S. The Notes are subject to restrictions on transferability and resale and may not be transferred or resold except (i) as permitted under the Securities Act in accordance with an exemption from registration under the Securities Act, (ii) pursuant to the requirements of, or an exemption under, applicable state securities laws and (iii) in accordance with the other restrictions on transfer set forth in the Indenture and described in this Offering Memorandum. Certain investors may not purchase the Notes. See "*Risk Factors*," "*Certain ERISA and Related Considerations*," and "*Notice to Investors and Transfer Restrictions*" in this Offering Memorandum.

No Representation as to Notes

None of the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager or any of the respective agents or affiliates thereof makes any representation as to the accounting, capital, tax and other regulatory and legal consequences to investors of ownership of the Debt and no purchaser may rely on any such party for a determination of the accounting, capital, tax and other regulatory and legal consequences to such purchaser of ownership of the Debt. Each purchaser of Notes, by its accepting delivery of this Offering Memorandum or acceptance thereof, will be required to represent or will be deemed to have represented to the Issuer, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator and the Manager, among other things, that such purchaser has consulted with its own financial, legal, regulatory and tax advisors regarding investment in the Notes as such purchaser has deemed necessary and that the investment by such purchaser is within its powers and authority, is permissible under applicable laws governing such purchase, has been duly authorized by it and complies with applicable securities laws and other laws.

Legal Investment

The appropriate characterization of the Debt under various legal investment restrictions, and thus the ability of investors subject to those restrictions to purchase the Debt, may be subject to significant interpretative uncertainties. No representation is made as to the proper characterization of the Debt for legal investment purposes, or for risk-weighting, securities valuation, regulatory accounting or other financial institution regulatory regimes of the National Association of Insurance Commissioners, any state insurance commissioner, any federal or state banking authority or any other regulatory body. No representation is made as to the ability of particular investors to purchase Debt under applicable legal investment restrictions.

NAIC

In a letter to the National Association of Insurance Commissioners' (the "***NAIC***") Valuation of Securities Task Force dated July 2, 2019, the director of the NAIC's Securities Valuation Office, or SVO, proposed rule changes that would not allow external ratings to determine statutory capital for principal-protected notes, and would require them to be evaluated in-house by regulators. Based on the wording in the proposal, securities such as the Notes could be construed as principal-protected notes for these purposes. Such proposal was adopted in May 2020 and, as a result, principal-protected notes will be required to be filed with the SVO effective January 1, 2021, with such securities acquired prior to January 1, 2021 to be filed with the SVO by July 1, 2021.

Further, any additional related guidance from SVO may lead Kroll to revise its credit view of certain classes of structured securities, which could include the Notes and could result in a downgrade, other modification or withdrawal by Kroll of its ratings of the Notes following the Closing Date. Investors in the Notes should consult with their own legal, accounting and other advisors in determining the effect of such rule changes.

Book-Entry Holders are not Considered Holders under the Indenture

Holders of beneficial interests in any Notes held in global form will not be considered Holders of such Notes under the Indenture (other than with respect to tax reporting under the Indenture). After payment of any interest, principal or other amount to DTC, the Issuer will not have any responsibility or liability for the payment of such amount by DTC or to any Holder of a beneficial interest in a Note. DTC or its nominee will be the sole holder for any Notes held in global form, and therefore each person owning a beneficial interest in a Note held in global form must rely on the procedures of DTC (and if such person is not a participant in DTC, on the procedures of the participant through which such person holds such interest) with respect to the exercise of any rights of a Holder of a Note under the Indenture.

Limitation on Available Information

This Offering Memorandum will not provide detailed information with respect to the Portfolio Assets or the Fund, or with respect to any rights or obligations, legal, financial or otherwise, arising thereunder or related thereto. Prospective investors in the Notes should obtain and evaluate the same information concerning the Fund as they would

obtain and evaluate if they were investing directly in the Portfolio Assets or in any other securities issued by the Fund, and, based upon such information, should make an independent investment decision regarding the Portfolio Assets.

Unless specifically required by the Management Deed and the Indenture, none of the Issuer, the Manager, the Collateral Trustee or the Loan Agent will be required to provide periodic pricing or valuation information to investors in the Debt. Neither the Issuer nor the Manager will be required to provide the holders of the securities, the Collateral Trustee or the Loan Agent with financial or other information (which may include material non-public information) it receives pursuant to the Portfolio Assets and related documents. The Manager also will not be obligated to disclose to any of these parties the contents of any notice it receives pursuant to the Portfolio Assets or related documents.

The holders of the Debt and the Collateral Trustee will not have any right to inspect any records relating to the Portfolio Assets, and the Manager will not be obligated to disclose any further information or evidence regarding the existence or terms of, or the identity of any obligor on, any Portfolio Assets, unless specifically required by the Management Deed and the Indenture. Furthermore, the Manager and the Collateral Trustee may demand, in their sole discretion, that any Persons requesting that information execute confidentiality agreements before being provided with the information.

Financial Information Provided to Holders in the Distribution Reports Will Be Unaudited

In connection with each Payment Date, the Issuer will deliver a Distribution Report setting forth, among other things, certain information as to the distributions made on such Payment Date. Such Distribution Reports will not be audited and reported upon, nor will an opinion be expressed thereon by an independent public accountant. *See "Description of the Debt—The Indenture—Reporting".*

Prevention of Money Laundering and Terrorism

The Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, as amended (the "***USA PATRIOT Act***"), signed into law on and effective as of October 26, 2001, requires that financial institutions, a term that includes banks, broker-dealers and investment companies, establish and maintain compliance programs to guard against money laundering activities. The USA PATRIOT Act requires the Secretary of the U.S. Treasury (the "***Treasury***") to prescribe regulations in connection with anti-money laundering policies of financial institutions. The U.S. Federal Reserve Board, the Treasury and the SEC are currently studying what types of investment vehicles should be required to adopt anti-money laundering procedures, and it is unclear at this time whether such procedures will apply to pooled investment vehicles such as the Issuer. Future rules and regulations regarding money laundering or proceeds of crime could regulate the Issuer. In addition, in April 2000, the Treasury Department published proposed regulations that would require certain investment advisors to establish an anti-money laundering program. It is possible that there could be promulgated legislation or regulations that would require the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent or other service providers to the Issuer, in connection with the establishment of anti-money laundering procedures, to share information with governmental authorities with respect to investors in the Debt. Such legislation and/or regulations could require the Issuer to implement additional restrictions on the transfer of the Debt. The Issuer reserves the right to request such information as is necessary to verify the identity of investors in the Debt, and the source of the payment of subscription monies, or as is necessary to comply with any customer identification programs required by the Financial Crimes Enforcement Network and/or the SEC. In the event of delay or failure by the applicant to produce any information required for verification purposes, an application for or transfer of the Debt and the subscription monies relating thereto may be refused.

Tax Risks

Changes in Tax Law; No Gross-Up in Respect of Notes

All payments on the Notes will be made without any deduction or withholding for or on account of any tax unless such deduction or withholding is required by any applicable law, as modified by the practice of any relevant governmental revenue authority then in effect. Although no withholding tax or deduction is currently expected to be imposed on the payments of interest or principal or other amounts on the Notes to holders that provide the Issuer with appropriate tax certifications, there can be no assurance that, as a result of a change in any applicable law, treaty, rule, regulation, or interpretation thereof (whether by official or informal means), payments on the Notes would not in the

future become subject to withholding taxes or deductions. In the event that any withholding tax or deduction is imposed on payments on the Notes, the Issuer will not "gross up" payments to the holders of the Notes.

Imposition of Tax on the Issuer

The Issuer will be treated as a corporation for U.S. federal income tax purposes. The Issuer may recognize income that is effectively connected with the conduct of a trade or business within the United States for U.S. federal income tax purposes as a result of its investment in the Fund. The Issuer will be subject to U.S. federal corporate income tax (which the Fund may be required to withhold) with respect to any such effectively connected income, and possibly to the additional 30% U.S. branch profits tax and state and local taxes as well.

The Issuer also may recognize income that is not effectively connected with the conduct of a trade or business within the United States for U.S. federal income tax purposes but is subject to U.S. federal withholding tax at a 30% rate. Such income may include the Issuer's allocable share of U.S.-source dividends and certain U.S.-source interest.

The Fund Manager has indicated that it does not expect the Issuer to recognize significant amounts of effectively connected income or other income that is subject to U.S. federal withholding tax. However, neither the Issuer nor the Fund Manager has received any assurance from tax counsel to this effect, and no ruling will be sought from the IRS regarding this or any other aspect of the U.S. federal income tax treatment of the Issuer. Accordingly, there can be no assurance that the Issuer will not be subject to significant amounts of tax.

Moreover, although the Issuer is not currently subject to Cayman Islands tax, there can be no assurance that the Issuer will not in the future be subject to tax by the Cayman Islands or some other jurisdiction as a result of a change in law. In the event that any tax is imposed on the Issuer, the Issuer's ability to make payments on the Notes may be impaired.

Imposition of Tax on Non-U.S. Holders

Payments on the Notes to a Non-U.S. Holder (as defined under the heading "*Certain U.S. Federal Income Tax Considerations*") that provides appropriate tax certifications to the Issuer and gain recognized on the sale, exchange or retirement of the Notes by the Non-U.S. Holder will not be subject to U.S. federal income tax, unless the payments or gains are effectively connected with a trade or business conducted by the Non-U.S. Holder in the United States or, in the case of gain, the Non-U.S. Holder is a nonresident alien individual who holds the Notes as a capital asset and is present in the United States for more than 182 days in the taxable year of the sale and certain other conditions are satisfied. However, no assurance can be given that Non-U.S. Holders will not in the future be subject to tax imposed by the United States.

FATCA

Under FATCA, the Issuer may be subject to a 30% withholding tax on certain income. Under an intergovernmental agreement entered into between the United States and the Cayman Islands, the Issuer will not be subject to withholding under FATCA if it complies with the Cayman Islands Tax Information Authority Law (2017 Revision) (as amended) together with regulations and guidance notes made pursuant to such law (collectively, the "***Cayman FATCA Legislation***") which, among other things, requires the Issuer to provide the name, address, and taxpayer identification number of, and certain other information with respect to, certain holders of Notes to the Cayman Islands Tax Information Authority, which would then provide this information to the IRS. There can be no assurance that the Issuer will be able to comply with the Cayman FATCA Legislation. In addition, FATCA could be amended to require the Issuer to withhold on "passthru" payments to certain holders that fail to provide information to the Issuer or are certain "foreign financial institutions" that do not comply with FATCA.

If an investor fails to provide the Issuer or its agents with any correct, complete and accurate information or documentation that may be required for the Issuer to comply with FATCA, the Cayman FATCA Legislation and the CRS and to prevent the imposition of U.S. federal withholding tax under FATCA on payments to or for the benefit of the Issuer, or the investor's ownership of any Notes would otherwise cause the Issuer to be subject to withholding tax under FATCA, the Issuer or its agents are authorized to withhold amounts otherwise distributable to the investor, to compel the investor to sell its Notes, and, if the investor does not sell its Notes within 10 Business Days after notice from the Issuer (or its agents), to sell the investor's Notes on behalf of the investor.

Additional Notes May Not Be Fungible for Tax Purposes

Any additional Notes issued after the Closing Date in accordance with "*Description of the Debt—The Indenture—Additional Issuance*" may not be treated as part of the same issue for U.S. federal income tax purposes as the Outstanding Notes of the same Class that were previously issued. As a result, different blocks of Notes could be treated differently for U.S. federal income tax purposes from other blocks of the same Class. If all blocks of a Class of Notes bear the same securities identifier, the Issuer and holders may not be able to distinguish between different blocks of that Class. As a result, information returns furnished to investors may not accurately reflect the amount of OID required to be accrued by them.

U.S. Federal Income Tax Consequences of an Investment in the Notes Are Uncertain

The U.S. federal income tax consequences of an investment in the Notes are uncertain, as to both the timing and character of any inclusion in income in respect of the Notes. Because of this uncertainty, prospective investors are urged to consult their tax advisors as to the tax consequences of an investment in the Notes. For a more complete discussion of the U.S. federal income tax consequences of your investment in the Notes, please see the summary under "*Certain U.S. Federal Income Tax Considerations*" below.

Conflicts of Interest

Conflicts of Interest Relating to the Manager

The Underlying Fund Documents and the Investor Materials disclose various conflicts of interest in respect of the Fund. In addition to the conflicts of interest disclosed in the Underlying Fund Documents and the Investor Materials in respect of the Fund, various actual and potential conflicts interest may arise between the Issuer and the Fund, the Coller Group and other funds managed and/or advised by members of the Coller Group, certain of which are described herein and which each prospective investor should evaluate before making an investment decision with respect to the Notes. By acquiring an interest in the Notes, each prospective investor will be deemed to have acknowledged the existence of, and waived any claim of liability arising from, any such actual or potential conflict of interest.

General Activities of the Manager and its affiliates

Entities in the Coller Group engage in a broad range of activities. They are free to provide investment advice or other services to any person, notwithstanding any actual or potential conflict with any duties they may have to, or the interests of, the Issuer. In the ordinary course of members of the Coller Group conducting their activities, there will likely be circumstances and occasions when the interests of the Issuer will conflict with those of one or more members of the Coller Group, the Fund or one or more funds that it manages.

The Manager is also the Fund Manager and manager of the Fund General Partner

The Manager is also the Fund Manager. In its capacity as Fund Manager, it owes its duty of care to the Fund and will not take into consideration the interests of the Issuer (as distinct from the interests of the Fund and the Fund's limited partners as a whole) or to the interests of the Holders when performing its functions with respect to the Fund. In particular, the Fund Manager will make decisions regarding the usage, prepayment and repayment of the Cash Investment, solely with regard to the interests of the Fund generally and will not consider the interests of the Issuer or the interests of any Holder. Consequently, decisions made by the Manager in its capacity as Fund Manager may not align with, or may be adverse to, the interests of the Issuer and the Holders. In addition, the Manager is also the manager of the Fund General Partner and, in such capacity, owes its duty of care to the Fund General Partner and will not take into consideration the interests of the Issuer or to the interests of the Holders when performing its functions as manager with respect to the Fund General Partner. In particular, the Fund General Partner will make decisions with respect to the designation of any distribution by the Fund as a Recyclable Distribution and decisions relating to Defaulting Partners, solely with regard to the interests of the Fund General Partner and such decisions may not align with, or may be adverse to, the interests of the Issuer and the Holders.

Personnel

Personnel of the Manager and other members of the Coller Group, including such entities' directors and members of the investment team, will generally devote only a portion of their time to the provision of management or advisory services to the Issuer. Personnel will provide the time necessary for the proper performance of the Manager's duties to the Issuer, even though they are involved in other activities independent of the Issuer, including the affairs of other funds managed and/or advised by the Coller Group. The remuneration provided to the relevant members of the Coller Group in relation to their duties to the Issuer may be less than remuneration for other similar activities in relation to other vehicles (including the Fund) which may give rise to a conflict of interest.

Due to laws governing the disclosure of material non-public information or insider trading, and for other reasons, the fact that some of the Coller Group's personnel who are involved in the provision of management or advisory services to the Issuer are also involved in or have knowledge of investments of other funds managed or advised by the Coller Group may prevent the Issuer from making some investments or divestments, including with respect to the timing of an Optional Redemption or Refinancing, which it might otherwise make. Conflicts may also arise in the allocation of management and personnel resources among the Coller Group's various activities.

Members of the Coller Group may, from time to time, hire short-term or long-term personnel whether on a regular basis, for internships, or otherwise, who are connected to or affiliated with a Holder, a Fund Portfolio Investment or an advisor or service provider. Although reasonable efforts are made to mitigate any conflicts of interests with respect to such hires, some such conflicts may remain.

Investment by Coller Group and Coller Executives

The Fund General Partner will purchase the Class II Subordinated Notes on the Closing Date and the Fund General Partner, any other member of the Coller Group or any director, officer, associate, partner, employee or consultant of any member of the Coller Group that is a natural person (each such natural person, a "***Coller Executive***") may from time to time purchase Debt either directly, or indirectly through an investment entity. Members of the Coller Group and Coller Executives may acquire Debt at a discount. The existence of such investment by such individuals or entities, as well as any investment in the Debt by the Fund General Partner or another member of the Coller Group, may create an incentive for the Manager to exercise its discretion under the Management Deed differently than it would otherwise make in the absence of such investments, including without limitation, with respect to an Optional Redemption or Refinancing of the Debt.

There is no requirement for the Fund General Partner or any other member of the Coller Group or any Coller Executive to hold the Class II Subordinated Notes or any other Debt after the Closing Date. Investors should not assume that the Class II Subordinated Notes or any Debt of any Class will be held by the Fund General Partner or any member of the Coller Group after the Closing Date or that the interests of the Manager are aligned with the interests of the Holders of Debt of any Class at any time as a result of any such investment by any member of the Coller Group.

Voting rights of the Manager and its affiliates

For so long as the Manager and its affiliates (which, for the purposes of this paragraph, shall be deemed to include the Fund General Partner) hold the Class II Subordinated Notes, they will control certain matters relating to the Debt of all Classes, including, without limitation the exercise of any Optional Redemption, Refinancing or Tax Redemption. The Manager will also control the terms on which any such Optional Redemption, Refinancing or Tax Redemption are executed. The Manager and its affiliates are not required to take into account the interests of any other investor in exercising any voting rights as holder of the Class II Subordinated Notes or any other Debt that they hold.

Retention of Distributions to provide for future Capital Calls

Under the Indenture, prior to any Payment Date or Refinancing Date, the Manager may cause the Issuer to retain in the Collection Account an amount that the Manager determines in good faith to be necessary to fund future Capital Calls or the Clawback Amount. Such retained amounts will not constitute Available Proceeds and will not be distributed to investors on the related Payment Date or Refinancing Date. In determining whether and to what extent to hold back any such funds, the Manager may exercise a conservative judgment as to the likelihood that the Issuer, as a limited partner of the Fund, will be required to make a contribution to the Fund or to repay a Clawback Amount.

There can be no assurance that any amount so retained will be required to fund a Capital Call or to satisfy a clawback obligation, and such retention may delay the distribution of such funds to investors.

Selection of service providers

While the Manager's discretion to appoint third party service providers and/or advisors (including accountants, administrators, paying agents, depositaries, lenders, bankers, brokers, attorneys, consultants, and investment or commercial banking firms) is limited, it may do so from time to time, particularly in connection with an Optional Redemption, Refinancing or Tax Redemption.

Such advisors, service providers or affiliates may be investors in one or more funds managed and/or advised by members of the Coller Group, persons affiliated or otherwise associated with Coller, sources of investment opportunities, or co-investors with or counterparties to the Fund or one or more other funds managed and/or advised by members of the Coller Group. They may also provide services to and/or have business, personal, financial or other relationships with the Manager or other members of the Coller Group. These relationships may influence the Manager in deciding whether to select a particular provider to perform services for the Issuer, the cost of which will generally be borne directly or indirectly by the Issuer. In some circumstances, advisors, service providers or their affiliates may charge different rates or have different arrangements for services provided to members of the Coller Group or to other funds managed and/or advised by members of the Coller Group as compared to services provided to the Issuer, including more favorable rates or arrangements than those available to the latter.

No Separate Representation

Advisors to the Issuer, the Fund, the Fund General Partner, the Manager or their respective affiliates, including (without limitation) legal advisors and auditors, have represented and/or may in the future represent the Issuer, the Fund, the Fund General Partner, the Manager and their respective affiliates or investors from time to time on a variety of different matters. In connection with the organization of and the offering of the Debt, the Manager's legal advisors do not represent or owe any duty to any prospective investor or Holder individually or to the prospective investors or Holders as a group.

Conflicts of Interest Relating to the Initial Purchaser

Various potential and actual conflicts of interest may arise as a result of the investment banking, commercial banking, asset management, financing and financial advisory services and products provided by the Initial Purchaser and its Affiliates to the Issuer, the Collateral Trustee, the Loan Agent, the Manager, the Fund and others, as well as in connection with the investment, trading and brokerage activities of the Initial Purchaser and its Affiliates. The Initial Purchaser or its Affiliates may from time to time hold Debt of any Class for investment, trading or other purposes, and may sell at any time any Debt held by them. The Initial Purchaser and its Affiliates will have the right to vote the Debt that they hold. The interests and incentives of the Initial Purchaser or its Affiliates will not necessarily be aligned with those of the other holders. Additionally, the Initial Purchaser or any of its Affiliates may, on either its own or its clients' behalf, invest or take long or short positions in the Debt, which may be different from the position taken by holders of the Debt. Any such short position will increase in value if the Debt decreases in value. The Initial Purchaser and its Affiliates are not obligated to consider the interests of the holders of the Debt or any effect that such positions could have on them.

The position of the Initial Purchaser, its Affiliates or its clients in any derivative transaction may increase in value if the Debt defaults or decreases in value. In conducting such activities, the Initial Purchaser is under no obligation to consider the interests of holders of the Debt or the impact of any such activities on the holders.

The Initial Purchaser and any of its Affiliates may act in its own commercial interest in these various capacities without regard to whether its interests conflict with those of the holders or any other party. None of the Initial Purchaser or its Affiliates take any responsibility for, and have no obligations to potential investors or other third parties in respect of, the Issuer.

In addition, the Fund may purchase or sell, prior to or after the Closing Date, Fund Portfolio Investments from, to or through one or more of the Initial Purchaser or its Affiliates. Certain Eligible Investments may be issued, managed or underwritten by one or more of the Initial Purchaser or its Affiliates. One or more of the Initial Purchaser or its

Affiliates may provide investment banking, commercial banking, asset management, financing and financial advisory services and products to the Manager, its Affiliates, and funds managed by the Manager and its Affiliates, and purchase, hold and sell, both for their respective accounts or for the account of their respective clients, on a principal or agency basis, loans, securities, and other obligations and financial instruments of the Manager, its Affiliates, and funds managed by the Manager and its Affiliates. As a result of such transactions or arrangements, one or more of the Initial Purchaser or its Affiliates may have interests adverse to those of the Issuer and holders of the Debt. The Initial Purchaser is not obligated to consider the interests of the holders of the Debt or any effect that such positions could have on them.

The Initial Purchaser and its Affiliates may have underwritten or be acting as agent, counterparty or lender in respect of the Fund or certain of the Fund Portfolio Investments, may have ongoing relationships (including, without limitation, the provision of investment banking, commercial banking and advisory services or engaging in securities or derivatives transactions) with the Fund and may own either equity securities or debt obligations issued by the Fund or the issuers of the Fund Portfolio Investments. The Initial Purchaser and its Affiliates may also have ongoing relationships (including, without limitation, the provision of investment banking, commercial banking and advisory services or engaging in securities or derivatives transactions) with purchasers of the Debt or the Manager or their respective affiliates. The Initial Purchaser and its Affiliates and clients may also invest in debt obligations and securities that have interests different from or adverse to the Portfolio Assets and the Fund Portfolio Investments. From time to time the Fund may purchase, enter into, terminate or sell Fund Portfolio Investments from or through one or more of the Initial Purchaser or any of its Affiliates.

In addition, certain "private side" and "walled off" areas of the Initial Purchaser or its Affiliates may have access to material non-public information regarding the Portfolio Assets and Fund Portfolio Investments or the issuers of the Fund Portfolio Investments. These areas have not participated in the preparation of this Offering Memorandum, nor have they provided any material non-public information to any employee of the Initial Purchaser involved in the preparation of this Offering Memorandum.

The Initial Purchaser will be entitled to be paid certain fees in connection with the structuring and offering of the Debt from the proceeds of the issuance of the Notes or incurrence of the Class A Loans. The Initial Purchaser may forego a portion of or otherwise choose to accept a reduced amount of such fees for any reason, including, without limitation, if any investor pays an asset management, structuring or other fee to the Manager. Whether any such amount will be foregone or reduced may depend on the terms of the Debt issued or incurred on the Closing Date (including, without limitation, the Interest Rates and purchase prices of Debt purchased for the account of the Initial Purchaser or its Affiliates or otherwise for distribution) and other terms of the transaction.

Certain Other Conflicts of Interest.

The Collateral Trustee, the Loan Agent or any of their respective Affiliates or employees may purchase Debt (either upon initial issuance or through secondary transfers), buy credit protection on Debt, or exercise any voting rights to which such Debt is entitled or hold a long or short position in one or more Classes of Debt.

Waiver of Conflicts of Interest.

By purchasing Notes, each investor will be deemed to have acknowledged the existence of the conflicts of interest inherent to this transaction, including as described herein, and to have waived any claim with respect to any liability arising from the existence thereof.

THE FOREGOING RISK FACTORS AND CONFLICTS OF INTEREST DO NOT PURPORT TO BE A COMPLETE EXPLANATION OF THE RISKS ASSOCIATED WITH THE INVESTMENT IN THE NOTES. IN ADDITION, IN CONNECTION WITH THE ALLOCATION OF THE ISSUER'S ASSETS TO PORTFOLIO ASSETS, IT IS EXPECTED THAT THE CONFIDENTIAL PRIVATE PLACEMENT MEMORANDUM, AS SUPPLEMENTED, OF SUCH COLLER FUND(S) AND THE PUBLICLY-FILED FORM ADV OF THE COLLER-CONTROLLED INVESTMENT ADVISOR(S) THEREOF WILL BE MADE AVAILABLE TO THE ISSUER PRIOR TO THE ACCEPTANCE OF AN ALLOCATION BY THE GENERAL PARTNER(S) OF SUCH COLLER FUND(S) PERTAINING TO THE ISSUER'S ASSETS; IN THAT REGARD, THE ISSUER SHALL BE DEEMED TO HAVE ACKNOWLEDGED AND CONSENTED TO THE MATTERS DESCRIBED THEREIN WITH RESPECT TO SUCH COLLER FUND(S),

INCLUDING THE RISK FACTORS, CONFLICTS OF INTEREST AND OTHER MATTERS DESCRIBED THEREIN, AS IT PERTAINS TO THE ISSUER'S INVESTMENT IN SUCH COLLER FUND(S) AS PART OF THE INVESTMENT OF THE NOTES.

DESCRIPTION OF THE DEBT

All of the Notes will be issued pursuant to the Indenture and the Class A Loans will be incurred pursuant to the Credit Agreement. The following summary describes certain provisions of the Indenture and the Credit Agreement and the terms of the Debt. The summary does not purport to be complete and is subject to, and qualified in its entirety by reference to, the provisions of the Indenture and the Credit Agreement.

Status and Security of the Notes

The Debt will be limited recourse obligations of the Issuer secured as described below, and will rank in priority with respect to each other and the Liquidity Loan Facility as described herein. The Debt within a Class will rank *pari passu* with all other Debt of that Class. Under the terms of the Indenture, the Issuer will grant to the Collateral Trustee (for the benefit of the relevant secured parties) a security interest in the Assets to secure the Issuer's obligations under the Indenture, the Credit Agreement, the Debt and the Liquidity Loan Facility. *See* "*Security for the Debt*".

Payments of interest and principal on the Debt will be made solely from readily available funds in accordance with the Priority of Payments. The aggregate amount that will be available as Available Proceeds for payment on the Debt and of certain expenses of the Issuer on any Payment Date will be the sum of (i) amounts in the Collection Account as of the related Cut-Off Date that have been distributed to the Issuer from the Fund (other than an amount, as determined in good faith by the Manager, necessary to fund future Capital Calls or the Clawback Amount), (ii) amounts in the Reserve Account; (iii) proceeds from the redemption of Eligible Investments; and (iv) amounts available to be drawn under the Liquidity Loan Facility, as further described in "*Summary of Terms—Priority of Payments*", "*Security for the Debt—Payment Account*" *and* "*The Liquidity Loan Facility*". To the extent that the proceeds of the Assets (net of certain expenses) are insufficient to meet payments due in respect of the Debt in accordance with the Priority of Payments, no other assets will be available for payment of the deficiency, and the Issuer will have no obligation to pay such deficiency.

Interest on the Debt

Each Class of Secured Debt will accrue interest at the respective Interest Rate. Interest on the Secured Debt for the related Interest Accrual Period will be due and payable on each Payment Date in accordance with the Priority of Payments, if and to the extent funds are available for such purpose in accordance with the Priority of Payments. Interest on such Secured Debt will be computed on the basis of a three hundred sixty (360)-day year comprised of twelve (12) thirty (30)-day months, based on the Aggregate Outstanding Amount of, and Deferred Interest on, such Debt during each Interest Accrual Period. Interest on the Secured Debt is payable quarterly in arrears on each Payment Date in accordance with the Priority of Payments described herein. Any interest on a Class of Secured Debt that is not available to be paid on a Payment Date in accordance with the Priority of Payments shall become "Deferred Interest" with respect to such Class. Deferred Interest shall not be considered "due and payable" (and the failure to pay such interest shall not be an Event of Default) until the Payment Date on which such interest is available to be paid pursuant to the Priority of Payments. Deferred Interest shall bear interest at the applicable Interest Rate until paid to the extent lawful and enforceable.

If any interest due and payable in respect of any Debt is not punctually paid or duly provided for at the applicable Final Maturity Date or on any Redemption Date (unless, in the case of a Redemption Date, the applicable notice of redemption was withdrawn in accordance with the Indenture) (or, in the case of a failure to disburse due to an administrative error or omission by the Manager, the Collateral Trustee, the note registrar of the Issuer or the paying agent for ten (10) Business Days after a trust officer of the Collateral Trustee receives written notice or has actual knowledge of such administrative error or omission) an Event of Default will occur.

Principal of the Debt

Principal on each Class of Debt will be paid in accordance with the Priority of Payments on each Payment Date, each Redemption Date and on the Final Maturity Date, pursuant to the Priority of Payments described in "*Summary of Terms—Priority of Payments*".

Payments of principal to each holder of the Debt of each Class will be made ratably among the holders of the Debt of such Class in the proportion that the Aggregate Outstanding Amount of the Debt of such Class registered in

the name of each such holder on the applicable Record Date bears to the Aggregate Outstanding Amount of all Debt of such Class on such Record Date.

Optional Redemption and Tax Redemption

Optional Redemption

The Secured Debt shall be redeemable (or, in the case of the Class A Loans, prepayable) on any Business Day after the Non-Call Period by the Issuer at the written direction of (a) a Majority of the Class II Subordinated Notes or (b) the Manager (with the consent of a Majority of the Class II Subordinated Notes), in either case, in whole (with respect to all Classes of Secured Debt), but not in part, from (x) Sale Proceeds (a "***Redemption by Liquidation***") or (y) Refinancing Proceeds and all other available funds pursuant to a Refinancing. In connection with any such redemption or prepayment, the Secured Debt to be redeemed or prepaid shall be redeemed or prepaid, as applicable, at the applicable Redemption Prices and the above described direction must be provided to the Issuer, the Collateral Trustee not later than thirty (30) calendar days (or such shorter period of time as the Collateral Trustee finds reasonably acceptable) prior to the applicable Redemption Date; provided that all Secured Debt to be redeemed or prepaid must be redeemed and prepaid simultaneously.

Upon receipt of a written direction of an Optional Redemption, the Manager in its sole discretion will direct the sale (and the manner thereof) of the Portfolio Assets and/or Eligible Investments such that the proceeds from such sale and all other funds available for a redemption and prepayment pursuant to the Priority of Payments will be at least sufficient to pay (i) the Redemption Prices of the outstanding Secured Debt, (ii) all Administrative Expenses (regardless of the Administrative Expense Cap), (iii) all outstanding principal of and accrued and unpaid interest on the Liquidity Loans and all commitment fees, extension fees and other expenses owing to the Liquidity Agent and the Liquidity Lenders under the Liquidity Loan Facility, (iv) all other fees and expenses payable under the Priority of Payments, including to the payment of the reasonable fees, costs, charges and expenses incurred by the Issuer, the Manager and the Collateral Trustee (including reasonable attorneys' fees and expenses) in connection with such sale payable under the Priority of Payments and (v) the Manager Fee payable under the Priority of Payments (the "***Total Redemption Amount***"). The Manager, in its sole discretion, may effect the sale of Portfolio Assets through a direct sale, by participation or other arrangement. If sufficient funds will not be available to pay the Total Redemption Amount, the Secured Debt may not be redeemed or prepaid on the proposed Redemption Date.

In lieu of a sale of Portfolio Assets and/or Eligible Investments in the manner provided above, the Secured Debt may, on any Business Day occurring after the Non-Call Period, be redeemed and prepaid in whole from Refinancing Proceeds and all other available funds by obtaining a loan or issuing replacement securities, whose terms in each case will be negotiated by the Manager on behalf of the Issuer and approved by a Majority of the Class II Subordinated Notes, from one or more financial institutions or purchasers, it being understood that any rating of such replacement securities by the Rating Agency will be based on a credit analysis specific to such replacement securities and independent of the rating of the Secured Debt being refinanced (any such redemption, prepayment and refinancing, a "***Refinancing***"); *provided*, that (i) the terms of such Refinancing and any financial institutions acting as lenders thereunder or purchasers thereof must be acceptable to the Manager and a Majority of the Class II Subordinated Notes and (ii) such Refinancing otherwise satisfies the conditions described below.

In the case of a Refinancing upon a redemption and prepayment of the Secured Debt in whole but not in part as described above, such Refinancing will be effective only if (i) the Refinancing Proceeds and all other available funds will be at least sufficient to pay in full the aggregate Redemption Prices of the Secured Debt, as certified by the Manager, (ii) the Refinancing Proceeds and other available funds are used (to the extent necessary) to make such redemption and prepayment and (iii) the agreements relating to the Refinancing contain limited recourse and non-petition provisions equivalent (mutatis mutandis) to those contained in the Indenture.

If a Refinancing is obtained meeting the requirements specified above as certified by the Issuer, the Issuer (with the consent of a Majority of the Class II Subordinated Notes) and, at the direction of the Issuer, the Collateral Trustee will amend the Indenture to the extent necessary to reflect the terms of the Refinancing and no consent for such amendments will be required from the Holders.

The Subordinated Notes may be redeemed, in whole but not in part, on any Business Day on or after the redemption or repayment in full of the Secured Debt, at the written direction of a Majority of the Class II Subordinated Notes or the Manager (a "***Subordinated Notes Redemption***").

Tax Redemption

The Debt shall be redeemed (or, in the case of the Class A Loans, prepaid) in whole but not in part (any such redemption and prepayment, a "***Tax Redemption***") at the option of the Issuer (at the direction of the Manager) following a Tax Event. A "***Tax Event***" is an event that occurs if the Issuer is required to withhold or deduct any withholding tax from payments in respect of the Debt as a result of the occurrence, after the Closing Date, of (x) any change in or amendment of the Code or the regulations promulgated thereunder, or any applicable international tax treaty or (y) the release or issuance of an administrative or judicial ruling or other governmental pronouncement (including, for example, a private letter ruling) with respect to the Code or the regulations promulgated thereunder.

In connection with any Tax Redemption, the Debt will be redeemed or prepaid, as applicable, at the applicable Redemption Price. Upon its receipt of such written direction directing a Tax Redemption, the Collateral Trustee will promptly notify the Manager, the Holders, the Liquidity Agent (on behalf of the Liquidity Lenders) and the Rating Agency thereof.

Redemption Procedures

In the event of a Tax Redemption or an Optional Redemption, at least fifteen (15) calendar days before the applicable Redemption Date (or such shorter period as shall be reasonably satisfactory to the Collateral Trustee), the Issuer shall notify the Collateral Trustee and the Loan Agent in writing of the Record Date, the Redemption Date, the principal amount of the Debt to be redeemed or prepaid, as applicable, and the Redemption Price. Except in the case of a Refinancing, each such notice to the Collateral Trustee and the Loan Agent shall be accompanied by an officer's certificate of the Manager to the effect that such redemption and prepayment will comply with the conditions set forth in the Indenture.

Notice of redemption and prepayment shall be given at least ten (10) calendar days but not more than thirty (30) calendar days before the applicable Redemption Date, by delivery to each Holder of Debt scheduled to be redeemed or prepaid at the Holder's address in the applicable register by overnight courier guaranteeing next day delivery (or, to the extent the address contained in the applicable register maintained by the Collateral Trustee or the Loan Agent, as applicable, is not sufficient for that purpose, by first-class mail) or otherwise in accordance with the rules and procedures of DTC or any successor depositary. Each such notice of redemption and prepayment shall identify the Debt to be redeemed or prepaid and shall state: (i) the applicable Record Date (if any), (ii) the applicable Redemption Date, (iii) the principal amount of the Debt to be redeemed or prepaid, as applicable, (iv) the name and address of the Collateral Trustee, (v) that the Notes called for redemption in full must be surrendered to the Collateral Trustee to collect the applicable Redemption Price, (vi) that, unless the Issuer defaults in the payment of the applicable Redemption Price, or the readily available funds in the Payment Account are otherwise insufficient to satisfy in full the aggregate Redemption Price of the Debt so to be redeemed or prepaid, as applicable, interest on the Debt (or the portion thereof so redeemed or prepaid) shall cease to accrue on and after the Redemption Date specified in the notice, and the only remaining right of the Holders in respect of the Debt so redeemed or prepaid, as applicable, is to receive payment of the Redemption Price for such Debt in accordance with the Priority of Payments on the relevant Redemption Date and (vii) that no representation is made as to the correctness or accuracy of the CUSIP number, if any, listed in such notice or printed on the Debt. Notice of redemption and prepayment of the Debt will be given by the Issuer or, at the Issuer's request, by the Collateral Trustee in the name and at the expense of the Issuer. Failure to give notice of redemption or prepayment, or any defect therein, to any Holder of any Debt selected for redemption or prepayment, as applicable shall not impair or affect the validity of the redemption or prepayment of any other Debt.

In the event of any Redemption by Liquidation or a Tax Redemption, the Manager will direct the disposition or redemption of the Portfolio Assets as the Manager may select in such a manner and in such time so that the anticipated proceeds, together with other funds available in the Accounts, would be sufficient to pay in full the applicable Redemption Price of the Debt so redeemed or prepaid, as applicable, and all other amounts due and payable on the related Redemption Date pursuant to the Priority of Payments. On or prior to the applicable Redemption Date, the Issuer shall cause all such proceeds and other amounts to be applied in satisfaction of the Redemption Price to be

deposited with the paying agent. To the extent that after giving effect to such redemptions, the aggregate readily available funds in the Payment Account will be insufficient to satisfy in full the aggregate Redemption Price of the Debt so to be redeemed or prepaid, as applicable, then the Issuer shall cause the Collateral Trustee to apply all such readily available funds in accordance with the Priority of Payments on such Redemption Date in accordance with the directions of the Issuer and the Issuer shall cause the remaining unpaid portion of the Redemption Price of the Debt and accrued interest thereon to be paid promptly following the date when additional funds have become available to make such payment in full.

In the event of any Redemption by Liquidation, no Secured Debt may be optionally redeemed or prepaid, as applicable, unless (i) at least five Business Days before the scheduled Redemption Date the Manager will have furnished to the Collateral Trustee evidence in a form reasonably satisfactory to the Collateral Trustee, that the Manager on behalf of the Issuer has entered into a binding agreement or agreements with a financial or other institution or institutions to purchase (directly or by participation or other arrangement), not later than the Business Day immediately preceding the scheduled Redemption Date in immediately available funds, all or part of the Portfolio Assets at a purchase price at least sufficient, together with the Eligible Investments maturing, redeemable or puttable to the issuer thereof at par on or prior to the scheduled Redemption Date and all other available funds, to pay the Total Redemption Amount or (ii) prior to selling any Portfolio Assets and/or Eligible Investments, the Manager certifies in writing to the Collateral Trustee that, in its judgment, the aggregate sum of (A) expected proceeds from the sale or payment of Eligible Investments and all other available funds and (B) the aggregate market value of the Portfolio Assets will exceed the Total Redemption Amount. Any certification delivered by the Manager as described in this paragraph must include (1) the prices of, and expected proceeds from, the sale (directly or by participation or other arrangement) or payment of any Portfolio Assets and/or Eligible Investments and (2) all calculations required above.

Notwithstanding the foregoing, the Issuer (or the Manager on its behalf) will have the option to withdraw any such notice of redemption and prepayment on any day up to the Business Day immediately preceding the scheduled Redemption Date. The Collateral Trustee shall promptly notify the Manager, the Liquidity Agent (on behalf of the Liquidity Lenders), the Loan Agent, the Holders and the Rating Agency of any such withdrawal.

Notice of redemption and prepayment having been given as provided above, the Debt to be redeemed or prepaid, as applicable, shall, on the Redemption Date, become due and payable at the Redemption Prices therein specified, and from and after the Redemption Date (unless the Issuer shall default in the payment of the Redemption Price or the readily available funds in the Payment Account are otherwise insufficient to satisfy in full the aggregate Redemption Price of the Debt so redeemed or prepaid, as applicable) all such Debt shall cease to bear interest. Prior to the final payment on a Note to be redeemed in full, the Holder shall present and surrender such Note at the place specified in the notice of redemption to receive the applicable Redemption Price.

If any Debt (or portion thereof) called for redemption or prepayment, as applicable, shall not be so paid upon surrender thereof for redemption or prepayment, as applicable, the principal (including Deferred Interest) thereof shall, until paid, bear interest from the Redemption Date at the applicable Interest Rate for each successive Interest Accrual Period such Debt (or portion thereof) remains Outstanding; provided that the reason for such nonpayment is not the fault of such Holder.

Cancellation and Repurchases

All Notes surrendered for payment, registration of transfer or exchange, or mutilated, defaced or deemed lost or stolen, will be promptly cancelled by the Collateral Trustee and may not be reissued or resold. No Note may be surrendered (including in connection with any abandonment, donation, gift, contribution or other event or circumstance) except (x) for payment in full as provided herein, or (y) for registration of transfer or exchange, or for replacement in connection with any Note mutilated, defaced or deemed lost or stolen; *provided* that, in the case of this clause (y), a new Note in the identical principal amount as the cancelled Note will be issued. The Issuer will not be allowed to repurchase any Notes.

Entitlement to Payments

Payments on the Notes will be made to the person in whose name the Note is registered on the Record Date. Payments on any Global Notes will be made to DTC or its nominee, as the registered owner thereof. None of the Issuer, the Manager, the Collateral Trustee or any paying agent will have any responsibility or liability for any aspect

of the records relating to or payments made on account of beneficial ownership interests in Global Notes or for maintaining, supervising or reviewing any records relating to the beneficial ownership interests. The Issuer expects that DTC or its nominee, upon receipt of any payment of principal or interest in respect of a Global Note, in each case, representing a Class of Notes held by it or its nominee, will immediately credit participants' accounts (through which, in the case of Regulation S Global Notes, Euroclear and Clearstream hold their respective interests) with payments in amounts proportionate to their respective beneficial interests in the stated original principal amount of a Global Note for a Class of Notes, as applicable, as shown on the records of DTC or its nominee. The Issuer also expects that payments by participants to owners of beneficial interests in a Global Note held through the participants will be governed by standing instructions and customary practices, as is now the case with securities held for the accounts of customers registered in the names of nominees for the customers. The payments will be the responsibility of the participants.

Payments of interests on Notes not in global form will be made in U.S. Dollars by wire transfer, as directed by the applicable Holder, in immediately available funds to the applicable Holder; *provided* that wiring instructions have been provided to the paying agent on or before the related Record Date; and *provided, further*, that if appropriate instructions for any such wire transfer are not received by the related Record Date, then such payment will be made by check drawn on a U.S. bank mailed to such holder of a Note at such holder's address specified in the applicable register maintained by the Collateral Trustee. Final payments in respect of principal on the Notes will be made only against surrender of the Notes at the office of any paying agent, if any, appointed under the Indenture.

All payments on the Class A Loans will be made by the Collateral Trustee to the Loan Agent, and the Loan Agent will disburse such payments to the Class A Lenders in accordance with the Credit Agreement.

Prescription

Except as otherwise required by applicable law, claims by Holders in respect of principal and interest must be made to the Collateral Trustee or any paying agent if made within two (2) years of such principal or interest becoming due and payable. Any funds deposited with the Collateral Trustee or any paying agent in trust for the payment of principal or interest remaining unclaimed for two (2) years after such principal or interest has become due and payable will be paid to the Issuer pursuant to the Indenture; and the holder of a Note will thereafter, as an unsecured general creditor, look only to the Issuer for payment of such amounts and all liability of the Collateral Trustee or any paying agent with respect to such trust funds will thereupon cease.

Priority of Payments

On each Payment Date, unless a Liquidation Event has occurred and is continuing, readily available funds will be applied in the order of priority described in the Ordinary Priority of Payments under "*Summary of Terms—Priority of Payments—Ordinary Priority of Payments*".

If a Liquidation Event has occurred, on each Redemption Date and each Payment Date after the occurrence of such Liquidation Event, proceeds in respect of the Assets will be applied in the order of priority described in the Liquidation Priority of Payments under "*Summary of Terms—Priority of Payments—Liquidation Priority of Payments*".

On any Refinancing Date, Refinancing Proceeds and readily available funds will be applied in the order of priority described in the Refinancing Priority of Payments under "*Summary of Terms—Priority of Payments—Refinancing Priority of Payments*".

The Indenture

The following summary describes certain provisions of the Indenture. The summary does not purport to be complete and is subject to, and qualified in its entirety by reference to, the provisions of the Indenture.

Events of Default

"***Event of Default***" is defined in the Indenture as:

(a) a default in the payment, when due and payable, of any interest on any Secured Debt at its Final Maturity Date or on any Redemption Date (unless, in the case of a Redemption Date, the applicable notice of redemption was withdrawn); *provided* that, in the case of a default resulting from a failure to disburse due to an administrative error or omission by the Manager, the Collateral Trustee, the Collateral Administrator or the note registrar of the Issuer or any paying agent, such default will not be an Event of Default unless such failure continues for five (5) Business Days after a trust officer of the Collateral Trustee receives written notice or has actual knowledge of such administrative error or omission (irrespective of whether the cause of such administrative error or omission has been determined);

(b) a default in the payment, when due and payable, of any principal of, or interest, or any premium in respect of, any Debt at its Final Maturity Date or on any Redemption Date (unless, in the case of a Redemption Date, the applicable notice of redemption was withdrawn in accordance with the Indenture); *provided* that, in the case of a default resulting from a failure to disburse due to an administrative error or omission by the Manager, the Collateral Trustee, the Collateral Administrator or the note registrar of the Issuer or any paying agent, such default will not be an Event of Default unless such failure continues for five (5) Business Days after a trust officer of the Collateral Trustee receives written notice or has actual knowledge of such administrative error or omission (irrespective of whether the cause of such administrative error or omission has been determined);

(c) the Issuer becomes a Defaulting Partner under any Underlying Fund Documents;

(d) the lien or security interest granted under the Indenture or any other Transaction Document on the Assets shall fail or cease to constitute a valid and perfected security interest in favor of the Collateral Trustee (subject to permitted liens) and any such occurrence is not cured by the Issuer within ten (10) Business Days;

(e) except as otherwise provided in this definition of "Event of Default," a default in a material respect in the performance, or breach in a material respect, of any other covenant or agreement of the Issuer in the Indenture or the failure of any representation or warranty of the Issuer made in the Indenture or in any certificate or other writing delivered pursuant thereto or in connection therewith to be correct in each case in all material respects when the same will have been made, and the continuation of such default, breach or failure for a period of sixty (60) calendar days after notice to the Issuer by the Collateral Trustee, or to the Issuer and the Collateral Trustee at the direction of the holders of at least a Majority of the Controlling Class, specifying such default, breach or failure and requiring it to be remedied and stating that such notice is a "Notice of Default" under the Indenture;

(f) a Liquidity Loan Event of Default has occurred and the Liquidity Lenders have terminated their commitments thereunder and accelerated the Obligations (as defined therein) of the Issuer thereunder;

(g) the Issuer becomes an investment company required to be registered under the Investment Company Act (and such requirement has not been eliminated after a period of forty-five (45) calendar days);

(h) a final, judgment, decree or order by a court or arbitrator of competent jurisdiction in the amount of $1,000,000 or more (excluding amounts paid or fully covered by insurance) is entered against the Issuer in a court of competent jurisdiction and is not discharged, satisfied, stayed or bonded pending appeal within forty-five (45) calendar days after the entry of such judgment;

(i) the Manager is terminated in accordance with the Management Deed upon the occurrence of a Cause Event; or

(j) certain events of bankruptcy, insolvency, liquidation, receivership or reorganization of the Issuer.

If an Event of Default has occurred and is continuing (other than an Event of Default referred to in clause (j) above), the Collateral Trustee may (with the written consent of a Majority of the Controlling Class), and will (upon the written direction of a Majority of the Controlling Class), by notice to the Issuer, the Manager, the Loan Agent, the Liquidity Agent (on behalf of the Liquidity Lenders) and the Rating Agency, declare the principal of all the Notes then Outstanding to be immediately due and payable ("***acceleration***"), and upon any such declaration the principal of the Notes then Outstanding, together with all accrued and unpaid interest thereon through the date of acceleration and other amounts payable under the Indenture, will become immediately due and payable. If an Event of Default described in clause (j) above occurs, such an acceleration will occur automatically.

If an Event of Default has occurred and is continuing, the Collateral Trustee will retain the Assets intact, collect all payments in respect of the Assets and make and apply all payments and deposits and maintain all accounts in respect of the Assets and the Notes in accordance with the Priority of Payments and otherwise in accordance with the Indenture unless either (x) the Collateral Trustee, in consultation with the Manager and the Liquidity Agent, determines (in the manner described in the Indenture) that the anticipated proceeds of a sale or liquidation of the Assets (after deducting the reasonable expenses of such sale or liquidation) would be sufficient to discharge in full the amounts then due (or, in the case of interest, accrued) and unpaid on the Notes then Outstanding for principal and interest and all other amounts that, pursuant to the Priority of Payments, are required to be paid prior to such payments on such Notes (including any amounts due and owing as Administrative Expenses (without regard to the Administrative Expense Cap), any due and unpaid Manager Fee and any amounts due and payable under the Liquidity Loan Facility), and a Majority of the Controlling Class agrees with such determination; or (y)(i) in the case of an Event of Default described in clause (a) (unless such Event of Default was caused solely as a result of acceleration) or clause (b) above, a Majority of the Controlling Class and (ii) in all other cases, a Supermajority of the Controlling Class, directs the sale and liquidation of the Assets.

A Majority of the Controlling Class will have the right following the occurrence, and during the continuance of, an Event of Default to cause the institution of and direct the time, method and place of conducting any proceeding or for any other remedy available to the Collateral Trustee; *provided* that (a) such direction will not conflict with any rule of law or with any express provision of the Indenture, (b) the Collateral Trustee may take any other action deemed proper by the Collateral Trustee that is not inconsistent with such direction and (c) the Collateral Trustee will have been provided with indemnity reasonably satisfactory to it.

Notwithstanding anything to the contrary set forth in the Indenture, prior to the sale of any Asset in connection with an acceleration or other exercise of remedies, the Collateral Trustee shall offer the Manager, an affiliate thereof or fund or account managed thereby the right of first refusal to purchase such Asset (exercisable within 15 Business Days of the receipt of the related bid by the Collateral Trustee) at a price equal to the highest bid price submitted for such Asset.

In the Indenture, the Issuer has granted to the Collateral Trustee on behalf of the secured parties a security interest in all of its rights under certain of the Transaction Documents. Each purchaser of Notes will be required to agree or be deemed to agree that (A) the Transaction Documents contain limitations on the rights of the holders to institute legal or other proceedings against the parties to the Transaction Documents, (B) it will comply with the express terms of the applicable Transaction Documents if it seeks to institute any such proceeding and (C) the Transaction Documents do not impose any duty or obligation on the Issuer or its directors, officers, shareholders, members or managers to institute on behalf of any holder, or join any holder or any other person in instituting, any such proceeding.

Subject to the provisions of the Indenture relating to the duties of the Collateral Trustee, the Collateral Trustee will be under no obligation to exercise the rights or powers vested in it under the Indenture in respect of an Event of Default at the request or direction of the holders of any Notes unless such holders have provided to the Collateral Trustee security or indemnity reasonably satisfactory to the Collateral Trustee. Prior to the time a judgment or decree for payment of the money due has been obtained by the Collateral Trustee, as provided in the Indenture, a Majority of the Controlling Class may on behalf of the holders of all the Notes waive any past Event of Default or any occurrence that is, or with notice or the lapse of time or both would become, an Event of Default, and its consequences, except any such Event of Default or occurrence (a) in the payment of the principal of or interest on any Note (which may be waived only with the consent of the holder of such Note), (b) in respect of a covenant or provision of the Indenture that, under the provision of the Indenture providing for supplemental indentures with the consent of Holders, cannot be modified or amended without the waiver or consent of the holder of each such Outstanding Note materially and adversely affected thereby (which may be waived only with the consent of each such holder) or (c) in respect of certain representations contained in the Indenture relating to the security interests in the Assets.

No holder of a Note will have the right to institute any proceeding with respect to the Indenture unless (i) such holder previously has given to the Collateral Trustee written notice of an Event of Default, (ii) the holders of not less than a Majority of the Controlling Class have made a written request upon the Collateral Trustee to institute such proceedings in its own name as Collateral Trustee and such holder or holders have provided the Collateral Trustee indemnity reasonably satisfactory to the Collateral Trustee against the costs, expenses (including reasonable attorneys' fees and expenses) and liabilities to be incurred in compliance with such request, (iii) the Collateral Trustee, for thirty (30) calendar days after its receipt of such notice, request and provision of such indemnity to the Collateral Trustee,

has failed to institute any such proceeding and (iv) no direction inconsistent with such written request has been given to the Collateral Trustee during such thirty (30)-day period by a Majority of the Controlling Class.

Notices

Notices to the holders of the Notes will be given by first-class mail, postage prepaid, to registered Holders at each such holder's address appearing in the register maintained by the Collateral Trustee.

The Collateral Trustee is required to deliver to any holder of Notes or any Person that has certified to the Collateral Trustee in accordance with the Indenture that it is the owner of a beneficial interest in a Global Note, any information or notice relating to the Indenture in the possession of the Collateral Trustee and requested to be so delivered by a holder or a Person that has made such certification that is reasonably available to the Collateral Trustee (other than items protected by attorney-client privilege or information or documents received from independent accountants subject to restrictions or prohibitions on disclosure pursuant to an engagement letter). The Collateral Trustee shall have no liability for such disclosure or, subject to its duties herein, the accuracy thereof.

Reporting

For so long as the Debt remains Outstanding, (x) no later than the Business Day immediately preceding each scheduled Payment Date, the Issuer shall compile and make available (or cause to be compiled and made available) to the Collateral Trustee, the Manager, the Rating Agency, the Initial Purchaser and the Holders of the Debt an unaudited quarterly information report detailing (i) the performance of the Issuer during the previous fiscal quarter, (ii) additional information relating to the amounts distributed on the related Payment Date in accordance with the Priority of Payments and (iii) such other information as the Manager, on the Issuer's behalf, may deem appropriate and (y) no later than any Redemption Date, the Issuer shall compile and make available (or cause to be compiled and made available) to the Collateral Trustee, the Manager, the Rating Agency, the Initial Purchaser and the Holders of the Debt a report including (i) information relating to the amounts distributed on such Redemption Date and (ii) such other information as the Manager, on the Issuer's behalf may deem appropriate (each such report, a "***Distribution Report***").

Substantially concurrently with the furnishing or making available of a Distribution Report by the Issuer to the Collateral Trustee, the Collateral Trustee shall (i) make available copies of such reports via its website to which access is given to (A) the Rating Agency, the Liquidity Agent, the Liquidity Lenders, the Manager, the Loan Agent and Holders of the Debt, (B) prospective investors in the Debt (which prospective investors shall be limited only to persons that are either (x) Accredited Investors that are non-U.S. Persons in offshore transactions or (y) Qualified Institutional Buyers that are Qualified Purchasers and, in each case, that certify their status as such restrictions to the reasonable satisfaction of the Issuer) identified to the Collateral Trustee by the Issuer and which provide an Eligible Investor Certificate to the Issuer and the Collateral Trustee and (C) as identified to the Collateral Trustee by the Issuer, securities analysts (to the extent providing research and analysis of investment in the Debt to investors and prospective investors therein) and market-making financial institutions reasonably satisfactory to the Issuer or (iii) to the extent the Collateral Trustee determines in good faith that it cannot make such reports available in the manner described in the preceding clause (i) after the use of its commercially reasonable efforts, furnish such reports directly to the Manager, the Collateral Trustee, the Liquidity Agent, the Loan Agent, the Rating Agency and, upon their request, the Holders of the Debt. The Collateral Trustee's Internet website will initially be located at http://gctinvestorreporting.bnymellon.com. Parties that are unable to use the above distribution option are entitled to have a paper copy mailed to them via first-class mail. The Issuer or the Collateral Trustee will have the right to change the way such statements are distributed in order to make such distribution more convenient and/or more accessible to the recipient parties. As a condition to access the Collateral Trustee's Internet website, the Collateral Trustee may require registration and acceptance of a disclaimer.

Modification of Indenture

With the Consent of Holders

Subject to "—*Supplemental Indenture Procedures*", with the consent of a Majority of each Class of Debt (voting separately by Class) materially and adversely affected thereby, if any, the Collateral Trustee and the Issuer may execute one or more indentures supplemental to the Indenture to add any provisions to, or change in any manner or

eliminate any of the provisions of, the Indenture or modify in any manner the rights of the Holders of the Debt of any Class under the Indenture or the Credit Agreement, as applicable; *provided* that notwithstanding anything in the Indenture to the contrary, without the consent of each Holder of all Outstanding Debt of each Class materially and adversely affected thereby, no such supplemental indenture shall:

(i) change the Final Maturity Date of the principal of or the due date of any installment of interest on any Debt, reduce the principal amount thereof (including any Deferred Interest) or the Redemption Price with respect to any Debt, or change the provisions of the Indenture relating to the application of proceeds of any readily available funds to the payment of principal of the Debt, or change any place where, or the coin or currency in which, Debt or the principal thereof or interest or any distribution thereon is payable, or impair the right to institute suit for the enforcement of any such payment on or after the Final Maturity Date thereof (or, in the case of an Optional Redemption or a Tax Redemption, on or after the applicable Redemption Date);

(ii) reduce the percentage of the Aggregate Outstanding Amount of Holders of each Class whose consent is required for the authorization of any such supplemental indenture or for any waiver of compliance with certain provisions of the Indenture or certain defaults hereunder or their consequences provided for in the Indenture;

(iii) permit the creation of any lien or charge ranking prior to or on a parity with the lien of the Indenture with respect to any part of the Assets (in each case, other than the lien of the Indenture and permitted liens);

(iv) reduce or increase the percentage of the Aggregate Outstanding Amount of Holders of any Class of Debt whose consent is required to request the Collateral Trustee to preserve the Assets or rescind the Collateral Trustee's election to preserve the Assets or to sell or liquidate the Assets;

(v) modify any of the provisions of the Indenture with respect to entering into supplemental indentures, except to increase the percentage of Outstanding Debt the consent of the Holders of which is required for any such action or to provide that certain other provisions of the Indenture cannot be modified or waived without the consent of the Holder of all Debt Outstanding and affected thereby;

(vi) modify the definition of the term "Controlling Class," "Outstanding," "Class," "Majority" or "Supermajority" or the Priority of Payments; or

(vii) amend any of the provisions of the Indenture relating to the institution of proceedings for certain events of bankruptcy, insolvency, receivership or reorganization of the Issuer.

Without the Consent of Holders

Subject to "—*Supplemental Indenture Procedures*", without the consent of any Holders of the Debt or the Liquidity Agent or any Liquidity Lender, the Issuer and the Collateral Trustee, at any time and from time to time, may, without an opinion of counsel or officer's certificate being provided to the Collateral Trustee as to whether or not any Class of Debt would be materially and adversely affected thereby (except to the extent expressly specified below), enter into one or more indentures supplemental hereto, in form satisfactory to the Issuer and the Collateral Trustee, for any of the following purposes:

(i) to evidence the succession of another Person to the Issuer and the assumption by any such successor Person of the covenants of the Issuer herein and in the Debt to the extent otherwise permitted by the terms of the Indenture and the Credit Agreement;

(ii) to evidence the addition of an additional issuer or of a wholly-owned subsidiary of the Issuer that, in either case, will acquire securities issued by the Issuer, to the extent necessary to permit the Issuer to comply with any statute, rule or regulation applicable to the Issuer and the assumption by the additional issuer or subsidiary of the obligations of the Issuer in the Indenture, the Credit Agreement, the Liquidity Loan Facility and the Debt, if the interests of the Liquidity Lenders and the Holders of each Class of Debt would not be materially and adversely affected by such supplemental indenture;

(iii) to add to the covenants of the Issuer or the Collateral Trustee for the benefit of the Holders of the Debt or to surrender any right in the Indenture conferred on the Issuer;

(iv) to convey, transfer, assign, mortgage or pledge any property to or with the Collateral Trustee or add to the conditions, limitations or restrictions on the authorized amount, terms and purposes of the issue, authentication and delivery of the Notes or incurrence of the Class A Loans;

(v) to evidence and provide for the acceptance of appointment under the Indenture by a successor Collateral Trustee and to add to or change any of the provisions of the Indenture as shall be necessary to facilitate the administration of the trusts thereunder by more than one Collateral Trustee, pursuant to the requirements of the Indenture;

(vi) to correct or amplify the description of any property at any time subject to the lien of the Indenture, to better assure, convey and confirm unto the Collateral Trustee any property subject or required to be subjected to the lien of the Indenture (including, without limitation, any and all actions necessary or desirable as a result of changes in law or regulations) or to subject to the lien of the Indenture any additional property;

(vii) to modify the restrictions on and procedures for resales and other transfers of Debt to reflect any changes in ERISA or other applicable law or regulation (or the interpretation thereof) or the implementation or adoption of new law or regulation or to enable the Issuer to rely upon any exemption from ERISA or registration under the Securities Act or the Investment Company Act or to remove restrictions on resale and transfer to the extent not required thereunder;

(viii) to make such changes as shall be necessary or advisable in order for any Debt to be or remain listed on an exchange; *provided* that the Issuer may take any action to de-list if the Issuer determines that the maintenance of the listing of any Class of Debt on the exchange is unduly onerous or burdensome;

(ix) otherwise to correct any inconsistency or cure any ambiguity, omission or manifest errors in the Indenture or to conform the provisions of the Indenture to this Offering Memorandum;

(x) to take any action advisable, necessary or helpful to prevent the Issuer from being subject to (or to otherwise minimize) withholding or other taxes, fees or assessments, including by complying with FATCA, the Cayman FATCA Legislation, and the CRS;

(xi) to authorize the appointment of any listing agent, transfer agent, paying agent or additional registrar for any Class of Debt appropriate in connection with the listing of any Debt on any exchange or otherwise and otherwise to amend the Indenture to incorporate any changes required or requested by any governmental authority, exchange, listing agent, transfer agent, paying agent or additional registrar for any Class of Debt in connection with its appointment;

(xii) to amend the name of the Issuer;

(xiii) to make such changes as shall be necessary or advisable to comply with Rule 17g-5 of the Exchange Act, if applicable;

(xiv) with the written consent of the Manager, to modify the terms of the Indenture in order that it may be consistent with the requirements of the Rating Agency (including to address any change in the rating methodology employed by the Rating Agency or to evidence any waiver or elimination by the Rating Agency of any requirement or condition of the Rating Agency);

(xv) (a) upon the occurrence of a Depository Event or (b) if an Event of Default has occurred and is continuing and the Holder of a Global Note deposited with DTC has so requested, to make such changes as shall be necessary or advisable to allow for the transfer of Global Notes to Certificated Notes;

(xvi) with the written consent of the Manager, to permit compliance with the Dodd-Frank Act, as applicable to the Issuer or the Manager (or its parent or Affiliates) or the Debt, or to reduce costs to the Issuer as a result thereof, as evidenced by a certificate of an officer of the Issuer or the Manager on behalf of the

Issuer and delivered to the Collateral Trustee and the Liquidity Agent, if the interests of the secured parties would not be materially and adversely affected by such supplemental indenture;

(xvii) to accommodate an assignment by the Manager, pursuant to the Management Deed, of all of its rights and obligations under the Management Deed;

(xviii) with the written consent of the Manager, to make such changes as shall be necessary or advisable in order to maintain compliance with the final rules implementing the credit risk retention requirements of Section 941 of the Dodd-Frank Act, if applicable;

(xix) with the written consent of the Manager, (A) to effect a Refinancing and/or (B) in connection with a Refinancing, to effectuate any modifications as described under "*Description of the Debt—Optional Redemption and Tax Redemption—Optional Redemption*"; or

(xx) to make such changes as shall be necessary to permit the Issuer to issue or incur additional debt of any one or more existing Classes; *provided*, that any such additional debt shall be issued or incurred in accordance with the Indenture.

To the extent the Issuer executes a supplemental indenture or other modification or amendment of the Indenture for purposes of conforming the Indenture to this Offering Memorandum pursuant to clause (ix) above, and one or more other amendment provisions described above also applies, such supplemental indenture or other modification or amendment of the Indenture will be deemed to be a supplemental indenture, modification or amendment to conform the Indenture to this Offering Memorandum pursuant to clause (ix) above regardless of the applicability of any other provision regarding supplemental indentures set forth in the Indenture.

Supplemental Indenture Procedures

With respect to any supplemental indenture described above under "*—With the Consent of Holders*" the consent to which is expressly required from a Majority or a greater percentage of each Class of Debt materially and adversely affected thereby, the Collateral Trustee shall be entitled to conclusively rely upon an opinion of counsel as to matters of law (which may be supported as to factual (including financial and capital markets) matters by any relevant certificates and other documents necessary or advisable in the judgment of counsel delivering such opinion of counsel) or an officer's certificate of the Manager as to whether or not any Class of Debt would be materially and adversely affected by a supplemental indenture. In executing or accepting the additional trusts created by any supplemental indenture or the modifications thereby of the trusts created by the Indenture, the Collateral Trustee shall be entitled to receive, and shall be fully protected in relying upon, an opinion of counsel stating that the execution of such supplemental indenture is authorized or permitted by the Indenture and that all conditions precedent thereto have been satisfied. The Collateral Trustee shall not be liable for any reliance made in good faith upon such an opinion of counsel or such an officer's certificate.

For so long as any Debt shall remain Outstanding, not later than ten (10) Business Days prior to the execution of any proposed supplemental indenture, the Issuer shall deliver to the Collateral Trustee (which shall provide notice to the Holders), the Collateral Administrator, the Manager, the Liquidity Agent (on behalf of the Liquidity Lenders) and the Rating Agency a notice attaching a copy of such supplemental indenture and indicating the proposed date of execution of such supplemental indenture. Any failure of the Issuer to publish or deliver such notice, or any defect therein, shall not in any way impair or affect the validity of any such supplemental indenture. For the avoidance of doubt, the satisfaction (or deemed inapplicability thereof) of the Rating Condition shall not imply that the Holders are not materially and adversely affected by such supplemental indenture.

It shall not be necessary for any act of Holders to approve the particular form of any proposed supplemental indenture, but it shall be sufficient, if the consent of any Holders to such proposed supplemental indenture is required, that such act shall approve the substance thereof.

The Issuer agrees that, without the written consent of the Manager, it will not permit to become effective any supplement or modification to the Indenture which would (i) increase the duties or liabilities of, reduce or eliminate any right or privilege of (including as a result of an effect on the amount or priority of any fees or other amounts payable to the Manager), or adversely change the economic consequences to, the Manager, (ii) modify the restrictions

on the purchase or sale of Portfolio Assets, (iii) expand, restrict or modify the Manager's discretion or (iv) otherwise materially or adversely affect the Manager. The Collateral Administrator shall not be bound to follow any amendment, modification, supplement or waiver to the Indenture until it has received written notice of such amendment, modification, supplement or waiver and a copy thereof from the Issuer or the Collateral Trustee; provided, however, that the Collateral Administrator shall not be bound by any amendment, modification, supplement or waiver to the Indenture that adversely affects the obligations or rights of the Collateral Administrator unless the Collateral Administrator shall have consented thereto.

Notwithstanding any of the provisions of the Indenture, the Issuer will not enter into any amendment to the Indenture (i) that changes the definition of "Distribution Conditions" (or any component thereof) or (ii) that could reasonably be expected to have a material adverse effect on the Liquidity Agent or the Liquidity Lenders, in each case without the prior written consent of the Liquidity Agent and one or more Liquidity Lenders representing more than fifty percent (50%) of the loans and commitments then outstanding under the Liquidity Loan Facility; *provided* that the Collateral Trustee shall be entitled to conclusively rely upon an officer's certificate from the Issuer (or the Manager on its behalf) as to whether or not such amendment could reasonably be expected to have a material adverse effect on the Liquidity Agent or a Liquidity Lender.

Except as set forth in the proviso to the definition of "Class," Holders of each Sub-Class of any Class shall, in each case, vote together as a single Class in connection with any supplemental indenture.

In no case will a supplemental indenture that becomes effective on or after the Redemption Date of any Class of Notes be considered to have a material adverse effect on any Holder of such Class.

Additional Debt

At any time prior to the Final Closing Date (with at least 5 Business Days' prior written notice to the Collateral Trustee and the Loan Agent), the Issuer may issue and sell (or, in the case of the Class A Loans, incur) additional debt of any one or more Classes and use the proceeds (net of expenses for the additional issuance or incurrence) to pay any Additional Payment, to purchase additional Portfolio Assets or as otherwise permitted under the Indenture (except that proceeds of an additional issuance of Subordinated Notes may be used to pay for expenses related to a Refinancing); *provided* that the following conditions are met:

(a) prior to execution of the supplemental indenture providing for such issuance, such issuance (or, in the case of the Class A Loans, incurrence) is consented to by (x) the Manager and a Majority of the Class II Subordinated Notes and (y) if the Initial Majority Class A Investor holds a Majority of the Class A Debt prior to the issuance or incurrence of additional debt and following such issuance or incurrence would no longer hold a Majority of the Class A Debt, the Initial Majority Class A Investor;

(b) in the case of additional debt of any one or more existing Classes, the terms of the debt issued or incurred must be identical to the respective terms of previously issued Debt of the applicable Class (except that the interest due on additional Secured Debt will accrue from the issue or incurrence date of such additional Secured Debt and the price of such Debt does not have to be identical to the price of the initial Debt of that Class);

(c) in the case of additional debt of any one or more existing Classes, unless only additional Subordinated Notes are being issued, additional debt of all Classes must be issued or incurred and such issuance or incurrence of additional debt must be proportional across all Classes (subject only to the effect of the minimum denominations of each Class); *provided* that (1) the principal amount of Subordinated Notes issued in any such issuance may exceed the proportion otherwise applicable to the Subordinated Notes and (2) the proportion of the initial principal amount of the Class I Subordinated Notes to the initial principal amount of the Class II Subordinated Notes following such additional issuance shall not exceed 2.1:1;

(d) the Rating Condition shall have been satisfied with respect to all Secured Debt; *provided*, that if only additional Subordinated Notes are being issued, satisfaction of the Rating Condition will not be required if the Issuer notifies the Rating Agency of such issuance;

(e) the proceeds of any additional Secured Debt (net of fees and expenses incurred in connection with such issuance or incurrence, which fees and expenses shall be paid solely from the proceeds of such additional issuance

or incurrence (other than any amounts owing to the Collateral Trustee or the Bank in any other capacity, which amounts may be paid as Administrative Expenses to the extent such proceeds are insufficient)) shall be used to pay any Additional Payment, to purchase additional Portfolio Assets, to invest in Eligible Investments or to apply pursuant to the Priority of Payments;

(f) an opinion of Cadwalader, Wickersham & Taft LLP or Clifford Chance US LLP, or other tax counsel of nationally recognized standing in the United States experienced in such matters, in the form and substance satisfactory to the Manager, is delivered to the Issuer (with a copy to the Collateral Trustee) to the effect that any additional Class A Notes and Class B Notes will be treated as indebtedness for U.S. federal income tax purposes; provided, however, that such opinion will not be required with respect to any additional Notes that bear a different securities identifier from the Notes of the same Class that are Outstanding at the time of the additional issuance;

(g) no Event of Default has occurred and is continuing;

(h) to the extent any such additional Secured Debt of an existing Class is issued on a date other than the first day of the related Interest Accrual Period for such Class, the Issuer shall cause such additional Secured Debt to be issued with a separate CUSIP or other identifier for purposes of receiving distributions separate from such existing Class; and

(i) the Collateral Trustee has received an Officer's Certificate of the Issuer to the effect that the conditions set forth in clauses (a) through (h) above have been satisfied.

Any additional Class A Debt issued or incurred as described above will, to the extent reasonably practicable, be offered first to the Initial Majority Class A Investor in an amount as is necessary for the Initial Majority Class A Investor to remain a Majority of the Class A Debt.

Any additional debt of an existing Class may be offered or incurred at prices that differ from the applicable initial offering or incurrence price.

In connection with an issuance of additional Debt, additional Class A Loans may be incurred and will be borrowed pursuant to the terms of the Credit Agreement. For the avoidance of doubt, any additional debt of any Class may be in the form of the issuance of a note or the incurrence of a loan.

The Issuer may issue or incur additional Debt in connection with a Refinancing of all Classes of Secured Debt, which issuance shall not be subject to the conditions set forth above.

At the cost of the Issuer, the Collateral Trustee will provide to each Holder of Debt notice of any additional issuance.

Consolidation, Merger or Transfer of Assets

Except under the limited circumstances set forth in the Indenture, the Issuer may not consolidate with, merge into, or transfer or convey all or substantially all of its assets to, any other corporation, partnership, trust or other person or entity.

Petitions for Bankruptcy

The Indenture and the Credit Agreement will provide that the holders of the Debt may not seek to commence a any bankruptcy, winding up, reorganization, arrangement, insolvency, moratorium or liquidation proceedings or other proceedings under Cayman Islands, United States federal or state bankruptcy law or similar laws of any jurisdiction against or cause the Issuer to petition for bankruptcy until the payment in full of the Liquidity Loan Facility and all Debt (and any other debt obligations of the Issuer that have been rated upon issuance by any rating agency at the request of the Issuer) and the expiration of a period equal to one year and one day or, if longer, the applicable preference period then in effect plus one day, following such payment in full.

In the event one or more holders or beneficial owners of Debt cause the filing of a petition in bankruptcy against the Issuer in violation of the prohibition described above, such holder(s) or beneficial owner(s) will be deemed to

acknowledge and agree that any claim that such holder(s) or beneficial owner(s) have against the Issuer or with respect to any Assets (including any proceeds thereof) will, notwithstanding anything to the contrary in the Priority of Payments, be fully subordinate in right of payment to the claims of each holder and beneficial owner of any Debt that does not seek to cause any such filing, with such subordination being effective until all amounts with respect to the Debt held by each holder or beneficial owners of any Debt that does not seek to cause any such filing are paid in full in accordance with the Priority of Payments (after giving effect to such subordination). The terms described in the immediately preceding sentence are referred to herein as the "***Bankruptcy Subordination Agreement***".

The Indenture and the Credit Agreement will provide that the foregoing restrictions are a material inducement for each holder and beneficial owner of the Debt to acquire such Debt and for the Issuer and the Manager to enter into the Indenture and the Credit Agreement (in the case of the Issuer) and the other applicable transaction documents and are an essential term of the Indenture and the Credit Agreement. Any holder or beneficial owner of Debt, the Manager or the Issuer may seek and obtain specific performance of such restrictions (including injunctive relief), including, without limitation, in any bankruptcy, winding up, reorganization, arrangement, insolvency, moratorium or liquidation proceedings, or other proceedings under Cayman Islands, U.S. federal or state bankruptcy law or similar laws of any jurisdiction.

The Indenture will require, so long as any of the Debt is Outstanding, the Issuer to timely file an answer and any other appropriate pleading objecting to (i) the institution of any proceeding to have the Issuer adjudicated as bankrupt or insolvent or (ii) the filing of any petition seeking relief, reorganization, arrangement, adjustment or composition of or in respect of the Issuer under applicable bankruptcy law or other applicable law. The costs and expenses (including, without limitation, fees and expenses of counsel to the Issuer) incurred by Issuer in connection with their obligations described in the immediately preceding sentence ("***Petition Expenses***") will be payable as Administrative Expenses without regard to the cap relating to the payment of other Administrative Expenses in the Priority of Payments up to an aggregate sum of U.S.$250,000 (the "***Petition Expense Amount***"). Any Petition Expenses in excess of the Petition Expense Amount will be payable as Administrative Expenses subject to the Administrative Expense Cap.

Satisfaction and Discharge of the Indenture

The Indenture will be discharged upon (i) (A) delivery to the Collateral Trustee for cancellation of all of the Notes or, with certain exceptions (including the obligation to pay principal and interest), upon deposit with the Collateral Trustee of funds sufficient for the payment or redemption Debt and (B) the payment by the Issuer of all other amounts due under the Indenture or (ii) the realization of and distribution of the proceeds of, in each case in accordance with the Indenture, all Assets that are subject to the lien of the Indenture.

Collateral Trustee

The Bank of New York Mellon Trust Company, National Association will be the Collateral Trustee under the Indenture for the Notes. The payment of the fees and expenses of the Collateral Trustee relating to the Notes is solely the obligation of the Issuer, and solely payable out of the Assets. The Issuer, the Manager and their affiliates may maintain other banking relationships in the ordinary course of business with the Collateral Trustee or its affiliates. The Collateral Trustee and its affiliates may receive compensation in connection with the investment of the Assets as provided in the Indenture. Eligible Investments may include investments for which the Collateral Trustee and/or its affiliates provide services.

The Indenture contains provisions for the indemnification of the Collateral Trustee by the Issuer, payable solely out of the Assets, for any loss, liability or expense incurred without negligence, willful misconduct or bad faith on its part, arising out of or in connection with the acceptance or administration of the trust. The Collateral Trustee may resign at any time by providing not less than sixty (60) calendar days' notice. The Collateral Trustee may be removed at any time by an act of a Majority of each Class of Notes or, at any time when an Event of Default will have occurred and be continuing, by an act of a Majority of the Controlling Class as set forth in the Indenture. No resignation or removal of the Collateral Trustee will become effective until the acceptance of the appointment of the successor Collateral Trustee. Furthermore, no resignation or removal of the Collateral Trustee will become effective unless the same successor entity is appointed as Collateral Trustee under the Credit Agreement.

Form, Denomination and Registration of the Notes

The Notes will be sold only (1) to persons that are (i) both (x) Qualified Institutional Buyers and (y) Qualified Purchasers or (ii) outside the United States to Accredited Investors that are non-U.S. Persons in offshore transactions in reliance on Regulation S and (2) in accordance with any other applicable law. Each initial investor and subsequent transferee of a Note will be required or deemed to represent, among other matters, as to its status under the Securities Act and the Investment Company Act and ERISA. The Issuer has the right, under the Indenture, to compel any beneficial owner of a Note who has made or has been deemed to make a representation that is subsequently shown to be false or misleading to sell its interest in such Note, or may sell such interest on behalf of such owner. *See* "*Notice to Investors and Transfer Restrictions*".

Each initial purchaser of a Subordinated Note or a Certificated Note will be required to provide a Subscription Agreement in which it will be required to certify, and each subsequent transferee of an interest in a Global Note (except, in the case of an initial purchaser, as may be expressly agreed in writing between such initial purchaser and the Issuer) will be deemed to represent, among other matters, as to its status under the Securities Act, the Investment Company Act and ERISA. Except for investors acquiring Subordinated Notes or an interest therein on the Closing Date and providing a Subscription Agreement certifying as to its status as a Benefit Plan Investor or a Controlling Person, each investor in Subordinated Notes in the form of Global Notes or interest therein will be deemed to represent that it is not, and is not acting on behalf of (and for so long as it holds such Notes or interest therein, will not be and will not be acting on behalf of) a Benefit Plan Investor or a Controlling Person.

Global Notes

The Notes are being offered only (I) to, or for the account or benefit of, persons that are both (A) Qualified Institutional Buyers and (B) Qualified Purchasers or entities owned exclusively by Qualified Purchasers and (II) to Accredited Investors that are non-U.S. persons in offshore transactions in reliance on Regulation S. Unless such Person requests a Certificated Note, each Note sold to a Person that, at the time of the acquisition, purported acquisition or proposed acquisition of any such Note, is both a Qualified Institutional Buyer and a Qualified Purchaser will be issued in the form of one or more permanent global notes in definitive, fully registered form without interest coupons (the "***Rule 144A Global Notes***"). Unless such Person requests a Certificated Note, the Notes sold to Accredited Investors that are non-U.S. Persons in offshore transactions in reliance on Regulation S will be issued in the form of one or more permanent global notes in definitive, fully registered form without interest coupons (the "***Regulation S Global Notes***" and, collectively with the Rule 144A Global Notes, the "***Global Notes***").

No service charge will be made for any registration of transfer or exchange of Notes but the Issuer, the registrar or the Collateral Trustee may require payment of a sum sufficient to cover any transfer tax or other governmental charge payable in connection therewith. The registrar or the Collateral Trustee will be permitted to request such evidence reasonably satisfactory to it documenting the identity, authority and/or signatures of the transferor and transferee, with such signature guaranteed by an "eligible guarantor institution" meeting the requirements of the registrar, which requirements include membership or participation in Securities Transfer Agents Medallion Program ("***STAMP***") or such other "signature guarantee program" as may be determined by the registrar in addition to, or in substitution for, STAMP, all in accordance with the Exchange Act.

The registered owner of the relevant Global Note will be the only person entitled to receive payments in respect of the Notes represented thereby, and the Issuer will be discharged by payment to, or to the order of, the registered owner of such Global Note in respect of each amount so paid. No person other than the registered owner of the relevant Global Note will have any claim against the Issuer, as applicable, in respect of any payment due on that Global Note.

A beneficial interest in a Regulation S Global Note or Certificated Note may be transferred to a Person who takes delivery in the form of an interest in the corresponding Rule 144A Global Note only upon compliance with the applicable DTC procedures and receipt by the Collateral Trustee of (i) a written certification from the transferor in the form required by the Indenture to the effect that such transfer is being made to a Person whom the transferor reasonably believes is a Qualified Institutional Buyer in a transaction meeting the requirements of Rule 144A under the Securities Act and in accordance with any applicable securities laws of any state of the United States or any other jurisdiction and (ii) a written certification from the transferee in the form required by the Indenture to the effect, among other things, that such transferee is (1) a Qualified Institutional Buyer and (2) a Qualified Purchaser or a corporation,

partnership, limited liability company or other entity (other than a trust), each shareholder, partner, member or other equity owner of which is a Qualified Purchaser. A beneficial interest in a Rule 144A Global Note or Certificated Note may be transferred to a Person who takes delivery in the form of an interest in the corresponding Regulation S Global Note only upon compliance with the applicable DTC procedures and receipt by the Collateral Trustee of a written certification from the transferor in the form required by the Indenture to the effect that such transfer is being made in accordance with Regulation S under the Securities Act and a written certification from the transferee in the form required by the Indenture to the effect, among other things, that such transferee is an Accredited Investor that is a non-U.S. person purchasing such Note in an offshore transaction pursuant to Regulation S. A Certificated Note may be transferred to a person who takes delivery in the form of an interest in a Certificated Note only upon receipt by the Issuer and the Collateral Trustee of (i) the transferor's Certificated Note properly endorsed for assignment to the transferee, (ii) a written certification from the transferor in the form prescribed by the Indenture regarding compliance with the transfer restrictions and (iii) a Subscription Agreement substantially in the form set forth in the Indenture executed by the transferee. Any beneficial interest in one of the Global Notes that is transferred to a Person who takes delivery in the form of an interest in another Global Note will, upon transfer, cease to be an interest in such Global Note, and become an interest in such other Global Note, and accordingly, will thereafter be subject to all transfer restrictions and other procedures applicable to beneficial interests in such other Global Notes for as long as it remains such an interest.

Certificated Notes

Notes in the form of definitive physical certificates (in such form, "***Certificated Notes***") will be issued on the Closing Date to initial investors who request Certificated Notes and may be issued to subsequent holders upon request subject, in each case, to provision of such information as may be required to comply with applicable anti-money laundering and similar laws or regulations.

Except for Notes elected to be issued as Certificated Notes or in the limited circumstances described below, owners of beneficial interests in the Global Notes will not be entitled to have Notes registered in their names, will not receive or be entitled to receive definitive physical notes, and will not be considered "holders" of Notes under the Indenture or the Notes. If DTC notifies the Issuer that it is unwilling or unable to continue as depositary for Global Notes of any class or classes or ceases to be a "clearing agency" registered under the Exchange Act and a successor depositary or custodian is not appointed by the Issuer within ninety (90) calendar days after receiving such notice (a "***Depository Event***"), the Issuer will issue or cause to be issued, Certificated Notes in exchange for the applicable Global Notes to the beneficial owners of such Global Notes in the manner set forth in the Indenture. In addition, the owner of a beneficial interest in a Global Note will be entitled to receive a Certificated Note in exchange for such interest if an Event of Default has occurred and is continuing. In the event that Certificated Notes are not so issued to such beneficial owners of interests in Global Notes, the Issuer expressly acknowledges that such beneficial owners will be entitled to pursue any remedy that the holders of a Global Note would be entitled to pursue in accordance with the Indenture (but only to the extent of such beneficial owner's interest in the Global Note) as if Certificated Notes had been issued; *provided* that the Collateral Trustee will be entitled to rely upon any certificate of ownership provided by such beneficial owners and/or other forms of reasonable evidence of such ownership. In the event that Certificated Notes are issued in exchange for Global Notes as described above, the applicable Global Note will be surrendered to the Collateral Trustee by DTC and the Issuer will execute and the Collateral Trustee will authenticate and deliver an equal Aggregate Outstanding Amount of definitive physical Notes.

The Notes will be subject to certain restrictions on transfer set forth therein and in the Indenture and the Notes will bear the restrictive legend set forth under "*Notice to Investors and Transfer Restrictions*".

Book-Entry Procedures for the Global Notes

Upon issuance, each Global Note will be deposited with the Collateral Trustee as custodian for DTC and registered in the name of Cede & Co., as nominee of DTC. Ownership of beneficial interests in each Global Note will be limited to persons who have accounts with DTC, which are referred to herein as DTC participants, or persons who hold beneficial interests through DTC participants.

It is expected that under procedures established by DTC:

- upon deposit of each Global Note with DTC's custodian, DTC will credit portions of the principal amount of such Global Note to the accounts of the DTC participants designated by the Initial Purchaser; and

- ownership of beneficial interests in each Global Note will be shown on, and transfer of ownership of those interests will be effected only through, records maintained by DTC (with respect to interests of DTC participants) and the records of DTC participants (with respect to other owners of beneficial interests in the Global Note).

All interests in the Global Notes will be subject to the operations and procedures of DTC. The following summaries of those operations and procedures are provided solely for the convenience of investors. The operations and procedures of DTC are controlled by DTC and may be changed at any time. None of the Issuer, the Initial Purchaser, the Manager or the Collateral Trustee is responsible for those operations or procedures.

DTC has advised that it is:

- a limited purpose trust company organized under the laws of the State of New York;

- a "banking organization" within the meaning of the New York State Banking Law;

- a member of the Federal Reserve System;

- a "clearing corporation" within the meaning of the Uniform Commercial Code; and

- a "clearing agency" registered under Section 17A of the Exchange Act.

DTC was created to hold securities for its participants and to facilitate the clearance and settlement of securities transactions between its participants through electronic book-entry changes to the accounts of its participants. DTC's participants include securities brokers and dealers, including the Initial Purchaser, banks and trust companies, clearing corporations and other organizations. Indirect access to DTC's system is also available to others such as banks, brokers, dealers and trust companies; these indirect participants clear through or maintain a custodial relationship with a DTC participant, either directly or indirectly. Investors who are not DTC participants may beneficially own securities held by or on behalf of DTC only through DTC participants or indirect participants in DTC.

So long as DTC's nominee is the registered owner of a Global Note, that nominee will be considered the sole owner or holder of the Notes represented by that Global Note for all purposes under the Indenture.

Except as otherwise provided in the Indenture, owners of beneficial interests in a Global Note:

- will not be entitled to have Notes represented by the Global Note registered in their names;

- will not receive or be entitled to receive Certificated Notes; and

- will not be considered the owners or holders of the Notes under the Indenture for any purpose, including with respect to the giving of any direction, instruction or approval to the Collateral Trustee.

As a result, each investor who owns a beneficial interest in a Global Note must rely on the procedures of DTC to exercise any rights of a holder of Notes under the Indenture (and, if the investor is not a participant or an indirect participant in DTC, on the procedures of the DTC participant through which the investor owns its interest).

Payments of principal, premium (if any) and interest with respect to the Notes represented by a Global Note will be made by the paying agent to DTC's nominee as the registered holder of the Global Note. None of the Issuer, the Initial Purchaser, the Manager or the Collateral Trustee will have any responsibility or liability for the payment of amounts to owners of beneficial interests in a Global Note, for any aspect of the records relating to or payments made on account of those interests by DTC, or for maintaining, supervising or reviewing any records of DTC relating to those interests.

Payments by participants and indirect participants in DTC to the owners of beneficial interests in a Global Note will be governed by standing instructions and customary industry practice and will be the responsibility of those participants or indirect participants and DTC.

Transfers between participants in DTC will be effected under DTC's procedures and will be settled in same-day funds.

Description of the Subordinated Notes

The following summary, together with the preceding summary of certain principal terms of the Indenture, describes certain provisions of the Subordinated Notes, but does not purport to be complete and is subject to, and qualified in its entirety by reference to, the provisions of the Indenture.

Status and Ranking

The Subordinated Notes will be unsecured, subordinated, non-recourse obligations issued by the Issuer under the Indenture. The Subordinated Notes will be fully subordinated to the Secured Debt, the Liquidity Loan Facility and to the payment of all other amounts payable in accordance with the Priority of Payments. In addition, distributions on the Class II Subordinated Notes will be subordinated to distributions on the Class I Subordinated Notes until such time as the Class I Subordinated Notes have received distributions equal to the initial par amount thereof, as set forth in the Priority of Payments. Thereafter, distributions on the Class I Subordinated Notes will be subordinated to distributions on the Class II Subordinated Notes until such time as the Class II Subordinated Notes have received distributions equal to the initial par amount thereof, as set forth in the Priority of Payments. Thereafter, distributions will be made on the Class I Subordinated Notes and the Class II Subordinated Notes on a *pari passu* basis.

The Subordinated Notes will not be secured by the Assets or any pledge of the Assets but, under the terms of the Indenture, the Collateral Trustee will pay to the holders of the Subordinated Notes amounts available pursuant to the Priority of Payments. To the extent that following realization of the Assets, these amounts are insufficient to repay the principal amount of the Subordinated Notes or to make distributions thereon, no other funds will be available to make such payments.

Distributions on the Subordinated Notes

The Subordinated Notes will not bear a stated rate of interest or have a principal entitlement or preferred return.

Following the Fund Liquidation Date, the Manager may retain in the Collection Account the Clawback Amount. See "*Summary of Terms—Payments on the Debt—Reserves for Clawback Amounts*".

On the Final Maturity Date of the Subordinated Notes, the Collateral Trustee will pay the net proceeds from the liquidation of the Assets and all available cash (but only after the payment of (or establishment of a reserve for) all Administrative Expenses (in the same manner and order of priority in the definition thereof), Manager Fees, interest and principal on the Secured Debt, and amounts due under the Liquidity Loan Facility) to the holders of the Subordinated Notes in final payment of such Subordinated Notes, unless such Subordinated Notes were previously redeemed or repaid prior thereto as described herein. To the extent funds are available for such purpose under the Indenture as described above, payments will be made to the holders of the Subordinated Notes on each Payment Date, or in connection with any optional or mandatory redemption of the Subordinated Notes as set forth below. The redemption amount paid to the Subordinated Notes on their Final Maturity Date or on any optional or mandatory redemption will exclude any amount required to establish adequate reserves necessary to meet any and all contingent, unliquidated liabilities or obligations of the Issuer.

Voting

Holders of the Subordinate Notes will only have voting or consent rights as expressly set forth in the Indenture or the other Transaction Documents, as described herein. *See* "*—The Indenture*" and "*Security for the Debt—Voting Rights*". A Majority of the Class II Subordinated Notes will be able to direct an Optional Redemption or Tax Redemption as described herein and the Class I Subordinated Notes will have no consent or voting rights in respect

thereof. See "—*Optional Redemption and Tax Redemption*". Except as expressly indicated to the contrary, the Subordinated Notes shall vote as a single class Notes.

No Gross Up

If the Issuer is required to deduct or withhold any tax imposed on payments under the Debt by law, then the Issuer will deduct or withhold such amounts and remit such amounts to the relevant tax authorities and the Issuer will not be obligated to pay any additional amounts in respect of such withholding or deduction.

DESCRIPTION OF THE CREDIT AGREEMENT

This description of the Credit Agreement does not purport to be complete and is subject to, and is qualified in its entirety by reference to, the provisions of the Credit Agreement. When reference is made herein to particular provisions of, or terms used in, the Credit Agreement and the other agreements referred to herein, such reference is to the actual document, copies of which are available from the Issuer. For the avoidance of doubt, the Class A Loans are not being offered pursuant to this Offering Memorandum and the descriptions of the Class A Loans and the Credit Agreement included herein are for informational purposes only.

It is anticipated that on the Closing Date, the Issuer will enter into the Credit Agreement pursuant to which the Class A Lenders will agree to lend the Class A Loans to the Issuer. On the Closing Date, the Issuer will pay to each Class A Lender a transaction fee and all expenses in accordance with the Fee Letter.

The Class A Loans will be denominated in U.S. dollars.

The Class A Lenders will not be obligated to make any loan unless the Class A Loans have received, on or prior to the Closing Date, the applicable ratings specified in the Terms Table and the Notes described herein have been issued.

Maturity

The Class A Loans under the Credit Agreement will be drawn in full on the Closing Date and are scheduled to mature on the date specified in the Terms Table and any outstanding Class A Loans under the Credit Agreement must be repaid on or prior to such final maturity date.

No Conversion of Class A Loans

The Class A Lenders may not convert or exchange any portion of the Class A Loans into Notes.

Additional Borrowings

On any Business Day, the Borrower may, in connection with an issuance of additional Notes pursuant to the Indenture, borrow under Additional Loans. Such Additional Loans shall be subject to the conditions set forth in the Indenture, and may only be borrowed (i) if such conditions have been met and (ii) if the making of such Additional Loans and the principal amount thereof is specified in a Conforming Amendment to the Credit Agreement.

Prepayments and Optional Prepayment

The Class A Loans may be repaid, in whole or in part, on any Payment Date to the extent payments are either required or permitted pursuant to the Priority of Payments or enforcement provisions of the Indenture. The Class A Loans may also be prepaid on any Redemption Date in connection with Optional Redemption (including without limitation a Refinancing) or a Tax Redemption under the Indenture.

Interest

Interest due and payable on the unpaid principal amount of the Class A Loans Outstanding under the Credit Agreement will be determined as described under "*Description of the Debt—Interest on the Debt*."

Status and Security

The Class A Loans are secured by a lien on the Assets pursuant to the Indenture. The Class A Loans will rank *pari passu* with the Class A Notes with respect to principal and interest (and senior in right of payment to all other Debt).

Events of Default

The Credit Agreement will have the same events of default as set forth in the Indenture. The only remedies the Class A Lenders are entitled to enforce under the Credit Agreement are those granted to them as holders of Secured Debt under the Indenture. The Class A Lenders will face the same limitations on direct enforcement under the Credit Agreement as holders of Debt face under the Indenture, including limitations on liquidation of collateral.

Representations, Warranties and Covenants

The Credit Agreement will contain similar representations, warranties and covenants to those set forth in the Indenture.

Assignments, Participations and Transfers

Subject to certain restrictions, the Credit Agreement provides for assignments of, and participations in, the respective rights and obligations of the Class A Loans and advances made thereunder. Such assignments must be in minimum amounts specified in the Credit Agreement, to persons meeting certain eligibility criteria and will require the assignee to enter into an assignment and assumption agreement.

Amendments

Subject to certain exceptions, the Credit Agreement may be amended, waived, discharged or terminated only with the consent of the Issuer (in its capacity as borrower thereunder) and a Majority of the Class A Lenders thereunder. Certain waivers of or amendments to the Credit Agreement will require 100% of the Aggregate Outstanding Amount of Class A Loans, and, generally, a Class A Lender's commitment under the Credit Agreement cannot be increased without the consent of such Class A Lender.

One or more amendments to the Credit Agreement may be made pursuant to the terms thereof in order to (x) make corresponding changes to the Credit Agreement to reflect any changes to the Indenture effected by a supplemental indenture or (y) to remove conflicts or inconsistencies between the Credit Agreement and the Indenture as determined by the Manager (each such amendment, a "**Conforming Credit Agreement Amendment**"). No consent of the Class A Lenders (or any other Person) will be required in connection with a Conforming Credit Agreement Amendment to the Credit Agreement other than to the extent required in the Indenture.

In addition, any amendment to the Credit Agreement (other than a Conforming Credit Agreement Amendment) that has a material adverse effect on any Class of Debt shall (x) except as set forth in clause (y), require the consent of a Majority of such Class of Debt and (y) if such amendment has a material adverse effect on any Class of Debt and is an amendment of the type listed under any clause of "*Description of the Debt—The Indenture—Modification of Indenture—With the Consent of Holders*" of the Indenture requiring the consent of 100% of the Holders of such Class, require consent of 100% of such Holders.

Neither the Collateral Trustee nor the Loan Agent shall be obligated to enter into any amendment or supplement to the Credit Agreement that, as determined by it, adversely affects its duties, obligations, liabilities or protections thereunder.

Governing Law

The Credit Agreement will be governed by, and construed in accordance with, the laws of the State of New York.

SECURITY FOR THE DEBT

General

The Issuer will grant a security interest in (i) the Portfolio Assets and distributions received by the Issuer with respect to the Portfolio Assets, (ii) certain contractual rights of the Issuer and (iii) the Accounts ((i), (ii) and (iii) collectively, the "***Assets***"), to the Collateral Trustee for the benefit of the Holders of the Secured Debt, the Collateral Trustee, the Liquidity Lenders and the other secured parties; *provided* that such grant will not include (i) the U.S.$250 transaction fee paid to the Issuer in consideration of the issuance of the Notes and incurrence of the Class A Loans, (ii) the proceeds of the issuance and allotment of the Issuer's ordinary shares and (iii) any account in the Cayman Islands maintained in respect of the funds referred to in items (i) and (ii) above (and any amounts credited thereto and any interest thereon). The Accounts will be pledged to the Collateral Trustee and in connection therewith will be subject to the Securities Account Control Agreement. The Issuer's investments in the Portfolio Assets will be made and managed in accordance with the Management Deed. See "*The Manager*" and "*The Management Deed*".

The Fund Manager has general discretion over the management of the underlying assets of the applicable Portfolio Asset. The governing documents of the Fund will evidence the rights, interests, obligations and commitments of the applicable investors in the Fund, including the Issuer. The Issuer will make a capital commitment to the Fund and from such capital commitment, will make capital contributions from time to time as capital is "called" or "drawn down" by the Fund Manager.

Additional Investor Materials will be made available by Coller in a data room to prospective investors upon request. Such Investor Materials should be read in conjunction with this Offering Memorandum. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager (in such capacity) or the Issuer is responsible for, or is making any representation to you concerning the accuracy or completeness of such Investor Materials. Investors should be aware that the Investor Materials may contain errors or omissions, including with respect to amounts, maturities and other information. None of the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager (in such capacity) or the Issuer (i) participated in the preparation of any Investor Materials, (ii) has made a due diligence inquiry, or assumes any obligation, as to the accuracy or completeness of the information contained in any Investor Materials and (iii) shall have any responsibility whatsoever for the contents of any Investor Materials. Accordingly, no representations, warranties or undertakings (express or implied) are made and no responsibility is accepted by the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, any of their respective agents or affiliates, nor the Manager (in such capacity) as to the accuracy, completeness or timeliness of the information contained in the Investor Materials. Investors will be required to represent and confirm that they have completed their own investigation in relation to the Fund and the Fund Portfolio Investments.

This Offering Memorandum provides only limited information with respect to the Fund and the Fund Portfolio Investments. Payments to Holders of the Debt will depend on the performance of the Fund and the Fund Portfolio Investments and therefore investors should obtain and evaluate information concerning the Fund as if they were investing in the Fund directly, notwithstanding that the structural features of the Notes will cause the amount and timing of payments on the Notes to differ from distributions from the LP Interest. An investor in the Notes should obtain and evaluate the same information concerning the Fund as it would obtain and evaluate if it were investing directly in the Fund, and, based upon such information, should make an independent investment decision regarding the Fund. None of the Issuer, the Initial Purchaser, the Administrator, the Collateral Trustee, the Collateral Administrator, the Loan Agent, any of their respective agents or affiliates, nor the Manager (in such capacity) assume any responsibility for the accuracy or completeness of any information considered by a purchaser of the Notes in making its investment decision in connection therewith. See "*Risk Factors—Risks Relating to the Assets—Nature of the Assets; Exposure to Risks of the Fund*".

Investors should be aware that an investment in the Notes has a different risk profile than a direct investment in the Fund and, as such, an investment in the Notes is not equivalent to an investment in the Fund. See "*Risk Factors—Risks Relating to the Assets—An Investment in the Notes has a Different Risk Profile than a Direct Investment in the Fund*".

The Fund and the LP Interest

Summary of Terms of the Fund and the LP Interest

The following is a brief summary of the principal terms of the Fund and the LP Interest. Such summary is qualified in its entirety by reference to the more detailed information contained in the Investor Materials.

Fund Structure: ..... The Fund is structured as one or more Guernsey limited partnerships (the "***Fund Vehicles***").

Other parallel vehicles, feeder vehicles and/or other alternative investment vehicles may be established to meet legal, tax, regulatory and/or other requirements of investors.

Each Fund Vehicle will, subject to legal, tax, regulatory or other considerations, invest and divest on a pro-rata basis with the other Fund Vehicles.

Fund General Partner:..... Coller International General Partner VIII, L.P., a Guernsey limited partnership.

Fund Manager: ..... Coller Investment Management Limited, a limited company registered in Guernsey, as "alternative investment fund manager" ("***AIFM***") for the purposes of the European Union Alternative Investment Fund Managers Directive (2011/61/EU) (the "***AIFM Directive***"). The Fund Manager will carry out all activities that constitute portfolio management and risk management on behalf of the Fund Vehicles. The Fund Manager is licensed and regulated by the Guernsey Financial Services Commission.

Fund Investment Adviser: ..... Coller Capital Limited, a limited company, registered in England and authorized and regulated by the UK Financial Conduct Authority, to serve as investment advisor pursuant to an investment advisory agreement.

Target Fund Size: ..... U.S.$9 billion.

Coller Commitment:..... The Fund General Partner has agreed to commit an aggregate amount equal to a minimum of 1% of capital commitments made by investors to the Fund (the "***Coller Commitment***").

Limited Partnership Interests: ..... The Fund will issue series A limited partnership interests ("***Series A Interests***") and series B limited partnership interests ("***Series B Interests***"). Series A Interests and Series B Interests will bear different Management Charges and Carried Interest.

The Issuer will subscribe for Series B Interests.

Currency: ..... The reference currency of the Fund will be U.S. Dollars.

Investment Policy: ..... The Fund will seek to achieve long-term capital appreciation through investing primarily, either directly or indirectly, in privately negotiated investments acquired in the secondary market ("***Secondaries***"). The Fund may also, subject to the limitations set out below, make primary investments in new funds, participate in private placements by public or private companies and purchase shares in public companies.

Diversification and other Investment Restrictions: ..... No more than 7.5% of the aggregate of the capital commitments of investors and the capital commitment of Coller ("***Total Capital Commitments***") may be invested, at any given time, in any single portfolio company other than an investment fund.

No more than 50% of Total Capital Commitments may be invested, at any given time, in investment funds managed by the same manager unless such manager is organized for the main purpose of investments in Secondaries.

No more than 10% of Total Capital Commitments may be invested in primary investments in new funds which are not connected to Secondaries investments.

No more than 10% of Total Capital Commitments may be invested in real property, US real estate investment trusts, US real estate development companies or investment funds whose primary objective is to invest in US real estate, US real estate investment trusts or US real estate development companies.

No more than 20% of Total Capital Commitments may be invested in a single investment fund (other than any investment fund organized in connection with the acquisition of a portfolio comprising at least 15 underlying companies at the time of acquisition by the Fund).

No investments may be made in options, futures or derivatives provided that the Fund General Partner may, but is not obliged to, invest in options, futures or derivatives in connection with hedging transactions for bona fide hedging and other risk management purposes.

For these purposes the term "invested" includes amounts committed, but not yet funded, in respect of a commitment to an investment fund.

Prior to the Final Closing Date of the Fund, the restrictions set out above which are determined by reference to a percentage of Total Capital Commitments will be determined on the basis that Total Capital Commitments are the higher of: (i) U.S.$9 billion; and (ii) aggregate Total Capital Commitments at the relevant time.

Successor Fund: ..... Until the earlier of: (i) the end of the Investment Period; and (ii) the date on which 75% of Total Capital Commitments are invested or committed for investment or used for expenses and liabilities of the Fund, including the Management Charge (such earlier date being the date on which the Fund is "***Substantially Invested***"), no Secondaries investment will be made by any pooled investment vehicle managed by the Fund Manager or its affiliates with substantially the same investment objectives and strategies as the Fund (a "***Successor Fund***").

If a Successor Fund makes a Secondaries investment prior to the end of the Investment Period, then unless approved otherwise by the Advisory Committee, the Fund and the Successor Fund shall invest in each such Secondaries investment on a pro rata basis to their respective capital commitments, with the investments made by the Fund being on a no less favourable basis than equivalent investments made by the Successor Fund, until the Fund is fully invested.

Investment Period:..... The "***Investment Period***" commenced on April 18, 2019.

The Investment Period will end on the earliest to occur of: (i) April 18, 2025; (ii) the date on which 120% of Total Capital Commitments have been invested or are otherwise committed for investment; (iii) certain circumstances as more particularly described under the sections headed "Key Person Event", "Change of Control", "Fault Based Triggers" and "No Fault Triggers" below; and (iv) such date as may be determined by the Fund General Partner in its sole discretion. Following the end of the Investment Period, the Fund General Partner shall only be entitled to draw down Total Capital Commitments to (a) pay expenses and liabilities of the Fund Vehicles, including the Management Charge, (b) fund the exercise price of warrants, options or comparable securities acquired by the Fund prior to the termination of the Investment Period, (c) discharge any obligations of the Fund incurred prior to the termination of the Investment Period, including amounts committed, as evidenced by a written contract, letter of intent or heads of agreement, for making investments or meeting capital calls with respect thereto or (d) fund follow-on investments (up to a limit of 20% of Total Capital Commitments).

Reinvestment:..... To the extent that any distributable proceeds arise in respect of any investment of the Fund within 18 months of the acquisition of such investment, then the Fund General Partner may determine that a portion of such proceeds up to the original acquisition cost of the relevant investment will be retained by the Fund and used for any purpose for which a capital call may be made or, if distributed to investors, will increase such investors' unused capital commitments.

Change of Control: ..... In the event that at any time prior to the Fund being Substantially Invested, the Coller executives do not control (either directly or indirectly) either the economic interests or the voting interests in the Fund General Partner or the Fund Manager (such occurrence, a "***Change of Control***"), then investors representing more than 50% of Total Capital Commitments may elect to terminate the Investment Period within 12 months of notification of the occurrence of such Change of Control.

Key Person Event: ..... In the event that (each, a "***Key Person Event***"):

(a) at any time up to and including the second anniversary of the commencement of the Investment Period, investors representing at least 85% of Total Capital Commitments serve notice of their election to suspend the Investment Period on the Fund General Partner;

(b) at any time following the second anniversary of the commencement of the Investment Period, investors representing at least 75% of Total Capital Commitments serve notice of their election to suspend the Investment Period on the Fund General Partner;

(c) at any time prior to the Fund being Substantially Invested, Jeremy Coller ceases to devote the substantial majority of his business time each year to the Coller Activities, or

(d) at any time prior to the Fund becoming Substantially Invested, less than 60% of the Key Persons devote the substantial majority of their business time (assessed on an annual basis) to Coller Activities.

then the obligations of investors to make capital contributions shall be limited to capital contributions for the purposes of discharging any existing obligations of the Fund, funding follow-on investments and paying expenses and liabilities of the Fund, including the Management Charge (a "***Suspension Period***").

A Suspension Period arising under paragraphs (a) or (b) above will come to an end if investors representing more than 50% of Total Capital Commitments vote to reinstate the Investment Period.

A Suspension Period arising under paragraph (c) above will come to an end if a replacement for Jeremy Coller is appointed within 180 days of the occurrence of such a Key Person Event. Investors representing more than 50% of Total Capital Commitments may elect to end the Investment Period within 12 months of the occurrence of such a Key Person Event.

A Suspension Period arising under paragraph (d) above will come to an end if at least 60% of the Key Persons are devoting the substantial majority of their business time (assessed on an annual basis) to Coller Activities provided that, if such Suspension Period has not ended after a continuous period of 12 months the Investment Period shall terminate.

For the purposes of this section "***Coller Activities***" means the affairs of Coller and the existing funds and investment vehicles managed by the Fund Manager, the Fund and any Successor Fund.

"***Key Person***" means each of those persons who on April 18, 2019: (a) was a member of the Executive Committee of the Coller Group, a voting member of the Investment Committee of the Coller Group and/or an Investment Partner within the Coller Group; (b) was aged 55 or younger; and (c) had been a Partner within the Coller Group since July 1, 2016, or in each case any person nominated by the Fund General Partner as a replacement for such Key Person and approved as such by consent of investors representing more than 50% of Total Capital Commitments.

Fault Based Triggers:..... Within 90 days of the Fund General Partner notifying the investors of the occurrence of a Fund Cause Event, investors representing more than 50% of Total Capital Commitments may elect in writing to terminate the Investment Period. A Suspension Period will begin on the date on which the Fund Cause Event occurs and continue until the earliest to occur of: (i) the date on which Investment Period is terminated; (ii) the end of the 90 day period following the date on which investors are notified of the Fund Cause Event; and (iii) the date on which investors representing more than 50% of Total Capital Commitments elect to resume the Investment Period.

Within 90 days of the Fund General Partner notifying the investors of the occurrence of a Fund Cause Event, investors representing more than 50% of Total Capital Commitments may elect in writing to terminate the Fund by written notice of such election to the Fund General Partner and/or, with the approval of investors representing more than 50% of Total Capital Commitments, elect in writing to continue the Fund by appointing a replacement general partner.

For the purposes of this section:

"***Fund Cause Event***" means a final determination by a court of competent jurisdiction that the Fund General Partner or the Fund Manager has committed: (a) fraud; (b) wilful misconduct; or (c) a material breach of any of its obligations under the Underlying Fund Documents or the investment management agreement, as applicable, and which breach, if capable of remedy, is not remedied within 30 days of delivery of written notice of such breach to the Fund General Partner by the Advisory Committee, in each case which results in the Fund suffering a material adverse effect.

No Fault Triggers: ..... The Investment Period will be suspended and a Suspension Period will commence if at any time following the second anniversary of the commencement of the Investment Period, investors representing at least 75% of Total Capital Commitments elect to suspend the Investment Period by written notice of such election to the Fund General Partner. Any such Suspension Period will come to an end if investors representing more than 50% of Total Capital Commitments vote to reinstate the Investment Period.

The Fund will be subject to early termination in certain circumstances, as set out in the Underlying Fund Documents, including if, at any time following the April 18, 2022, investors representing at least 75% of Total Capital Commitments elect to terminate the Fund by written notice of such election to the Fund General Partner (a "***No Fault Divorce***"), provided that, with the approval of investors representing at least 75% of Total Capital Commitments in circumstances where the Fund would otherwise be terminated following a No Fault Divorce, the investors may elect to continue the Fund by appointing a replacement general partner.

In the event of a No Fault Divorce, the Fund General Partner shall be entitled to a payment, as compensation for loss of office, equal to its Management Charge for the immediately preceding annual accounting period.

Replacement of the Fund General Partner: ..... In the event that the Fund General Partner is replaced as the general partner of the Fund, the Fund General Partner shall continue to receive distributions as though it were not removed as general partner of the Fund with respect to investments made or committed to be made prior to its replacement.

In addition, the Fund General Partner may cease to make further capital contributions in respect of the Coller Commitment.

Term: ..... Unless terminated early as provided above in the sections headed "No Fault Triggers" and "Fault Based Triggers", the Fund will terminate on April 18, 2030. The Fund's life may be extended by the Fund General Partner for one or more periods with the consent of investors representing more than 50% of Total Capital Commitments. If at any time prior to April 18, 2030 all investments have been disposed of by the Fund, the Fund will be dissolved.

Following termination, the Fund General Partner will serve as liquidating trustee in respect of the Fund and its assets. Any investments held by the Fund at the time of its dissolution will either be sold or distributed in specie. Where distributions in specie are made, investors may be bound by any agreements previously entered into by the Fund

relating to such portfolio companies. In its side letter, the Issuer will agree that the Fund General Partner shall arrange the sale of any securities that would otherwise be distributed in-kind to the Issuer on the Issuer's behalf, and the Issuer will be deemed to have received such in-kind distribution for all the purposes of the Underlying Fund Documents. See "*Risk Factors—Relating to the Assets—Distributions In-Kind*".

Closings:..... Capital Commitments to the Fund may be accepted at one or more closings at the discretion of the Fund General Partner at any time prior to the final closing date of the Fund (the "***Final Closing Date***"), which date will be no later than six months after April 18, 2020 (the date falling six months after April 18, 2020 being the "***Long Stop Date***") except in relation to any subscription agreements (or their equivalent in respect of any of the other fund vehicles) that are submitted by prospective investors whose commercial due diligence with respect to the Fund is, in the reasonable determination of the Fund General Partner, substantially complete by the Long Stop Date and who are identified to the Advisory Committee on or shortly after such date, which may be accepted by the Fund General Partner no later than three months following the Long Stop Date.

Drawdowns: ..... All drawdowns will be made in U.S. Dollars. Capital calls will be made from investors from time to time pro rata to their capital commitments, to fund investments and to meet expenses and other liabilities of the Fund, including the Management Charge. Investors will receive a minimum of 10 business days' prior notice for each drawdown (or a shorter notice period of no less than 5 business days if the Fund General Partner considers it to be in the best interests of the Fund).

Defaulting Partners: ..... In the event that any investor fails to comply with a capital call as and when due (a "***Investor Default***"), then the Fund General Partner shall be entitled, inter alia, to assess interest on amounts owed from the day following the Investor Default until the date of payment at a rate equal to the higher of: (i) 7%; and (ii) 3% over the prime base rate as reported in the Wall Street Journal from time to time per annum. In addition, if such investor does not remedy the Investor Default and/or pay any interest due in respect of such Investor Default within 10 business days' of a notice from the Fund General Partner requiring it to do so, the Fund General Partner shall be entitled to forfeit such investor's entire interest in the Fund.

Borrowings and Guarantees:..... The Fund may enter into borrowings or otherwise incur indebtedness for any purpose provided that the aggregate of all such indebtedness shall not at any time, without the approval of the Advisory Committee, exceed an amount equal to 50% of Total Capital Commitments.

The Fund may also make, issue, accept, endorse and execute promissory notes, drafts, bills of exchange, guarantees and other instruments and evidences of indebtedness in connection with such borrowings.

Management Charge:..... The Fund General Partner will be entitled to receive an annual management charge (the "***Management Charge***") payable semi-annually in advance with the amount of such Management Charge to be calculated separately in respect of investors holding each series of interest as follows:

<u>Investors holding Series A Interests</u>

(a) from April 18, 2019 until 30 days after the earlier of: (i) the end of the Investment Period; and (ii) the date on which a management fee starts to accrue in respect of a Successor Fund) (the "***Step Down Date***"), 1.50% p.a. of the capital commitments of such investors;

(b) from the Step Down Date until the first anniversary of the Step Down Date (the "***Anniversary***"), 1.25% p.a. of the aggregate amounts that have been invested, or committed for investment (as evidenced by a written contract, letter of intent or heads of agreement) ("***Invested Capital***") that are attributable to such investors;

(c) from the Anniversary until the date which is 18 months after the Anniversary, 1% p.a. of the Invested Capital attributable to such investors;

(d) thereafter until April 18, 2033 (the "***Initial Term Date***"), for each successive twelve month period, such amount as is equal to 90% of the Management Charge payable for the previous 12 month period, subject to a minimum amount of 0.50% p.a. of the Invested Capital attributable to such investors; and

(e) after the Initial Term Date, zero.

Investors holding Series B Interests

(a) from April 18, 2019 until the Step Down Date, 0.85% p.a. of the capital commitments of such investors;

(b) from the Step Down Date until the percentage per annum payable by investors holding Series A Interests in respect of the Management Charge is reduced below 0.85% p.a., 0.85% p.a. of the Invested Capital attributable to such investors; and

(c) thereafter, the same percentage per annum of the Invested Capital attributable to such investors as that paid by investors holding Series A Interests.

For these purposes, "***Invested Capital***" shall be, at all times following the Anniversary, an amount determined as at the Anniversary and shall not, at any time, exceed an amount equal to 100% of the Total Capital Commitments.

Distributions: ..... Proceeds from investments of the Fund which are available for distribution to investors will be allocated initially between investors holding Series A Interests and investors holding Series B Interests on a pro rata basis by reference to their respective aggregate capital commitments and, thereafter, will be distributed in the following order of priority, to be applied separately in respect of investors holding each series of interests:

(a) first, 100% to investors holding the relevant series of interests, pro rata to their respective capital commitments, until they have received amounts equal to: (i) their aggregate capital contributions drawn down and not repaid; and (ii) a return of 7% per annum, calculated on a daily weighted average basis and compounded annually on the excess of all capital contributions made by such investors over all distributions that

have been made to such investors (such return being the "***Preferred Return***");

(b) second, 100% to the Fund General Partner, until it has received distributions in aggregate equal to 10% (in respect of investors holding Series A Interests) or 20% (in respect of investors holding Series B Interests), as applicable, of the sum of: (i) the distributions that have been received by the investors holding the relevant series of interests by way of Preferred Return pursuant to the preceding paragraph (a)(ii); and (ii) distributions that have been received by the Fund General Partner in respect of such investors pursuant to this paragraph (b); and

(c) thereafter, 10% to the Fund General Partner and 90% to the investors (in respect of investors holding Series A Interests), pro rata to their respective capital commitments, or 20% to the Fund General Partner and 80% to the investors (in respect of investors holding Series B Interests), pro rata to their respective capital commitments, as applicable,

amounts distributed to the Fund General Partner pursuant to paragraphs (b) and (c) above being the "***Carried Interest***".

Distributions will normally be made in cash but investments which are quoted on any recognized stock exchange and are not subject to trading restrictions may, at the discretion of the Fund General Partner, be distributed in specie. Distributions in specie will be valued at the average closing middle market quotation for the 5 trading days ending with and including the date of determination, or, if there is not such price, at their fair market value, as determined by the Fund General Partner.

GP Clawback: ..... Upon the liquidation of the Fund, the Fund General Partner will be obliged to return to the Fund for distribution to Investors, a sum equal to the greater of: (i) the amount necessary to ensure that investors have been repaid their capital contributions and have received the Preferred Return; and (ii) the amount by which the aggregate amounts previously distributed to the Fund General Partner by way of Carried Interest exceed 10% (in respect of investors holding Series A Interests) or 20% (in respect of investors holding Series B Interests) of the net profits of the Fund that are attributable to such investors, provided that such obligation of the Fund General Partner shall not exceed the aggregate amounts received by the Fund General Partner by way of Carried Interest, less any tax paid or payable thereon.

Investor Clawback:..... Amounts distributed to investors may be recalled by the Fund General Partner prior to the termination of the Fund, if distributions to the Fund from a portfolio company are recalled by such portfolio company, provided that no investor will be required to recontribute amounts in respect of a portfolio company that exceed the distributions that it has received in respect of such portfolio company.

In addition, investors may be required to return distributions during the term of the Fund and for a period of 2 years thereafter for the purpose of meeting the Fund's indemnification obligations or for any other liabilities (including future or contingent obligations) of the Fund, provided that no investor shall be required to return in aggregate an amount which exceeds the lower of: (i) the aggregate amount of distributions it has received less any amount of distributable proceeds

which have been retained by the Fund General Partner and not distributed to such investor; and (ii) 25% of its capital commitment.

Offering and Organizational Expenses: ..... The Fund will bear all offering and organizational expenses relating to its establishment and the offering of interests, including out-of-pocket expenses of any placement agents, up to a maximum amount, exclusive of any applicable taxes, of 0.1% of the Total Capital Commitments. To the extent that such expenses exceed this amount, they will be for the account of the Fund General Partner. Fees charged by any placement agents will be for the account of the Fund General Partner and not the Fund. Additional organizational expenses unique to one or more feeder fund vehicles may be charged to the relevant feeder fund vehicle.

Operating Expenses:..... The Fund General Partner and the Fund Manager will be responsible, without further recourse to the Fund, for all of their own operating costs and overhead expenses, including compensation of their employees and directors. The Fund will bear all fees, costs and expenses relating to: (i) its operation and administration; and (ii) its investment related activities. Such fees, costs and expenses will include, but shall not be limited to, reasonable travel costs; fees, costs and expenses of professional and other advisers and service providers; costs and expenses related to Investor reporting and meetings, including Advisory Committee meetings; tax and regulatory compliance costs in respect of the Fund and its investments; fees and expenses of finders and brokers and all broken deal costs.

Transaction and Other Fees: ..... The Fund General Partner and its affiliates may charge and receive transaction fees, financial advisory fees and other similar fees in connection with the Fund's participation in investments and break-up fees in connection with prospective investments that do not proceed to completion ("***Transaction Fees***"). 100% of all such Transaction Fees shall be offset against the Management Charge.

Co-investment Opportunities: ..... The Fund General Partner may, in its sole discretion, offer investors, including strategic partners, the opportunity to co-invest with the Fund in certain investments to be made by the Fund.

Restrictions on Transfer: ..... The Fund General Partner shall not resign from the Fund or transfer its interest as general partner to any person other than an affiliate without the consent of investors representing at least two-thirds of Total Capital Commitments.

Withdrawal: ..... In certain very limited circumstances as set out in the Underlying Fund Documents, the Fund General Partner may permit an investor to withdraw from the Fund, or require that an investor withdraw from the Fund in order to protect the interests of the Fund or other investors.

Excused Investments: ..... An investor may be excused, in whole or in part, from paying a capital call in respect of a particular investment to be made directly by the Fund Vehicles: (i) where such investor reasonably determines that its participation in such investment, would result in a violation of any law or governmental rule or regulation to which such investor is subject, would cause such investor to become subject to and be required to comply with any law, regulation, order or decree, other than tax laws, whether governmental, supranational, national, federal, state, municipal or local, to which it was not previously subject, or would cause such

investor to be in breach of a binding investment prohibition, instruction or policy agreed to by the Fund General Partner prior to such investor's admission to the Fund, the result of which violation, compliance or breach would be materially adverse to such investor; (ii) such investor notifies the Fund General Partner of its intention to elect to be so excused within 5 days of delivery of the capital call notice; and (iii) such investor provides the Fund General Partner with a legal opinion reasonably satisfactory to the Fund General Partner to the effect that the investment of the proceeds of the capital call in such investment would have such result for the investor.

Advisory Committee:..... An advisory committee will be established comprising representatives of investors selected by the Fund General Partner (the "***Advisory Committee***"). The role of the Advisory Committee will be to consult with the Fund Manager regarding the Fund's investment strategy and its progress, to resolve any potential conflicts of interest between the Fund and the Fund Manager and its affiliates and to perform such other functions as are specified in the Underlying Fund Documents. Valuations of the Fund will be provided to the Advisory Committee for review. The Advisory Committee's recommendations will be non-binding and the Advisory Committee will not participate in the management or control of the Fund. However, the Fund Manager will notify the investors if it intends to take any action contrary to an Advisory Committee decision.

Side Letters: ..... In the event that the Fund General Partner enters into any side letter or similar agreement (a "***Fund Side Letter***") with any investor relating to such Investor's interest in the Fund, the Fund General Partner shall as soon as reasonably practicable after the final closing date of the Fund, provide each other investor with a copy of any provisions of such Fund Side Letter which have the effect of establishing rights and benefits in respect of the Fund which benefit the relevant investor in a manner which is in any material respect more favorable than the rights and benefits granted to other investors.

Subject to the satisfaction of any conditions upon which the rights or benefits set out in the relevant Fund Side Letter provisions are expressed to be granted, including where the particular Fund Side Letter provision is conditional upon a certain minimum capital commitment size being made on or before a particular date, any investor who meets such conditions and who so requests in writing to the Fund General Partner within 20 business days of being provided with a copy of such provision, shall receive the benefit of an equivalent provision.

Fund Side Letter provisions relating to the Advisory Committee and rights relating thereto, transfers of interests, excuse, representations and warranties relating to a particular point in time, the use and disclosure of any confidential information, and any other Fund Side Letter provisions that relate to an investor's particular legal, regulatory, ERISA or other relevant status or to statutory or regulatory provisions applicable to such Investor, or to administrative, operational or written policy requirements applicable to and/or binding upon such investor, will not be subject to the provisions of the preceding paragraph.

Indemnification:..... The Fund General Partner, members of the Advisory Committee, any Investor entitled to appoint a member of the Advisory Committee, and of their respective affiliates and each of their respective officers,

directors, partners and employees (together, "***Fund Indemnified Persons***") shall have no responsibility or liability for any loss incurred by the Fund or any of the investors howsoever arising in connection with their activities on behalf of, or their association with, the Fund provided that such exculpation shall not apply: (a) in respect of any Fund Indemnified Person other than a member of the Advisory Committee or any investor entitled to appoint a member of the Advisory Committee, where there has been a final determination by a court of competent jurisdiction that such loss resulted from such person's: (i) bad faith, fraud, wilful misconduct, gross negligence or material breach of the Underlying Fund Documents; or (ii) material breach of applicable law which results in the Fund suffering a material adverse effect; and (b) in the case of any member of the Advisory Committee or any investor entitled to appoint a member of the Advisory Committee, where such Fund Indemnified Person has not acted in good faith.

The Fund shall indemnify and hold harmless each of the Fund Indemnified Persons from and against all claims, losses, damages or liabilities of any nature whatsoever, including legal fees and other costs and expenses incurred (together, the "***Claims***"), to which such Fund Indemnified Person may become subject by reason of such person being a Fund Indemnified Person or having undertaken any activities on behalf of or in connection with any investment, provided however that such Fund Indemnified Person will not be so indemnified: (a) in respect of any Fund Indemnified Person other than a member of the Advisory Committee or any investor entitled to appoint a member of the Advisory Committee, where there has been a final determination by a court of competent jurisdiction that such Claim resulted from such person's (i) bad faith, fraud, wilful misconduct, gross negligence or material breach of the Underlying Fund Documents or (ii) material breach of applicable law which results in the Fund suffering a material adverse effect; and (b) in the case of a member of the Advisory Committee or any investor entitled to appoint a member of the Advisory Committee, where such Fund Indemnified Person has not acted in good faith.

The Fund General Partner and its affiliates shall be entitled to rely on the advice of reputable legal counsel or other professional advisers or independent experts selected by the Fund General Partner or its affiliates applying reasonable care, and any act or omission of the Fund General Partner or its affiliates in reliance upon and in accordance with such advice shall in no event subject any such Fund Indemnified Person to liability to the Fund or any investor.

Reporting; Accounts and Meetings: Each investor will receive: (i) annual audited financial accounts (prepared as at December 31) in accordance with U.S. GAAP within 180 days after the end of the relevant year together with a report setting out a summary and valuation of each investment, the status of the Fund's operations and any material transactions that have taken place between the Fund or a portfolio company and the Fund General Partner and its affiliates; and (ii) unaudited quarterly reports within 60 days of the end of the relevant quarter providing a capital account balance together with sufficient data to inform Investors as to the current financial status of the Fund and its investments.

Meetings open to all investors will be held at least annually to discuss the Fund's investment activities.

Governing Law & Jurisdiction:..... The rights, obligations and relationships of the investors will be governed by the laws of Guernsey and the courts of England and Wales shall have exclusive jurisdiction to settle any claims, actions or disputes arising in connection with, or relating to, the Fund or the acquisition of interests in the Fund.

The Fund Manager, General Partner and Investment Adviser

Coller International General Partner VIII, L.P. (the "***Fund General Partner***") acts as general partner of, or in a similar capacity in respect of, the Fund Vehicles. The Fund Vehicles have appointed Coller Investment Management Limited (the "***Fund Manager***") as their investment manager and to serve as their AIFM for the purposes of the AIFM Directive. The Fund Manager will be responsible for performing all such functions that constitute: (a) portfolio management and risk management of the Fund Vehicles (being the investment management functions as defined in the AIFM Directive); (b) the function of marketing interests in the Fund Vehicles in the European Economic Area; and (c) such other functions or responsibilities (if any) as the Fund General Partner determines are appropriate to be carried out by the Manager, in each case in substitution for, and to the exclusion of, the Fund General Partner.

The Fund Manager will coordinate the investment process, including by arranging the execution of documents on behalf of the Fund Vehicles. If at any time the appointment of the Fund Manager terminates, the Fund General Partner will, on behalf of the Fund Vehicles, make such temporary arrangements for the discharge of the functions of investment manager as are necessary. The Fund Manager is licensed and regulated by the Guernsey Financial Services Commission.

The Fund Manager receives investment advice on a non-discretionary basis from Coller Capital Limited (the "***Fund Investment Adviser***"), an English limited company authorized and regulated by the UK Financial Conduct Authority. The Fund Investment Adviser, in turn, receives non-discretionary sub-advisory services from Coller Capital, Inc., a New York corporation affiliated with the Fund Investment Adviser and registered as an investment adviser with the SEC. The Fund Investment Adviser is also supported by other affiliated entities and by external service providers. Members of the investment team will be acting on behalf of the Fund Investment Adviser or its affiliated entities.

Capital Contributions and Additional Payment

Following the Issuer's admission to the Fund, the Issuer will, on the Closing Date, be required to make a capital contribution to the Fund (the "***Initial Capital Contribution***") equal to the aggregate amount of capital contributions that the Issuer would have been required to make had it been admitted to the Fund at the initial closing of the Fund (less the aggregate distributions that the Issuer would have received had it been admitted to the Fund at the initial closing of the Fund), and any such capital contribution so made by the Issuer will reduce the undrawn Capital Commitment of the Issuer to the Fund. In addition, the Issuer will be required to pay to the Fund Manager (as agent for the Fund) an additional sum (the "***Additional Payment***") that is equivalent to interest on such capital contribution at a rate equal to the higher of: (i) 7% *per annum*; and (ii) 3% *per annum* over the prime base rate as reported in the Wall Street Journal (U.S. Eastern Edition), in each case, compounded annually and accruing from the date(s) on which the Issuer would have been required to make such capital contribution(s) had the Issuer been admitted to the Fund at the initial closing of the Fund up to the due date for payment of such amount by the Issuer (or the actual date of payment, if later). Such Additional Payment shall be payable in accordance with the Underlying Fund Documents and any such payment so made by the Issuer will not reduce the undrawn Capital Commitment of the Issuer to the Fund.

Following the issuance or incurrence, as applicable, of additional debt as described under "*Description of the Debt—The Indenture—Additional Issuance*", the Issuer will use the net proceeds from the issuance and incurrence of such additional debt to make a capital contribution to the Fund (a "***Subsequent Capital Contribution***") equal to the aggregate amount of additional capital contributions that the Issuer would have been required to make had it made the related additional capital commitment to the Fund at the initial closing of the Fund (less the aggregate distributions that the Issuer would have received had it made the related additional capital commitment to the Fund at the initial closing of the Fund), and any such capital contribution so made by the Issuer will reduce the undrawn Capital Commitment of the Issuer to the Fund (and a portion of such undrawn Capital Commitment will be prefunded as

described below under "—*Cash Investment*"). In addition, the Issuer will be required to pay to the Fund Manager (as agent for the Fund) an Additional Payment in respect of such Subsequent Capital Contribution.

Cash Investment

After making the Initial Capital Contribution, and paying any Additional Payment in respect thereof, the Issuer will use the remaining net proceeds from the issuance of the Notes and incurrence of the Class A Loans to prefund a portion of its Capital Commitment to the Fund (such prefunded amount, the "***Initial Cash Investment***") pursuant to the terms of a cash investment agreement, dated as of the Closing Date, among the Issuer, the Fund and the Fund Manager (the "***Cash Investment Agreement***"). After making any Subsequent Capital Contribution, and paying any Additional Payment in respect thereof, the Issuer will use the remaining net proceeds from the issuance or incurrence, as applicable, of additional debt to prefund a portion of its Capital Commitment to the Fund (such prefunded amount, a "***Further Cash Investment***") pursuant to the Cash Investment Agreement.

Pursuant to the Underlying Fund Documents, the Fund may designate certain distributions in respect of the Issuer's LP Interest as a Recyclable Distribution (as defined in the Underlying Fund Documents). On any date on which the Fund is required to make a payment to the Issuer in respect of a Recyclable Distribution, the Fund Manager may elect, by notice to the Issuer, to retain an amount of such Recyclable Distribution (an "***Additional Cash Investment***") and credit it to the Issuer (which, together with the Initial Cash Investment and any Further Cash Investments, shall be referred to as the "***Cash Investment***" and, the outstanding amount of the Cash Investment on any date of determination, as adjusted in accordance with the Cash Investment Agreement, the "***Cash Investment Amount***"); *provided* that, the Additional Cash Investment shall not cause the Cash Investment Amount to exceed the sum of the Initial Cash Investment and any Further Cash Investment and the Fund shall distribute any excess amount to the Issuer and identify such amounts to the Manager and the Collateral Trustee. Capital Calls made by the Fund with respect to the Issuer will be satisfied through a corresponding reduction of the Cash Investment Amount until the Cash Investment Amount is reduced to zero as described under "*Summary of Terms—Funding of Capital Calls*."

The Fund may use the Cash Investment Amount for any purpose permitted by the Underlying Fund Documents, including to make investments or to pay fees and expenses. As consideration for such prefunding, the Fund will make a quarterly payment to the Issuer in an amount equal to the sum for each day of such Interest Accrual Period of the product of (x) the outstanding Cash Investment Amount on such day, multiplied by (y) two and one-quarter percent (2.25%), divided by (z) 360 (each, a "***Cash Investment Payment***").

Except as described in the next sentence, the Cash Investment Amount plus any outstanding but unpaid Cash Investment Payments (collectively, the "***Cash Investment Repayment Amount***") shall become payable by the Fund to the Issuer on the earliest of (a) the second business day prior to the Final Maturity Date of the Class A Debt and the Class B Notes to the extent that the Secured Debt (i) remains Outstanding and (ii) would not otherwise be redeemed in full in accordance with the Indenture and (b) the Final Maturity Date of the Subordinated Notes. The outstanding Cash Investment Amount will not be accelerated or become payable upon the acceleration of the Debt following an Event of Default. The Fund may elect to prepay the Cash Investment Repayment Amount in whole or in part, subject to payment to the Issuer of an amount equal to (A) with respect to any amount voluntarily repaid in accordance with the Cash Investment Agreement (a "***Voluntary Cash Investment Prepayment Amount***") made prior to the fifth anniversary of the Closing Date, the product of (a) the sum of (x) the relevant Voluntary Cash Investment Prepayment Amount minus (y) any portion of such Voluntary Cash Investment Prepayment Amount that comprises an Additional Cash Investment and (b) if such Voluntary Cash Investment Prepayment Amount is paid (x) prior to six months before the fifth anniversary of the Closing Date, 1.125% and (y) within six months before the fifth anniversary of the Closing Date, the product of 2.25% and n/360, where "n" is the number of days between the date on which such Voluntary Cash Investment Prepayment Amount is paid and the fifth anniversary of the Closing Date and (B) with respect to any Voluntary Cash Investment Prepayment made on or after the fifth anniversary of the Closing Date, zero (the "***Cash Investment Prepayment Fee***"); *provided that* the Cash Investment Prepayment Fee will not apply to any Cash Investment Repayment Amount that comprises a Recyclable Distribution.

The Fund may, at its election, terminate the Cash Investment Agreement by notifying the Issuer in writing no later than 10 business days prior to the proposed termination date subject to satisfaction of the conditions set forth in the Cash Investment Agreement, including that the Cash Investment Amount will be zero on the date of such termination.

Intercreditor Agreement

The following description is a summary of certain provisions contained in the Intercreditor Agreement (as defined below). It does not restate the Intercreditor Agreement in its entirety and the Intercreditor Agreement, and not the description that follows, defines certain rights (and restrictions on entitlement) of the Issuer. A copy of the Intercreditor Agreement will be made available by Coller in a data room to prospective investors upon request.

The obligation of the Fund to make Cash Investment Payments and the Cash Investment Repayment Amount (together with the Cash Investment Prepayment Fee, if any) will be subject to an amended and restated intercreditor agreement, dated as of the Closing Date (the "***Intercreditor Agreement***"), among the Issuer, the Fund and certain parties connected to the Fund, including those entities listed in the following paragraph as debtors (together with the Fund, the "***Debtors***"), the lenders under a capital call facility (the "***Senior Facility***") with respect to the Fund (the "***Senior Lenders***") and Wells Fargo Bank, N.A., London Branch as security agent (the "***Security Agent***") and senior agent (the "***Senior Agent***"). The Intercreditor Agreement is governed by English law and sets out, among other things, the relative ranking of certain indebtedness of the Debtors and of certain security granted by the Debtors, when payments can be made in respect of debt of the Debtors and when Enforcement Action (as defined in the Intercreditor Agreement) can be taken in respect of that indebtedness.

Ranking and Priority

Priority of Debt

The Intercreditor Agreement provides that the liabilities owed by the Debtors under the Senior Facility, the counterparties under certain hedging agreements (the "***Hedge Counterparties***") and the Issuer shall rank in right and priority of payment in the following order and are postponed and subordinated to any prior ranking liabilities as follows:

- *first*, the liabilities owed under the Senior Facility ("***Senior Facility Liabilities***") and the liabilities owed to the Hedge Counterparties not exceeding the higher of $400,000,000 and 20% of the revolving facility commitments under the Senior Facility ("***Senior Hedging Liabilities Capped Amount***") (to the extent so designated by that Hedge Counterparty and a Debtor, the "***Senior Hedging Liabilities***"), *pari passu* and without any preference between them;

- *second*, the liabilities owed to any Hedge Counterparty which is a Senior Lender or an affiliate of a Senior Lender, and which are not Senior Hedging Liabilities (the "***Junior Hedging (Lender) Liabilities***");

- *third,* the liabilities owed by the Debtors to the Issuer under or in connection with the Cash Investment and other finance documents entered into thereunder (the "***Junior Cash Investment Liabilities***"); and

- *fourth*, the liabilities owed to any Hedge Counterparty which is not a Senior Lender or an affiliate of a Senior Lender, and which are not Senior Hedging Liabilities (the "***Junior Hedging (Non-Lender) Liabilities***").

Priority of Security

The security secures the relevant liabilities (but only to the extent that such security is expressed to secure the relevant liabilities) in the following order:

- *first*, the Senior Facility Liabilities and the Senior Hedging Liabilities (collectively, the "***Senior Liabilities***"), *pari passu* and without preference among them;

- *second*, the Junior Hedging (Lender) Liabilities;

- *third,* the Junior Cash Investment Liabilities; and

- *fourth,* the Junior Hedging (Non-Lender) Liabilities.

Permitted Payments

Subject to the Intercreditor Agreement, the Debtors may make payments of the Senior Facility Liabilities at any time (such payments, the "***Permitted Senior Payments***").

Prior to the first date on which all Senior Liabilities have been fully and finally discharged (the "***Senior Discharge Date***"), the Debtors may make payment in respect of the Junior Cash Investment Liabilities:

(a) if:

(i) the payment is of cash pay interest which is then due and payable in accordance with the Cash Investment Agreement; and

(ii) no event of default under the Senior Facility ("***Senior Event of Default***") is continuing in respect of which the Senior Agent has served notice on the Issuer;

(b) in respect of payments other than those referred to in clause (a) above and which are not to be funded (directly or indirectly) with the proceeds of any utilization of the Senior Facility, if:

(i) the outstanding principal amount of the Cash Investment is equal to or less than the lower of:

(A) 20% of the commitments under the Senior Facility (but excluding swingline facility commitments) ("***Senior Commitments***") at that time; and

(B) $350,000,000;

(ii) the payment is made in accordance with the Cash Investment Agreement;

(iii) no Senior Event of Default or default under the Senior Facility relating to non-payment, insolvency proceedings, repudiation and failure to pay amounts due under any outstanding capital call notice is continuing or would arise as a consequence of the relevant payment; and

(iv) no "Senior Mandatory Prepayment Event" under the Senior Facility has occurred or would occur as a consequence of such payment (unless the relevant amount which is or would be required to be repaid or prepaid pursuant to such "Senior Mandatory Prepayment Event" has been repaid or prepaid in full);

(c) in respect of payments other than those referred to in clause (a) above and which are to be funded (directly or indirectly) from the proceeds of any utilization of the Senior Facility, if:

(i) the outstanding principal amount of the Cash Investment is equal to or less than the lower of:

(A) 20% of the Senior Commitments at that time; and

(B) $350,000,000;

(ii) the aggregate amount outstanding in respect of such utilizations (including the proposed utilization) would not exceed the lower of:

(A) $50,000,000; and

(B) 5% of the Senior Commitments at that time;

(iii) the payment is made in accordance with the Cash Investment Agreement;

(iv) the payment is not made within three months of the date by which all amounts are scheduled to have been repaid in full under the Senior Facility;

(v) no default under the Senior Facility is continuing or would arise as a consequence of the relevant payment; and

(vi) no "Senior Mandatory Prepayment Event" under the Senior Facility has occurred or would occur as a consequence of such payment (unless the relevant amount which is or would be required to be repaid or prepaid pursuant to such "Senior Mandatory Prepayment Event" has been repaid or prepaid in full);

(d) if the payment is made pursuant to the conversion, set-off, or other similar exchange or application of financial indebtedness incurred by a Debtor under the Cash Investment Agreement into a funded capital commitment in the Fund (the "***Drawdown/Conversion Mechanic***"); or

(e) if the Senior Agent gives prior consent to that payment being made.

On or after the Senior Discharge Date but prior to the first date on which all Junior Hedging (Lender) Liabilities have been fully and finally discharged (the "***Junior Hedging (Lender) Discharge Date***"), the Debtors may make payment in respect of the Junior Cash Investment Liabilities:

(a) if:

(i) the payment is made accordance with the Cash Investment Agreement; and

(ii) no default or early termination event is continuing in respect of any Junior Hedging (Lender) Liabilities in respect of which any Hedge Counterparty which has Junior Hedging (Lender) Liabilities has served notice on the Junior Lender;

(b) if the payment is made pursuant to the Drawdown/Conversion Mechanic; or

(c) if a majority of the creditors in respect of the Junior Hedging (Lender) Liabilities give prior consent to that payment being made.

On or after the Junior Hedging (Lender) Discharge Date, any Debtor may make payments directly or indirectly in respect of the Junior Cash Investment Liabilities in accordance with the Cash Investment Agreement.

Enforcement

The Issuer will not be entitled to take any Enforcement Action in respect of any of the Junior Cash Investment Liabilities at any time prior to the Junior Hedging (Lender) Discharge Date except in connection with certain insolvency events.

In connection with an Enforcement Action, the Senior Agent, the Hedge Counterparties or the Issuer, as applicable, may authorize the Security Agent to issue capital calls to discharge the Senior Hedging Liabilities, the Junior Hedging (Lender) Liabilities or the Junior Cash Investment Liabilities, as the case may be. See "*Risk Factors—Risks Relating to the Assets—Cash Investment*".

Funding of Capital Calls

From time to time, as a limited partner of the Fund, the Issuer will be required to satisfy Capital Calls under the terms of the related Underlying Fund Documents. The Issuer is expected to satisfy such Capital Calls in the following order: (i) *first,* by set-off, on a dollar-for-dollar basis, against the Fund's obligation to repay the Cash Investment to the Issuer and the corresponding reduction of the Cash Investment Amount until the Cash Investment Amount is reduced to zero; (ii) *second,* by the application of funds on deposit in the Collection Account; (iii) *third,* by the application of funds on deposit in the Reserve Account; and (iv) *fourth,* by the application of proceeds of Liquidity Loans. The Capital Commitment of the Issuer to the Fund is expected to be greater than the proceeds of the Notes and the incurrence of the Class A Loans.

Voting Rights

The Issuer will deliver to the Collateral Trustee, which will deliver to each Holder and the Manager, as promptly as practicable (but in any event within five (5) Business Days), copies of any notices it receives in respect of the Portfolio Assets that relate to the exercise of any Voting Rights and shall upon request of any Holder or the Manager

request any notice or information in respect of the Portfolio Assets that the Issuer as the holder of the Portfolio Assets has the right to request, subject to any confidentiality requirements.

The Issuer (and to the extent such rights are exercised by the Collateral Trustee on behalf of the Issuer, the Collateral Trustee) or the Manager on its behalf (i) shall exercise any Voting Rights in respect of the Portfolio Assets on such dates and in such manner as directed in writing by the Directing Party and (ii) shall not exercise (or cause the exercise of) any Voting Rights other than as directed by the Directing Party. If the Directing Party does not direct the Issuer as to how to exercise any Voting Right on or before the date on which an action is required to be taken in connection with such Voting Right, the Issuer (and to the extent such rights are exercised by the Collateral Trustee on behalf of the Issuer, the Collateral Trustee) or the Manager on its behalf shall take no action in connection with such Voting Right. For the avoidance of doubt, the Collateral Trustee shall be under no duty to take or omit to take any action (and shall incur no liability for failure to take such action) with respect to the Voting Rights except in accordance with written instructions provided by the Directing Party.

"***Directing Party***": With respect to (a) any Voting Right (Majority), a Majority of the Holders of all Classes of Debt (voting as a single Class), (b) any Voting Right (Supermajority), a Supermajority of the Holders of all Classes of Debt (voting as a single Class), (c) any Voting Right (75%), the Holders of more than seventy-five percent (75%) of the Aggregate Outstanding Amount of the Debt and (d) any other Voting Right, a Majority of the Subordinated Notes, in each case disregarding any Manager Debt.

Accounts

The Issuer has established or will establish with the Bank (in such capacity, the "***Custodian***") (i) an account in which all distributions and dividends from the Fund and proceeds from draws on the Liquidity Loan Facility are held and from which contributions to the Fund are made (the "***Collection Account***"), (ii) an account to which all Portfolio Assets will be credited (the "***Custodial Account***"), (iii) an account in which certain amounts will be deposited in accordance with the Priority of Payments (the "***Reserve Account***") and (iv) an account to which funds will be paid from the Collection Account and the Reserve Account for further application, including on Payment Dates in accordance with the Priority of Payments (the "***Payment Account***", and together with the Collection Account, the Custodial Account and the Reserve Account, the "***Accounts***"). Each Account shall be established and maintained at a Custodian that is an institution that meets the Rating Criteria (each, an "***Eligible Institution***"); *provided* that if any such institution is downgraded such that it ceases to satisfy the Rating Criteria, the Issuer shall use commercially reasonable efforts to identify another institution that satisfies the Rating Criteria, as recommended by the Manager in accordance with the Management Deed, and establish new accounts equivalent to the Accounts with such replacement Eligible Institution (which shall thereafter be a Custodian under the Indenture) within sixty (60) calendar days of the occurrence of such downgrade.

Collection Account

Promptly upon receipt thereof, the Collateral Trustee will deposit any amounts received by the Issuer on the Portfolio Assets (including any Cash Investment Payments, the Cash Investment Repayment Amount and the Cash Investment Prepayment Fee) in the Collection Account. The only permitted withdrawal from or application of funds on deposit in or otherwise credited to the Collection Account shall be to (i) as instructed by the Manager, fund Capital Calls and any Clawback Amount and (ii) make transfers to the Payment Account to enable the Issuer to make payments contemplated to be made from the Payment Account; *provided* that with respect to clause (i), withdrawals shall only be permitted to the extent that the Cash Investment Amount is insufficient to fund any such Capital Calls. On any Business Day, the Manager, on behalf of the Issuer, may withdraw funds from the Collection Account and apply such funds to the payment of the amount of any Capital Call or Clawback Amount. Amounts on deposit in the Collection Account shall be invested in Eligible Investments selected by the Manager and earnings from all such investments shall be deposited in the Collection Account.

Custodial Account

All Portfolio Assets shall be credited to the Custodial Account. Amounts on deposit in the Custodial Account shall remain uninvested.

Reserve Account

On each Payment Date, amounts available pursuant to the Priority of Payments will be deposited into the Reserve Account in an amount equal to the Target Balance. The only permitted withdrawal from or application of funds on deposit in or otherwise credited to the Reserve Account shall be to (i) as instructed by the Manager, fund Capital Calls and any Clawback Amount and (ii) make transfers to the Payment Account to enable the Issuer to make payments contemplated to be made from the Payment Account; *provided* that with respect to clause (i), withdrawals shall only be permitted to the extent that the Cash Investment Amount is insufficient to fund any such Capital Calls. On any Business Day, the Manager, on behalf of the Issuer, may withdraw funds from the Reserve Account and apply such funds to the payment of the amount of any Capital Call or Clawback Amount. Amounts on deposit in the Reserve Account shall be invested in Eligible Investments selected by the Manager and earnings from all such investments shall be deposited in the Collection Account.

Payment Account

Not later than two (2) Business Days preceding each Payment Date and each Refinancing Date, the Issuer (or the Manager on its behalf) shall (i) redeem Eligible Investments and deposit the proceeds thereof into the Payment Account, and/or (ii) borrow under the Liquidity Loan Facility and deposit the proceeds thereof into the Payment Account, and/or (iii) cause readily available funds on deposit in the Collection Account received during the related Collection Period or any prior Collection Period (other than an amount, as determined in good faith by the Manager, necessary to fund future Capital Calls or the Clawback Amount as described under "—*Collection Account*" above) to be transferred to the Payment Account; and/or (4) cause readily available funds in the Reserve Account to be transferred to the Payment Account (such amounts, "***Available Proceeds***") to make payments on such Payment Date in accordance with the Priority of Payments. The only permitted withdrawal from or application of funds on deposit in, or otherwise to the credit of, the Payment Account shall be to pay amounts on the Secured Debt and the Liquidity Loan Facility and distributions on the Subordinated Notes, each in accordance with their respective terms and the Indenture, to pay Administrative Expenses, Manager Fees and other amounts specified herein and to make transfers to the Collection Account and the Reserve Account as contemplated in the Priority of Payments. Amounts in the Payment Account shall remain uninvested.

Collateral Assumptions

In connection with all calculations required to be made pursuant to the Indenture with respect to the Portfolio Assets and on any other amounts that may be received for deposit in the Collection Account, the provisions set forth below will be applied.

(a) Unless otherwise specified, on any date of determination, the components of the Borrowing Base for any Payment Date will each be calculated as of the Cut-Off Date for such Payment Date.

(b) On any date of calculation, the Borrowing Base and the Loan-to-Value Ratio will be calculated by the Collateral Administrator based on the latest reported quarterly net asset valuation for the LP Interest, as published by the Fund General Partner or Fund Manager.

(c) On any date of calculation, the Borrowing Base determined in accordance with clause (b) above will be adjusted by the Collateral Administrator to take into account (i) the aggregate amount of capital funded by the Issuer to the Fund between the date as of which the reported net asset value for the LP Interest was calculated up to such date of calculation, (ii) the aggregate of all distributions made in respect of the LP Interest between the date as of which the reported net asset value for the LP Interest was calculated up to such date of calculation and (iii) sales of the LP Interest between the date as of which the reported net asset value of the LP Interest was calculated up to such date of calculation.

(d) References in or related to the Priority of Payments to calculations made on a "pro forma basis" shall mean such calculations after giving effect to all payments, in accordance with the Priority of Payments described herein, that precede (in priority of payment) or include the clause in which such calculation is made.

(e) All calculations, unless otherwise set forth herein or the context otherwise requires, shall be rounded to the nearest ten-thousandth if expressed as a percentage, and to the nearest one-hundredth if expressed otherwise.

(f) Notwithstanding any other provision of the Indenture to the contrary, all monetary calculations under the Indenture shall be in Dollars.

(g) Any reference in the Indenture to an amount of the Collateral Trustee's, Collateral Administrator's or Loan Agent's fees calculated with respect to a period at a per annum rate shall be calculated on the basis of a three hundred sixty (360) day year comprised of twelve (12) thirty (30)-day months.

(h) To the extent of any ambiguity in the interpretation of any definition or term contained in the Indenture or to the extent more than one methodology can be used to make any of the determinations or calculations set forth therein, the Issuer or the Collateral Administrator shall be entitled request direction from the Manager as to the interpretation and/or methodology to be used, and the Issuer or the Collateral Administrator, as the case may be, shall follow such direction, and together with the Collateral Trustee, shall be entitled to conclusively rely thereon without any responsibility or liability therefor.

THE LIQUIDITY LOAN FACILITY

On the Closing Date, the Issuer will enter into the Liquidity Loan Facility with the Liquidity Lenders. Pursuant to the Liquidity Loan Facility, the Liquidity Lenders will be committed to make Liquidity Loans to the Issuer on a revolving basis, subject to compliance with certain borrowing conditions, up to the Commitment Amount at such time. On the Closing Date, the Issuer will pay the Liquidity Lenders an upfront fee in accordance with the Fee Letter on the Closing Date.

The principal amount of each Liquidity Loan is payable on each Payment Date and Redemption Date in accordance with the Priority of Payments. The Liquidity Loans may be repaid without penalty or premium on any Payment Date and may be borrowed and reborrowed by the Issuer, subject to satisfaction of certain borrowing conditions. The Liquidity Loan Facility and the Debt will be secured by the Assets.

The Issuer may permanently reduce the Commitment Amount by prior written notice to the Liquidity Agent. The Issuer may, with the prior written consent of the Liquidity Agent (which consent may be conditioned on one or more conditions precedent in its sole discretion), increase the Commitment Amount by (i) agreeing with one or more of the existing Liquidity Lenders to increase their respective commitment amounts, (ii) adding additional Liquidity Lenders or (iii) a combination of (i) and (ii), in each case which shall increase the Commitment Amount by the amount of the commitment amount of each such existing or additional Liquidity Lender. The Commitment Amount shall not exceed the Maximum Commitment Amount.

The initial maturity date for the Liquidity Loan Facility shall be the sixth (6th) anniversary of the Closing Date (the "***Facility Maturity Date***"). The Facility Maturity Date may be extended one additional year at the election of the Issuer by providing notice of such election to the Liquidity Agent and the Liquidity Lenders no less than one month prior to the Facility Maturity Date. The Issuer may also request that the Facility Maturity Date be further extended for a mutually agreed upon time by providing notice to the Liquidity Agent and each Liquidity Lender at least 7 months prior to the Facility Maturity Date and each Liquidity Lender will notify the Issuer, the Liquidity Agent and each other Liquidity Lender within one month following receipt of request whether to accept the proposal. Upon receipt of such notice, the Liquidity Agent and the Liquidity Lenders that accept such proposal will negotiate the proposal with the Issuer in good faith. If no Liquidity Lenders accept the proposal, such request will be deemed rejected. Each extension of the Facility Maturity Date is subject to receipt by the Liquidity Lenders from the Issuer of an extension fee in accordance with the Fee Letter.

The proceeds of any Liquidity Loan shall be applied by the Issuer solely to (a) fund Capital Calls and (ii) pay obligations due under clauses (1), (2), (3) and (4) of the Ordinary Priority of Payments.

Accrued and unpaid interest on a Liquidity Loan is payable in arrears (a) on each Payment Date, (b) on each Redemption Date, (c) on each date that principal of a Liquidity Loan is repaid (on the principal amount repaid) and (d) on the Maturity Date, and will be computed on the basis of a three hundred and sixty (360)-day year, multiplied by the actual number of days elapsed during the Interest Accrual Period. Liquidity Loans will bear interest at a rate per annum equal to the London Interbank Offered Rate ("***LIBOR***"), adjusted for reserve requirements, plus 2.00%. The default rate shall equal the lesser of LIBOR plus three percent (3.00%) and the highest rate of interest (if any) permitted by applicable law.

The Issuer shall pay to the Liquidity Lenders a fee (the "***Commitment Fee***") in arrears on each Payment Date in accordance with the Fee Letter.

The obligation of the Liquidity Lenders to fund a Liquidity Loan shall be subject only to the conditions precedent that on the date of such Liquidity Loan, (i) the Liquidity Loan has been duly requested in compliance with the terms of the Liquidity Loan Facility, (ii) the representations and warranties of the Issuer in the Liquidity Loan Facility are true and correct in all material respects on and as of such date (except to the extent such representations or warranties relate solely to an earlier date), (iii) no Liquidity Loan Event of Default or default under the Liquidity Loan Facility and no Event of Default or specified default under the Indenture has occurred and is continuing and (iv) all obligations that were payable by the Issuer to the Liquidity Lenders in accordance with the Priority of Payments as of the immediately preceding Payment Date have been paid in full.

For so long as any Notes are Outstanding, a Liquidity Lender that ceases to satisfy the Rating Criteria will become a "***Downgraded Lender***". A Downgraded Lender will be required to, at its sole cost and expense, use commercially reasonable efforts to assign all of its rights and obligations under the Liquidity Loan Facility to another entity that satisfies the Rating Criteria and that is approved by the Issuer to the extent Issuer consent is required within thirty (30) calendar days of such Liquidity Lender becoming a Downgraded Lender. Within 30 days of any Liquidity Lender becoming a Downgraded Lender, the remaining commitment of such Downgraded Lender will be drawn and placed into an escrow account at a third party institution. Any subsequent draws under the Liquidity Loan Facility to be funded by such Downgraded Lender will be funded from such escrow account.

Each Liquidity Lender may upon notice to the Issuer (with a copy to the Manager) assign to a single bank or other entity all (but not less than all) of its rights and obligations under the Liquidity Loan Facility; *provided* that (i) such single bank or other entity is a Qualified Purchaser and satisfies the Rating Criteria at the time of such assignment, (ii) the Issuer has consented to such assignment (unless a Liquidity Loan Event of Default described in clauses (i) or (ii) of the definition thereof or an Event of Default described in clause (j) of the definition thereof has occurred and is then continuing), (iii) the Liquidity Agent has consented to such assignment if such assignment is to a Person who is not a Liquidity Lender or an Affiliate of a Liquidity Lender, or an entity that is engaged in making, purchasing, holding or otherwise investing in commercial loans and similar extensions of credit in the ordinary course of its business, that is administered or managed by a Liquidity Lender or an Affiliate of a Liquidity Lender, (iv) the Rating Condition is satisfied and (v) certain other requirements are met as further outlined in the Liquidity Loan Facility. Each Liquidity Lender also may sell participations to any Person or Persons in or to all or a portion of its rights and obligations under the Liquidity Loan Facility (including, without limitation, all or a portion of its commitment and the Liquidity Loans owing to it); *provided* that each such Person is a Qualified Purchaser and (i) such Liquidity Lender's obligations under the Liquidity Loan Facility (including its commitment to fund Liquidity Loans) shall remain unchanged, (ii) such Liquidity Lender remains solely responsible to the Issuer for the performance of such obligations, (iii) the Issuer and the Manager continue to deal solely and directly with such Liquidity Lender in connection with the Liquidity Lenders' rights and obligations under the Liquidity Loan Facility and (iv) the terms of such participation may provide the participants with the right to vote with respect to any amendment, waiver or consent in relation to the Liquidity Loan Facility.

It shall constitute an event of default under the Liquidity Loan Facility if any of the following shall occur ("***Liquidity Loan Event of Default***"):

(i) the Issuer fails to pay any interest on the Liquidity Loans or Commitment Fee or other Obligations (other than principal) payable pursuant to the Indenture in accordance with the Priority of Payments on any Payment Date or any other date when due and payable (other than a failure caused directly from a shortage of funds available to the Issuer due to an unexcused failure by the Liquidity Lenders to make a Liquidity Loan in compliance with the Liquidity Loan Facility) and such default continues for five (5) Business Days after the due date thereof, *provided* that, in the case of a default resulting from a failure to disburse due to an administrative error or omission by the Manager or the Collateral Trustee, such default will not be a Liquidity Loan Event of Default unless such failure continues for ten (10) Business Days after a trust officer of the Collateral Trustee receives written notice or has actual knowledge of such failure to pay (irrespective of whether the cause of such administrative error or omission has been determined);

(ii) the Issuer fails to pay any principal on the Liquidity Loans on the Maturity Date or any other date when due and payable under the Liquidity Loan Facility, *provided* that in the case of a default resulting from a failure to disburse due to an administrative error or omission by the Manager or the Collateral Trustee, such default will not be a Liquidity Loan Event of Default unless such failure continues for ten (10) Business Days after a trust officer of the Collateral Trustee receives written notice or has actual knowledge of such failure to pay (irrespective of whether the cause of such administrative error or omission has been determined);

(iii) except as otherwise provided in the definition of "Liquidity Loan Event of Default" in the Liquidity Loan Facility, a default in a material respect in the performance, or breach in a material respect, of any other covenant or agreement of the Issuer under the Liquidity Loan Facility or the failure of any representation or warranty of the Issuer made in the Liquidity Loan Facility or in any certificate or other writing delivered pursuant thereto or in connection therewith to be correct in each case in all material respects when the same will have been made, and the continuation of such default, breach or failure for a period of ninety (90) calendar days after notice to the Issuer by the Liquidity Agent or any Liquidity Lender, specifying such

default, breach or failure and requiring it to be remedied and stating that such notice is a "Notice of Default" under the Liquidity Loan Facility; or

(iv) the occurrence and continuance of any Event of Default whether or not the same has been waived in accordance with the Indenture by the Majority of the Controlling Class.

Upon the occurrence of a Liquidity Loan Event of Default, the Liquidity Agent at the direction of Liquidity Lenders holding 50% of the commitments may take any one or more of the following actions: (i) give notice of such occurrence or declaration of such Liquidity Loan Event of Default to the Issuer (with a copy to the Manager) (and the Issuer shall promptly forward a copy of such notice to the Rating Agency), (ii) demand that such Liquidity Loan Event of Default be remedied, (iii) declare the interest and principal amount of the Liquidity Loans to be immediately due and payable in full, and (iv) terminate the commitments under the Liquidity Loan Facility. Immediately upon a demand for payment of interest and principal or immediately upon the occurrence of a Redemption Date with respect to any Notes, (i) the obligation of the Liquidity Lenders to fund Liquidity Loans shall automatically terminate and the Commitment Amount shall be deemed to be zero, (ii) the Liquidity Loans, all accrued and unpaid interest thereon and all other amounts owing under the Liquidity Loan Facility shall immediately become due and payable, and (iii) the Liquidity Lenders may exercise any and all remedies and other rights provided under the Liquidity Loan Facility and any other Transaction Document.

"***Maturity Date***" means the earliest of (a) the Facility Maturity Date, (b) the date upon which the Liquidity Agent at the direction of the Required Lenders (as defined in the Liquidity Loan Facility) terminates the commitments of each Liquidity Lender under the Liquidity Loan Facility and declares the Obligations (as defined in the Liquidity Loan Facility) due and payable after the occurrence of a Liquidity Loan Event of Default and (c) the date of a Liquidation Event.

THE MANAGER

Coller Investment Management Limited is a limited company registered in Guernsey with registration number 29942 and with its registered office at Trafalgar Court, Les Banques, St Peter Port, Guernsey GY1 3QL and is an AIFM for the purposes of the AIFM Directive. The Manager is licensed and regulated by the Guernsey Financial Services Commission.

The Manager will provide administrative and reporting services to the Issuer under the Management Deed and will from time to time invest or reinvest amounts standing to the credit of the Issuer's Accounts in Eligible Investments. The Issuer has also authorized the Manager to engage with introducers in respect of certain of the Notes and will pay introducer fees to the Manager to pay to relevant introducers. As agent for the Issuer, the Manager does not exercise any control or discretion over the LP Interest, the Cash Investment or any activities of the Fund.

THE MANAGEMENT DEED

General Duties of the Manager

The Issuer will appoint Coller Investment Management Limited as the Manager pursuant to the terms of the Management Deed. The Manager will provide certain services and take certain actions on behalf of the Issuer as follows, to: (i) instruct the Collateral Trustee to transfer funds from the Accounts and apply such funds in accordance with the Indenture (including, without limitation, to the payment of any Capital Call), including, without limitation, by acquiring or investing in Eligible Investments; (ii) draw under the Liquidity Loan Facility Agreement in accordance with the terms and conditions thereof; (iii) coordinate with the Fund General Partner to satisfy Capital Calls and any other obligations of the Issuer as required under the Underlying Fund Documents; (iv) execute and deliver any notice to the Fund in accordance with the Cash Investment Agreement; (v) determine amounts to be held in the Collection Account from time to time to fund Capital Calls and meet other obligations of the Issuer in accordance with the Indenture and the Underlying Fund Documents, as applicable; (vi) instruct the Collateral Trustee to redeem the Secured Debt in accordance with the Indenture; (vii) take actions relating to LIBOR replacement in accordance with the Liquidity Loan Facility Agreement and other Transaction Documents; (viii) at its discretion, as required and/or upon request by relevant parties, as applicable, in each case pursuant to the terms of the relevant Transaction Documents, to execute and deliver any Issuer order, request, demand, authorization, direction, notice, consent, waiver or other action to be given or performed by the Issuer under the Transaction Documents; (ix) execute and provide direction, notice, consent, waiver or other action as requested by the Issuer in accordance with the Transaction Documents; (x) take such action on behalf of the Issuer as is reasonably necessary, or as reasonably requested by the Collateral Trustee or the Liquidity Agent in order to maintain the perfection and priority of the security interest of the Collateral Trustee in the Assets; (xi) upon receipt of notice of a rating downgrade with respect to the Custodian, promptly recommend to the Issuer another institution that satisfies the Rating Criteria and otherwise assist with replacing the Custodian and establishing and maintaining new accounts at such replacement Custodian; (xii) act as the commodity pool operator in respect of the Issuer, register and/or claim any exemptions under the U.S. Commodity Exchange Act, as amended, and the regulations promulgated thereunder, in respect of the Issuer, and take all such actions (including any filings) as the Manager deems necessary or appropriate in connection therewith; (xiii) receive notices, accountings, releases, statements and other reporting from the Fund Manager in connection with the Issuer as a limited partner in the Fund and maintain, safeguard and forward such materials to the relevant parties as specified in the Management Deed; (xiv) provide certain reporting services as specified in the Management Deed and coordinate with the Fund Manager, the Collateral Trustee and any other relevant parties in connection therewith; (xv) execute and deliver to the Collateral Trustee copies of all notices, statements, communications and instruments delivered or required to be delivered by the Manager to the Issuer pursuant to the terms hereof; and (xvi) provide such other services or assistance as may be agreed between the Issuer and the Manager from time to time.

The Manager will be required to perform its obligations under the Management Deed with reasonable care, using a degree of skill and attention no less than that which the Manager exercises with respect to other persons or entities for which the Manager is engaged in a similar capacity to perform comparable services, except as expressly provided otherwise in the Management Deed and/or applicable law (the "***Standard of Care***"); *provided* that, the Manager assumes no responsibility under the Management Deed other than to render in good faith the services called for in such deed, in accordance with the Standard of Care and will not be liable for any action or inaction of the Issuer or any other entity in following or declining to follow any determination, designation, recommendation or direction of the Manager.

Compensation of the Manager

As compensation for the performance of its obligations under the Management Deed, on each Payment Date the Manager will receive from the Issuer the Manager Fee (prorated for the related Interest Accrual Period) equal to 0.07% per annum calculated on the basis of a three hundred sixty (360)-day year comprised of twelve (12) thirty (30)-day months of the Aggregate Outstanding Amount of the Debt, calculated as of the Cut-Off Date preceding the Payment Date on which such fee is payable; *provided* that, the Manager Fee for each Payment Date will be adjusted as described below. The Manager Fee will be payable subordinated to the Secured Debt, as well as certain fees and expenses of the Issuer in accordance with the Priority of Payments.

With respect to any portion of the Manager Fee that has been deferred pursuant to the terms of the Indenture, interest shall accrue thereon at a rate equal to 4.0% *per annum* (the "***Deferred Fee Rate***"), calculated on the basis of a three hundred and sixty (360)-day year comprised of twelve (12) thirty (30)-day months, payable in accordance with the Priority of Payments.

The Manager will agree to waive its rights to any amount of Manager Fee in excess of the actual fees and expenses of the Manager for the relevant Interest Accrual Period; *provided* that, if the actual fees and expenses of the Manager for such Interest Accrual Period exceed the Manager Fee payable on the related Payment Date, then the payment of such excess amounts of fees and expenses will be deferred and paid on each following Payment Date until paid in full.

The Manager or its sub-services provider will be reimbursed by the Issuer for its costs and expenses incurred in the performance of its obligations under the Management Deed and other Transaction Documents.

Liability of the Manager

The Manager, its affiliates and their respective members, managers, partners, stockholders, officers, agents and employees (collectively, the "***Manager Parties***") will not be liable to the Issuer or any other Person for any losses, costs, liabilities or claims incurred by the Issuer as a result of the acts or omissions by the Manager Parties, including with respect to any transaction, under or in connection with the Manager's performance of its obligations under the Management Deed and other Transaction Documents or for any decrease in the value of the Assets, except for any losses, costs, liabilities or claims incurred by the Company by reason of (i) an act or omission by the Manager constituting bad faith, fraud, wilful misconduct gross negligence in the performance of, or reckless or intentional disregard with respect to, the duties of the Manager under the Management Deed, as found in a final non-appealable judgment by a court of competent jurisdiction; *provided* that a decline in the market value of any Asset will not, by itself, constitute negligence or gross negligence by the Manager or (ii) the breach by the Manager of certain representations in the Management Deed in respect of the Manager Information, which failure or breach materially and adversely affects the Issuer or the Holders of the Debt and the Manager fails to cure such breach within 30 days of the Manager's actual knowledge of such breach or receipt of written notice of such breach from the Issuer. In no event will any Manager Party be liable for any consequential (including loss of profit), indirect, special or punitive damages of any kind whatsoever regardless of whether such losses or damages are foreseeable and regardless of the form of action.

Subject to the above mentioned standard of conduct, the Manager Parties will be entitled to indemnification by the Issuer (i) in respect of, in connection with, or arising from the issuance of the transactions contemplated by the Management Deed or any other Transaction Document, and/or any acts or omissions of such Manager Party in the performance of the duties of the Manager under the Management Deed and the Indenture and (ii) in respect of any untrue statement of a material fact contained in this Offering Memorandum (including any amendment or supplement thereto) or any omission to state herein a material fact necessary to make the statements made herein, in the light of the circumstances under which they were made, not misleading, other than in relation to the information in the sections of this Offering Memorandum entitled "*Risk Factors—Conflicts of Interest—Conflicts of Interest Relating to the Manager*," "*The Manager*" and "*Security for the Debt—The Fund and the LP Interest—The Fund Manager, General Partner and Investment Adviser*," including the sub-headings thereunder (collectively, the "***Manager Information***").

Holders of Debt will not be third party beneficiaries of the Management Deed.

Resignation by Manager; Termination of the Management Deed

The Manager may resign upon 90 days' written notice to the Issuer (or such shorter notice as is acceptable to the Issuer); *provided* that such resignation will not become effective until a successor Manager has been appointed as described below. Notwithstanding anything to the contrary herein, the Manager will have the right to resign immediately without prior written notice to the Issuer upon the effectiveness of any material change in applicable law or regulations which renders the performance by the Manager of its duties under the Management Deed or under the Indenture to be a violation of such law or regulation regardless of whether a successor Manager has been appointed as described below.

The Manager may not be removed except for (i) the Manager ceasing to be appropriately licensed and regulated to carry out its duties under the Management Deed; (ii) the insolvency, dissolution or liquidation (other than for the

purposes of reconstruction or amalgamation) of the Manager; or (iii) the removal of Coller Investment Management Limited as the Fund Manager (each, a "***Cause Event***"). The Manager will notify the Company, the Collateral Trustee and the Holders of the Debt as promptly as practicable upon obtaining actual knowledge of the occurrence of a Cause Event; *provided* that, a Cause Event will be deemed to be cured if the Manager or the applicable Affiliate terminates the employment of the individual(s) who engaged in the conduct constituting such Cause Event and makes the Issuer whole for any actual financial loss incurred by it as a direct consequence of such conduct.

Upon the occurrence of a Cause Event, the Issuer, acting upon direction of at least a Supermajority of the Class A Debt, or if the Class A Debt is no longer Outstanding, a Supermajority of each Class that is Outstanding (voting separately), may terminate the Management Deed; *provided* that, notwithstanding the foregoing or anything to the contrary in this Deed, such removal will not become effective until a successor to the Manager is proposed as described below.

Appointment of Successor Manager; Successor Manager Requirements

Following the proposed resignation or removal of Coller (or its permitted assignee) as Manager, the Issuer, as directed by the Majority of the Class II Subordinated Notes, may then propose the appointment of a successor Manager. Such Person will be appointed as the successor Manager only if such proposal has been approved by a Majority of the Controlling Class in accordance with the Indenture and such Person has accepted and agreed to be bound by all the terms and provisions of the Management Deed and comply with the terms and provisions of other Transaction Documents as successor Manager.

Assignment of the Management Deed; Amendments

The Manager may not assign all or any portion of its rights, obligations and liabilities under the Management Deed without the prior written consent of the Issuer except to any of its affiliates at its discretion that (i) has the ability to professionally and competently perform duties similar to those imposed upon the Manager under the Management Deed, (ii) is legally qualified and has the capacity to act as Manager under the Management Deed, and (iii) immediately after the assignment, employs, or has access to the services of, principal personnel performing the duties required under the Management Deed who have skills and experience substantially commensurate with that of the individuals who would have performed such duties had the assignment not occurred

Notwithstanding anything to the contrary, the Manager consents to the terms of the Indenture relating to the assignment of the Management Deed and agrees to comply with the terms and conditions of the Indenture affecting the duties and functions that have been delegated to it under the Indenture subject to the terms of the Management Deed.

The Management Deed may not be modified or amended without the consent of each Class materially and adversely affected by such amendment (other than in respect of an amendment or modification of the type that may be made to the Indenture without the consent of any Holder).

THE ISSUER

General

The Issuer is an exempted company incorporated with limited liability under the laws of the Cayman Islands and is a special purpose entity established for the sole purpose of acquiring the Portfolio Assets, issuing the Notes, incurring the Class A Loans and engaging in certain related transactions. The Issuer was incorporated on August 7, 2020 in the Cayman Islands with registered number WC-364987 and has an indefinite existence. The directors of the Issuer are Dianne Farjallah, Karen Ellerbe and Karey Schreck. The Issuer's registered office and the business address of the directors is at the offices of c/o Walkers Fiduciary Limited, Cayman Corporate Centre, 27 Hospital Road, George Town, Grand Cayman, KY1-9008, Cayman Islands, Attention: The Directors, telephone no. +1 (345) 814-7600, facsimile no. +1 (345) 949-7886. The directors of the Issuer serve as directors of and provide services to other special purpose entities that issue collateralized obligations and perform other duties for the Administrator. The Issuer has no prior operating history or prior business and will not have any substantial assets other than the Portfolio Assets and will not have any substantial liabilities other than in connection with the Debt. The Issuer does not publish any financial statements.

Subject to the contracting restrictions imposed upon the Issuer by the Indenture, the directors of the Issuer have the power to borrow on behalf of the Issuer. A director of the Issuer is not required to own any shares in the Issuer in order to qualify as a director.

A director of the Issuer (or his or her alternate director in his or her absence) is at liberty to vote in respect of any contract or transaction in which he or she is interested; *provided* that the nature of the interest of any director or alternate director in any such contract or transaction is disclosed by him or her or the alternate director appointed by him of her at or prior to its consideration and any vote on it.

As of the Closing Date, the authorized share capital of the Issuer will consist of 250 ordinary shares, $1.00 par value per share, all of which have been issued (the "***Issuer Ordinary Shares***") and are held by Walkers Fiduciary Limited (in such capacity, the "***Share Trustee***"), under the terms of a declaration of trust ultimately for charitable purposes. As described herein, the Issuer will not have any material assets other than the Portfolio Assets and certain other eligible assets. The Portfolio Assets and such other eligible assets will be pledged to the Collateral Trustee as security for the Issuer's obligations under the Debt, the Indenture and the Credit Agreement.

So long as any of the Debt remains outstanding, the Issuer will not, except as expressly provided in the Indenture, the Credit Agreement and the Liquidity Loan Facility, incur any other indebtedness for borrowed moneys or engage in any business (other than acquiring and holding the Assets), issuing the Notes, incurring the Class A Loans and entering into related agreements and transactions as provided for in the Indenture and the Credit Agreement (including providing for additional issuance and incurrence of Debt), or, *inter alia*, declare any dividends, have any subsidiaries or employees, purchase, own, lease, or otherwise acquire any real property (including office premises or like facilities), consolidate or merge with any other person or convey or transfer its properties or assets substantially as an entity to any person (otherwise than as contemplated in the Indenture) or issue any shares.

The Notes and the Class A Loans are obligations only of the Issuer, and neither the Notes nor the Class A Loans are obligations of the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator, the Manager or any of their respective affiliates, the Share Trustee or any securityholders, shareholders, officers, directors or incorporators of the Issuer.

Capitalization

The proposed capitalization of the Issuer as of the Closing Date, after giving effect to the issuance of the Notes and the incurrence of the Class A Loans and the payment of expenses related to the offering is set forth below:

	Amount[1]
Class A Loans	U.S.$100,000,000
Class A Notes	U.S.$9,500,000
Class B Notes	U.S.$32,850,000
Class I Subordinated Notes	U.S.$48,000,000
Class II Subordinated Notes	U.S.$35,000,000
Total Debt	U.S.$225,350,000
Issuer Ordinary Shares	U.S.$250
Total Equity	U.S.$250
Total Capitalization	U.S.$225,350,250

Business of the Issuer

The Issuer's Memorandum of Association describes the objects of the Issuer, which include the activities to be carried out by the Issuer in connection with the Debt. The Issuer has not issued securities, other than the Issuer Ordinary Shares, prior to the date of this Offering Memorandum and have not listed any securities on any exchange. The Issuer will not undertake any activities other than issuing, paying and redeeming the Debt, acquiring, holding, selling, exchanging, redeeming and pledging, solely for its own account, Portfolio Assets and Eligible Investments and other activities incidental thereto, including entering into the Transaction Documents to which it is a party. The Issuer will not have any subsidiaries.

Walkers Fiduciary Limited or any successor thereto, a Cayman Islands licensed trust company, will also act as the administrator of the Issuer (in such capacity, the "***Administrator***"). The office of the Administrator will serve as the general business office of the Issuer. Through this office, and pursuant to the terms of an Administration Agreement between the Issuer and the Administrator (as amended and/or restated from time to time, the "***Administration Agreement***"), the Administrator will perform in the Cayman Islands or such other jurisdiction as may be agreed by the parties from time to time various corporate management functions on behalf of the Issuer and the provision of certain clerical, administrative and other corporate services until termination of the Administration Agreement. In consideration of the foregoing, the Administrator will receive various fees payable by the Issuer at rates agreed upon from time to time, plus expenses. The terms of the Administration Agreement provide that either the Issuer or the Administrator may terminate the agreement by giving at least 14 days' notice to the other party at any time within 12 months of the happening of any of certain stated events including any breach by the other party of its obligations under such agreement. In addition, the Administration Agreement provides that either party shall be entitled to terminate the Administration Agreement by giving at least 30 days' notice in writing to the other party in which case termination will not be effective until a replacement administrator has been appointed.

The Administrator will be subject to the overview of the Issuer's board of directors. The Administrator's principal office is Walkers Fiduciary Limited, Cayman Corporate Centre, 27 Hospital Road, George Town, Grand Cayman, KY1-9008, Cayman Islands.

In addition, pursuant to the terms of an agreement to be entered into on or prior to the Closing Date among the Issuer, the Manager and the Collateral Administrator (the "***Collateral Administration Agreement***"), as amended from time to time, the Issuer will retain the Collateral Administrator to, among other things, perform certain administrative duties of the Issuer, or of the Manager on behalf of the Issuer, with respect to the Assets, including the compilation of certain reports and the performance of certain calculations with respect to the Distribution Conditions, subject, in each case, to the Collateral Administrator's receipt from the Manager of information with respect to the Assets that is not contained in the collateral database maintained under the Collateral Administration Agreement. The compensation paid by the Issuer for such services will be in addition to the fees paid to the Manager and the Collateral Trustee and will be treated as an expense of the Issuer and will be subject to the Priority of Payments.

USE OF PROCEEDS

On the Closing Date, the Issuer will contribute the proceeds from the sale of the Notes and the incurrence of the Class A Loans, after payment of certain fees, organizational and other fees and expenses in connection with the structuring and placement of the Debt (including any fees paid to the Manager to pay to any introducer in respect of the Notes) and a deposit into the Reserve Account in an amount equal to approximately $13,900,000, to the Fund to subscribe for the LP Interest (by making the Initial Capital Contribution and paying any Additional Payment) and to make the Cash Investment to the Fund in accordance with the Cash Investment Agreement.

CERTAIN U.S. FEDERAL INCOME TAX CONSIDERATIONS

General

The following discussion summarizes certain of the material U.S. federal income tax consequences of the purchase, beneficial ownership, and disposition of the Notes.

For purposes of this summary, a "***U.S. Holder***" is a beneficial owner of a Note that is for U.S. federal income tax purposes:

- an individual who is a citizen or a resident of the United States;
- a corporation (or other entity that is treated as a corporation for U.S. federal tax purposes) that is created or organized in or under the laws of the United States, any State thereof, or the District of Columbia;
- an estate, whose income is subject to U.S. federal income taxation regardless of its source; or
- a trust if a court within the United States is able to exercise primary supervision over its administration, and one or more United States persons have the authority to control all of its substantial decisions.

For purposes of this summary, a "***Non-U.S. Holder***" is a beneficial owner of a Note that is for U.S. federal income tax purposes:

- a nonresident alien individual;
- a foreign corporation;
- an estate whose income is not subject to U.S. federal income tax on a net income basis; or
- a trust if no court within the United States is able to exercise primary jurisdiction over its administration or if no United States persons have the authority to control any of its substantial decisions.

An individual may, subject to certain exceptions, be deemed to be a resident of the United States for U.S. federal income tax purposes by reason of being present in the United States for at least 31 days in the calendar year and for an aggregate of more than 182 days during a three-year period ending in the current calendar year (counting for such purposes all of the days present in the current year, one-third of the days present in the immediately preceding year, and one-sixth of the days present in the second preceding year).

This summary is based on interpretations of the Code, regulations issued thereunder, and rulings and decisions currently in effect (or in some cases proposed), all of which are subject to change. Any such change may be applied retroactively and may adversely affect the U.S. federal income tax consequences described herein. This summary addresses only holders that purchase Notes for cash at initial issuance (and, in the case of the Secured Notes, at their issue price (which is the first price at which a substantial amount of Secured Notes within the applicable Class is sold to investors)) and beneficially own such Notes as capital assets and not as part of a "straddle," "hedge," "synthetic security" or a "conversion transaction" for U.S. federal income tax purposes, or as part of some other integrated investment. This summary does not discuss all of the tax consequences (such as any alternative minimum tax consequences) that may be relevant to particular investors or to investors subject to special treatment under the U.S. federal income tax laws (such as banks, thrifts, or other financial institutions; insurance companies; securities dealers or brokers, or traders in securities electing mark-to-market treatment; mutual funds or real estate investment trusts; small business investment companies; S corporations; partnerships or investors that hold their Notes through a partnership or other entity treated as a partnership for U.S. federal income tax purposes; persons required for U.S. federal income tax purposes to accelerate the recognition of any item of gross income with respect to the Notes as a result of such income being recognized on an applicable financial statement; U.S. Holders whose functional currency is not the U.S. dollar; certain former citizens or residents of the United States; retirement plans or other tax-exempt entities, or persons holding the Notes in tax-deferred or tax-advantaged accounts; or "controlled foreign corporations" or "passive foreign investment companies" for U.S. federal income tax purposes). This summary also does not address

the tax consequences to shareholders, or other equity holders in, or beneficiaries of, a holder of Notes, or any state, local or foreign tax consequences of the purchase, ownership or disposition of the Notes.

PROSPECTIVE PURCHASERS OF THE NOTES SHOULD CONSULT THEIR TAX ADVISORS AS TO THE FEDERAL, STATE AND LOCAL TAX CONSEQUENCES TO THEM OF THE PURCHASE, OWNERSHIP AND DISPOSITION OF THE NOTES, AS WELL AS ANY CONSEQUENCES ARISING UNDER THE LAWS OF ANY OTHER TAXING JURISDICTION TO WHICH THEY MAY BE SUBJECT.

U.S. Federal Tax Treatment of the Fund and the Issuer

The Fund's offering materials provide that it has received an opinion of counsel to the effect that it will be treated as a partnership (and not a publicly traded partnership taxable as a corporation) for U.S. federal income tax purposes. If the Fund were treated as a corporation for U.S. federal income tax purposes, then it could be subject to U.S. federal (and possibly state and local) income tax (computed possibly without deductions), in which case amounts available to the Issuer for distribution on the Notes could be materially reduced.

The balance of this summary assumes that the Fund is treated as a partnership that is not taxable as a corporation for U.S. federal income tax purposes.

The Issuer will be treated as a corporation for U.S. federal income tax purposes. The Issuer may recognize income that is effectively connected with the conduct of a trade or business within the United States for U.S. federal income tax purposes as a result of its investment in the Fund. The Issuer will be subject to U.S. federal corporate income tax (which the Fund may be required to withhold) with respect to any such effectively connected income, and possibly to the additional 30% U.S. branch profits tax and state and local taxes as well.

The Issuer also may recognize income that is not effectively connected with the conduct of a trade or business within the United States for U.S. federal income tax purposes but is subject to U.S. federal withholding tax at a 30% rate. Such income may include the Issuer's allocable share of U.S.-source dividends and certain U.S.-source interest.

The Fund Manager has indicated that it does not expect the Issuer to recognize significant amounts of effectively connected income or other income that is subject to U.S. federal withholding tax. However, neither the Issuer nor the Fund Manager has received any assurance from tax counsel to this effect, and no ruling will be sought from the IRS regarding this or any other aspect of the U.S. federal income tax treatment of the Issuer. Accordingly, there can be no assurance that the Issuer will not be subject to significant amounts of tax.

U.S. Federal Tax Treatment of the Notes

Upon the issuance of the Notes, the Issuer will receive an opinion of Cadwalader, Wickersham & Taft LLP to the effect that, based on certain assumptions, the Class A Notes and Class B Notes will be treated as indebtedness for U.S. federal income tax purposes. The Issuer intends to treat each Class of the Secured Notes as indebtedness when issued for U.S. federal, state, and local income and franchise tax purposes. The Issuer's characterizations will be binding on all holders, and the Indenture requires the holders to treat the Secured Notes as indebtedness for U.S. federal, state and local income and franchise tax purposes. Nevertheless, the IRS could assert, and a court could ultimately hold, that the one or more Classes of Secured Notes are equity in the Issuer. In the event that a Class of Secured Notes is treated as equity in, rather than debt of, the Issuer for U.S. federal income tax purposes, then the tax consequences to holders of those Secured Notes could be materially different than the tax consequences described herein. Except as otherwise indicated, the balance of this summary assumes that all of the Secured Notes are treated as indebtedness of the Issuer for U.S. federal, state and local income and franchise tax purposes. Prospective investors in the Secured Notes should consult their tax advisors regarding the U.S. federal, state and local income and franchise tax consequences to them and the Issuer in the event their Secured Notes are treated as equity in the Issuer.

The Issuer intends to treat the Subordinated Notes as equity in the Issuer for U.S. federal income tax purposes, and each holder by its purchase of a Subordinated Note agrees to treat the Subordinated Notes consistently with this treatment.

This discussion, and the opinion of Cadwalader, Wickersham & Taft LLP described above, do not address the effects of any supplemental indentures.

U.S. Federal Tax Treatment of U.S. Holders of the Secured Notes

Class A Notes and Class B Notes.

Original Issue Discount. The Issuer will treat the Class A Notes and Class B Notes as issued with original issue discount ("***OID***") for U.S. federal income tax purposes. The total amount of OID with respect to a Class A Note or Class B Note will equal the sum of all payments to be received under such Note less its issue price (the first price at which a substantial amount of Notes within the applicable Class was sold to investors). U.S. Holders of the Class A Notes or Class B Notes will be required to include OID in advance of the receipt of cash attributable to such income. A U.S. Holder of Class A Notes or Class B Notes will be required to include OID in income as it accrues (regardless of the U.S. Holder's method of accounting). It is possible, however, that the IRS could assert, and a court could ultimately hold, that some other method of accruing OID on the Class A Notes and Class B Notes should apply.

Sale, Exchange, or Retirement. In general, a U.S. Holder of a Class A Note or Class B Note will have a basis in such Note equal to the cost of such Note (i) increased by any amount includable in income by such U.S. Holder as OID, and (ii) reduced by any payments received on such Note. Upon a sale, exchange, or retirement of a Class A Note or Class B Note, a U.S. Holder will generally recognize gain or loss equal to the difference between the amount realized on the sale, exchange, or retirement and the U.S. Holder's tax basis in such Note. Such gain or loss will be long-term capital gain or loss if the U.S. Holder held the Note for more than one year at the time of disposition. In certain circumstances, U.S. Holders who are individuals may be entitled to preferential tax rates for net long-term capital gains; however, the ability of U.S. Holders to offset capital losses against ordinary income is limited.

Alternative Characterization.

It is possible that one or more Classes of the Secured Notes could be treated as "contingent payment debt instruments" for U.S. federal income tax purposes. In this event, the timing of a U.S. Holder's OID inclusions could differ from that described above and any gain recognized on the sale, exchange, or retirement of such Notes would be treated as ordinary income and not capital gain.

U.S. Federal Tax Treatment of U.S. Holders of the Subordinated Notes

Investment in a Passive Foreign Investment Company.

The Issuer will be a passive foreign investment company (a "***PFIC***") for U.S. federal income tax purposes, and U.S. Holders of Subordinated Notes will be subject to the PFIC rules, except for certain U.S. Holders that are subject to the rules relating to a controlled foreign corporation (a "***CFC***") (as described below under "—*Investment in a Controlled Foreign Corporation*"). U.S. Holders of Subordinated Notes should consider making an election to treat the Issuer as a QEF. Generally, a U.S. Holder makes a "qualified electing fund" (a "***QEF***") election on IRS Form 8621, attaching a copy of that form to its U.S. federal income tax return for the first taxable year for which it held its Subordinated Notes. If a U.S. Holder makes a timely QEF election with respect to the Issuer, the electing U.S. Holder will be required in each taxable year to include in gross income (i) as ordinary income, such U.S. Holder's *pro rata* share of the Issuer's ordinary earnings and (ii) as long-term capital gain, such U.S. Holder's *pro rata* share of the Issuer's net capital gain, whether or not distributed.

A U.S. Holder will not be eligible for the dividends received deduction in respect of such income or gain. In addition, any losses of the Issuer in a taxable year will not be available to such U.S. Holder and may not be carried back or forward in computing the Issuer's ordinary earnings and net capital gain in other taxable years. If applicable, the rules relating to a CFC, discussed below, generally override those relating to a PFIC with respect to which a QEF election is in effect.

In certain cases in which a QEF does not distribute all of its earnings in a taxable year, the electing U.S. Holder may also be permitted to elect to defer payment of some or all of the taxes on the QEF's income, subject to an interest charge (which is nondeductible to individuals) on the deferred amount. Absent an election to defer payment of taxes, U.S. Holders that make a QEF election with respect to the Issuer may owe tax on significant "phantom" income. The Issuer will provide, upon request and at the Issuer's expense, all information and documentation that a U.S. Holder of Subordinated Notes making a QEF election with respect to the Issuer is required to obtain for U.S. federal income tax purposes.

A U.S. Holder of Subordinated Notes (other than certain U.S. Holders that are subject to the rules relating to a CFC, described below) that does not make a timely QEF election will be required to report any gain on the disposition of its Subordinated Notes as ordinary income, rather than capital gain, and to compute the tax liability on such gain and any "Excess Distribution" (as defined below) received in respect of the Subordinated Notes as if such items had been earned ratably over each day in the U.S. Holder's holding period (or a certain portion thereof) for the Subordinated Notes. The U.S. Holder will be subject to tax on such items at the highest ordinary income tax rate for each taxable year, other than the current year (for which the U.S. Holder's regular ordinary income tax rate will apply), in which the items were treated as having been earned, regardless of the rate otherwise applicable to the U.S. Holder. Further, such U.S. Holder will also be liable for an interest charge (which is nondeductible to individuals) as if such income tax liabilities had been due with respect to each such prior year. For purposes of these rules, gifts, exchanges pursuant to corporate reorganizations and use of the Subordinated Notes as security for a loan may be treated as taxable dispositions of such Subordinated Notes. In addition, a stepped-up basis in the Subordinated Notes will not be available upon the death of an individual U.S. Holder who has not made a timely QEF election with respect to the Issuer.

An "***Excess Distribution***" is the amount by which distributions during a taxable year in respect of a Subordinated Note exceed 125% of the average amount of distributions in respect thereof during the three preceding taxable years (or, if shorter, the U.S. Holder's holding period for the Subordinated Notes).

In many cases, the U.S. federal income tax on any gain on disposition or receipt of Excess Distributions is likely to be substantially greater than the tax if a timely QEF election is made. A U.S. HOLDER OF SUBORDINATED NOTES SHOULD STRONGLY CONSIDER MAKING A QEF ELECTION WITH RESPECT TO THE ISSUER.

Investment in a Controlled Foreign Corporation.

The Issuer will be a CFC if more than 50% of the equity interests in the Issuer, measured by reference to combined voting power or value, is owned directly, indirectly, or constructively by "10% United States shareholders." For this purpose, a 10% United States shareholder is any United States person that possesses directly, indirectly, or constructively 10% or more of the combined voting power or value of all classes of equity in the Issuer. Thus, a U.S. Holder of Subordinated Notes (and/or any Secured Notes that are treated as equity in the Issuer for U.S. federal income tax purposes) possessing directly, indirectly, or constructively 10% or more of the voting power or value of the Subordinated Notes (and, if applicable, any Secured Notes that are treated as equity in the Issuer for U.S. federal income tax purposes) would be treated as a 10% United States shareholder. If more than 50% of the Subordinated Notes (and any Secured Notes that are treated as equity in the Issuer for U.S. federal income tax purposes), determined with respect to the combined voting power or value of the Subordinated Notes (and, if applicable, any Secured Notes that are treated as equity in the Issuer for U.S. federal income tax purposes), are owned directly, indirectly, or constructively by such 10% United States shareholders, the Issuer will be treated as a CFC. If, for any given taxable year, the Issuer is treated as a CFC, a 10% United States shareholder of the Issuer will be required to include as ordinary income an amount equal to that person's *pro rata* share of the Issuer's "subpart F income" at the end of such taxable year. Among other items, and subject to certain exceptions, "subpart F income" includes dividends, interest, annuities, gains from the sale of shares and securities, certain gains from commodities transactions, certain types of insurance income and income from certain transactions with related parties. It is likely that, if the Issuer were a CFC, all of its income would be subpart F income.

If the Issuer is treated as a CFC and a U.S. Holder is treated as a 10% United States shareholder of the Issuer, the Issuer will not be treated as a PFIC with respect to such U.S. Holder for the period during which the Issuer remains a CFC and such U.S. Holder remains a 10% United States shareholder of the Issuer (the "qualified portion" of the U.S. Holder's holding period for the Subordinated Notes). As a result, to the extent the Issuer's subpart F income includes net capital gains, such gains will be treated as ordinary income to the 10% United States shareholder under the CFC rules, notwithstanding the fact that the character of such gains generally would otherwise be preserved under the QEF rules. If the qualified portion of such U.S. Holder's holding period for the Subordinated Notes subsequently ceases (either because the Issuer ceases to be a CFC or the U.S. Holder ceases to be a 10% United States shareholder), then solely for purposes of the PFIC rules, such U.S. Holder's holding period for the Subordinated Notes will be treated as beginning on the first day following the end of such qualified portion, unless the U.S. Holder has owned any Subordinated Notes for any period of time prior to such qualified portion and has not made a QEF election with respect to the Issuer. In that case, the Issuer will again be treated as a PFIC which is not a QEF with respect to such U.S. Holder and the beginning of such U.S. Holder's holding period for the Subordinated Notes will continue to be the date

upon which such U.S. Holder acquired the Subordinated Notes, unless the U.S. Holder makes an election to recognize gain with respect to the Subordinated Notes and a QEF election with respect to the Issuer. In the event that the Issuer is treated as a CFC, then, at the request and expense of any U.S. Holder that is a 10% United States shareholder with respect to the Issuer, the Issuer will provide the information necessary for the U.S. Holder to comply with any filing requirements that arise as a result of the Issuer's classification as a CFC.

Indirect Interests in PFICs and CFCs.

The Fund may acquire equity securities that are foreign corporations and are treated as PFICs or CFCs . If the Fund owns equity securities that are treated as equity in a foreign corporation for U.S. federal income tax purposes, U.S. Holders of Subordinated Notes could be treated as owning an indirect equity interest in a PFIC or a CFC and could be subject to certain adverse tax consequences. In particular, a U.S. Holder of an indirect equity interest in a PFIC is treated as owning the PFIC directly. The U.S. Holder, and not the Issuer, would be required to make a QEF election with respect to each indirect interest in a PFIC. However, certain PFIC information statements are necessary for U.S. Holders that have made QEF elections, and there can be no assurance that the Issuer can obtain such statements from a PFIC. Thus, there can be no assurance that a U.S. Holder will be able to make the election with respect to any indirectly held PFIC.

Accordingly, if the U.S. Holder has not made a QEF election with respect to the indirectly held PFIC, the U.S. Holder would be subject to the adverse consequences described above under "*—Investment in a Passive Foreign Investment Company*" with respect to any Excess Distributions of such indirectly held PFIC, any gain indirectly realized by such U.S. Holder on the sale by the Issuer of such PFIC, and any gain indirectly realized by such U.S. Holder with respect to the indirectly held PFIC on the sale by the U.S. Holder of its Subordinated Notes (which may arise even if the U.S. Holder realizes a loss on such sale). Moreover, if the U.S. Holder has made a QEF election with respect to the indirectly held PFIC, the U.S. Holder will be required to include in income the U.S. Holder's pro rata share of the indirectly held PFIC's ordinary earnings and net capital gain as if the indirectly held PFIC were held directly, and the U.S. Holder will not be permitted to use any losses or other expenses of the Issuer to offset such ordinary earnings and/or net capital gains.

If the Fund acquires an indirect equity interest in a CFC and a U.S. Holder owns directly, indirectly, or constructively 10% or more of the CFC's voting power or value for U.S. federal income tax purposes, the U.S. Holder generally will be required to include the Issuer's pro rata share of the CFC's "subpart F income" as ordinary income at the end of each taxable year, as described above under "*—Investment in a Controlled Foreign Corporation*," regardless of whether the CFC distributed any amounts to the Issuer during such taxable year or whether the U.S. Holder made a QEF election with respect to the indirectly held CFC. In addition, gain realized by the U.S. Holder on the sale by the Issuer of the CFC, and gain realized by the U.S. Holder on the sale by the U.S. Holder of its Subordinated Notes, generally will be treated as ordinary income to the extent of the U.S. Holder's pro rata share of the CFC's current and accumulated earnings and profits, reduced by any amounts previously taxed pursuant to the CFC rules.

U.S. Holders should consult their own tax advisors regarding the tax issues associated with such investments in light of their own individual circumstances.

Phantom Income.

U.S. Holders may be subject to U.S. federal income tax on amounts that exceed the distributions they receive on the Subordinated Notes. For example, if the Issuer is a CFC and a U.S. Holder is a 10% United States shareholder with respect to the Issuer, or a U.S. Holder makes a QEF election with respect to the Issuer, the U.S. Holder will be subject to U.S. federal income tax with respect to its share of the Issuer's income and gain (to the extent of the Issuer's "earnings and profits"), which may exceed the Issuer's distributions. It is expected that the Issuer's income and gain (and earnings and profits) will exceed cash distributions with respect to (i) debt instruments that were issued with OID and are held by the Issuer and (ii) the acquisition at a discount of the Secured Notes by the Issuer (including by reason of a Refinancing or any deemed exchange that may occur as a result from a modification of the Indenture). U.S. Holders should consult their tax advisors regarding the timing of income and gain on the Subordinated Notes.

Distributions.

The treatment of actual distributions of cash on a Subordinated Note will vary depending on whether the U.S. Holder of such Subordinated Note has made a timely QEF election (as described above). See "*—Investment in a Passive Foreign Investment Company*." If a timely QEF election has been made, distributions should be allocated first to amounts previously taxed pursuant to the QEF election (or pursuant to the CFC rules, if applicable) and to this extent will not be taxable to such U.S. Holder. Distributions in excess of such previously taxed amounts will be treated first as a nontaxable return of capital to the extent of the U.S. Holder's adjusted tax basis in the Subordinated Notes (as described below under "*—Sale, Redemption, or Other Disposition*"), and then as a disposition of a portion of the Subordinated Notes.

If a U.S. Holder has not made a timely QEF election with respect to the Issuer then, except to the extent that distributions are attributable to amounts previously taxed pursuant to the CFC rules, some or all of any distributions with respect to the Subordinated Notes may constitute Excess Distributions, taxable as described above under the heading "*Investment in a Passive Foreign Investment Company.*" Distributions that do not constitute Excess Distributions will be taxable to U.S. Holders as ordinary income upon receipt to the extent of untaxed current and accumulated earnings and profits of the Issuer. Distributions that do not constitute Excess Distributions and are in excess of untaxed current and accumulated earnings and profits of the Issuer will be treated first as a nontaxable return of capital, to the extent of the U.S. Holder's adjusted tax basis in the Subordinated Notes, and then as a disposition of a portion of the Subordinated Notes and subject to an additional tax reflecting a deemed interest charge, as described below under "*—Sale, Redemption, or Other Disposition*". Distributions on the Subordinated Notes will not be eligible for the dividends received deduction, and will not qualify as "qualified dividend income."

Sale, Redemption, or Other Disposition.

In general, except as described below, a U.S. Holder of Subordinated Notes will recognize gain or loss upon the sale, redemption, or other disposition of a Subordinated Note (including a distribution that is treated as a disposition of the Subordinated Notes, as described above under "*—Distributions*") equal to the difference between the amount realized and such U.S. Holder's adjusted tax basis in that Subordinated Note.

A U.S. Holder's tax basis in a Subordinated Note will equal the amount paid for the Subordinated Note. Such basis will be increased by amounts taxable to such U.S. Holder by reason of a QEF election, or by reason of the CFC rules, as applicable, and decreased by actual distributions from the Issuer that are deemed to consist of previously taxed amounts or are treated as a nontaxable reduction to the U.S. Holder's tax basis in the Subordinated Notes (as described above). Except as discussed below, such gain or loss will be long-term capital gain or loss if the U.S. Holder held the Subordinated Notes for more than one year at the time of the disposition. In certain circumstances, U.S. Holders who are individuals may be entitled to preferential tax rates for net long-term capital gains; however, the ability of U.S. Holders to offset capital losses against ordinary income is limited.

If a U.S. Holder does not make a timely QEF election with respect to the Issuer as described above and is not subject to the CFC rules, any gain realized on the sale, redemption, or other disposition of a Subordinated Note (or any gain deemed to accrue prior to the time a non-timely QEF election is made) will be taxed as ordinary income and subject to an additional deemed interest charge under the special tax rules described above. See "*—Investment in a Passive Foreign Investment Company*."

If the Issuer is treated as a CFC and a U.S. Holder is treated as a 10% United States shareholder of the Issuer, then any gain realized by such U.S. Holder upon the disposition of a Subordinated Note, other than gain subject to the PFIC rules, if applicable, would be treated as ordinary income to the extent of the U.S. Holder's pro rata share of the Issuer's current and accumulated earnings and profits. In this regard, earnings and profits would not include any amounts previously taxed pursuant to a timely QEF election or pursuant to the CFC rules.

In addition, as described above under "*—Indirect Interests in PFICs and CFCs*," the gain attributable to interests in PFICs or CFCs owned by the Issuer may be treated as ordinary income to a U.S. Holder upon the sale, redemption, or other disposition of the U.S. Holder's Subordinated Notes.

If the Issuer is treated as a CFC, in certain cases, a corporate U.S. Holder that is a 10% United States shareholder of the Issuer may be eligible for a dividends received deduction to the extent any gain recognized on the disposition of a Subordinated Note is treated as ordinary income, or to the extent that such 10% United States shareholder receives a distribution that is treated as a dividend in the year in which it disposes of a Subordinated Note, in each case, for

U.S. federal income tax purposes. Such U.S. Holders should consult their tax advisors regarding the availability of any dividends received deduction and the impact of such dividends received deduction on any such U.S. Holder's adjusted tax basis in its Subordinated Notes.

Transfer and Information Reporting Requirements.

A U.S. Holder that purchases the Subordinated Notes will be required to file an IRS Form 926 with the IRS if (i) such person is treated as owning, directly or by attribution, immediately after the U.S. Holder's purchase of Notes, at least 10% by vote or value of the Issuer or (ii) the amount of cash transferred by such person (or any related person) to the Issuer during the 12-month period ending on the date of such transfer exceeds $100,000.

A U.S. Holder that is treated as owning (actually or constructively) at least 10% by vote or value of the equity of the Issuer for U.S. federal income tax purposes will be required to file an information return on IRS Form 5471, and may be required to provide additional information regarding the Issuer annually on IRS Form 5471 if it is treated as owning (actually or constructively) more than 50% by vote or value of the equity of the Issuer for U.S. federal income tax purposes.

In addition, U.S. Holders generally will be required to file an annual PFIC report.

U.S. Holders that fail to comply with these reporting requirements may be subject to adverse tax consequences, including a "tolling" of the statute of limitations with respect to their U.S. tax returns. U.S. Holders should consult their tax advisors with respect to these or any other reporting requirements that may apply with respect to their acquisition or ownership of the Subordinated Notes.

Specified Foreign Financial Asset Reporting

Certain U.S. Holders may be subject to reporting obligations with respect to their Notes if they do not hold their Notes in an account maintained by a financial institution and the aggregate value of their Notes and certain other "specified foreign financial assets" (applying certain attribution rules) exceeds $50,000. Significant penalties can apply if a U.S. Holder is required to disclose its Notes and fails to do so.

3.8% Medicare Tax on "Net Investment Income"

U.S. Holders who are individuals or estates and certain trusts are subject to an additional 3.8% tax on all or a portion of their "net investment income," or "undistributed net investment income" (in the case of an estate or trust), which may include any income or gain with respect to the Notes, to the extent of their net investment income or undistributed net investment income, that, when added to their other modified adjusted gross income, exceeds $200,000 for an unmarried individual, $250,000 for a married taxpayer filing a joint return (or a surviving spouse), $125,000 for a married individual filing a separate return, or the dollar amount at which the highest tax bracket begins for an estate or trust. The 3.8% Medicare tax is determined in a different manner than the regular income tax and special rules apply with respect to the PFIC and CFC rules described above. U.S. Holders should consult their advisors with respect to the 3.8% Medicare tax.

FBAR Reporting

A U.S. Holder of Subordinated Notes (or any Secured Notes that are treated as equity in the Issuer for U.S. federal income tax purposes) may be required to file a FinCEN Form 114 with respect to foreign financial accounts in which the Issuer has a financial interest if the U.S. Holder holds more than 50% of the Aggregate Outstanding Amount of such Notes or is otherwise treated as owning more than 50% of the total value or voting power of the Issuer's outstanding equity.

U.S. Federal Tax Treatment of Non-U.S. Holders of Notes

In general, payments on the Notes to a Non-U.S. Holder that provides appropriate tax certifications to the Issuer and gain realized on the sale, exchange or retirement of the Notes by the Non-U.S. Holder will not be subject to U.S. federal income or withholding tax, unless (i) such income is effectively connected with a trade or business conducted by such Non-U.S. Holder in the United States, or (ii) in the case of gain, such Non-U.S. Holder is a nonresident alien

individual who holds the Notes as a capital asset and is present in the United States for more than 182 days in the taxable year of the sale and certain other conditions are satisfied.

Information Reporting and Backup Withholding

Under certain circumstances, the Code requires "information reporting" annually to the IRS and to each holder, and "backup withholding," with respect to certain payments made on or with respect to the Notes. Backup withholding will apply to a U.S. Holder only if the U.S. Holder (i) fails to furnish its Taxpayer Identification Number ("***TIN***") which, for an individual, would be his or her Social Security Number, (ii) furnishes an incorrect TIN, (iii) is notified by the IRS that it has failed to report properly payments of interest and dividends, or (iv) under certain circumstances, fails to certify, under penalty of perjury, that it has furnished a correct TIN and has not been notified by the IRS that it is subject to backup withholding for failure to report interest and dividend payments. The exemption from backup withholding generally is available to U.S. Holders that provide a properly completed IRS Form W-9.

A Non-U.S. Holder that provides the applicable IRS Form W-8, together with all appropriate attachments, signed under penalties of perjury, identifying the Non-U.S. Holder and stating that the Non-U.S. Holder is not a United States person, will not be subject to U.S. information reporting requirements and U.S. backup withholding.

Information reporting and backup withholding may apply to the proceeds of a sale of Notes made within the United States or conducted through certain U.S. related financial intermediaries, unless the payor receives the statement described above or the Non-U.S. Holder otherwise establishes an exemption. Backup withholding is not an additional tax and may be refunded (or credited against the holder's U.S. federal income tax liability, if any), *provided* that certain required information is furnished. The information reporting requirements may apply regardless of whether withholding is required. Copies of the information returns also may be made available to the tax authorities in the country in which a Non-U.S. Holder is a resident under the provisions of an applicable income tax treaty or agreement.

FATCA

Under FATCA, the Issuer may be subject to a 30% withholding tax on certain income. Under an intergovernmental agreement entered into between the United States and the Cayman Islands, the Issuer will not be subject to withholding under FATCA if it complies with the Cayman FATCA Legislation which, among other things, requires the Issuer to provide the name, address, and taxpayer identification number of, and certain other information with respect to, certain holders of Notes to the Cayman Islands Tax Information Authority, which would then provide this information to the IRS. There can be no assurance that the Issuer will be able to comply with the Cayman FATCA Legislation. In addition, FATCA could be amended to require the Issuer to withhold on "passthru" payments to certain holders that fail to provide information to the Issuer or are certain "foreign financial institutions" that do not comply with FATCA.

If an investor fails to provide the Issuer or its agents with any correct, complete and accurate information or documentation that may be required for the Issuer to comply with FATCA, the Cayman FATCA Legislation and the CRS and to prevent the imposition of U.S. federal withholding tax under FATCA on payments to or for the benefit of the Issuer, or the investor's ownership of any Notes would otherwise cause the Issuer to be subject to withholding tax under FATCA, the Issuer or its agents are authorized to withhold amounts otherwise distributable to the investor, to compel the investor to sell its Notes, and, if the investor does not sell its Notes within 10 Business Days after notice from the Issuer (or its agents), to sell the investor's Notes on behalf of the investor.

Future Legislation and Regulatory Changes Affecting Holders of Notes

Future legislation, regulations, rulings or other authority could affect the U.S. federal income tax treatment of the Issuer and the holders of Notes. The Issuer cannot predict whether and to what extent any such legislative or administrative changes could change the tax consequences to the Fund, the Issuer, and to the holders of Notes. Prospective investors should consult their tax advisors regarding possible legislative and administrative changes and their effect on the U.S. federal tax treatment of the Fund and the Issuer and their investment in the Notes.

CAYMAN ISLANDS TAX CONSIDERATIONS

The following is a discussion of certain Cayman Islands tax consequences of an investment in the Notes. The discussion is a general summary of present law, which is subject to prospective and retroactive change. It is not intended as tax advice, does not consider your particular circumstances, and does not consider tax consequences other than those arising under Cayman Islands law.

Under existing Cayman Islands laws:

(a) Payments of interest, principal and other amounts on the Secured Notes and distributions to the holders of the Subordinated Notes will not be subject to taxation in the Cayman Islands and no withholding will be required on the payment of interest and principal and other amounts on the Secured Notes or a distribution to any holder of the Subordinated Notes, nor will gains derived from the disposal of the Notes be subject to Cayman Islands income or corporation tax. The Cayman Islands currently have no income, corporation or capital gains tax and no estate duty, inheritance tax or gift tax.

(b) No stamp duty is payable in respect of the issue of the Notes although duty may be payable if Notes are executed in or brought into the Cayman Islands.

(c) An instrument transferring title to a Note, if executed in or brought into the Cayman Islands, would be subject to Cayman Islands stamp duty.

The Issuer has been incorporated as an exempted company with limited liability under the laws of the Cayman Islands and, as such, has applied for and obtained an undertaking from the financial secretary of the Cayman Islands in substantially the following form:

THE TAX CONCESSIONS LAW
UNDERTAKING AS TO TAX CONCESSIONS

In accordance with the Tax Concessions Law the following undertaking is hereby given to:

CIP VIII Private Equity Backed Notes Ltd "the Company"

(a) That no Law which is hereafter enacted in the Islands imposing any tax to be levied on profits, income, gains or appreciations shall apply to the Company or its operations; and

(b) In addition, that no tax to be levied on profits, income, gains or appreciations or which is in the nature of estate duty or inheritance tax shall be payable

(i) on or in respect of the shares debentures or other obligations of the Company; or

(ii) by way of the withholding in whole or part of any relevant payment as defined in the Tax Concessions Law.

These concessions shall be for a period of THIRTY years from the 10th day of August 2020.

CLERK OF THE CABINET

The Cayman Islands does not have an income tax treaty arrangement with the United States; however, the Cayman Islands has entered into a tax information exchange agreement with the United States pursuant to FATCA and various other countries pursuant to the CRS.

The Cayman Islands has committed, along with a substantial number of other countries, to the implementation of the Organisation for Economic Co-operation and Development Standard for Automatic Exchange of Financial Account Information – Common Reporting Standard ("***CRS***"). The Cayman Islands implemented legislation to give effect to CRS, which requires "reporting financial institutions" to identify, and report information in respect of, specified persons who are resident in the jurisdictions which sign and implement CRS. Each owner of an interest in Notes will be required to provide the Issuer and the Collateral Trustee or their agents with information necessary to

comply with such requirements and any legislation or regulations implemented in relation thereto and the failure to do so may result in a forced transfer of the Notes. Prospective investors should consult their own tax advisers regarding the potential implications of CRS and other similar systems for collecting and reporting account information.

THE PRECEDING DISCUSSION IS ONLY A SUMMARY OF CERTAIN OF THE TAX IMPLICATIONS OF AN INVESTMENT IN THE NOTES. PROSPECTIVE INVESTORS ARE URGED TO CONSULT WITH THEIR TAX ADVISORS PRIOR TO INVESTING TO DETERMINE THE TAX IMPLICATIONS OF SUCH INVESTMENT, BOTH GENERALLY AND IN LIGHT OF THEIR OWN CIRCUMSTANCES.

CERTAIN ERISA AND RELATED CONSIDERATIONS

ERISA imposes certain requirements on "employee benefit plans" (as defined in Section 3(3) of ERISA) which are subject to Title I of ERISA, including entities such as collective investment funds and separate accounts whose underlying assets include the assets of such plans (collectively, "***ERISA Plans***") and on those persons who are fiduciaries with respect to ERISA Plans. Investments by ERISA Plans are subject to ERISA's general fiduciary requirements, including the requirements of investment prudence and diversification and that an ERISA Plan's investments be made in accordance with the documents governing the ERISA Plan. The prudence of a particular investment must be determined by the responsible fiduciary of an ERISA Plan by taking into account the ERISA Plan's particular circumstances and all of the facts and circumstances of the investment including, but not limited to, the matters discussed under "*Risk Factors*" and the fact that in the future there may be no market in which such fiduciary will be able to sell or otherwise dispose of the Notes.

Section 406 of ERISA and Section 4975 of the Code prohibit certain transactions involving the assets of an ERISA Plan (as well as those plans that are not subject to ERISA but which are subject to Section 4975 of the Code, such as individual retirement accounts (together with ERISA Plans, "***Plans***") and certain persons ("parties in interest" as defined in Section 3(14) of ERISA (each, a "***Party in Interest***") for purposes of ERISA or "disqualified persons" as defined in Section 4975(e)(2) of the Code (each, a "***Disqualified Person***") for purposes of Section 4975 of the Code)) having certain relationships to such Plans, including such Plans' fiduciaries and other service providers unless a statutory or administrative exemption is applicable to the transaction. A Party in Interest or Disqualified Person who engages in a non-exempt prohibited transaction may be subject to excise taxes and other penalties and liabilities under ERISA and Section 4975 of the Code. In addition, the fiduciary of the Plan that is engaged in such a non-exempt prohibited transaction may be subject to penalties and liabilities under ERISA and the Code.

Governmental plans, certain church plans and non-U.S. plans, while not subject to the fiduciary responsibility and prohibited transaction provisions of Title I of ERISA or to Section 4975 of the Code, may nevertheless be subject to other U.S. state, local or federal, or non-U.S., laws or regulations that are substantially similar to Title I of ERISA or the Code (any such law or regulation, a "***Other Plan Law***"). Fiduciaries of any such plans should consult with their counsel before acquiring any Notes. In addition, such plans may be subject to federal, state, local, non-U.S. or other law or regulation that could cause the underlying assets of the Issuer to be treated as assets of the investor by virtue of its interest and thereby subject the Issuer or the Manager (or other persons responsible for the investment and operation of the Issuer's assets) to any Other Plan Law (any such law or regulation, an "***Similar Law***").

The U.S. Department of Labor has issued a regulation (29 C.F.R. Section 2510.3-101, as modified by Section 3(42) of ERISA) (the "***Plan Asset Regulation***") that describes what constitutes the assets of a Plan with respect to the Plan's investment in an entity for purposes of certain provisions of ERISA and Section 4975 of the Code, including the fiduciary responsibility and prohibited transaction provisions of Title I of ERISA and Section 4975 of the Code. Under the Plan Asset Regulation, if a Plan invests in an "equity interest" of an entity that is neither a "publicly offered security" nor a security issued by an investment company registered under the Investment Company Act, the Plan's assets include both the equity interest and an undivided interest in each of the entity's underlying assets, unless it is established that the entity is an "operating company" or, as further discussed below, that participation in the entity by "benefit plan investors" constitutes less than twenty-five percent (25%) of the total value of each class of equity in the entity, determined in accordance with Section 3(42) of ERISA. It is not anticipated that (i) the Notes will constitute "publicly offered securities" for purposes of the Plan Asset Regulation, (ii) the Issuer will be an investment company registered under the Investment Company Act or (iii) the Issuer will qualify as an operating company within the meaning of the Plan Asset Regulation.

The Plan Asset Regulation defines an "equity interest" as any interest in an entity other than an instrument that is treated as indebtedness under applicable local law and which has no substantial equity features. The assets of an entity will be deemed to be the assets of an investing Plan (in the absence of another applicable Plan Asset Regulation exception) if twenty-five percent (25%) or more of the total value of any class of equity interest in the entity is held by "benefit plan investors" as calculated under the Plan Asset Regulation (with respect to any class of equity interests in the Issuer, the "***25% Limitation***"). The term "benefit plan investor" is defined by Section 3(42) of ERISA and includes (a) an employee benefit plan (as defined in Section 3(3) of ERISA) that is subject to Part 4 of Subtitle B of Title I of ERISA, (b) a plan as defined in Section 4975(e)(1) of the Code that is subject to Section 4975 of the Code or (c) any entity whose underlying assets include "plan assets" by reason of any such employee benefit plan's or plan's investment in the entity (collectively, "***Benefit Plan Investors***"). An entity that is treated as holding plan assets for

purposes of the Plan Asset Regulation is considered to hold plan assets only to the extent of the percentage of the equity interest held by Benefit Plan Investors. For purposes of making the 25% Limitation determination, the Plan Asset Regulation provides that the value of any equity interests held by a person (other than a Benefit Plan Investor) who has discretionary authority or control with respect to the assets of the entity or any person who provides investment advice for a fee (direct or indirect) with respect to such assets, or any affiliate of any such person (each, a "***Controlling Person***"), is disregarded. Under the Plan Asset Regulation, an "affiliate" of a person includes any person, directly or indirectly through one or more intermediaries, controlling, controlled by or under common control with the person, and "control" with respect to a person other than an individual means the power to exercise a controlling influence over the management or policies of such person. For these purposes, the Class I Subordinated Notes and the Class II Subordinated Notes are treated as separate classes of Notes.

Although there is little guidance on how this definition applies, the Issuer believes that the Class A Notes and Class B Notes should be treated as indebtedness without substantial equity features for purposes of the Plan Asset Regulation, although no assurance can be given in this regard. However, the Subordinated Notes will be treated by the Issuer as equity interests for purposes of the Plan Asset Regulation. Accordingly, in an effort to avoid issues that could arise if the assets of the Issuer were to be treated as plan assets for purposes of ERISA or Section 4975 of the Code, the Class I and Class II Subordinated Notes will be subject to restrictions on ownership by Benefit Plan Investors and Controlling Persons.

Whether or not the underlying assets of the Issuer are deemed to include "plan assets," as described below, prohibited transactions within the meaning of Section 406 of ERISA or Section 4975 of the Code may arise if Debt is acquired with the assets of a Plan with respect to which the Issuer, the Collateral Trustee, the Manager, the Initial Purchaser, or any of their respective affiliates (each, a "***Transaction Party***"), is a Party in Interest or a Disqualified Person. Certain exemptions from the prohibited transaction provisions of Section 406 of ERISA and Section 4975 of the Code may be applicable, however, depending in part on the type of Plan fiduciary making the decision to acquire Notes and the circumstances under which such decision is made. Included among these exemptions are Section 408(b)(17) of ERISA and Section 4975(d)(20) of the Code (relating to transactions with certain service providers) and Prohibited Transaction Class Exemption ("***PTCE***") 91-38 (relating to investments by bank collective investment funds), PTCE 84-14 (relating to transactions effected by a "qualified professional asset manager"), PTCE 90-1 (relating to investments by insurance company pooled separate accounts), PTCE 95-60 (relating to investments by insurance company general accounts), and PTCE 96-23 (relating to transactions effected by in-house asset managers). Even if one or more exemptions is available, there can be no assurance that relief will be provided from all prohibited transactions that may result if any Debt or any interest therein is acquired or held by a Plan.

Any insurance company proposing to invest assets of its general account in Notes should consider the extent to which such investment would be subject to the requirements of Title I of ERISA and Section 4975 of the Code in light of the U.S. Supreme Court's decision in *John Hancock Mutual Life Insurance Co. v. Harris Trust and Savings Bank*, 510 U.S. 86 (1993), and Section 401(c) of ERISA. In particular, such an insurance company should consider (i) the exemptive relief granted by the U.S. Department of Labor for transactions involving insurance company general accounts in PTCE 95-60 and (ii) if such exemptive relief is not available, whether its acquisition of Notes will be permissible under the final regulations issued under Section 401(c) of ERISA.

Each purchaser of the Class A Notes and Class B Notes or interest therein will be deemed to represent, warrant and agree that (1) if it is, or is acting on behalf of, a Benefit Plan Investor, its acquisition, holding and disposition of such Notes or interest therein will not constitute or result in a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code and (2) if it is a governmental, church, non-U.S. or other plan which is subject to any Other Plan Law, its acquisition, holding and disposition of such Notes or interest therein will not constitute or result in a violation of any such Other Plan Law.

Except for purchasers who are acquiring Subordinated Notes or interest therein on the Closing Date and providing a Subscription Agreement representing as to its status as a Benefit Plan Investor or a Controlling Person, each purchaser and transferee of Subordinated Notes or interest therein will be deemed to represent and warrant that (a) it is not, and is not acting on behalf of (and for so long as it holds such Subordinated Notes or interest therein, will not be and will not be acting on behalf of) a Benefit Plan Investor or a Controlling Person and (b) if it is a governmental, church, non-U.S. or other plan, (x) it is not, and for so long as it holds such Subordinated Notes or interest therein will not be, subject to any Similar Law and (y) its acquisition, holding and disposition of such Subordinated Notes or

interest therein will not constitute or result in a violation of any applicable Other Plan Law, and (ii) it agrees to certain transfer restrictions regarding its interest in such Subordinated Notes or interest therein.

No purchase of Subordinated Notes or interest therein on the Closing Date in accordance with the transfer restrictions herein will be permitted or recognized if it would cause the 25% Limitation described above to be exceeded with respect to either the Class I Subordinated Notes or the Class II Subordinated Notes, determined in accordance with the Plan Asset Regulation and assuming, for this purpose, that all the representations made or deemed to be made by holders of the Class I Subordinated Notes and Class II Subordinated Notes are true.

Each prospective purchaser or transferee of Notes that is a Benefit Plan Investor will be deemed to have represented by its investment in the Notes that (x) none of the Transaction Parties has provided any investment recommendation or investment advice to the Benefit Plan Investor, or any fiduciary or other person investing on behalf of the Benefit Plan Investor or who otherwise has discretion or control over the investment and management of "plan assets" (a "***Plan Fiduciary***"), on which either the Benefit Plan Investor or Plan Fiduciary has relied in connection with the decision to invest in the Notes, (y) the Transaction Parties are not otherwise acting as a "fiduciary", as that term is defined in Section 3(21) of ERISA or Section 4975(e)(3) of the Code, to the Benefit Plan Investor or Plan Fiduciary in connection with the Benefit Plan Investor's investment in the Notes and (z) the Plan Fiduciary is exercising its own independent judgment in evaluating the transaction.

If any person will become the beneficial owner of an interest in any Note who has made or is deemed to have made a prohibited transaction, Benefit Plan Investor, Controlling Person, Similar Law or Other Plan Law representation that is subsequently shown to be false or misleading or whose beneficial ownership otherwise causes a violation of the 25% Limitation (any such person a "***Non-Permitted ERISA Holder***"), such purchase and holding will be deemed void and the Issuer will, in its sole discretion, promptly after discovery that such person is a Non-Permitted ERISA Holder by the Issuer or upon notice from the Collateral Trustee (if a trust officer of the Collateral Trustee obtains actual knowledge), if either of them makes the discovery (who, in each case, agree to notify the Issuer of such discovery, if any), send notice to such Non-Permitted ERISA Holder demanding that such Non-Permitted ERISA Holder transfer its Notes or interest therein to a Person that is not a Non-Permitted ERISA Holder (and that is otherwise eligible to hold such Notes or interest therein) within ten (10) calendar days after the date of such notice. If such Non-Permitted ERISA Holder fails to so transfer its Notes or interest therein, the Issuer will have the right, without further notice to the Non-Permitted ERISA Holder, to sell such Notes to a purchaser selected by the Issuer that is not a Non-Permitted ERISA Holder (and that is otherwise eligible to hold such Notes or interest therein) on such terms as the Issuer may choose. The Issuer may select the purchaser by soliciting one or more bids from one or more brokers or other market professionals that regularly deal in securities similar to the Notes and sell such Notes to the highest such bidder. The holder of each Note, the Non-Permitted ERISA Holder and each other person in the chain of title from the holder to the Non-Permitted ERISA Holder, by its acceptance of an interest in the Notes, agrees to cooperate with the Issuer and the Collateral Trustee to effect such transfers. The proceeds of such sale, net of any commissions, expenses and taxes due in connection with such sale will be remitted to the Non-Permitted ERISA Holder. The terms and conditions of any sale under this subsection will be determined in the sole discretion of the Issuer, and the Issuer will not be liable to any person having an interest in the Notes sold as a result of any such sale or the exercise of such discretion.

Further Considerations

There can be no assurance that, despite the transfer restrictions relating to acquisitions by Benefit Plan Investors and Controlling Persons and the procedures to be employed by the Issuer to attempt to limit ownership by Benefit Plan Investors of each of the Class I Subordinated Notes and the Class II Subordinated Notes to less than twenty-five percent (25%) of the total value of the Class I Subordinated Notes and the Class II Subordinated Notes, excluding holdings by Controlling Persons, so that the 25% Limitation is not violated.

If for any reason the assets of the Issuer were deemed to be "plan assets" of a Plan, certain transactions that the Issuer might enter into, or may have entered into, in the ordinary course of its business might constitute non-exempt "prohibited transactions" under Section 406 of ERISA or Section 4975 of the Code and might have to be rescinded at significant cost to the Issuer. The Manager, on behalf of the Issuer, may be prevented from engaging in certain investments or other transactions or fee arrangements because they might be deemed to cause non-exempt prohibited transactions. Moreover, if the underlying assets of the Issuer were deemed to be assets constituting plan assets, (i) the

assets of the Issuer could be subject to ERISA's reporting and disclosure requirements, (ii) a fiduciary causing a Benefit Plan Investor to make an investment in the equity of the Issuer could be deemed to have delegated its responsibility to manage the assets of the Benefit Plan Investor, (iii) various providers of fiduciary or other services to the Issuer, and any other parties with authority or control with respect to the Issuer, could be deemed to be Plan fiduciaries or otherwise Parties in Interest or Disqualified Persons by virtue of their provision of such services, and (iv) it is not clear that Section 404(b) of ERISA, which generally prohibits plan fiduciaries from maintaining the indicia of ownership of assets of plans subject to Title I of ERISA outside the jurisdiction of the district courts of the United States, would be satisfied in all instances.

The sale of any Notes to a Plan, or to a person using assets of any Plan to effect its acquisition of any Notes, is in no respect a representation by the Issuer, the Collateral Trustee or the Manager that such an investment meets all relevant legal requirements with respect to investments by Plans generally or any particular Plan, or that such an investment is appropriate for Plans generally or any particular Plan.

ANY POTENTIAL INVESTOR CONSIDERING AN INVESTMENT IN THE NOTES THAT IS, OR IS ACTING ON BEHALF OF, A PLAN IS STRONGLY URGED TO CONSULT ITS OWN LEGAL AND TAX ADVISORS REGARDING THE CONSEQUENCES OF SUCH AN INVESTMENT UNDER ERISA, THE CODE AND ANY APPLICABLE OTHER PLAN LAW OR SIMILAR LAWS AND ITS ABILITY TO MAKE THE REPRESENTATIONS DESCRIBED ABOVE.

RATINGS

It is expected that each Class of Secured Debt will receive from the Rating Agency the minimum rating indicated in the Terms Table. The Subordinated Notes will not be rated.

A security rating is not a recommendation to buy, sell or hold securities and may be subject to revision or withdrawal at any time. The ratings on the Secured Debt assess the likelihood of timely payment of interest on the Secured Debt on each Payment Date. The ratings also assess the ultimate payment of principal on the Secured Debt on or prior to the Final Maturity Date. An explanation of the significance of the respective ratings may be obtained from the Rating Agency at Kroll Bond Rating Agency, 805 Third Avenue, 29th Floor, New York, New York 10022. There is no assurance that the rating initially assigned to each Class of Secured Debt will continue for any given period of time or that it will not be subsequently lowered or withdrawn entirely by the Rating Agency if, in the judgment of the Rating Agency, circumstances so warrant. Any such downward revision or withdrawal of such rating may have an adverse effect on any market price of the respective Class of Secured Debt.

None of the Issuer, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Manager, the Initial Purchaser, the Administrator any other person or entity or any of their respective Affiliates makes any representation as to the expected rate of return on the Debt, the expected timing of any default that may occur or the rate or recoveries or losses in respect of the Debt. Similarly, no assurance can be given that the Issuer's investment objectives will be achieved or that investors in Subordinated Notes will receive a return of their capital. Investors are advised to make their own assessments with respect to all return assumptions. The ratings of the Debt assigned by the Rating Agency are based in part on its assessment of the Portfolio Assets. To the extent that there are losses related to the Portfolio Assets, there can be no assurance that actual losses on the Portfolio Assets will not exceed those assumed by the Rating Agency.

PLAN OF DISTRIBUTION

General

Morgan Stanley & Co. LLC as the initial purchaser (in such capacity, the "***Initial Purchaser***") will agree to purchase, on the Closing Date, the Notes (other than the Direct Purchase Notes) (the "***Purchased Notes***") pursuant to a purchase agreement, dated on or about September 24, 2020 (as amended from time to time, the "***Purchase Agreement***"), subject to the satisfaction of certain conditions set forth in the Purchase Agreement and expects to re-sell the Purchased Notes in accordance with this Offering Memorandum. The Initial Purchaser will re-sell the Purchased Notes in compliance with Rule 144A of the Securities Act or another exemption from the registration requirements of the Securities Act in individually negotiated transactions, in each case, subject to the satisfaction of certain conditions set forth in the Purchase Agreement. The Initial Purchaser will be under no obligation to hold any Notes acquired by it. In connection with its sale of Notes in certain jurisdictions, the Initial Purchaser will act through one or more of its affiliates as its agents to the extent required by local law or Morgan Stanley & Co. LLC policy.

Purchasers of Notes may receive certain fees in connection with their purchase of Notes from the Initial Purchaser, which may be in the form of a discount. Pursuant to the Purchase Agreement, the Initial Purchaser will receive certain fees.

Notes offered hereby (other than Direct Purchase Notes) are expected to be sold by the Initial Purchaser in individually negotiated transactions. Direct Purchase Notes are expected to be placed directly by the Issuer in individually negotiated transactions. Certain initial investors may be identified by one or more introducers engaged by the Manager, who will introduce the Initial Purchaser to certain investors. The Issuer will pay an amount to the Manager, which the Manager will pay to the introducers as fees for such services.

In order to facilitate the offering of the Notes, the Initial Purchaser (or persons acting on behalf of the Initial Purchaser) may engage in transactions that stabilize, maintain or otherwise affect the price of the Notes. Specifically, the Initial Purchaser (or persons acting on behalf of the Initial Purchaser) may over-allot one or more Classes of the Notes in connection with the offering, creating a short position in such Class or Classes of Notes for its own account; provided that such transactions may not be effected with a view to supporting the market price of the Notes at a level higher than the market price that might otherwise prevail. In addition, to cover overallotments or to stabilize the price of the Notes, the Initial Purchaser may bid for, and purchase, the Notes in the open market. The Initial Purchaser is not required to engage in any stabilization action or similar action. Any stabilization action may begin on or after the date on which adequate disclosure of the final terms of the offer of the Notes is made and, if begun, may be ended at any time, but any stabilization action must end no later than 30 days after the Closing Date.

The Issuer has been advised by the Initial Purchaser that the Initial Purchaser proposes to sell the Purchased Notes (1) to persons that are (i) both (x) Qualified Institutional Buyers and (y) Qualified Purchasers or (ii) outside the United States to Accredited Investors that are non-U.S. Persons in offshore transactions in reliance on Regulation S and (2) in accordance with any other applicable law.

The Initial Purchaser will agree in the Purchase Agreement that it will not offer, sell or deliver any Purchased Notes within the United States or to, or for the account or benefit of, U.S. persons except, in either case, in accordance with Rule 144A under the Securities Act, to Qualified Institutional Buyers (as defined in Rule 144A) purchasing for their own account or for the accounts of one or more Qualified Institutional Buyers and that it will send to each other dealer to which it sells Notes, as applicable, during the restricted period a confirmation or other notice setting forth the restrictions on offers and sales of Notes within the United States or to, or for the account or benefit of, U.S. persons. In addition, with respect to Notes initially sold pursuant to Regulation S, until the expiration of 40 days after the commencement of the distribution of the offering of the Notes by the Initial Purchaser, an offer or sale of Notes, within the United States by a dealer (whether or not participating in the offering) may violate the registration requirements of the Securities Act if the offer or sale is made otherwise than pursuant to Rule 144A under the Securities Act or another exemption from the registration requirements of the Securities Act. Resales of Notes are restricted as described under "*Notice to Investors and Transfer Restrictions*" herein. Beneficial interests in a Regulation S Global Note may not be held by a U.S. person at any time, and U.S. resales of the Notes offered outside the United States in reliance on Regulation S may be effected only in accordance with "*Notice to Investors and Transfer Restrictions*" described herein. As used in this paragraph, the terms "United States" and "U.S. person" have the meanings given to them by Regulation S.

No action has been or will be taken in any jurisdiction that would permit a public offering of the Notes or the possession, circulation or distribution of this Offering Memorandum in any country or jurisdiction where action for that purpose is required. Accordingly, the Notes may not be offered or sold, directly or indirectly, and neither this Offering Memorandum nor any other offering material or advertisements in connection with the Notes may be distributed or published, in or from any country or jurisdiction, except under circumstances that will result in compliance with any applicable rules and regulations of any such country or jurisdiction. The Initial Purchaser understands and agrees that it is solely responsible for its own compliance with all laws applicable in each jurisdiction in which it offers and sells Notes, or distributes any Offering Memorandum (in preliminary or final form) or any amendments thereof or supplements thereto or any other material and it agrees to comply with all such laws.

Purchasers of the Notes may be required to pay stamp taxes and other charges in accordance with the laws and practices of the country of purchase in addition to the purchase price.

The Initial Purchaser and the Issuer extend to each prospective investor the opportunity, prior to the consummation of the sale of the Notes, to ask questions of, and receive answers from, the Initial Purchaser and the Issuer concerning the Notes and the terms and conditions of the offering and to obtain any additional information it may consider necessary in making an informed investment decision and any information in order to verify the accuracy of the information set forth herein, to the extent the Issuer or the Initial Purchaser possess the same.

Requests for such additional information can be directed to Morgan Stanley & Co. LLC at the following address: Morgan Stanley & Co. LLC, 1585 Broadway, New York, New York 10036, Attention: Managing Director, Securitized Products Group.

The Issuer has agreed to indemnify the Initial Purchaser and its affiliates against certain liabilities, including liabilities under the Securities Act, or to contribute to payments they may be required to make in respect thereof.

Certain of the debt or equity securities of the Fund may have been originally underwritten or placed, or may be underwritten or placed by one or more of the Initial Purchaser or its affiliates. In addition, one or more of the Initial Purchaser or its affiliates may have in the past and may in the future perform investment banking services for the Fund.

In addition, one or more of the Initial Purchaser or its affiliates may from time to time as a principal or through one or more investment funds that it manages, make investments in the equity securities of the Fund with the result that the Fund may be or may become controlled by it.

In the Purchase Agreement, the Initial Purchaser will represent and agree that:

(a) it has not offered, sold or otherwise made available and will not offer, sell or otherwise make available any Notes to any retail investor in the European Economic Area or in the United Kingdom. For the purposes of this provision:

(i) the expression "retail investor" means a person who is one (or more) of the following:

(A) a retail client as defined in MiFID II; or

(B) a customer within the meaning of Directive 2016/97/EU, where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or

(C) not a qualified investor as defined in the Prospectus Regulation; and

(ii) the expression "offer" includes the communication in any form and by any means of sufficient information on the terms of the offer and the Notes to be offered so as to enable an investor to decide to purchase or subscribe for the Notes;

(b) it has only communicated or caused to be communicated and will only communicate or cause to be communicated an invitation or inducement to engage in investment activity (within the meaning of Section 21 of the FSMA) received by it in connection with the issue or sale of the Notes in circumstances in which Section 21(1) of the FSMA does not apply to the Issuer;

(c) it has complied and will comply with all applicable provisions of the FSMA with respect to anything done by it in relation to the Notes in, from or otherwise involving the United Kingdom.

Direct Purchase Notes

The Issuer will sell the Direct Sale Notes directly to the initial investors therein pursuant to Section 4(a)(2) of the Securities Act under one or more individually negotiated purchase agreements. Such Notes are offered by the Issuer as set forth herein and the Initial Purchaser will not be involved in the offering or sale of the Direct Purchase Notes. The Issuer reserves the right to withdraw, cancel or modify such offer and to reject orders in whole or in part. It is expected that such Notes will be delivered to investors on or about the Closing Date against payment therefor in immediately available funds.

Such initial investors may be identified by one or more introducers engaged by the Manager, who will introduce the Issuer to certain investors. The Issuer will pay an amount to the Manager, which the Manager will pay to the introducers as fees for such services.

The Direct Sale Notes are being offered to (1) to persons that are (i) both (x) Qualified Institutional Buyers and (y) Qualified Purchasers or (ii) outside the United States to Accredited Investors that are non-U.S. Persons in offshore transactions in reliance on Regulation S and (2) in accordance with any other applicable law.

NOTICE TO INVESTORS AND TRANSFER RESTRICTIONS

Because of the following restrictions, purchasers are advised to consult legal counsel prior to making any offer, resale, pledge or other transfer of the Notes.

The Notes have not been and will not be registered under the Securities Act or any state securities laws, and the Issuer is not nor will be registered under the Investment Company Act, in reliance on the exemption provided by Section 3(c)(7) thereof. Accordingly, the Notes may not be offered or sold within the United States except pursuant to an exemption from, or in a transaction not subject to, the registration requirements of the Securities Act, applicable state securities laws and the Investment Company Act. The Notes may be offered or sold only (1) to persons that are (i) both (x) Qualified Institutional Buyers and (y) Qualified Purchasers or (ii) outside the United States to Accredited Investors that are non-U.S. Persons in offshore transactions in reliance on Regulation S and (2) in accordance with any other applicable law. Purchasers of Notes represented by an interest in a Regulation S Global Note are advised that such interests are not transferable to U.S. Persons at any time except in accordance with the following restrictions.

Without limiting the foregoing, by holding a Note, such beneficial owner will acknowledge and agree, among other things, that it understands that the Issuer is not registered as an investment company under the Investment Company Act, and that the Issuer is exempted from registration as such by virtue of Section 3(c)(7) of the Investment Company Act. Section 3(c)(7) excepts from the provisions of the Investment Company Act those issuers who privately place their securities solely to Persons who at the time of purchase are "Qualified Purchasers". In general terms, "Qualified Purchaser" is defined to mean, among other things, any natural person who owns not less than U.S.$5,000,000 in investments; any Person who in the aggregate owns and invests on a discretionary basis, not less than U.S.$25,000,000 in investments; and trusts as to which both the settlor and the decision-making trustee are Qualified Purchasers (but only if such trust was not formed for the specific purpose of making such investment).

Each purchaser of Subordinated Notes and each purchaser of a Certificated Note on the Closing Date will be required to provide the Initial Purchaser or the Issuer, as applicable, with a Subscription Agreement containing representations substantially similar to those set forth in the Indenture, as well as other agreements and indemnities.

Representations of Holders

Each purchaser (including subsequent transferees) of the Notes (including any beneficial or economic interest therein) will be deemed to have represented, warranted, acknowledged and agreed as follows (or, in the case of a purchaser of a Certificated Note, required to represent, warrant, acknowledge and agree):

1. The purchaser is either (A) an Accredited Investor that is not a U.S. Person and is acquiring such Notes in an offshore transaction in reliance on the exemption from registration under the Securities Act provided by Regulation S or (B) a Qualified Institutional Buyer that is also a Qualified Purchaser, is aware that the offer and sale to it may be made in reliance on Rule 144A and is acquiring the Notes for its own account or for the account of a Qualified Institutional Buyer that is also a Qualified Purchaser, not with a view to, or for offer or sale in connection with, any distribution of Notes in violation of the Securities Act.

2. The purchaser understands that the Notes are being offered in a transaction not involving any public offering in the United States or elsewhere within the meaning of the Securities Act or the Investment Company Act, that the Notes have not been and will not be registered under the Securities Act and that if in the future it decides to offer, resell, pledge or otherwise transfer any of the Notes, such Notes may not be offered, resold, pledged or otherwise transferred except pursuant to an exemption from registration. Notwithstanding the availability of an exemption from the registration requirements under the Securities Act, the Notes may be offered, resold, pledged or otherwise transferred only (A)(i) to the Issuer or (ii) to a person that is either (x) an Accredited Investor that is not a U.S. Person and is acquiring the Notes in an offshore transaction in reliance on the exemption from registration provided by Regulation S or (y) a Qualified Institutional Buyer that is also a Qualified Purchaser, acquiring the Notes for its own account or the account of a person that is a Qualified Institutional Buyer that is also a Qualified Purchaser, in a transaction meeting the requirements of Rule 144A and (B) in accordance with any applicable securities laws of any State of the United States and other jurisdictions. In connection with any transfer of the Notes pursuant to clause (A) above, the purchaser will furnish to the Issuer, prior to such transfer, such certifications, legal opinions or other information as the Issuer may reasonably require to confirm that such transfer is being made pursuant to an exemption

from, or in a transaction not subject to, the registration requirements of the Securities Act or that such transfer will not require the Issuer to register as an investment company under the Investment Company Act.

3. The purchaser is not a broker-dealer that owns and invests on a discretionary basis less than twenty-five million dollars ($25,000,000) in securities of issuers that are not its affiliated persons.

4. The purchaser is not a plan referred to in paragraph (a)(1)(i)(d) or (a)(1)(i)(e) of Rule 144A, or a trust fund referred to in paragraph (a)(1)(i)(f) of Rule 144A that holds the assets of such a plan, unless investment decisions with respect to the plan are made solely by the fiduciary, trustee or sponsor of such plan.

5. The purchaser was not formed, reformed, recapitalized or operated for the purpose of investing in the Issuer, and (i) the purchaser is not a (a) partnership, (b) common trust fund, (c) special trust, pension fund or retirement plan or (d) other entity in which the partners, beneficiaries or participants, as the case may be, may designate the particular investments to be made or the allocation thereof and (ii) less than forty percent (40%) of the purchaser's total assets consist of investments in the Issuer.

6. The purchaser and each account for which it is purchasing or otherwise acquiring the Notes will purchase, hold or transfer at least the Minimum Denomination of the Notes.

7. The purchaser understands that the Notes will, unless otherwise agreed by the Issuer and the holder thereof, bear a legend substantially to the effect set forth under "—*Legends*" below.

8. If the purchaser is an investment company excepted from the Investment Company Act pursuant to Section 3(c)(1) or Section 3(c)(7) thereof and was formed on or before April 30, 1996, it has received the consent of those of its beneficial owners who acquired their interests on or before April 30, 1996 with respect to its treatment as a Qualified Purchaser in the manner required by Section 2(a)(51)(C) of the Investment Company Act and rules thereunder.

9. The purchaser understands that the Issuer may receive a list of participants holding positions in the Notes from one or more book entry depositaries.

10. Each purchaser who purchases or otherwise becomes the Holder of any Notes (or interest therein) will be required or deemed to represent that:

(a) with respect to the Class A Notes and the Class B Notes, (1) if such Person is, or is acting on behalf of, a Benefit Plan Investor, its acquisition, holding and disposition of such Notes or interest therein, as applicable, does not and will not constitute or result in a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code, and (2) if such Person is a governmental, church, non-U.S. or other plan which is subject to any Other Plan Law, its acquisition, holding and disposition of such Notes or interest therein does not and will not constitute or result in a violation of any such Other Plan Law;

(b) with respect to the Class I Subordinated Notes and the Class II Subordinated Notes, except for a purchaser who is acquiring Subordinated Notes or interest therein on the Closing Date and providing a Subscription Agreement representing as to its status as a Benefit Plan Investor or a Controlling Person, (1)(x) it is not, and is not acting on behalf of (and for so long as it holds such Subordinated Notes or interest therein, will not be and will not be acting on behalf of) a Benefit Plan Investor or a Controlling Person and (y) if it is a governmental, church, non-U.S. or other plan, (I) it is not, and for so long as it holds such Subordinated Notes or interest therein will not be, subject to any Similar Law and (II) its acquisition, holding and disposition of such Subordinated Notes or interest therein will not constitute or result in a violation of any applicable Other Plan Law, and (2) it agrees to certain transfer restrictions regarding such Subordinated Notes or interest therein; and

(c) if it is a Benefit Plan Investor, (1) none of the Transaction Parties has provided any investment recommendation or investment advice to the Benefit Plan Investor or Plan Fiduciary, on which either the Benefit Plan Investor or Plan Fiduciary has relied in connection with the decision to invest in the Notes, (2) the Transaction Parties are not otherwise acting as a "fiduciary", as that term is defined

in Section 3(21) of ERISA or Section 4975(e)(3) of the Code, to the Benefit Plan Investor or Plan Fiduciary in connection with the Benefit Plan Investor's investment in the Notes and (3) the Plan Fiduciary is exercising its own independent judgment in evaluating the transaction.

11. In connection with the purchase of such Notes: (A) none of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective Affiliates is acting as a fiduciary or financial or investment advisor for the purchaser; (B) the purchaser is not relying (for purposes of making any investment decision or otherwise) upon any advice, counsel or representations (whether written or oral) of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective Affiliates other than any statements in this Offering Memorandum, and the purchaser has read and understands this Offering Memorandum; (C) the purchaser has consulted with its own legal, regulatory, tax, business, investment, financial and accounting advisors to the extent it has deemed necessary and has made its own investment decisions (including decisions regarding the suitability of any transaction pursuant to the Indenture) based upon its own judgment and upon any advice from such advisors as it has deemed necessary and not upon any view expressed by the Issuer, the Collateral Trustee, the Collateral Administrator, the Manager, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective Affiliates; (D) the purchaser is a sophisticated investor and is purchasing the Notes with a full understanding of all of the terms, conditions and risks thereof, and is capable of and willing to assume those risks; (E) the purchaser understands that the Notes are illiquid and it is prepared to hold the Notes until their Maturity; and (F) it agrees that it shall not hold any Notes for the benefit of any other person, that it shall at all times be the sole beneficial owner thereof for purposes of the Investment Company Act and all other purposes and that it shall not sell participation interests in the Notes or enter into any other arrangement pursuant to which any other person shall be entitled to a beneficial interest in the distributions on the Notes; *provided* that none of the representations in clauses (A) through (C) above is made with respect to the Manager by any Affiliate of the Manager or any account for which the Manager or an Affiliate thereof acts as investment adviser.

12. Each purchaser who purchases or otherwise becomes the Holder of Notes will hold and transfer at least the Minimum Denomination of such Notes.

13. The purchaser agrees that it will not, prior to the date which is one year and one (1) day (or if longer, any applicable preference period *plus* one (1) day) after the payment in full of all obligations under the Liquidity Loan Facility and all Debt (and any other debt obligations of the Issuer that have been rated upon issuance by any rating agency at the request of the Issuer), institute against, or join any other Person in instituting against, the Issuer any bankruptcy, winding up, reorganization, arrangement, insolvency, moratorium or liquidation Proceedings, or other Proceedings under Cayman Islands, U.S. federal or state bankruptcy or similar laws. The purchaser agrees and acknowledges to be subject to the Bankruptcy Subordination Agreement.

14. The purchaser understands and agrees that such Notes are limited recourse obligations of the Issuer from time to time and at any time, payable solely from proceeds of the Assets available at such time in accordance with the Priority of Payments and following realization of the Assets and application of the proceeds thereof in accordance with the Indenture and the Credit Agreement, all obligations of and any claims against the Issuer thereunder or in connection therewith after such realization will be extinguished and will not thereafter revive. No recourse shall be had against any officer, director, employee, shareholder or incorporator of the Issuer, the Manager or their respective Affiliates, successors or assigns for any amounts payable under the Liquidity Loan Facility, the Debt, the Indenture or the Credit Agreement.

15. The purchaser agrees and acknowledges that (1)(A) the express terms of the Indenture govern the rights of the Holders of the Notes to direct the commencement of any suit in equity, action at law or other judicial or administrative proceeding (a "***Proceeding***") against any Person; (B) the Indenture contains limitations on the rights of the Holders of the Notes to direct the commencement of any such Proceeding; and (C) it shall comply with such express terms if it seeks to direct the commencement of any such Proceeding, (2) there are no implied rights under the Indenture to direct the commencement of any such Proceeding and (3) notwithstanding any other provision herein or any provision of the Notes or of any other agreement, the Issuer shall be under no duty or obligation of any kind to the Holders, or any of them, to institute any legal or other proceedings of any kind, against any person or entity, including, without limitation, the Collateral Trustee, the Collateral Administrator or the Manager.

16. The purchaser understands that (A) the Collateral Trustee will provide to the Issuer and the Manager upon reasonable request all reasonably available information in the possession of the Collateral Trustee, as applicable, in connection with regulatory matters, including any information that is necessary or advisable in order for the Issuer or the Manager (or its parent or Affiliates) to comply with regulatory requirements, (B) the registrar or the Collateral Trustee will provide, at the Issuer's expense, to the Issuer and the Manager, upon written request, a list of Holders as reflected in the register, (C) the Collateral Trustee will obtain and provide, at the Issuer's expense, to the Issuer and the Manager upon written request a list of participants in DTC holding positions in such Notes, (D) the Collateral Trustee and the registrar will provide to the Issuer, the Manager or any agent thereof, upon written request at any time, any information regarding the holders of the Notes and payments on the Notes that is reasonably available to the Collateral Trustee or the registrar, as the case may be, by reason of its acting in such capacity, and may be necessary for compliance with FATCA and (E) subject to the duties and responsibilities of the Collateral Trustee set forth herein, the Collateral Trustee will have no liability for any such disclosure under (A), (B), (C) or (D) or the accuracy thereof.

17. The purchaser understands that the Issuer may impose additional transfer restrictions on the Notes to comply with the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 and other similar laws or regulations, including, without limitation, requiring each purchaser or transferee of a Note to make representations to the Issuer in connection with such compliance.

18. The purchaser is not a person with whom dealings are restricted or prohibited under any law relating to economic sanctions or anti-money laundering of the United States, the European Union, Switzerland or any other applicable jurisdiction ("***AML and Sanctions Laws***"), and such Person's or transferee's purchase of such Notes will not result in the violation of any AML and Sanctions Laws by any party, whether as a result of the identity of such Person or transferee or its beneficial owners, their source of funds or otherwise.

19. The purchaser acknowledges receipt of the Issuer's privacy notice (which can be accessed at https://www.walkersglobal.com/external/SPVDPNotice.pdf and provides information on the Issuer's use of personal data in accordance with the Cayman Islands Data Protection Law, 2017 and, in respect of any EU data subjects, the EU General Data Protection Regulation) and, if applicable, agrees to promptly provide the privacy notice (or any updated version thereof as may be provided from time to time) to each individual (such as any individual directors, shareholders, beneficial owners, authorized signatories, trustees or others) whose personal data the purchaser provides to the Issuer or any of its affiliates or delegates including, but not limited to, Walkers Fiduciary Limited in its capacity as Administrator.

20. The purchaser, by acceptance of the Notes, will be deemed to agree to provide the Issuer or its agents with such information and documentation that may be required for the Issuer to achieve AML Compliance and to update or replace such information or documentation as necessary.

21. The purchaser agrees and acknowledges that any purported transfer of the Notes (or any beneficial or economic interests herein) that is in breach, at the time made, of any transfer restrictions applicable to the Notes will be null and void *ab initio*, and will not operate to transfer any rights to the transferee, notwithstanding any instructions to the contrary to the Issuer, its transfer agent or any other intermediary. The purchaser of such Notes (or any beneficial or economic interests herein) agrees that in the event that the Issuer or its transfer agent determines in good faith that such purchaser is in breach, at the time given, of any of the representations, warranties, acknowledgements or agreements set forth above, the Issuer shall consider the acquisition of such Notes (or any beneficial or economic interests herein) void, of no force and effect and the purported transfer will not, at the discretion of the Issuer, operate to transfer any rights to the transferee notwithstanding any instructions to the contrary to the Issuer, the transfer agent or any other intermediary. In addition, the Issuer or the transfer agent may require such acquirer of Notes (or any beneficial or economic interests therein) to transfer such Notes (or beneficial or economic interests therein) to a transferee acceptable to the Issuer who is able to and who does make all of the representations, warranties, acknowledgements and agreements set forth above. Pending such transfer, the purchaser of Notes (or any beneficial or economic interests therein) will be deemed not to be the holder of such Notes (or any beneficial or economic interests therein) for any purpose, including but not limited to distributions and receipt of interest and redemption payments, and such purchaser will be deemed to have no interest whatsoever in the Notes (or any beneficial or economic interests therein) except as otherwise required to redeem or sell its interest therein as described in this paragraph.

22. The purchaser will treat the Secured Debt as indebtedness and will treat the Subordinated Notes as equity for all U.S. federal, state and local income tax purposes and will take no action inconsistent with such treatment unless otherwise required by an applicable taxing authority.

23. The purchaser will timely furnish the Issuer or the Collateral Trustee or their respective agents with any tax forms or certifications (including, without limitation, IRS Form W-9, IRS Form W-8, or any successor to such IRS form) that the Issuer, the Collateral Trustee or their respective agents reasonably request in order to (A) make payments to the purchaser without, or at a reduced rate of, withholding, (B) qualify for a reduced rate of withholding in any jurisdiction from or through which they receive payments and (C) satisfy reporting and other obligations under the Code, Treasury regulations or any other applicable law or regulation, and will update or replace such tax forms or certifications in accordance with their terms or subsequent amendments. The purchaser acknowledges that the failure to provide, update or replace any such tax forms or certifications may result in the imposition of withholding or back-up withholding on payments to the purchaser or to the Issuer. Amounts withheld by the Issuer or its agents that are, in their sole judgment, required to be withheld pursuant to applicable tax laws will be treated as having been paid to the purchaser by the Issuer.

24. The purchaser will provide the Issuer or its agents with any correct, complete and accurate information and documentation that may be required for the Issuer to comply with FATCA, the Cayman FATCA Legislation, and the CRS and to prevent the imposition of U.S. federal withholding tax under FATCA on payments to or for the benefit of the Issuer. In the event the purchaser fails to provide such information or documentation for the purposes of FATCA, or to the extent that its ownership of Notes would otherwise cause the Issuer to be subject to any tax under FATCA, (A) the Issuer (and any agent acting on its behalf) is authorized to withhold amounts otherwise distributable to the purchaser as compensation for any tax imposed under FATCA as a result of such failure or the purchaser's ownership, and (B) to the extent necessary to avoid an adverse effect on the Issuer as a result of such failure or the purchaser's ownership, the Issuer will have the right to compel the purchaser to sell its Notes and, if the purchaser does not sell its Notes within 10 Business Days after notice from the Issuer or its agents, the Issuer will have the right to sell such Notes at a public or private sale called and conducted in any manner permitted by law, and to remit the net proceeds of such sale (taking into account any taxes incurred by the Issuer in connection with such sale) to the purchaser as payment in full for such Notes. The Issuer may also assign each such Note a separate securities identifier in the Issuer's sole discretion. The purchaser agrees that the Issuer and its agents may (1) provide any information and documentation concerning its investment in its Notes to the Cayman Islands Tax Information Authority, the U.S. Internal Revenue Service and any other relevant tax authority and (2) take such other steps as they deem necessary or helpful to ensure that the Issuer complies with FATCA, the Cayman FATCA Legislation, and the CRS.

25. If the purchaser owns more than 50% of the Subordinated Notes by value or is otherwise treated as a member of the "expanded affiliated group" of the Issuer (as defined in Treasury regulations section 1.1471-5(i) (or any successor provision)), it will (A) confirm that any member of such expanded affiliated group (assuming that the Issuer is a "registered deemed-compliant FFI" within the meaning of Treasury regulations section 1.1471-1(b)(111) (or any successor provision)) that is treated as a "foreign financial institution" within the meaning of Section 1471(d)(4) of the Code and any Treasury regulations promulgated thereunder is either a "participating FFI", a "deemed-compliant FFI" or an "exempt beneficial owner" within the meaning of Treasury regulations section 1.1471-4(e) (or any successor provision), and (B) promptly notify the Issuer in the event that any member of such expanded affiliated group that is treated as a "foreign financial institution" within the meaning of Section 1471(d)(4) of the Code and any Treasury regulations promulgated thereunder is not either a "participating FFI", a "deemed-compliant FFI" or an "exempt beneficial owner" within the meaning of Treasury regulations section 1.1471-4(e) (or any successor provision), in each case except to the extent that the Issuer or its agents have provided the purchaser with an express waiver of this requirement.

26. The purchaser has such knowledge and experience in financial and business matters as to be capable of evaluating the merits and risks of its investment in the Notes, and the purchaser is able to bear the economic risk of its investment.

27. The purchaser understands that an investment in the Notes involves certain risks, including the risk of loss of all or a substantial part of its investment. It has had access to such financial and other information concerning any of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent or the Initial Purchaser, the Notes and the Assets as it deemed necessary or appropriate in order to make an informed investment decision with respect to its purchase of Notes.

28. The purchaser is not a Coller Competitor.

29. The purchaser is not a member of the public in the Cayman Islands.

30. The purchaser acknowledges and agrees that it has completed its own investigation in relation to the Fund and the Fund Portfolio Investments.

31. The purchaser is aware that, except as otherwise provided in the Indenture, any Notes being sold to it in reliance on Regulation S will be represented by one or more Regulation S Global Notes and that in each case beneficial interests therein may be held only through DTC for the respective accounts of Euroclear or Clearstream.

32. The purchaser acknowledges that the Issuer, the Manager, the Initial Purchaser and others will rely upon the truth and accuracy of the foregoing acknowledgments, representations and agreements and agrees that if any of the acknowledgments, representations or agreements deemed to have been made by its purchase of the Notes are no longer accurate, it shall promptly notify the Issuer. If it is acquiring the Notes as a fiduciary or agent for one or more investor accounts, it represents that it has sole investment discretion with respect to each such account and it has full power to make the foregoing acknowledgments, representations and agreements on behalf of each account.

33. The purchaser will notify any subsequent purchasers of the Notes from it of the transfer restrictions applicable to the Notes.

Legends

The Notes will bear a legend substantially to the following effect unless the Issuer determines otherwise in compliance with applicable law:

THIS NOTE HAS NOT BEEN AND WILL NOT BE REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "**SECURITIES ACT**"), OR UNDER ANY STATE SECURITIES OR BLUE SKY LAW OF ANY STATE. THE HOLDER HEREOF, BY PURCHASING THIS NOTE, AGREES THAT THIS NOTE MAY BE REOFFERED, RESOLD, PLEDGED OR OTHERWISE TRANSFERRED ONLY IN COMPLIANCE WITH THE SECURITIES ACT AND OTHER APPLICABLE LAW AND ONLY (1) PURSUANT TO RULE 144A UNDER THE SECURITIES ACT ("**RULE 144A**") TO A PERSON THAT THE HOLDER REASONABLY BELIEVES IS A QUALIFIED INSTITUTIONAL BUYER WITHIN THE MEANING OF RULE 144A (A "**QIB**") WHO IS A QUALIFIED PURCHASER FOR PURPOSES OF SECTION 3(C)(7) OF THE INVESTMENT COMPANY ACT, AS AMENDED (A "**QUALIFIED PURCHASER**"), PURCHASING FOR ITS OWN ACCOUNT OR A QIB WHO IS A QUALIFIED PURCHASER PURCHASING FOR THE ACCOUNT OF A QIB WHO IS A QUALIFIED PURCHASER, WHOM THE HOLDER HAS INFORMED THAT THE REOFFER, RESALE, PLEDGE OR OTHER TRANSFER IS BEING MADE IN RELIANCE ON RULE 144A OR (2) TO AN ACCREDITED INVESTOR (AS DEFINED IN RULE 501(a) OF REGULATION D OF THE SECURITIES ACT) THAT IS A NON-U.S. PERSON IN AN OFFSHORE TRANSACTION IN ACCORDANCE WITH RULE 903 OR RULE 904 (AS APPLICABLE) OF REGULATION S UNDER THE SECURITIES ACT.

[EXCEPT WITH RESPECT TO A PURCHASER THAT IS ACQUIRING THIS SUBORDINATED NOTE OR AN INTEREST HEREIN ON THE CLOSING DATE AND PROVIDING A SUBSCRIPTION AGREEMENT TO THE ISSUER AS TO ITS STATUS AS A BENEFIT PLAN INVESTOR OR A CONTROLLING PERSON, EACH PURCHASER AND TRANSFEREE OF THIS NOTE OR INTEREST HEREIN WILL BE DEEMED TO REPRESENT AND WARRANT THAT (I) (A) IT IS NOT, AND IS NOT ACTING ON BEHALF OF (AND FOR SO LONG AS IT HOLDS THIS NOTE OR INTEREST HEREIN, WILL NOT BE AND WILL NOT BE ACTING ON BEHALF OF) A BENEFIT PLAN INVESTOR OR A CONTROLLING PERSON AND (B) IF IT IS A GOVERNMENTAL, CHURCH, NON-U.S. OR OTHER PLAN, (X) IT IS NOT, AND FOR SO LONG AS IT HOLDS THIS SUBORDINATED NOTE OR INTEREST HEREIN WILL NOT BE, SUBJECT TO ANY FEDERAL, STATE, LOCAL, NON-U.S. OR OTHER LAW OR REGULATION THAT COULD CAUSE THE UNDERLYING ASSETS OF THE ISSUER TO BE TREATED AS ASSETS OF THE INVESTOR BY VIRTUE OF ITS INTEREST AND THEREBY SUBJECT THE ISSUER AND THE MANAGER (OR OTHER PERSONS RESPONSIBLE FOR THE INVESTMENT AND OPERATION OF THE ISSUER'S ASSETS) TO ANY

U.S. STATE, LOCAL OR FEDERAL, OR NON-U.S., LAWS OR REGULATIONS THAT ARE SUBSTANTIALLY SIMILAR TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED ("**ERISA**") OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE "**CODE**") (ANY SUCH LAW OR REGULATION, AN "**SIMILAR LAW**") AND (Y) ITS ACQUISITION, HOLDING AND DISPOSITION OF THIS SUBORDINATED NOTE OR INTEREST HEREIN WILL NOT CONSTITUTE OR RESULT IN A VIOLATION OF ANY (B) U.S. STATE, LOCAL OR FEDERAL, OR NON-U.S., LAWS OR REGULATIONS THAT ARE SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE ("**OTHER PLAN LAW**"), AND (II) IT WILL NOT SELL OR OTHERWISE TRANSFER THIS NOTE OR INTEREST HEREIN OTHERWISE THAN TO AN ACQUIRER OR TRANSFEREE THAT MAKES OR IS DEEMED TO MAKE THESE SAME REPRESENTATIONS, WARRANTIES AND AGREEMENTS WITH RESPECT TO ITS ACQUISITION, HOLDING AND DISPOSITION OF THIS NOTE. "**BENEFIT PLAN INVESTOR**" MEANS A "BENEFIT PLAN INVESTOR," AS DEFINED BY SECTION 3(42) OF ERISA, AND INCLUDES (I) AN EMPLOYEE BENEFIT PLAN (AS DEFINED IN SECTION 3(3) OF ERISA) THAT IS SUBJECT TO PART 4 OF SUBTITLE B OF TITLE I OF ERISA, (II) A PLAN AS DEFINED IN SECTION 4975(E)(1) OF THE CODE THAT IS SUBJECT TO SECTION 4975 OF THE CODE OR (III) AN ENTITY WHOSE UNDERLYING ASSETS INCLUDE "PLAN ASSETS" BY REASON OF AN INVESTMENT BY ANY SUCH EMPLOYEE BENEFIT PLAN OR PLAN IN THE ENTITY. "**CONTROLLING PERSON**" MEANS A PERSON (OTHER THAN A BENEFIT PLAN INVESTOR) WHO HAS DISCRETIONARY AUTHORITY OR CONTROL WITH RESPECT TO THE ASSETS OF THE ENTITY OR ANY PERSON WHO PROVIDES INVESTMENT ADVICE FOR A FEE (DIRECT OR INDIRECT) WITH RESPECT TO SUCH ASSETS, OR ANY AFFILIATE OF ANY SUCH PERSON. AN "**AFFILIATE**" OF A PERSON INCLUDES ANY PERSON, DIRECTLY OR INDIRECTLY THROUGH ONE OR MORE INTERMEDIARIES, CONTROLLING, CONTROLLED BY OR UNDER COMMON CONTROL WITH THE PERSON. "CONTROL" WITH RESPECT TO A PERSON OTHER THAN AN INDIVIDUAL MEANS THE POWER TO EXERCISE A CONTROLLING INFLUENCE OVER THE MANAGEMENT OR POLICIES OF SUCH PERSON.

NO TRANSFER OF A SUBORDINATED NOTE OR ANY INTEREST THEREIN WILL BE PERMITTED, AND THE TRUSTEE WILL NOT RECOGNISE ANY SUCH TRANSFER, IF IT WOULD CAUSE 25 PER CENT. OR MORE OF THE TOTAL VALUE OF THE CLASS I SUBORDINATED NOTES OR CLASS II SUBORDINATED NOTES TO BE HELD BY BENEFIT PLAN INVESTORS, DISREGARDING CLASS I SUBORDINATED NOTES AND CLASS II SUBORDINATED NOTES (OR INTERESTS THEREIN) HELD BY CONTROLLING PERSONS, AS DETERMINED FOR THE PURPOSES OF ERISA AND THE U.S. DEPARTMENT OF LABOR REGULATIONS THEREUNDER ("**25 PER CENT. LIMITATION**").

THE ISSUER HAS THE RIGHT, UNDER THE TRUST DEED, TO COMPEL ANY BENEFICIAL OWNER OF A SUBORDINATED NOTE WHO HAS MADE OR HAS BEEN DEEMED TO MAKE A PROHIBITED TRANSACTION, BENEFIT PLAN INVESTOR, CONTROLLING PERSON, SIMILAR LAW OR OTHER PLAN LAW REPRESENTATION THAT IS SUBSEQUENTLY SHOWN TO BE FALSE OR MISLEADING OR WHOSE OWNERSHIP OTHERWISE CAUSES A VIOLATION OF THE 25 PER CENT. LIMITATION TO SELL ITS INTEREST IN SUCH SUBORDINATED NOTE ON BEHALF OF SUCH OWNER.][1]

[ANY TRANSFER, PLEDGE OR OTHER USE OF THIS NOTE FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL SINCE THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN, UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY ("**DTC**"), NEW YORK, NEW YORK, TO THE ISSUER OR ITS AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE OR PAYMENT AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR OF SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT HEREON IS MADE TO CEDE & CO.).

---

[1] Insert in the case of Subordinated Notes.

TRANSFERS OF THIS NOTE SHALL BE LIMITED TO TRANSFERS IN WHOLE, BUT NOT IN PART, TO NOMINEES OF DTC OR TO A SUCCESSOR THEREOF OR SUCH SUCCESSOR'S NOMINEE.][2]

TRANSFERS OF THIS NOTE SHALL BE LIMITED TO TRANSFERS MADE IN ACCORDANCE WITH THE RESTRICTIONS SET FORTH IN THE INDENTURE REFERRED TO HEREIN, INCLUDING THE REQUIREMENT THAT A HOLDER MUST NOT BE A COLLER COMPETITOR (AS DEFINED IN THE INDENTURE).

PRINCIPAL OF THIS NOTE IS PAYABLE AS SET FORTH HEREIN. ACCORDINGLY, THE OUTSTANDING PRINCIPAL OF THIS NOTE AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ON THE FACE HEREOF. ANY PERSON ACQUIRING THIS NOTE MAY ASCERTAIN ITS CURRENT PRINCIPAL AMOUNT BY INQUIRY OF THE COLLATERAL TRUSTEE.

THIS NOTE HAS BEEN ISSUED WITH ORIGINAL ISSUE DISCOUNT ("**OID**") FOR UNITED STATES FEDERAL INCOME TAX PURPOSES. THE ISSUE PRICE, AMOUNT OF OID, ISSUE DATE AND YIELD TO MATURITY OF THIS NOTE MAY BE OBTAINED BY WRITING TO THE ISSUER.

Forced Sale of Notes

Any transfer of the Notes in violation of the foregoing restrictions will be void *ab initio* and will be disregarded by the Collateral Trustee.

By acceptance of any Note, the purchaser agrees that in the event that the Issuer or its transfer agent determines in good faith that a holder of the Notes (or any beneficial or economic interest therein) is in breach, at the time given, of any of the representations, warranties, acknowledgements or agreements set forth in the Indenture or in the applicable legends set forth in such Notes, the Issuer shall consider the acquisition of the Notes (or any beneficial or economic interests therein) void, of no force and effect, and the purported transfer will not, at the discretion of the Issuer, operate to transfer any rights to the transferee notwithstanding any instructions to the contrary to the Issuer, the transfer agent or any other intermediary. The Issuer or its transfer agent may require such acquirer of the Notes (or any beneficial or economic interests therein) to transfer such Notes (or such beneficial or economic interests therein) to a transferee acceptable to the Issuer who is able to and who does make all of the representations, warranties, acknowledgements and agreements set forth in the Indenture and in the applicable legends set forth in such Notes. Pending such transfer, such holder will be deemed not to be the holder of such Notes (or any beneficial or economic interests therein) for any purpose, including but not limited to receipt of interest and redemption payments on such Notes (or any beneficial or economic interests therein) or distributions upon the liquidation of the Issuer, and such holder will be deemed to have no interest whatsoever in such Notes (or any beneficial or economic interests therein) except as otherwise required to redeem or sell its interest therein. If any Person shall become a Non-Permitted ERISA Holder, such purchase and holding shall be deemed void and the Issuer shall, in its sole discretion, promptly after discovery that such person is a Non-Permitted ERISA Holder by the Issuer or upon notice from the Collateral Trustee (if a trust officer of the Collateral Trustee obtains actual knowledge), if either of them makes the discovery (who, in each case, agrees to notify the Issuer of such discovery, if any), send notice to such Non-Permitted ERISA Holder demanding that such Non-Permitted ERISA Holder transfer its Notes or interest therein to a Person that is not a Non-Permitted ERISA Holder (and that is otherwise eligible to hold such Notes or interest therein) within ten (10) calendar days after the date of such notice.

If any Holder of Notes (i) becomes a Non-Permitted AML Holder, (ii) its Holder AML Information is not accurate or complete, or (iii) the Issuer otherwise reasonably determines that such Holder's acquisition, holding or transfer of an interest in any Note would cause the Issuer to be unable to achieve AML Compliance, the Issuer (or any intermediary on the Issuer's behalf) shall have the right to (x) compel such Holder to sell its interest in such Note or (y) sell such interest on such Holder's behalf. The Issuer shall not compel sales for failure to provide such other information or documentation as may be required under the Cayman AML Regulations unless the Issuer reasonably determines the Holder's acquisition, holding or transfer of an interest in such Note would result in a materially adverse effect on the Issuer.

---

[2] Insert in the case of Global Notes only.

GENERAL INFORMATION

1. For the term of the Notes, copies of the Memorandum and Articles of Association of the Issuer, the Management Deed and the Indenture will be available for inspection in electronic form at the corporate trust office of the Collateral Trustee.

2. The Issuer is not required by Cayman Islands law, and the Issuer does not intend, to publish annual reports and accounts.

3. The Notes to be sold in offshore transactions in reliance on Regulation S under the Securities Act and represented by the Regulation S Global Notes are expected to be accepted for clearance through Clearstream and Euroclear. The Notes sold to persons that are Qualified Institutional Buyers and Qualified Purchasers in reliance on Rule 144A under the Securities Act and represented by Global Notes have been accepted for clearance through DTC. The CUSIP Numbers and International Securities Identification Numbers (ISIN) for the Notes represented by Global Notes are as indicated below.

	Rule 144A		**Regulation S**	
	CUSIP	**ISIN**	**CUSIP**	**ISIN**
Class A Notes	12560D AA6	US12560DAA63	G3001D AA5	USG3001DAA57
Class B Notes	12560D AB4	US12560DAB47	G3001D AB3	USG3001DAB31
Class I Subordinated Notes	12560D AC2	US12560DAC20	G3001D AC1	USG3001DAC14
Class II Subordinated Notes	12560D AE8	US12560DAE85	G3001D AD9	USG3001DAD96

LEGAL INVESTMENT MATTERS; VOLCKER RULE

Purchasers of Notes must take into consideration the applicability of statutes, rules, regulations, orders, guidelines or agreements generally governing investments made by a particular investor, including, but not limited to "prudent investor" provisions, percentage-of-assets limits and provisions which may restrict or prohibit investment in securities which are not "interest bearing" or "income paying". There may be other restrictions on the ability of certain investors, including depository institutions, either to purchase Notes or to purchase Notes representing more than a specified percentage of such investor's assets. Investors should consult their own legal advisors in determining whether and to what extent the Notes constitute legal investments for such investors.

None of the Issuer, the Manager, the Initial Purchaser, the Administrator, the Loan Agent, the Collateral Administrator or the Collateral Trustee makes any representation as to the proper characterization of the Notes for legal investment, financial institution, regulatory or other purposes, or as to the ability of particular investors to purchase the Notes under applicable legal investment restrictions. Further, with regard to any Class of Secured Notes rated by the Rating Agency or another NRSRO, an initial rating of, or downgrade of a prior rating to, less than an "investment grade" rating (*i.e.*, lower than the top four rating categories) may adversely affect the ability of an investor to purchase or retain, or otherwise impact the regulatory characteristics of, that Class. In addition, since the Subordinated Notes are not being rated by the Rating Agency or another NRSRO (unless an NRSRO issues an unsolicited rating), that may adversely affect the ability of an investor to purchase or retain, or otherwise impact the regulatory characteristics of, those Notes. The uncertainties described above (and any unfavorable future determinations concerning the legal investment or financial institution regulatory characteristics of the Notes) may absolutely affect the liquidity and market value of the Notes.

Accordingly, if your investment activities are subject to laws and/or regulations, regulatory capital requirements or review by regulatory authorities you should consult your own legal advisors in determining whether and to what extent the Notes constitute a legal investment or are subject to investment, capital or other regulatory restrictions.

The Issuer is expected to rely on the exemptions from the Investment Company Act's definition of "investment company" available under Section 3(c)(7) of the Investment Company Act. As a result, the Issuer may be a "covered fund" for purposes of the Volcker Rule, and accordingly banking entities (as defined under the Volcker Rule implementing regulations) may be restricted from, among other things, acquiring or retaining an "ownership interest" in the Issuer. Any investment in the Issuer made by a banking entity, therefore, will need to be made and held in accordance with the limits and conditions of the Volcker Rule implementing regulations. See "*Risk Factors—Legal and Regulatory Risks—Legal and Regulatory Developments—The Volcker Rule*".

LEGAL MATTERS

Certain legal matters with respect to the Debt will be passed upon for the Initial Purchaser and the Issuer by Cadwalader, Wickersham & Taft LLP. Certain legal matters with respect to Cayman Islands law will be passed upon for the Issuer and the Manager by Walkers. Certain legal matters with respect to the Debt will be passed upon for the Manager by Clifford Chance US LLP.

GLOSSARY OF DEFINED TERMS

"***Administrative Expense Cap***": An amount on any Payment Date (when taken together with any Administrative Expenses paid during the period since the preceding Payment Date or, in the case of the first Payment Date, the Closing Date (excluding closing costs)) equal to the sum of (a) 0.03% *per annum* (prorated for the related Interest Accrual Period on the basis of a 360-day year and the actual number of days elapsed) of the Aggregate Outstanding Amount of all Debt on the immediately preceding Payment Date (or, in connection with the first Payment Date, on the Closing Date) and (b) $500,000 per annum (prorated for the related Interest Accrual Period on the basis of a 360-day year and the actual number of days elapsed); *provided*, *however*, that, if the amount of Administrative Expenses paid under the Administrative Expense Cap (including any excess applied in accordance with this proviso) on the three immediately preceding Payment Dates pursuant to clause (a)(i) of the Ordinary Priority of Payments is less than the stated Administrative Expense Cap (without regard to any excess applied in accordance with this proviso) in the aggregate for such three preceding Payment Dates, the excess may be applied to the Administrative Expense Cap with respect to the then-current Payment Date; *provided*, *further,* that in respect of the first three Payment Dates after the Closing Date, such excess amount shall be calculated based on the Payment Dates preceding such Payment Date.

"***Administrative Expenses***": The fees, costs and expenses (including indemnities) and other amounts due or accrued with respect to any Payment Date or Redemption Date, as applicable (including, with respect to any such date, any such amounts that were due and not paid on any prior Payment Date or Redemption Date), and payable in the following order by the Issuer: (A) *first*, fees, costs and expenses (including, but not limited to, indemnities) payable to the Bank, the Loan Agent, the Collateral Administrator, the Subscription Escrow Agent, the Financial Reporting Agent, the Liquidity Agent and the Collateral Trustee pursuant to the Indenture in each of their capacities hereunder and under the other Transaction Documents, (B) *second*, without duplication of the foregoing, on a *pro rata* basis, fees, costs and expenses (excluding indemnities) payable to the following parties or otherwise related to the following matters: (i) (a) the Manager, including costs and expenses payable to the Manager under the Management Deed (including amounts recharged by the Manager to the Issuer in accordance with the Management Deed) and fees, costs and expenses of third parties to whom the Manager has delegated rights and obligations or which the Manager has otherwise retained to provide services for the Manager or the Issuer (but excluding the Manager Fee) and (b) any other Affiliate of Coller, as reimbursement in respect of fees, costs or expenses paid by such Affiliate on behalf of the Issuer; (ii) any accountants, administrators, agents, counsel or other professional service providers of the Issuer or appointed by the Issuer (other than the Manager), including any fees, costs and expenses related to any amendment to the Transaction Documents; (iii) the Rating Agency for fees and expenses (including any annual fee, amendment fees and surveillance fees) in connection with any rating of the Debt; (iv) the Administrator pursuant to the Administration Agreement; (v) any Person in respect of Petition Expenses in excess of the Petition Expense Amount; and (vi) any other Person in respect of any other fees or expenses permitted under the Indenture and the documents delivered pursuant to or in connection with the Indenture (including any expenses related to complying with the tax laws, the payment of facility rating fees and the payment to any website providers) and the Debt, including but not limited to, any amounts due in respect of the listing of any Debt on any trading system and (C) *third*, without duplication of the foregoing, on a *pro rata* basis, indemnities payable to any Person pursuant to any Transaction Document; provided that, for the avoidance of doubt, amounts that are expressly payable to any Person under the Priority of Payments in respect of an amount that is stated to be payable as an amount other than as Administrative Expenses (including, without limitation, interest and principal in respect of the Secured Debt and distributions on the Subordinated Notes) shall not constitute Administrative Expenses; provided further, that any Administrative Expenses payable pursuant to the *first* or *second* priority clauses will be paid in full in accordance with such clause in the order in which they were incurred, and any Administrative Expenses payable pursuant to the *third* or *fourth* priority clauses, as applicable, will be paid in accordance with such clause on a *pro rata* basis among the Administrative Expenses in the relevant priority clause.

"***Affiliate***": With respect to a Person, (i) any other Person who, directly or indirectly, is in control of, or controlled by, or is under common control with, such Person or (ii) any other Person who is a director, Officer, employee or general partner (a) of such Person, (b) of any subsidiary or parent company of such Person or (c) of any Person described in clause (i) above. For the purposes of this definition, "control" of a Person shall mean the power, direct or indirect, (x) to vote more than fifty percent (50%) of the securities having ordinary voting power for the election of directors of such Person or (y) to direct or cause the direction of the management and policies of such Person whether by contract or otherwise. For purposes of this definition, (a) no entity to which the Manager provides investment management or advisory services shall be deemed an Affiliate of the Manager solely because the Manager acts in such

capacity, (b) an obligor shall not be considered an Affiliate of any other obligor solely due to the fact that each such obligor is under the control of the same financial sponsor and (c) the Administrator or any of its Affiliates shall not be an Affiliate of the Issuer and no entity shall be deemed to be an Affiliate of the Issuer solely because the Administrator or any of its Affiliates acts as administrator or share trustee for such entity. For purposes of this definition, the funds, client accounts or proprietary accounts managed, advised or sub-advised by one or more of the principals of Coller, Coller and/or one or more of their respective Affiliates, any other investment vehicles that Coller may establish from time to time and portfolio companies of any of the foregoing shall not be deemed Affiliates of the Issuer or the Manager.

"***Aggregate Outstanding Amount***": With respect to any of the Debt as of any date, the aggregate unpaid principal amount of such Debt Outstanding on such date.

"***AML Compliance***": Compliance with the Cayman AML Regulations.

"***Asset Value***": The sum of (a) the product of (i) the net asset value of the LP Interest held by the Issuer multiplied by (ii) one minus the Excess Concentration Percentage plus (b) the Cash Investment Amount.

"***Bank***": The Bank of New York Mellon Trust Company, National Association, a limited purpose national banking association, in its individual capacity, or any successor thereto.

"***Borrowing Base***": The amount equal to the sum of (a) the Asset Value plus (b) the amounts on deposit in the Accounts (including Eligible Investments therein).

"***Business Day***": Any day other than (i) a Saturday or a Sunday or (ii) a day on which commercial banks are authorized or required by applicable law, regulation or executive order to close in New York, New York or in the city in which the corporate trust office of the Collateral Trustee or, with respect to actions by the Loan Agent, the corporate trust office of the Loan Agent, is located or, for any final payment of principal, in the relevant place of presentation.

"***Capital Commitment***": The capital commitment of the Issuer to the Fund, in the amount set forth in the Underlying Fund Documents as of the Closing Date, which is expected to be $262,800,000 on the Closing Date or, as applicable, in the amount as agreed in writing between the Issuer and the Fund as of the closing date for subsequent issuances as described under ""*Description of the Debt—The Indenture—Additional Debt*."

"***Cash***": Such funds denominated in currency of the United States of America as at the time shall be legal tender for payment of all public and private debts, including, as applicable, funds standing to the credit of an Account.

"***Cayman AML Regulations***": The Anti-Money Laundering Regulations (2020 Revision) and The Guidance Notes on the Prevention and Detection of Money Laundering and Terrorist Financing in the Cayman Islands (or equivalent legislation and guidance, as applicable), each as amended and revised from time to time.

"***Cayman-US IGA***": The intergovernmental agreement between the Cayman Islands and the United States signed on November 29, 2013 (including any implementing legislation, rules, regulations and guidance notes), as the same may be amended from time to time.

"***Class***": In the case of (a) the Secured Debt, all of the Secured Debt having the same Interest Rate, Final Maturity Date and designation and (b) the Subordinated Notes, all of the Subordinated Notes; *provided* that, for any vote, request, demand, authorization, direction, notice, consent, waiver, objection or similar action under the Indenture or any other Transaction Document, any Pari Passu Classes shall constitute a single Class; *provided further*, that additional debt of an existing Class of Debt issued as described under "*Description of the Debt—The Indenture—Additional Debt*" shall comprise the same Class of such existing Class notwithstanding the fact that such additional debt may be issued or incurred with an Interest Rate that is not identical to that of the initial Debt of such Class; *provided further* that, (x) Pari Passu Classes and (y) the Class I Subordinated Notes and the Class II Subordinated Notes shall, in each case, be treated as separate Classes solely in connection with (i) any determination as to whether a proposed supplemental indenture or amendment would have a material adverse effect on any Class of Notes and (ii) any vote in connection with a proposed supplemental indenture or amendment that would have a material adverse effect on either Sub-Class of the Class A Notes, the Class B Notes or the Subordinated Notes, as applicable, but not both such Sub-Classes.

"***Class A Debt***": Collectively, the Class A Notes and the Class A Loans.

"***Class A Lender***": Each lender party to the Credit Agreement from time to time, and reflected as a holder of the Class A Loans in the Loan Register.

"***Clearstream***": Clearstream Banking, société anonyme, a corporation organized under the laws of the Duchy of Luxembourg or any successor clearing corporation.

"***Code***": The U.S. Internal Revenue Code of 1986, as amended.

"***Collection Period***": With respect to any Payment Date or Redemption Date, the period commencing immediately following the prior Collection Period (or on the Closing Date, in the case of the Collection Period relating to the first Payment Date) and ending (i) on (and including) the Cut-Off Date with respect to such Payment Date or Redemption Date (to the extent such Redemption Date is a Refinancing Date) or (ii) in the case of the final Collection Period preceding the latest Final Maturity Date of any Class of Notes or the final Collection Period preceding a Redemption by Liquidation, the Cut-Off Date with respect to such Final Maturity Date or the Redemption Date.

"***Coller***": Coller Investment Management Limited, together with its affiliates.

"***Coller Competitor***": Any private equity fund, hedge fund or other person whose primary business is the management of, or investment in, private equity funds or hedge funds or similar entities and in each case any Affiliate of such person, but excluding any commercial or investment bank or insurance company; provided that any private equity fund, hedge fund or other similar entity sponsored by a commercial or investment bank or insurance company shall be deemed to be a Coller Competitor.

"***Coller Group***": CICAP Limited and its direct and indirect subsidiaries.

"***Concentration Measure***": (a) During the Fund Investment Period, the greater of (i) the aggregate capital commitments in the Fund and (ii) the Fund FMV and (b) thereafter, the Fund FMV.

"***Controlling Class***": (i) The Class A Debt, so long as any Class A Debt is Outstanding; and then (ii) the Class B Notes, so long as any Class B Notes are Outstanding; and then (iii) the Subordinated Notes, so long as any Subordinated Notes are Outstanding, *provided*, *however*, that the Liquidity Lenders shall become the Controlling Class if all obligations under the Liquidity Loan Facility have not been fully repaid as of the date that is eighteen (18) months after the occurrence of a Liquidity Loan Event of Default which has not been cured or waived (or, if such day is not a Business Day, as of the immediately following Business Day); *provided further* that, notwithstanding the expiration of such eighteen (18) month period, the Liquidity Lenders will not become the Controlling Class if, before the end of such period, the Issuer, the Manager and a Majority of the Controlling Class have agreed to a formal plan that specifies steps to be taken to fully repay all obligations owed by the Issuer to the Liquidity Agent and the Liquidity Lenders under the Liquidity Loan Facility, and such formal plan has been approved by each of the Liquidity Lenders, such approval not to be unreasonably withheld.

"***Cut-Off Date***": With respect to (a) any Payment Date and any Refinancing Date, the close of business on the last Business Day of the immediately preceding calendar month and (b) any Redemption Date (other than a Refinancing Date) and the Final Maturity Date, the immediately preceding Business Day.

"***Default***": Any event or any occurrence that is, or after notice or the lapse of time or both would, unless cured or waived in accordance with the provisions of the Indenture, be, an Event of Default.

"***Defaulting Partner***": The meaning assigned to "Defaulting Partner" (or an equivalent term) in the Underlying Fund Documents.

"***Deferred Interest***": With respect to any Class of Secured Debt, any payment of interest due on such Class on any Payment Date to the extent sufficient funds are not available to make such payment in accordance with the Priority of Payments on such Payment Date.

"***Distribution Conditions***": With the respect to any Payment Date, the following conditions that will be satisfied if:

(a) the Loan-to-Value Ratio calculated as of the Cut-Off Date corresponding to such Payment Date is less than or equal to seventy percent (70%) (on a pro forma basis after giving effect to all payments and distributions to be made under the Priority of Payments on such Payment Date);

(b) with respect to any Payment Date following the sixth (6th) anniversary of the Closing Date, the Aggregate Outstanding Amount of the Secured Debt (on a pro forma basis after giving effect to all payments and distributions to be made under the Priority of Payments on such Payment Date) is less than or equal to fifty percent (50%) of the Initial Principal Balance of the Secured Debt;

(c) such Payment Date occurs prior to the eighth (8th) anniversary of the Closing Date;

(d) the number of unique Fund Portfolio Investments as of the Cut-Off Date corresponding to such Payment Date is greater than or equal to 50; and

(e) the Borrowing Base calculated as of the Cut-Off Date corresponding to such Payment Date is greater than or equal to an amount equal to (i) the Capital Commitment divided by (ii) 6.

"***DTC Agency Agreement***": The DTC Agency Agreement, dated as of the Closing Date, between the Issuer and Morgan Stanley & Co. LLC, as DTC agent.

"***Eligible Investment Required Ratings***": If such obligation or security (a) has both a long-term and a short-term credit rating from Moody's, such ratings are "Aa3" or higher (not on credit watch for possible downgrade) and "P-1" (not on credit watch for possible downgrade), respectively, (b) has only a long-term credit rating from Moody's, such rating is at least equal to or higher than the current Moody's long-term ratings of the U.S. government, and (c) has only a short-term credit rating from Moody's, such rating is "P-1" (not on credit watch for possible downgrade); provided that any security issued by an agency or instrumentality of the United States of America the obligations of which are expressly backed by the full faith and credit of the United States of America shall not be required to have such ratings.

"***Eligible Investments***": Any investment that, at the time it is delivered to the Collateral Trustee (directly or through a securities intermediary or bailee), is one or more of the following obligations or securities:

(a) obligations issued or guaranteed by the U.S. government or other securities evidencing the right to receive the principal of and interest thereon which, in the case of such other securities, at the time of such investment or contractual commitment providing for such investment have the Eligible Investment Required Ratings;

(b) demand and time deposits in, certificates of deposit of, trust accounts with, bankers' acceptances issued by, or federal funds sold by any depository institution or trust company (including the Bank in its individual capacity and Affiliates of the Bank) incorporated under the laws of the United States of America or any state thereof and subject to supervision and examination by federal and/or state banking authorities, in each case payable within 183 days after issuance, so long as the commercial paper and/or the debt obligations of such depository institution or trust company at the time of such investment or contractual commitment providing for such investment have the Eligible Investment Required Ratings;

(c) unleveraged repurchase obligations with respect to (i) any security described in clause (a) above or (ii) any other security issued or guaranteed by an agency or instrumentality of the United States of America, in either case entered into with a depository institution or trust company (acting as principal) described in clause (b) above or entered into with an entity (acting as principal) with, or whose parent company has, the Eligible Investment Required Ratings;

(d) securities bearing interest or sold at a discount issued by any entity formed under the laws of the United States of America or any State thereof that have a credit rating of "Aaa" from Moody's and "AAA" from S&P at the time of such investment or contractual commitment providing for such investment;

(e) commercial paper or other short-term obligations with the Eligible Investment Required Ratings and that either bear interest or are sold at a discount from the face amount thereof and have a maturity of not more than 183 days from their date of issuance; *provided* that this clause (e) shall not include extendible commercial paper or asset backed commercial paper;

(f) a Reinvestment Agreement issued by any bank (if treated as a deposit by such bank), or a Reinvestment Agreement issued by any insurance company or other corporation or entity, in each case with the Eligible Investment Required Ratings and which satisfies the Rating Condition; and

(g) shares or other securities of money market funds which funds have, at all times, the highest credit rating assigned by any nationally recognized statistical rating organization, including S&P, Moody's and Fitch, including any fund for which the Collateral Trustee or an Affiliate thereof serves as an investment advisor, administrator, shareholder, servicing agent, custodian or subcustodian;

provided that (i) Eligible Investments shall be held until maturity except as otherwise specifically provided herein and shall include only such obligations or securities, other than those referred to in clause (g) above, that mature (or are putable at par to the issuer thereof) no later than the earlier of 60 days and the Business Day prior to the next Payment Date (unless such Eligible Investments are issued by the Collateral Trustee in its capacity as a banking institution in which case such Eligible Investments may mature on such Payment Date), (ii) such investments shall not be asset-backed securities, (iii) such investments shall be in the same currency as the Debt, and (iv) such investments may include investments for which the Collateral Trustee and/or their respective Affiliates acts as offeror, provides services or receives compensation; *provided*, *further*, that such Eligible Investments shall not be subject to deduction or withholding for or on account of any withholding or similar tax, unless the payor is required to make "gross up" payments that ensure that the net amount actually received by the Issuer (free and clear of taxes, whether assessed against such obligor or the Issuer) shall equal the full amount that the Issuer would have received had no such deduction or withholding been required.

"***Euroclear***": Euroclear Bank S.A./N.V. as the operator of the Euroclear system and any successor or successors thereto.

"***Excess Concentration Percentage***": The sum, without duplication, of the following (expressed as a percentage of the Concentration Measure):

(a) the excess, if any, of the aggregate value of all Fund Portfolio Investments in funds whose strategy is classified by the Fund Manager as venture capital over an amount equal to 20.0% of the Concentration Measure; plus

(b) the excess, if any, of the aggregate value of all Fund Portfolio Investments in funds whose geographic region is classified by the Fund Manager as being outside of North America, the European Union, Australia, the United Kingdom or Japan over an amount equal to 25.0% of the Concentration Measure; plus

(c) the excess, if any, of the aggregate value of the Fund Portfolio Investments in the three largest funds over an amount equal to 35.0% of the Concentration Measure; plus

(d) the excess, if any, of the aggregate value of the Fund Portfolio Investments in the five largest funds over an amount equal to 50.0% of the Concentration Measure; plus

(e) the excess, if any, of the aggregate value of the Fund Portfolio Investments in the fifteen largest funds over an amount equal to 65.0% of the Concentration Measure.

"***Exchange Act***": The U.S. Securities Exchange Act of 1934, as amended.

"***FATCA***": Sections 1471 through 1474 of the Code, any current or future regulations or official interpretations thereof, any agreement entered into pursuant to section 1471(b) of the Code, any intergovernmental agreement entered into in connection with such sections of the Code (including the Cayman-US IGA), or any U.S. or non-U.S. fiscal or regulatory legislation, rules, practices or guidance notes adopted pursuant to any such intergovernmental agreement.

"***Fee Letter***": Any fee letter or letters between the Class A Lenders and the Issuer, entered on, prior to or after the Closing Date.

"***Financial Reporting Agent***": The Bank of New York Mellon Trust Company, National Association in its capacity as administrator under the Financial Reporting Services Agreement.

"***Financial Reporting Services Agreement***": The financial reporting services agreement, dated as of the Closing Date, between the Issuer and the Financial Reporting Agent.

"***Fitch***": Fitch Ratings, Inc., together with its successors.

"***Fund FMV***": The aggregate of the "Fair Market Value" (as defined in the Underlying Fund Documents) for all of the Fund Portfolio Investments disregarding any financing facilities and deferred payment arrangements with respect to Fund Portfolio Investments.

"***Fund Investment Period***": The meaning assigned to "Investment Period" (or an equivalent term) in the Underlying Fund Documents.

"***Fund Liquidation Date***": The date upon which all the assets of the Fund have been liquidated and its liabilities accounted for and settled.

"***Fund LPA***": The meaning specified in Annex A hereto.

"***Holder AML Information***": Any information and documentation, and any updates, replacement or corrections of such information or documentation, requested by the Issuer (or the Administrator, as applicable) to be provided by a Holder to the Issuer (or the Administrator, as applicable) that in the reasonable determination of the Issuer (or the Administrator, as applicable) is required for the Issuer to achieve AML Compliance.

"***Indenture***": The indenture and security agreement, dated as of the Closing Date, between the Issuer and the Collateral Trustee, as amended or supplemented from time to time.

"***Initial Majority Class A Investor***": The Class A Lender under the Credit Agreement on the Closing Date.

"***Initial Principal Balance***": With respect to the Debt of any Class, the aggregate principal amount of such Class of Debt issued and Outstanding on and as of the Closing Date and specified in the Terms Table.

"***Initial Rating***": With respect to the Secured Debt, the rating or ratings, if any, indicated in the Terms Table.

"***Interest Accrual Period***": (i) With respect to the first Payment Date, the period from and including the Closing Date to, but excluding, the first Payment Date and (ii) with respect to each succeeding Payment Date, the period from and including the immediately preceding Payment Date to, but excluding, the following Payment Date, until the principal of the Debt is paid or made available for payment (or in the case of any Debt that is being redeemed or prepaid on a Redemption Date, to, but excluding such Redemption Date); provided that, (i) for purposes of determining any Interest Accrual Period, the Payment Date will be assumed to be the 15th day of the relevant month (irrespective of whether such day is a Business Day) and (ii) any interest-bearing Debt issued or incurred after the Closing Date in accordance with the terms of the Indenture and the Credit Agreement will accrue interest during the Interest Accrual Period in which such additional notes are issued or loans are incurred from and including the applicable date of issuance or incurrence of such additional debt to and including the last day of such Interest Accrual Period.

"***Investment Advisers Act***": The U.S. Investment Advisers Act of 1940, as amended.

"***Investment Company Act***": The U.S. Investment Company Act of 1940, as amended.

"***IRS***": The United States Internal Revenue Service.

"***Junior Class***": With respect to a particular Class of Debt, each Class of Debt that is subordinated to such Class, as indicated in the Terms Table.

"***Kroll***": Kroll Bond Rating Agency, Inc., and any successor thereto.

"***Liquidity Agent***": The administrative agent under the Liquidity Loan Facility, or any successor administrative agent under the Liquidity Loan Facility, or any administrative agent under a replacement Liquidity Loan Facility entered into in accordance with the Indenture (including any successor thereto).

"***Loan Register***": The loan register maintained by the Loan Agent pursuant to the Credit Agreement.

"***Loan-to-Value Ratio***": The ratio (expressed as a percentage) calculated as (x) the sum of (i) the Aggregate Outstanding Amount of the Secured Debt and (ii) the aggregate principal amount of Liquidity Loans outstanding under the Liquidity Loan Facility, *divided by (y)* the Borrowing Base.

"***Majority***": With respect to (a) any Class or Classes of Debt, the Holders of more than fifty percent (50%) of the Aggregate Outstanding Amount of the Debt of such Class or Classes and (b) any Sub-Class of Debt, the Holders of more than 50% of the Aggregate Outstanding Amount of such Sub-Class.

"***Management Deed***": The management deed, dated as of the Closing Date, by and among the Issuer and the Manager relating to, among other things, the provision of certain management and administrative services and the servicing of the Assets by the Manager on behalf of the Issuer, including any management deed entered into with a successor Manager.

"***Manager Debt***": As of any date of determination, (a) all Debt held on such date by (i) the Manager, (ii) any Affiliate of the Manager or (iii) any account, fund, client or portfolio managed or advised on a discretionary basis by the Manager or any of its Affiliates and (b) all Debt as to which economic exposure is held on such date (whether through any derivative financial transaction or otherwise) by any Person identified in the foregoing clause (a); *provided* that, the foregoing shall not include any Debt for any period of time during which the right to control the voting decision on such Debt, as applicable, has been assigned to (i) another Person not controlled by the Manager or any of its Affiliates or (ii) an advisory board or other independent committee of the governing body.

"***Maturity***": With respect to any Debt, the date on which the unpaid principal of such Debt becomes due and payable as therein or herein provided, whether at the Final Maturity Date or by declaration of acceleration, call for redemption, prepayment or otherwise.

"***Memorandum and Articles***": The Issuer's Memorandum and Articles of Association, as they may be amended, revised or restated from time to time.

"***Moody's***": Moody's Investors Service, Inc. and any successor thereto.

"***Non-Call Period***": The period from the Closing Date to but excluding September 28, 2025.

"***Non-Permitted AML Holder***": Any Holder that fails to provide its Holder AML Information.

"***Notes***": Collectively, the Secured Notes and the Subordinated Notes.

"***offshore transaction***": The meaning specified in Regulation S.

"***Optional Redemption***": A Redemption by Liquidation, a Refinancing or a Subordinated Notes Redemption, as the case may be.

"***Outstanding***": With respect to the Debt or the Debt of any specified Class, as of any date of determination, all of the Debt or all of the Debt of such Class, as the case may be, theretofore authenticated and delivered under the Indenture, except:

(ii) (x) Notes theretofore canceled by the Registrar or delivered to the Registrar for cancellation in accordance with the terms of the Indenture or (y) Class A Loans that prepaid or repaid in accordance with the Credit Agreement;

(iii) Debt or portions thereof for whose payment, prepayment or redemption funds in the necessary amount have been theretofore irrevocably deposited with the Collateral Trustee, the Loan Agent or any paying agent in trust for the Holders of such Debt pursuant to the Indenture and/or the Credit Agreement, as applicable; *provided*, that if such Debt or portions thereof are to be redeemed or prepaid, as applicable, notice of such redemption or prepayment has been duly given pursuant to the Indenture, the Credit Agreement or provision therefor satisfactory to the Collateral Trustee or the Loan Agent, as applicable, has been made;

(iv) Debt in exchange for or in lieu of which other Debt has been authenticated and delivered pursuant to the Indenture or incurred pursuant to the Credit Agreement, as applicable, unless proof satisfactory to the Collateral Trustee or the Loan Agent, as applicable, is presented that any such Debt is held by a "protected purchaser" (within the meaning of Section 8-303 of the UCC); and

(v) Notes alleged to have been mutilated, defaced, destroyed, lost or stolen for which replacement Notes have been issued as provided in the Indenture;

provided, that in determining whether the Holders of the requisite Aggregate Outstanding Amount have given any request, demand, authorization, direction, notice, consent or waiver under the Indenture or the Management Deed the following Debt shall be disregarded and deemed not to be Outstanding: (x) Debt owned by the Issuer and (y) only in the case of a vote on (i) the removal of the Manager following a Cause Event and any related termination of the Management Deed, (ii) the appointment or approval of a successor Manager pursuant to the Management Deed, (iii) the waiver of any Cause Event as a basis for termination of the Management Deed and removal of the Manager and (iv) as otherwise specified in the Indenture or in the Management Deed, any Manager Debt, except in each case that (1) in determining whether the Collateral Trustee shall be protected in relying upon any such request, demand, authorization, direction, notice, consent or waiver, only Debt that a trust officer of the Collateral Trustee actually knows to be so owned or to be Manager Debt shall be so disregarded and (2) Debt so owned that have been pledged in good faith may be regarded as Outstanding if the pledgee establishes to the satisfaction of the Collateral Trustee the pledgee's right so to act with respect to such Debt and that the pledgee is not one of the Persons specified above.

"***Pari Passu Class***": With respect to any specified Class of Debt, each Class of Debt that ranks *pari passu* to such Class, as indicated in the Terms Table.

"***Person***": An individual, corporation (including a business trust), partnership, limited liability company, joint venture, association, joint stock company, trust (including any beneficiary thereof), unincorporated association or government or any agency or political subdivision thereof.

"***Priority Class***": With respect to any specified Class of Debt, each Class of Debt that ranks senior to such Class, as indicated in the Terms Table.

"***Rating Agency***": Kroll, or if at any time Kroll ceases to provide rating services with respect to the Secured Debt, any other nationally recognized investment rating agency selected by the Issuer (or the Manager on behalf of the Issuer) if and only if the Issuer has notified the Collateral Trustee and the Loan Agent in writing that such other rating agency is to become a Rating Agency for purposes of the Indenture.

"***Rating Condition***": A condition that is satisfied at any time that any Class of Secured Debt is Outstanding and rated by the Rating Agency, if the Rating Agency has confirmed in writing (which may take the form of a press release or other written communication, which may be in electronic form or any other form then considered industry standard) that the Rating Agency will not downgrade or withdraw the then-current ratings (or Initial Ratings) of any Class of Secured Debt as a result of the action taken or to be taken which requires satisfaction of the Rating Condition.

"***Rating Criteria***": Either (a) a short-term rating of at least "A-2" and a long-term rating of at least "BBB" by S&P or (b) a counterparty risk assessment of at least "Baa1 (cr)" by Moody's.

"***Record Date***": (x) With respect to a Payment Date, the first (1st) calendar day of the month of such given Payment Date or (y) with respect to a Redemption Date, fifteen (15) calendar days before such given Redemption Date.

"***Redemption Date***": Any Business Day specified for a full redemption and prepayment of Debt (including a Subordinated Notes Redemption).

"***Refinancing Date***": Any Business Day on which a Refinancing occurs.

"***Refinancing Proceeds***": The net Cash proceeds from a Refinancing.

"***Regulation S***": Regulation S under the Securities Act.

"***Reinvestment Agreement***": A guaranteed reinvestment agreement from a bank, insurance company or other corporation or entity; *provided*, *however*, that such agreement provides that it is terminable by the purchaser, without penalty, in the event that the rating assigned to such agreement by S&P or Moody's is at any time lower than such agreement's Eligible Investment Required Rating.

"***Rule 144A***": Rule 144A under the Securities Act.

"***S&P***": S&P Global Ratings, an S&P Global business, and any successor or successors thereto.

"***Sale Proceeds***": All proceeds (excluding accrued interest, if any) received with respect to Assets as a result of sales of such Assets less any reasonable expenses incurred by the Collateral Trustee, the Issuer or the Manager (other than amounts payable as Administrative Expenses) in connection with such sales.

"***Securities Account Control Agreement***": The securities account control agreement with respect to the Accounts, dated as of the Closing Date, among the Issuer, the Collateral Trustee and the Bank, as custodian.

"***Securities Act***": The U.S. Securities Act of 1933, as amended.

"***Sub-Class***": With respect to (a) the Class A Debt, the Class A Notes and the Class A Loans and (b) the Subordinated Notes, the Class I Subordinated Notes and the Class II Subordinated Notes.

"***Subscription Agreements***": The subscription agreements among the Issuer and each purchaser of Notes, as amended from time to time.

"***Subscription Escrow Agent***": The Bank of New York Mellon Trust Company, National Association in its capacity as subscription escrow agent under the Subscription Escrow Agreement.

"***Subscription Escrow Agreement***": The subscription escrow agreement, dated as of September 23, 2020 between the Issuer and the Subscription Escrow Agent.

"***Supermajority***": With respect to (a) any Class of Debt, the Holders of at least sixty six and two thirds percent (66⅔%) of the Aggregate Outstanding Amount of the Debt of such Class and (b) any Sub-Class of Debt, the Holders of more than sixty six and two thirds percent (66⅔%) of the Aggregate Outstanding Amount of such Sub-Class.

"***Target Balance***": With respect to any Payment Date, the amount, as determined by the Manager, equal to the sum of the following amounts, in the aggregate, that will be payable by the Issuer on the next eight (8) succeeding scheduled Payment Dates: (a) interest on the Debt and (b) Administrative Expenses (assuming the Aggregate Outstanding Amount of the Debt shall remain the same).

"***Tax***": Any present or future tax, levy, impost, duty, charge or assessment of any nature (including interest, penalties and additions thereto) imposed by any governmental or other taxing authority other than a stamp, registration, documentation or similar tax.

"***Transaction Documents***": The Indenture, the Credit Agreement, the Notes, the Subscription Agreements, the Securities Account Control Agreement, the Cash Investment Agreement, the Management Deed, the Purchase Agreement, the Administration Agreement, the Collateral Administration Agreement, the Fee Letter, the Subscription Escrow Agreement, the DTC Agency Agreement, the Financial Reporting Services Agreement and, for so long as it is in effect, the Liquidity Loan Facility.

"***U.S. Persons***" or "***U.S. persons***" has the meaning set forth in Regulation S under the Securities Act.

"***UCC***": The Uniform Commercial Code as in effect in the State of New York or, if different, the political subdivision of the United States that governs the perfection of the relevant security interest as amended from time to time.

"***Underlying Fund Documents***": The subscription agreement, limited partnership agreement, investment management agreement, side letters and similar instruments, deeds, agreements and documents relating to the Fund entered into by the Issuer.

"***Voting Right (Majority)***": Any Voting Right in respect of a matter set forth in Section 1 of Annex A.

"***Voting Right (Supermajority)***": Any Voting Right in respect of a matter set forth in Section 2 of Annex A.

"***Voting Right (75%)***": Any Voting Right in respect of a matter set forth in Section 3 of Annex A.

Voting Rights": Any and all rights of the Issuer as holder of the Portfolio Assets to:

(a) instruct any action under any Underlying Fund Document or otherwise in respect of the Portfolio Assets or any Underlying Fund Document;

(b) vote on or consent to any waiver, amendment, supplement or other modification with respect to the Portfolio Assets or any Underlying Fund Document;

(c) seek clarification in relation to or to dispute any calculation, determination or notice originating from a third party with respect to the Portfolio Assets or any Underlying Fund Document;

(d) request reports, certificates, statements, notices and other information relating to the Portfolio Assets to which holders of the Portfolio Assets or their respective nominees are entitled;

(e) exercise any remedy under any Underlying Fund Document;

(f) make any discretionary determination as to the satisfactory performance or fulfilment of one or more duties or conditions by any party under any Underlying Fund Document; or

(g) exercise any other rights under any Underlying Fund Document or otherwise in respect of the Portfolio Assets or any Underlying Fund Document.

INDEX OF DEFINED TERMS

$

$.. xiii

2

25% Limitation 110

A

acceleration 54
Accounts 88
Accredited Investors 3
Additional Cash Investment 83
Additional Payment 83
Administration Agreement 98
Administrative Expense Cap 129
Administrative Expenses 129
Administrator 98
Advisory Committee 80
Affiliate 129
Aggregate Outstanding Amount 130
AIFM 71
AIFM Directive 71
AML and Sanctions Laws 121
AML Compliance 130
Anniversary 77
ASIC vii
Asset Value 130
Assets 70
Available Proceeds 88

B

Bank 130
Bankruptcy Subordination Agreement 62
Benefit Plan Investors 111
Borrowing Base 130
Brexit 15
Business Day 130
BVI Companies vii

C

Capital Calls 4
Capital Commitment 130
Carried Interest 78
Cash 130
Cash Investment 83
Cash Investment Agreement 83
Cash Investment Amount 83
Cash Investment Payment 83
Cash Investment Prepayment Fee 84
Cash Investment Repayment Amount 83
Cause Event 96
Cayman AML Regulations 130
Cayman FATCA Legislation 43
Cayman-US IGA 130
Certificated Notes 64
CFC 102
CFTC iv
Change of Control 73
Claims 81
Class 130
Class A Debt 131
Class A Lender 131
Class A Loans i
Class A Notes i
Class B Notes i
Class I Subordinated Notes i
Class II Subordinated Notes i
Clawback Amount 6
Clearstream 131
Closing Date i
Code 131
Collateral Administration Agreement 98
Collateral Administrator 3
Collateral Trustee 3
Collection Account 87
Collection Period 131
Coller 131
Coller Activities 74
Coller Commitment 71
Coller Competitor 131
Coller Executive 45
Coller Group 131
Commitment Amount 4
Commitment Fee 90
Concentration Measure 131
Conforming Credit Agreement Amendment 69
Controlling Class 131
Controlling Person 111
Corporations Act vii
Credit Agreement 3
CRR 33
CRS 108
Custodial Account 87
Custodian 87
Cut-Off Date 131

D

Data Protection Legislation 35
Debt i
Debtors 84
Default 131
Defaulting Partner 131
Deferred Fee Rate 95

Deferred Interest 132
Depository Event 64
Direct Purchase Notes i
Directing Party 87
Disqualified Person 110
Distribution Conditions 132
Distribution Report 56
Dodd-Frank Act xiv
Dollars xiii
Downgraded Lender 91
DTC i
DTC Agency Agreement 132

E

EEA vi
Eligible Institution 88
Eligible Investment Required Ratings 132
Eligible Investments 132
Emerging Markets Countries 24
ERISA Plans 110
EU xii
EU Risk Retention Requirements 33
Euroclear 133
European Securitization Rules ..... xii, 33
Event of Default 53
Excess Concentration Percentage 133
Excess Distribution 103
Exchange Act 134

F

Facility Maturity Date 90
FATCA 134
Fee Letter 134
FIEL ix
Final Closing Date 76
Final Maturity Date 6
Financial Reporting Agent 134
Financial Reporting Services Agreement 134
Fitch 134
FRA 35
Fund i
Fund Cause Event 75
Fund FMV 134
Fund General Partner 82
Fund Indemnified Persons 81
Fund Investment Adviser 82
Fund Investment Period 134
Fund Liquidation Date 134
Fund LPA 134, 2
Fund Manager 82
Fund Portfolio Investment 21
Fund Side Letter 80
Fund Vehicles 71
Further Cash Investment 83

G

Global Notes. 63

H

Hedge Counterparties 84
holder xiii
Holder xiii
Holder AML Information 134

I

Indenture 134
Initial Capital Contribution 82
Initial Cash Investment 83
Initial Majority Class A Investor 134
Initial Principal Balance 134
Initial Purchaser ..... i, 115
Initial Term Date 77
Intercreditor Agreement 84
Interest Accrual Period 134
Interest Rate 5
Invested Capital 77
Investment Advisers Act 135
Investment Company Act ..... i, 135
Investment Period 73
Investor Default 76
Investor Materials 11
IRR 29
IRS 135
Issuer ..... i, 3
Issuer Ordinary Shares 97

J

Junior Cash Investment Liabilities 85
Junior Class 135
Junior Hedging (Lender) Discharge Date 86
Junior Hedging (Lender) Liabilities 85
Junior Hedging (Non-Lender) Liabilities 85

K

Key Person 74
Key Person Event 73
Kroll 135

L

LIBOR 90
Liquidation Event 7
Liquidation Priority of Payments 7
Liquidity Agent 135
Liquidity Lenders 4
Liquidity Loan Event of Default 91
Liquidity Loan Facility 4
Liquidity Loans 4
Loan Agent 3
Loan Register 135

Loan-to-Value Ratio 135
Long Stop Date 76
LP Interest i

M

Majority 135
Management Charge 77
Management Deed 135
Manager ..... i, 3
Manager Debt 135
Manager Fee 12
Manager Information 95
Manager Parties 95
Maturity 135
Maturity Date 92
Maximum Commitment Amount 4
Memorandum and Articles 135
MiFID II vi
Minimum Denominations 3
Minimum Risk Retention Requirement 32
Moody's 135

N

NAIC 41
NI 33-105 viii
No Fault Divorce 75
Non-Call Period 135
Non-Permitted AML Holder 135
Non-Permitted ERISA Holder 112
Non-U.S. Holder 100
Notes ..... i, 136
NRSRO 39

O

offshore transaction 136
OID 102
Optional Redemption 136
Order vi
Ordinary Priority of Payments 6
Other Plan Law 110
Outstanding 136

P

Pari Passu Class 136
Party in Interest 110
Payment Account 88
Payment Date 5
PCL 35
Permitted Senior Payments 85
Person ..... iv, 136
Petition Expense Amount 62
Petition Expenses 62
PFIC 102
Plan Asset Regulation 110
Plan Fiduciary 112
Plans 110
Portfolio Asset i
Portfolio Asset Expenses 20
Portfolio Assets i
Portfolio Company Fees 22
Preferred Return 78
PRIIPs Regulation vi
Priority Class 136
Priority of Payments 8
Proceeding 120
Prospectus Regulation vi
PTCE 111
Purchase Agreement 115
Purchased Notes 115

Q

QEF 102
Qualified Institutional Buyers 3
Qualified Purchasers 3

R

Rating Agency 136
Rating Condition 137
Rating Criteria 137
Record Date 137
Redemption by Liquidation 50
Redemption Date 137
Redemption Price 10
Refinancing 50
Refinancing Date 137
Refinancing Priority of Payments 8
Refinancing Proceeds 137
Regulation S 137
Regulation S Global Notes 63
Regulations 35
Reinvestment Agreement 137
Relevant Persons vi
Reserve Account 88
Rule 144A 137
Rule 144A Global Notes 63
Ruling 34

S

S&P 137
Sale Proceeds 137
SEC iii
Secondaries 71
Section 3(c)(1) xiv
Section 3(c)(7) xiv
Secured Debt i
Secured Notes i
Securities Account Control Agreement 137
Securities Act ..... i, 137
Security Agent 84
Senior Agent 84

Senior Commitments 85
Senior Discharge Date 85
Senior Event of Default 85
Senior Facility 84
Senior Facility Liabilities 84
Senior Hedging Liabilities 85
Senior Hedging Liabilities Capped Amount 84
Senior Lenders 84
Senior Liabilities 85
Series A Interests 71
Series B Interests 71
SFA xi
Share Trustee 97
SIBA vii
Similar Law 110
Stabilizing Manager xi
STAMP 63
Standard of Care 94
Step Down Date 77
Sub-Class 137
Subordinated Notes i
Subordinated Notes Redemption 51
Subscription Agreements 137
Subscription Escrow Agent 137
Subscription Escrow Agreement 137
Subsequent Capital Contribution 83
Substantially Invested 72
Successor Fund 72
Supermajority 138
Suspension Period 74
Switzerland xi

T

Target Balance 138
Tax 138
Tax Event 51
Tax Redemption 51
Terms Table 1
Terrorism Law 35
TIN 107
Total Capital Commitments 72
Total Redemption Amount 50
Transaction Documents 138
Transaction Fees 79
Transaction Party 111
Transition Period 15
Treasury 42

U

U.S. xiii
U.S. Dollars xiii
U.S. Holder 100
U.S. persons 138
U.S. Persons 138
U.S. Risk Retention Rules 32
U.S.$ xiii
UCC 138
UK vi
Underlying Fund Documents 138
United States xiii
Unsolicited Ratings 39
USA PATRIOT Act 42

V

Volcker Changes 31
Volcker Rule xiv
Voluntary Cash Investment Prepayment Amount 84
Voting Right (75%) 138
Voting Right (Majority) 138
Voting Right (Supermajority) 138
Voting Rights 138

ANNEX A
VOTING RIGHTS

(1) Voting Rights (Majority)

(a) Termination of the Investment Period following a Change of Control or Cause Event (Clauses 4.4.1(d) and (e) of the Fund LPA)

(b) Lifting a suspension of the Investment Period following a Cause Event (Clause 4.4.1(e) of the Fund LPA)

(c) Lifting a suspension period following Key Person Event (Clause 5.8.2(a) of the Fund LPA)

(d) Lifting a no fault suspension of the Investment Period (Clause 5.9 of the Fund LPA)

(e) Appointment of Replacement Key Persons (Definition of "Key Person", Clause 1.1 of the Fund LPA)

(f) Removal of the General Partner following Cause Event (Clause 10.1.1(b) of the Fund LPA)

(g) Continuing the term of the Fund with a replacement General Partner following termination for bankruptcy of the General Partner or a Cause Event (Clause 10.3.1 of the Fund LPA)

(h) Termination of Investment Period following a Jeremy Coller departure event (Clause 5.8.3 of the Fund LPA)

(i) Designation of a third party liquidator following a termination of the Fund under Clause 10.1.1(b) or 10.1.1(c) of the Fund LPA (Clause 10.4.2. of the Fund LPA)

(j) Approval of amendments to the Fund LPA, except where the amendment in question would amend any requirement under the Fund LPA for an Investor Two-Thirds Consent or Investor Special Consent (Clause 15.4.1 of the Fund LPA)

(k) Extension of the Term (Clause 10.2 of the Fund LPA)

(2) Voting Rights (Supermajority)

(a) Continuation of the Fund with a replacement General Partner following removal of the General Partner without cause (i.e. following no fault termination of the General Partner) (Clause 10.3.1 of the Fund LPA)

(b) Approval of amendments to the Fund LPA which would amend any requirement under the Fund LPA for an Investor Two-Thirds Consent (Clause 15.4.1 of the Fund LPA)

(3) Voting Rights (75%)

(a) Removal of the General Partner without cause (i.e. no fault ending of the term of the Fund) (Clause 10.1.1(a) of the Fund LPA)

(b) "No Fault" suspension of the Investment Period (Clause 5.9 of the Fund LPA)

(c) Consensual termination of the Fund (Clause 10.1.1(d) of the Fund LPA)

(d) Transfer of the General Partner's interest in the Fund to a third party (Clause 9.1 of the Fund LPA)

(e) Approval of amendments to the Fund LPA which would amend any requirement under the Fund LPA for an Investor Special Consent (Clause 15.4.1 of the Fund LPA)

Capitalized terms used in this Annex A shall have the respective meanings set forth in the Fourth Amended and Restated Agreement of Limited Partnership, dated May 13, 2020 (together with any side letters thereto and as amended, restated, supplemented or otherwise modified from time to time, the "***Fund LPA***"), among Coller International General Partner VIII, L.P., Coller International Partners VIII Feeder Fund, L.P. and the limited partners party thereto constituting Coller International Partners VIII, L.P (the "Fund").

PRINCIPAL OFFICE OF ISSUER

CIP VIII Private Equity Backed Notes Ltd
c/o Walkers Fiduciary Limited
Cayman Corporate Centre
27 Hospital Road, George Town
Grand Cayman KY1-9008
Cayman Islands

COLLATERAL TRUSTEE AND PAYING AGENT

The Bank of New York Mellon Trust Company, National Association
601 Travis Street, 16th Floor
Houston, TX 77002

MANAGER

Coller Investment Management Limited
Park House, 116 Park Street
London W1K 6AF
England

LEGAL ADVISORS

To the Issuer and the Initial Purchaser
as to United States law
Cadwalader, Wickersham & Taft LLP
700 Sixth Street, N.W.
Washington, DC 20001

To the Issuer as to
Cayman Islands law
Walkers
190 Elgin Avenue, George Town
Grand Cayman KY1-9001
Cayman Islands

To the Manager
as to United States law
Clifford Chance US LLP
31 West 52nd Street
New York, NY 10019